AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

FEDERAL REGISTER

VOLUME 10 NUMBER 76

Washington, Tuesday, April 17, 1945

The President

EXECUTIVE ORDER 9538

AUTHORIZING CERTIFICATION FOR PROBATIONAL APPOINTMENT OF PERSONS WHO LOST OPPORTUNITY FOR PROBATIONAL APPOINTMENT BECAUSE OF ENTRY INTO THE ARMED FORCES

By virtue of the authority vested in me by section 1753 of the Revised Statutes and by section 2 of the Civil Service Act (22 Stat. 403), it is hereby ordered as follows:

The Civil Service Commission is authorized to certify for probational appointment any person (1) whose name appeared on any list of eligibles at any time between May 1, 1940, and March 16, 1942, with respect to positions generally, or between May 1, 1940, and October 23, 1943, with respect to positions in the field service of the Post Office Department, (2) who entered the armed forces of the United States between such dates and was separated therefrom under honorable conditions and is still qualified to perform the duties of the position, (3) who stood higher on such list of eligibles than another applicant who received a probational appointment therefrom, and (4) who requests restoration to the list of eligibles, or certification, within ninety days after the termination of service in the armed forces or of hospitalization continuing after discharge for a period of not more than one year, or within ninety days after the date of this order, whichever is later: *Provided*, That this order shall not apply in any case in which the list of eligibles had expired prior to the entry of the applicant into the armed forces and the Commission had not sustained objections to his certification from such list because of his draft status.

HARRY S. TRUMAN

THE WHITE HOUSE,
April 13, 1945.

[F. R. Doc. 45-6021; Filed, Apr. 14, 1945; 11:46 a. m.]

EXECUTIVE ORDER 9539

REINSTATING AVRA M. WARREN IN THE FOREIGN SERVICE OF THE UNITED STATES

NOTE: Executive Order 9539, dated April 13, 1945, was filed with the Division of the Federal Register as Document No. 45-3781 (NP) on April 14, 1945, at 11:46 a. m.

Regulations

TITLE 7—AGRICULTURE

Chapter XI—War Food Administration (Distribution Orders)

[WFO 8, Amdt. 8]

PART 1401—DAIRY PRODUCTS

FROZEN DAIRY FOODS AND MIX

War Food Order No. 8 (8 F.R. 953), as amended (8 F.R. 12163, 9 F.R. 4321, 4319, 4735, 5767, 9584, 10 F.R. 103, 2473), is further amended to read as follows:

§ 1401.31 *Frozen dairy foods and mix, limitations with respect to the production thereof*—(a) *Definitions.* (1) "Processor" means any person engaged in the manufacture of frozen dairy foods or mix.

(2) "Frozen dairy foods" means any frozen or partially frozen food products (including ice cream, French ice cream, ice milks, milk ices, frozen custards, sherbets, and other similar preparations) containing milk fat and sugar, together with stabilizers, extracts, fruits, nuts, coloring, or flavoring materials.

(3) "Mix" means any liquid or dried unfrozen preparation (including ice cream mix, ice cream powders, milk ice mix, ice milk mix, milk shake mix, and other similar preparations), containing milk fat and sugar, that is used directly in the freezing of a frozen dairy food.

(4) "Person" means any individual, partnership, association, business trust, corporation, or any organized group of persons, whether incorporated or not.

(5) "Governmental agency" means (i) the Armed Services of the United States with respect to purchases made with funds appropriated by Act of Congress;

(Continued on p. 4059)

CONTENTS

THE PRESIDENT

EXECUTIVE ORDERS: Page

Probational appointment of persons who lost opportunity because of entry into armed forces, authorizing certification 4057

Warren, Avra M.; reinstatement in Foreign Service of U. S. 4057

REGULATIONS AND NOTICES

ALIEN PROPERTY CUSTODIAN:
Vesting orders:
Huber, Mrs. Jakob, et al. 4113
Ore & Chemical Corp. 4113

DEFENSE SUPPLIES CORPORATION:
Mid-continent crude compensatory adjustments 4108

FEDERAL TRADE COMMISSION:
Cease and desist orders:
Coast Fishing Co. 4061
London Handkerchief Co., Inc., et al. 4061

INTERIOR DEPARTMENT:
Taos Projection and Grazing District No. 1, New Mexico, modification, and reduction of stock driveway withdrawal 4110

INTERSTATE COMMERCE COMMISSION:
Bauxite ore, restriction from New York harbor area 4109
Potatoes from Maine, icing restrictions 4109
Reconsignment permits:
Cabbage, Chicago, Ill. 4111
Potatoes, Chicago, Ill. 4111
Tomatoes, Chicago, Ill. 4111
Refrigeration permits:
Citrus fruits, Florida (4 documents) 4111, 4112
Oranges:
Florida 4112
Montgomery, Ala. 4112
Orlando, Fla. 4112
Shell eggs, Washington, D. C. 4112

OFFICE OF DEFENSE TRANSPORTATION:
Certain carriers, coordinated operations:
Alabama 4116
Arizona 4114
Dayton and Chillicothe, Ohio 4114
Marshalltown and Mason City, Iowa 4114

(Continued on p. 4058)

FEDERAL REGISTER

Published daily, except Sundays, Mondays, and days following legal holidays, by the Division of the Federal Register, the National Archives, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U.S.C., ch. 8B), under regulations prescribed by the Administrative Committee, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

The regulatory material appearing herein is keyed to the Code of Federal Regulations, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended June 19, 1937.

The FEDERAL REGISTER will be furnished by mail to subscribers, free of postage, for $1.50 per month or $15.00 per year, payable in advance. The charge for individual copies (minimum 15¢) varies in proportion to the size of the issue. Remit check or money order, made payable to the Superintendent of Documents, directly to the Government Printing Office, Washington 25, D. C.

There are no restrictions on the republication of material appearing in the FEDERAL REGISTER.

NOTICE

The 1943 Supplement to the Code of Federal Regulations, covering the period June 2, 1943, through December 31, 1943, may be obtained from the Superintendent of Documents, Government Printing Office, at $3.00 per book.

Book 1: Titles 1–31, including Presidential documents in full text.

Book 2: Titles 32–50, with 1943 General Index and 1944 Codification Guide.

CONTENTS—Continued

OFFICE OF DEFENSE TRANSPORTATION—Continued.
Certain carriers, coordinated operations—Continued. Page
Memphis, Tenn., and Fort Smith, Ark. 4116
Sayre and Texola, Okla. 4115
OFFICE OF ECONOMIC STABILIZATION:
Dairy production, 1945; subsidies and support prices 4108
Vegetables, canned, 1944; price stabilization 4108
OFFICE OF PRICE ADMINISTRATION:
Adjustments and pricing orders:
Alsted Coal Co., et al 4119
Associated Engineers, Inc., et al 4118
Brettell Coal Co., et al 4119
California Woodcrafters 4121
Catz American Co., Inc 4122
Denkert Mine, et al 4117
Franklin, John F., & Co 4121
Hall, C. M., et al 4117

CONTINUED—Continued

OFFICE OF PRICE ADMINISTRATION—Continued.
Adjustments and pricing orders—Continued. Page
Harvel Watch Co 4128
Holtite Mfg. Co 4126
Hood Rubber Co 4125
Kingston-Conley Electric Co 4129
Link, L., & Co., Inc 4124
Mansfield, Stuart 4125
Marietta Hollow-Ware & Enameling Co 4120
North American Import & Export Co 4122
Packer Bros 4124
Rockoff Mfg. Co 4120
Rodriguez & Garcia Cigar Co 4122
Royal Specialty Co 4121
Rubey, P. J., Co., Inc 4126
St. Louis Music Supply Co 4127
Samuels, George, & Associates 4123
Schwarz & Son 4123
Tarbert, John T 4126
Tegarden, Dorothy Crider 4127
Tower, A. J., Co 4124
Waverly Petroleum Products Co 4117
Aircraft lumber (RMPR 109, Am. 7) 4100
Arctic equipment, Army, and clay pigeons (Rev. SR 1, Am. 98) 4107
Bovine animals, live (MPR 574, Am. 2) 4099
Castings, nonferrous (RMPR 125, Am. 8) 4100
Chestnut extract (MPR 352, Am. 3) 4107
Commodities and services; pricing methods (MPR 188, Am. 53) 4107
Durable goods, certain (MPR 188, Am. 9 to 2d Rev. Order A–3) 4125
Electric irons (SR 14J, Am. 3) 4108
Food products sold at retail, pricing provisions (FPR 4) 4103
Food rationing for institutional users (Gen. RO 5, Am. 101) 4102
Fuels, solid; Washington and Alexandria, Va., adjustment (RMPR 122, Am. 20 to Rev. Order 47) 4127
Hawaii, mung beans (MPR 373, Am. 140) 4105
Insecticide sprayers, resales (SR 14J, Am. 2) 4102
Luggage frames (2d Rev. SR 14, Am. 6) 4107
Malt beverages (RMPR 259, Am. 5) 4106
Poles and piling, Western red cedar (MPR 554, Am. 1) 4100
Ration stamps and coupons, method of surrender and deposit (Gen. RO 7, Am. 15) 4103
Resins, natural (MPR 297, Am. 2) 4106
Sugar (2d Rev. RO 3, Am. 14) 4105
Virgin Islands, imported commodities (MPR 395, Am. 41) 4105
Wastepaper (MPR 30, Am. 11) 4103
Wheat (RMPR 487, Am. 5) 4101

CONTINUED—Continued

SECURITIES AND EXCHANGE COMMISSION:
Hearings, etc.: Page
North American Light & Power Co. and North American Co., et al 4129
Portland Electric Power Co. and Portland General Electric Co 4132
Seattle Gas Co 4130
STATE DEPARTMENT:
Foreign service; marriages, births, deaths, and estates 4061
TREASURY DEPARTMENT:
Foreign funds control:
France, transactions with 4062
Property reports, preparation:
Japanese nationals, foreign-owned property 4063
Philippine property 4063
Property subject to U. S. jurisdiction 4063
WAR DEPARTMENT:
Engineers Corps, bridge regulations; San Joaquin River, Lathrop, Calif 4108
WAR FOOD ADMINISTRATION:
Dairy foods, frozen, and mix (WFO 8, Am. 8) 4057
WAR PRODUCTION BOARD:
Acetone and diacetone (M–300, Sch. 102; M–352, revocation) (2 documents) 4097, 4098
Cellophane (L–20) 4096
Condensing units, cabinets, low-side units, and systems (P–126, Dir. 1) 4066
Greeting cards and illustrated post cards (L–289) 4087
Imports of strategic materials (M–63) 4083
Lactic acid (M–300, revocation of Sch. 43) 4097
Musical instruments (L–37–a) 4094
Paper and paperboard (M–241) 4091
Power, water, gas and steam heat; exemption of designated areas from application of U–9 (U–9, Dir. 2) 4098
Printing and duplicating, governmental commercial (L–340) 4089
Priorities system operation; WPB controls regarding idle or excess inventories (PR 1, Int. 14) 4083
Suspension orders:
Colton, Vic, Shoe Mfg 4064
Denuzze, Peter and Carmella 4064
Finn, Helmuth G 4064
Schick, Inc 4066
Smith, Julius H 4064
Vogue Shoe Co 4065
Textiles for civilian items (M–388) 4067
Cotton (M–388A) 4072
Synthetic fiber (M–388B) 4080
Wool (M–388C) 4081
U. S. Management & Engineering Co., Optical Manufacturers Group; approval of joint action plan (Certificate 202, revocation) 4132
Zinc (M–11–b) 4065

(ii) post messes, excluding post messes for civilian employees, organized and operating under Army Regulation 210–60; (iii) Commissioned Officers' Messes Closed of the U. S. Navy as defined in the regulations of the Bureau of Naval Personnel; (iv) Commissioned Officers' and Warrant Officers' Messes Closed as defined by the Commandant, U. S. Marine Corps, Letter of Instruction 949; (v) the United States Army Exchange Service and Post Exchanges, excluding purchases made for use in

(*a*) Service clubs;
(*b*) Officers' clubs;
(*c*) Noncommissioned officers' clubs;
(*d*) Post restaurants as defined in Army Regulation 210–100;
(*e*) Post messes for civilian employees as defined in Army Regulation 210–60; and
(*f*) Similar activities which are not owned and operated by the Exchange Service;

(vi) United States Marine Corps Post Exchanges; (vii) War Shipping Administration; (viii) United States Navy Ships' Service Departments; (ix) Veterans Administration; (x) contract schools, maritime academies, and marine hospitals as defined in War Food Order No. 73 (8 F.R. 7523), as amended (8 F.R. 13879, 15655, 9 F.R. 4321, 4319, 10036, 13741, 10 F.R. 103); (xi) licensed ship suppliers as defined in War Food Order No. 74 (8 F.R. 13880), as amended (8 F.R. 15655, 9 F.R. 4321, 4319, 8002, 10 F.R. 103); (xii) American Red Cross, if the frozen dairy foods and mix purchased by it are to be used by mobile units of the American Red Cross overseas for distribution to members of the United States Armed Forces; and (xiii) any other instrumentality or agency designated by the War Food Administrator.

(6) "Armed Services of the United States" means the Army, the Navy, the Marine Corps, and the Coast Guard of the United States.

(7) "Director" means the Director of Marketing Services, War Food Administration.

(8) "Base period" means the period from December 1, 1941, to November 30, 1942, both dates inclusive.

(9) "Quota period" means any calendar month.

(10) "Dairy and Poultry Branch Field Representative" means the person in charge of the appropriate field office of the Dairy and Poultry Branch, Office of Marketing Services, as follows:

(i) For the States of California, Washington, Oregon, Nevada, Arizona, Wyoming, Utah, Idaho, and Montana:

Western Field Office, Dairy and Poultry Branch, Office of Marketing Services, 821 Market Street, San Francisco, Calif.

(ii) For the States of Arkansas, Colorado, Kansas, Louisiana, New Mexico, Texas, and Oklahoma:

Southwest Field Office, Dairy and Poultry Branch, Office of Marketing Services, 425 Wilson Building, Dallas, Tex.

(iii) For the States of Alabama, Florida, Georgia, Kentucky, Mississippi, North Carolina, South Carolina, Tennessee, and Virginia:

Southern Field Office, Dairy and Poultry Branch, Office of Marketing Services, Western Union Building, Atlanta, Ga.

(iv) For the States of Illinois, Indiana, Iowa, Michigan, Minnesota, Missouri, Nebraska, North Dakota, Ohio, South Dakota, and Wisconsin:

Midwest Field Office, Dairy and Poultry Branch, Office of Marketing Services, 5 South Wabash Avenue, Chicago, Ill.

(v) For the States of Connecticut, Delaware, Maine, Maryland, Massachusetts, New Hampshire, New Jersey, New York, Pennsylvania, Rhode Island, Vermont, and West Virginia:

Northeast Field Office, Dairy and Poultry Branch, Office of Marketing Services, 150 Broadway, New York, N. Y.

(b) *Restrictions on production of frozen dairy foods and mix.* No processor may, during any quota period, utilize in the production of frozen dairy foods or mix more than 65 percent of the total milk fat used by the respective processor in the production of such products, respectively, during the corresponding month of the base period, exclusive of all such products delivered to a governmental agency by such processor during such base period.

(c) *Conversion of milk solids to milk fat.* (1) With respect to any authorization granted to a processor under War Food Order No. 8, as amended, prior to the effective time of the provisions hereof, such processor shall, for the quota periods covered by the letter of authorization, determine the amount of milk fat to which he shall apply the percentage specified in (b) hereof by applying 55 percent to the amount of total milk solids set forth in his letter of authorization.

(2) With respect to a processor who has agreed or has been required to compensate for excessive utilization of total milk solids under War Food Order No. 8, as amended, prior to the effective date of the provisions hereof, such processor shall, until the expiration of the period of time required for the complete compensation for such excessive utilization of total milk solids, determine the amount of milk fat which he shall deduct from his permissible quotas, in accordance with the provisions hereof, by applying 55 percent to the amount of milk solids which he has agreed or has been required to deduct.

(3) With respect to a processor who, subsequent to the effective date hereof, agrees or is required to compensate for an excessive utilization of total milk solids prior to March 1, 1945, the amount of milk fat which shall be deducted from such processor's permissible quotas, in accordance with the provisions hereof, shall be determined by applying 55 percent to the amount of milk solids for which compensation is to be made by such processor.

(4) With respect to a processor who has not included in his report on Form FDO 8–1 the number of pounds of milk fat utilized by such processor during the base period in the production of frozen dairy foods and mix for civilians, the milk fat quotas of such processor shall be determined by applying the percentage in (b) hereof to 50 percent of the total milk solids reported by such processor as having been used by him during each month in the base period: *Provided*, That if such processor reports the number of pounds of milk fat utilized by him during the base period in the production of frozen dairy foods and mix for civilians, the milk fat quotas of such processor shall thereafter be determined pursuant to (b) hereof.

(d) *Government agency exemption.* Frozen dairy foods or mix delivered to a governmental agency shall be exempt from (b) hereof if the processor making such delivery maintains for at least two years, after the date of such delivery, the following certificate with respect to the respective delivery, such certificate being duly executed by the person to whom the delivery is made and with the appropriate information being inserted in the blank spaces:

The undersigned certifies and represents to the War Food Administrator that _____ gallons of frozen dairy foods or mix containing _____ pounds of milk fat have been delivered to _____,
(Indicate specific name of receiving agency)
a quota exempt agency as defined in (a) (5) of War Food Order No. 8, as amended, the terms of which order, as amended, are familiar to me; and the specific type of governmental agency receiving such frozen dairy foods or mix is indicated by a check mark opposite the name of such agency, as follows:

☐ Armed Services of the United States with respect to purchases made with funds appropriated by Act of Congress
☐ Post messes, excluding post messes for civilian employees, organized and operating under Army Regulation 210–60
☐ Commissioned Officers' Messes Closed of the U. S. Navy as defined in the regulations of the Bureau of Naval Personnel
☐ Commissioned Officers' and Warrant Officers' Messes Closed as defined by the Commandant, U. S. Marine Corps, Letter of Instruction 949
☐ The United States Army Exchange Service and Post Exchanges, excluding purchases made for use in
  (a) Service clubs;
  (b) Officers' clubs;
  (c) Noncommissioned officers' clubs;
  (d) Post restaurants as defined in Army Regulation 210–100;
  (e) Post messes for civilian employees as defined in Army Regulation 210–60; and
  (f) Similar activities which are not owned and operated by the Exchange Service
☐ United States Marine Corps Post Exchanges
☐ War Shipping Administration
☐ United States Navy Ships' Service Departments
☐ Veterans Administration
☐ Contract schools, maritime academies, and marine hospitals as defined in War Food Order No. 73, as amended
☐ Licensed ship suppliers as defined in War Food Order No. 74, as amended
☐ American Red Cross, if the frozen dairy foods and mix purchased by it are to be used by mobile units of the American Red Cross overseas for distribution to members of the United States Armed Forces
☐ Any other instrumentality or agency designated by the War Food Administrator

_____
(Name)

_____ _____
(Date) (Title)

(e) *Equitable distribution.* It is hereby declared to be the policy of the War Food Administration that every processor shall make equitable distribution among those persons supplied by such processor during the base period of the frozen dairy foods and mix manufactured by such processor. All processors shall observe such policy in selling or distributing the frozen dairy foods and mix which they process. In the event the Director finds that the distribution made by a processor in any particular instance is not equitable, the Director may prohibit the particular processor from making any further distribution of such frozen dairy foods and mix except such as may be specified by the Director as being equitable. Any failure to observe any such direction by the Director shall be a violation of this order.

(f) *Option with respect to multiple plant operations.* Upon approval by the Director of a written request by an operator having multiple plant operations, such plants shall be considered separately in the application of the provisions hereof: *Provided,* That any such processor shall promptly report to the Director any transfer of a milk fat quota from one plant to another plant. The foregoing report shall be submitted to the Dairy and Poultry Branch Field Representative for the area where such processor's main office is located during the first quota period affected by any such transfer. Such report shall be accompanied by a statement of the reasons for making such transfer.

(g) *Records and reports.* (1) Each processor who has not correctly completed Form FDO 8–1, entitled "Production Report of Frozen Dairy Foods and Mix," and filed such report with the Administrator, WFO 8, United States Department of Agriculture, Washington 25, D. C., shall correctly complete said Form FDO 8–1 and mail the completed form to the Dairy and Poultry Branch Field Representative for the respective region in which the processor's plant is located. The report shall be mailed to the Dairy and Poultry Branch Field Representative within 21 calendar days after the effective date hereof.

(2) Each processor who manufactures mix shall correctly complete and submit "Dairy Products Report No. 1" (i. e., USDA Form C. E. 9–119, revised) to the United States Department of Agriculture, P. O. Box 6910–A, Chicago, Illinois, except that a processor who used less than 5,000 pounds of milk solids in the manufacture of mix during the base period and who manufactures no other dairy product is exempted from this reporting requirement. The aforesaid report shall, for each plant of the processor, be submitted each calendar month not later than the close of the 10th day of the calendar month following the calendar month for which the report is intended.

(3) Each processor who manufactures mix and who utilized 5,000 pounds or more of milk solids in the manufacture of frozen dairy foods or mix, or both, during the base period shall correctly complete form "Dairy Products Report No. 4—Ice Cream", for each calendar month during which the respective processor manufactures mix, and shall, on or before the close of the tenth calendar day of the calendar month next succeeding the calendar month during which the processor manufactured mix, mail such completed form to the United States Department of Agriculture, Post Office Box 6910A, Chicago, Illinois. This report shall be submitted for each plant of the processor.

(4) Each processor who purchases all of the mix used by him in the manufacture of frozen dairy foods and who utilized 5,000 pounds or more of milk solids in the manufacture of frozen dairy foods, during the base period, shall correctly complete and submit "Dairy Products Report No. 5—Frozen Dairy Foods" for each calendar month during which the respective processor purchases mix, and shall, on or before the close of the 10th calendar day of the calendar month next succeeding the calendar month during which the respective processor purchased mix, mail such completed form to the United States Department of Agriculture, Division of Agricultural Statistics, Bureau of Agricultural Economics, Washington 25, D. C. The foregoing report shall be submitted for each plant of the processor.

(5) The Director shall be entitled to obtain such additional information from, and require such additional reports and the keeping of such records by, any person, as may be necessary or appropriate, in the Director's discretion, to the enforcement or administration of the provisions of this order, subject to the approval of the Bureau of the Budget, in accordance with the Federal Reports Act of 1942.

(6) Each person subject to this order shall, for at least two years (or for such period of time as the Director may designate), maintain an accurate record of his transactions in frozen dairy foods and mix.

(h) *Audits and inspections.* The Director shall be entitled to make such audit or inspection of the books, records and other writings, premises or stocks of frozen dairy foods and mix of any person, and to make such investigations, as may be necessary or appropriate, in the Director's discretion, to the enforcement or administration of the provisions of this order.

(i) *Petition for relief from hardship.* Any person affected by this order, who considers that compliance herewith would work an exceptional and unreasonable hardship on him, may file a petition for relief with the Dairy and Poultry Branch Field Representative serving the area in which such person resides or does business. Petitions for such relief shall be in writing, and shall set forth all pertinent facts and the nature of the relief sought. If such person is dissatisfied with the action taken on the petition by the Dairy and Poultry Branch Field Representative, he may, by requesting the Dairy and Poultry Branch Field Representative therefor, secure a review of such action by the Director. The Director may, after such review, take such action as he deems appropriate, and such action shall be final. The provisions of this paragraph (i) shall not be construed to deprive the Director of authority to consider originally any petition for relief from hardship submitted in accordance herewith. The Director may consider any such petition and take such action with reference thereto that he deems appropriate, and such action shall be final.

(j) *Violations.* Any person who violates any provision of this order may, in accordance with the applicable procedure, be prohibited from receiving, making any deliveries of, or using frozen dairy foods and mix. In addition, any person who wilfully violates any provision of this order is guilty of a crime and may be prosecuted under any and all applicable laws. Further, civil action may be instituted to enforce any liability or duty created by, or to enjoin any violation of, any provision of this order.

(k) *Delegation of authority.* The administration of this order and the powers vested in the War Food Administrator, insofar as such powers relate to the administration of this order, are hereby delegated to the Director. The Director is authorized to redelegate to any employee of the United States Department of Agriculture any or all of the authority vested in him by this order.

(l) *Communications.* All reports required to be filed hereunder shall be addressed in conformity with the instructions specified in the respective form required to be submitted. All other communications concerning this order shall, unless instructions to the contrary are issued by the Director, be addressed to the Dairy and Poultry Branch Field Representative serving the area in which the person affected by this order resides or does business.

(m) *Territorial scope.* This order shall apply only to the area included in the 48 States of the United States and the District of Columbia.

(n) *Certain Director's orders are terminated.* War Food Order No. 8–1 (8 F.R. 1330), issued on February 1, 1943, specifying allocation periods, and War Food Order No. 8–2 (8 F.R. 15204), issued on November 4, 1943, and War Food Order No. 8–3 (9 F.R. 4675), issued on May 1, 1944, are terminated.

(o) *Effective date.* The provisions of this amendment shall become effective at 12:01 a. m., e. w. t., April 14, 1945. With respect to violations, rights accrued, liabilities incurred, or appeals taken under said War Food Order No. 8, as amended, prior to the effective time of the provisions hereof or under War Food Order No. 8–1, War Food Order No. 8–2, or War Food Order No. 8–3 prior to the effective time of the provisions hereof, the provisions of said orders, in effect prior to the effective time hereof, shall be deemed to continue in full force and effect for the purpose of sustaining any proper suit, action, or other proceeding with respect to any such violation, right, liability, or appeal.

NOTE: All reporting and record-keeping requirements of this order have been ap-

proved by, and subsequent reporting and record-keeping requirements will be subject to the approval of, Bureau of the Budget in accordance with the Federal Reports Act of 1942.

(E.O. 9280, 7 F.R. 10179; E.O. 9322, 8 F.R. 3807; E.O. 9334, 8 F.R. 5423; E.O. 9392, 8 F.R. 14783)

Issued this 12th day of April 1945.

ASHLEY SELLERS,
Assistant War Food Administrator.

[F. R. Doc. 45-5951; Filed, Apr. 13, 1945; 1:21 p. m.]

TITLE 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

[Docket No. 5197]

PART 3—DIGEST OF CEASE AND DESIST ORDERS

COAST FISHING CO.

§ 3.45 (e) *Discriminating in price—Indirect discrimination—Brokerage payments.* In connection with the sale and distribution of sea-food products or other merchandise in commerce, paying or granting, directly or indirectly, anything of value as a commission or brokerage, or any compensation, allowance, or discount in lieu thereof to any purchaser upon purchases for his own account, or to any agent, representative, or other intermediary acting in fact for or in behalf of or subject to the direct or indirect control of the purchaser to whom sale is made; prohibited. (Sec. 2 (c), 49 Stat. 1527; 15 U.S.C., sec. 13 (c)) [Cease and desist order, Coast Fishing Company, Docket 5197, March 26, 1945]

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 26th day of March, A. D. 1945.

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, the answer of respondent admitting the material allegations of fact set forth in said complaint, and a waiver of all intervening procedure and further hearing as to said facts, and the Commission having made its findings as to the facts and its conclusion that said respondent has violated the provisions of subsection (c) of section 2 of "An Act to supplement existing laws against unlawful restraints and monopolies, and for other purposes," approved October 15, 1914, (the Clayton Act) as amended by an act of Congress approved June 19, 1936, (the Robinson-Patman Act—U. S. C. Title 15, Sec. 13):

It is ordered, That respondent Coast Fishing Company, a corporation, its officers, directors, representatives, agents, and employees, directly or through any corporate or other device, in or in connection with the sale and distribution of sea-food products or other merchandise in commerce, as "commerce" is defined in the aforesaid Clayton Act, do forthwith cease and desist from:

Paying or granting, directly or indirectly, anything of value as a commission or brokerage, or any compensation, allowance, or discount in lieu thereof to any purchaser upon purchases for his own account, or to any agent, representative, or other intermediary acting in fact for or in behalf of or subject to the direct or indirect control of the purchaser to whom sale is made.

It is further ordered, That respondent shall, within sixty (60) days after the service upon it of this order, file with the Commission a report in writing setting forth in detail the manner and form in which it has complied with this order.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 45-6076; Filed, Apr. 16, 1945; 11:16 a. m.]

[Docket No. 5212]

PART 3—DIGEST OF CEASE AND DESIST ORDERS

LONDON HANDKERCHIEF CO., INC., ET AL.

§ 3.69 (b) *Misrepresenting oneself and goods—Goods—Qualities or properties:* § 3.71 (c5) *Neglecting, unfairly or deceptively, to make material disclosure—Qualities or properties.* In connection with the offering for sale, sale, and distribution in commerce, of handkerchiefs, (1) selling or distributing handkerchiefs, which are seconds, rejects, or irregulars, so packaged as not to be readily subject to inspection by the purchaser, without clearly disclosing on such package that the handkerchiefs are seconds, rejects, or irregulars; or (2) representing, directly or by implication, that handkerchiefs which are seconds, rejects, or irregulars are well made or good quality handkerchiefs; prohibited. (Sec. 5, 38 Stat. 719, as amended by sec. 3, 52 Stat. 112; 15 U.S.C., sec. 45b) [Cease and desist order, London Handkerchief Company, Inc., et al., Docket 5212, March 26, 1945]

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 26th day of March, A. D. 1945.

In the Matter of London Handkerchief Company, Inc., a Corporation, and Harry Steinberg, an Individual and an Officer of London Handkerchief Company, Inc.

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission and the answer of the individual respondent, Harry Steinberg, in which answer said respondent admitted all the material allegations of fact set forth in said complaint and waived all intervening procedure and further hearing as to said facts, and the Commission having made its findings as to the facts and its conclusion that said respondent has violated the provisions of the Federal Trade Commission Act:

It is ordered, That respondent Harry Steinberg, his representatives, agents, and employees, directly or through any corporate or other device, in connection with the offering for sale, sale, and distribution in commerce, as "commerce" is defined in the Federal Trade Commission Act, of handkerchiefs, do forthwith cease and desist from:

1. Selling or distributing handkerchiefs which are seconds, rejects, or irregulars, so packaged as not to be readily subject to inspection by the purchaser, without clearly disclosing on such package that the handkerchiefs are seconds, rejects, or irregulars.

2. Representing, directly or by implication, that handkerchiefs which are seconds, rejects, or irregulars are well made or good quality handkerchiefs.

It is further ordered, That respondent Harry Steinberg shall, within sixty (60) days after service upon him of this order, file with the Commission a report in writing setting forth in detail the manner and form in which he has complied with this order.

It is further ordered, In view of the dissolution of the corporate respondent, London Handkerchief Company, Inc., that the complaint herein be, and the same hereby is, dismissed as to said respondent.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 45-6075; Filed, Apr. 16, 1945; 11:15 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

Subchapter B—The Foreign Service

[Foreign Service Regs. S-5]

PART 113—MARRIAGES, BIRTHS, DEATHS, AND ESTATES

ESTATES

Pursuant to the authority vested in me by R.S. 1709, 1710 and 1711, as amended by the act of July 12, 1940 (22 U.S.C. 75, 76 and 77), and by Executive Order 9452 of June 26, 1944 (9 F.R. 7183), as amended by Executive Order 9514 of January 18, 1945 (10 F.R. 771); and by Executive Order 9521 of February 13, 1945 (10 F.R. 1991), sections 1 to 8, inclusive, of this regulation are prescribed to constitute Title 22, Cum. Supp., Part 113, §§ 113.9, 113.10, 113.11, 113.12, 113.13, 113.14, 113.15, and 113.16 of the Code of Federal Regulations, in place of the present language of said sections and in place of the provisions of §§ 113.17, 113.18 and 113.19, the substance whereof has been included in the several sections of this regulation.

§ 113.9 *Consular functions in connection with personal estates of deceased American citizens.* A consular officer, or in his absence, a diplomatic officer, should, if treaty provisions, local law or established usage permit, act as the provisional conservator of the personal property within his jurisdiction of a deceased citizen of the United States who

died within, or is domiciled at the time of death in, his jurisdiction.

The duties and responsibilities of an officer of the Foreign Service as provisional conservator of the personal estate of a deceased American citizen who has left no legal representative, partner in trade, or trustee by him appointed, to take charge of such estate shall be as follows:

(a) Take possession of the personal estate;

(b) Inventory and appraise the effects;

(c) Sell perishable portions of the personal property;

(d) Collect and pay debts;

(e) Hold the personal estate subject to the demand of the legal representative of the deceased;

(f) Collect the prescribed fees;

(g) Dispose of the residue of the personal estate;

(h) Account for receipts and expenditures.

(22 U.S.C. 75)

§ 113.10 *Duties and responsibilities when decedent leaves a will*—(a) *Officers held to strict observance of directions in will.* If the decedent leaves a will containing special directions for the custody and management of his personal property by the consular officer, the officer should strictly observe such directions in so far as he has authority so to do in his capacity as provisional conservator.

(b) *Duty of officers toward representative appointed by will.* If there is present in the consular district a legal representative, partner in trade, or trustee appointed by the decedent, or any person other than the consular officer, appointed by will to take charge of the personal estate of the decedent, the consular officer should, if required by the person in question, extend any official aid necessary to facilitate the proceedings of such person and to aid in the transmission of the effects and estate to the United States. If the laws of the country permit, the officer should protect the property of the decedent from interference on the part of the local authorities by placing his seal on the personal property and effects of the deceased, such seal to be broken or removed only on the request of the lawful conservator thereof. (22 U.S.C. 77)

§ 113.11 *Effects of citizens of the United States (except seamen) dying on the high seas.* If the effects of a citizen of the United States (not a seaman) who dies while on the high seas are brought to a consular officer for custody, he should endeavor to have either the relative or friend, if any, traveling with the deceased or the captain of the vessel, if it be of American registry, retain custody thereof. If the vessel be of foreign registry, the consular officer is authorized to use his discretion as to whether, in the interests of conserving the effects of the decedent, he should take custody thereof. (For duties of officers of the Foreign Service in connection with estates of deceased American seamen, see Chapter XVIII.)

§ 113.12 *Disposition of estates on transfer of office*—(a) *Estates held for less than 12-month period.* When an officer is transferred, the outgoing consular officer should turn over the effects and cash of deceased American citizens which have been in his hands for less than the 12-month period to the incoming officer, and take a receipt therefor in duplicate, one copy for himself and one copy for the office files.

(b) *Estates held for more than 12-month period.* Estates which have been held for more than the 12-month period should be remitted to the Department of State, and accounted for the outgoing officer before turning over charge of the office, unless the outgoing officer is communicating or endeavoring to communicate with a possible claimant, in which event he should turn over the effects to the incoming officer and take a receipt therefor. His successor should continue for a reasonable length of time the correspondence initiated by his predecessor, before forwarding the effects for transmission to the Treasury of the United States.

§ 113.13 *Consular functions with respect to real property of deceased American citizens.* In the absence of special provisions by treaty the devolution and transfer of real property are covered by the law of the place where the property is situated. When real property is left by the decedent within the country where death occurs, or where the decedent was domiciled at the time of death, the consular officer, or diplomatic officer, if there be no consular officer, should if feasible informally observe the proceedings and report to the diplomatic mission or the Department any apparent irregularity or unnecessary delay in settling the estate.

§ 113.14 *Duties of consular officer toward American claimants to foreign estates and inheritances.* Where treaty provisions, local laws, or established usage permit, a consular officer should protect the interests of American citizens claiming foreign estates and inheritances.

§ 113.15 *Estates of naturalized American citizens.* A naturalized American citizen who, at the time of death abroad, was resting under the unrebutted presumption of expatriation is, for the purpose of assuming jurisdiction over and disposing of his or her personal estate in accordance with the provisions of sections 1709, 1710, and 1711 of the Revised Statutes, as amended by the act approved July 12, 1940 (22 U. S. C. 75, 76, 77), an American citizen.

§ 113.16 *Duties of consular agents.* A consular agent has no authority to take possession and to dispose of the personal estate of an American citizen except under the immediate supervision of his principal officer. However, when local law permits, a consular agent should take charge of the personal estate of the deceased and immediately report to and request instructions from his supervising officer.

Sections 113.17, 113.18 and 113.19 shall be deemed to be superseded by the present regulation.

In accordance with Executive Order 9521 of February 13, 1945 (10 F.R. 1991), it is determined that the subject-matter of those parts of Executive Order 8084 of April 11, 1939, establishing Chapter XIII, sections 9 to 19, inclusive, of the Foreign Service Regulations of the United States (Title 22, Cum. Supp., Part 113, §§ 113.9, 113.10, 113.11, 113.12, 113.13, 113.14, 113.15, 113.16, 113.17, 113.18 and 113.19, inclusive, of the Code of Federal Regulations of the United States) is covered by the present regulation, which is designed and intended to supersede the above mentioned part of Executive Order 8084. In consequence whereof said part of Executive Order 8084 has no further force and effect.

This regulation shall become effective immediately upon registration in the Division of the Federal Register.

Issued: April 12, 1945.

For the Secretary of State:

[SEAL] J. C. HOLMES,
Assistant Secretary.

[F. R. Doc. 45-5952; Filed, Apr. 13, 1945; 2:22 p. m.]

TITLE 31—MONEY AND FINANCE: TREASURY

Chapter I—Monetary Offices, Department of the Treasury

PART 131—GENERAL LICENSES UNDER EXECUTIVE ORDER NO. 8389, APRIL 10, 1940, AS AMENDED, AND REGULATIONS ISSUED PURSUANT THERETO

TRADE TRANSACTIONS WITH FRANCE

APRIL 14, 1945.

General License No. 90 under Executive Order No. 8389, as amended, Executive Order No. 9193, section 5 (b) of the Trading with the Enemy Act, as amended by the First War Powers Act, 1941, relating to foreign funds control.

§ 131.90 *General License No. 90*—(a) *Trade transactions with France authorized.* A general license is hereby granted authorizing all transactions ordinarily incident to the importing and exporting of goods, wares and merchandise between the United States and France or between any member of the generally licensed trade area and France: *Provided*, That:

(1) Payment for any goods, ware or merchandise exported from France shall be made only:

(i) By deposit of the dollar amount thereof with a banking institution in the United States for credit to a blocked account in the name of the consignor or a banking institution in France; or

(ii) By the acquisition of French franc exchange from a person in the United

States having a license specifically authorizing the sale of such exchange;

(2) Except as authorized by paragraphs (b) or (d) of this section, no payment shall be made from any account in which any national of a blocked country who is not within the generally licensed trade area has any interest.

(b) *Trade transactions with France by blocked business enterprises in the United States authorized.* Subject to all other terms and conditions of this general license, any national of a blocked country doing business in the United States pursuant to license is hereby authorized, while so licensed, to engage in any transaction referred to in paragraph (a) hereof to the same extent as such national is licensed to engage in trade transactions with persons in the generally licensed trade area.

(c) *Collection of certain other financial instruments for French accounts authorized.* This general license also authorizes the collection and payment of the following financial instruments:

(1) Traveler's checks;

(2) Drafts or bills of exchange drawn under traveler's letters of credit issued by banking institutions in the United States; and

(3) Checks, drafts, bills of exchange or warrants drawn on the Secretary of State of the United States, the Secretary of the Navy of the United States, or the Treasurer of the United States;

Provided, That the proceeds are credited to a blocked account in a domestic bank in the name of a banking institution in France which has forwarded such instruments for collection

(d) *Payments and withdrawals from certain balances in French blocked accounts authorized.* This general license also authorizes payments in any amount:

(1) From any blocked account in a domestic bank in the name of a banking institution in France to a person in the United States;

(2) From any blocked account in a domestic bank in the name of a banking institution in France to a person in the generally licensed trade area, when such payments are incident to the importing and exporting of goods, wares and merchandise between France and the generally licensed trade area;

(3) From any blocked account in a domestic bank in the name of a banking institution in France to any other such account; and

(4) From any blocked account in the United States in the name of a person in France to any account in the United States in the name of, or in which the beneficial interest is held by, the Bank of France or any agency of the Government of France;

Provided, That such payments are made only from balances in such accounts which have accrued on or since November 4, 1944 pursuant to (i) this section, (ii) any license authorizing remittances to France, or (iii) any license authorizing transfers from any account in the name of, or in which the beneficial interest is held by, the Bank of France or any agency of the Government of France.

(e) *Certain transactions not authorized.* This section shall not be deemed to authorize:

(1) Any transaction which is by, on behalf of, or pursuant to the direction of (i) any person whose name appears on The Proclaimed List of Certain Blocked Nationals, or (ii) any blocked country or national thereof not within France or the generally licensed trade area; or

(2) Any transaction which involves property in which (i) any person whose name appears on The Proclaimed List of Certain Blocked Nationals, or (ii) any blocked country or national thereof not within France or the generally licensed trade area has at any time on or since the effective date of the order had any interest.

(f) *Definitions.* As used in this section:

(1) The term "France" shall include France and any colony or other territory subject to the jurisdiction of France.

(2) The terms "generally licensed trade area" and "member" of the generally licensed trade area shall have the meaning prescribed in § 131.53.

(Sec. 5 (b), 40 Stat. 415 and 966; Sec. 2, 48 Stat. 1; 54 Stat. 179; 55 Stat. 838; E.O. 8389, Apr. 10, 1940, as amended by E.O. 8785, June 14, 1941, E.O. 8832, July 26, 1941, E.O. 8963, Dec. 9, 1941, and E.O. 8998, Dec. 26, 1941; E.O. 9193, July 6, 1942; Regulations, Apr. 10, 1940, as amended June 14, 1941, and July 26, 1941)

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-6017; Filed, Apr. 14, 1945; 11:38 a. m.]

APPENDIX B—PUBLIC CIRCULARS UNDER EXECUTIVE ORDER NO. 8389, APRIL 10, 1940, AS AMENDED, AND REGULATIONS ISSUED PURSUANT THEREOF.[1]

INSTRUCTIONS FOR PREPARATION OF REPORTS OF FOREIGN-OWNED PROPERTY BY CERTAIN NATIONALS OF JAPAN

APRIL 14, 1945.

Public Circular No. 4A, issued January 16, 1942, is hereby revoked.

(Sec. 3 (a), 40 Stat. 412; Sec. 5 (b), 40 Stat. 415 and 966; Sec. 2, 48 Stat. 1; 54 Stat. 179; 55 Stat. 838; E.O. 8389, April 10, 1940, as amended by E.O. 8785, June 14, 1941, E.O. 8832, July 26, 1941, E.O. 8963, Dec. 9, 1941, and E.O. 8998, Dec. 26, 1941; E.O. 9193, July 6, 1942; Regulations, April 10, 1940, as amended June 14, 1941, and July 26, 1941)

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-6018; Filed, Apr. 14, 1945; 11:38 a. m.]

[1] Part 131.

APPENDIX B—PUBLIC CIRCULARS UNDER EXECUTIVE ORDER NO. 8389, APRIL 10, 1940, AS AMENDED, AND REGULATIONS ISSUED PURSUANT THERETO [1]

INSTRUCTIONS FOR PREPARATION OF REPORTS OF PHILIPPINE PROPERTY

APRIL 14, 1945.

Public Circular No. 4B, issued February 7, 1942, is hereby revoked.

(Sec. 3 (a), 40 Stat. 412; Sec. 5 (b), 40 Stat. 415 and 966; Sec. 2, 48 Stat. 1; 54 Stat. 179; 55 Stat. 838; E.O. 8389, Apr. 10, 1940; as amended by E.O. 8785 June 14, 1941, E.O. 8832, July 26, 1941, E.O. 8963, Dec. 9, 1941, and E.O. 8998, Dec. 26, 1941; E.O. 9193, July 6, 1942; Regulations, Apr. 10, 1940, as amended June 14, 1941, and July 26, 1941)

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-6019; Filed, Apr. 14, 1945; 11:38 a. m.]

APPENDIX B—PUBLIC CIRCULARS UNDER EXECUTIVE ORDER NO. 8389, APRIL 10, 1940, AS AMENDED, AND REGULATIONS ISSUED PURSUANT THERETO [1]

INSTRUCTIONS FOR PREPARATION OF REPORTS OF PROPERTY SUBJECT TO U. S. JURISDICTION

APRIL 14, 1945.

Amendment to Public Circular No. 4C under Executive Order No. 8389, as amended, Executive Order No. 9193, sections 3 (a) and 5 (b) of the Trading with the Enemy Act, as amended by the First War Powers Act, 1941, relating to foreign funds control.

Public Circular No. 4C is hereby amended in the following respects:

1. Section II–A (1) is revoked.
2. Section II–A (2) shall read:

(2) Nationals of foreign countries acquiring residence in the United States after February 23, 1942, who apply to be licensed as generally licensed nationals under General License No. 42.

3. Section II–B (1) is revoked.
4. Section II–C shall read:

C. *Amount of property.* Reports on Series L required under this Circular shall be made without any exemption whatever with respect to the amount of property involved.

5. Section II–D (6) is revoked.
6. Section II–E (5) is revoked.
7. Section II–G (2) (a) is revoked.
8. Section IV–5 (c) (i) is revoked.

(Sec. 3 (a), 40 Stat. 412; sec. 5 (b), 40 Stat. 415 and 966; sec. 2, 48 Stat. 1; 54 Stat. 179; 55 Stat. 838; E.O. 8389, April 10, 1940, as amended by E.O. 8785, June 14, 1941, E.O. 8832, July 26, 1941, E.O. 8963, Dec. 9, 1941, and E.O. 8998, Dec. 26, 1941; E.O. 9193, July 6, 1942; Regulations, April 10, 1940, as amended June 14, 1941, and July 26, 1941)

[SEAL] HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 45-6020; Filed, Apr. 14, 1945; 11:38 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter IX—War Production Board

AUTHORITY: Regulations in this chapter, unless otherwise noted at the end of documents affected, issued under sec. 2 (a), 54 Stat. 676, as amended by 55 Stat. 236 and 56 Stat. 177; E.O. 9024, 7 F.R. 329; E.O. 9040, 7 F.R. 527; E.O. 9125, 7 F.R. 2719; W.P.B. Reg. 1 as amended Dec. 31, 1943, 9 F.R. 64.

PART 1010—SUSPENSION ORDERS

[Suspension Order S–757]

PETER DENUZZE AND CARMELLA DENUZZE

Peter Denuzze of 54 Underhill Avenue, New Britain, Connecticut, is engaged in business as a real estate agent and building contractor. In August 1944, as contractor, Peter Denuzze began and carried on the construction of a family residence at 166 Slater Road, owned by Helmuth G. Finn, at an estimated cost of $6,925, without authorization from the War Production Board and in violation of Conservation Order L–41. In September of 1944, Peter Denuzze, as contractor began and carried on construction of a family dwelling at 43 Wilna Street in the same city, owned by Carmella Denuzze, his wife, at an estimated cost of $5,500, without authorization from the War Production Board and in violation of Conservation Order L–41. Peter Denuzze was aware of the War Production Board restrictions on construction and the beginning and carrying on of each of these construction jobs constituted grossly negligent violations of Conservation Order L–41. These violations have diverted critical materials to uses not authorized by the War Production Board. In view of the foregoing, it is hereby ordered that:

§ 1010.757 *Suspension Order No. S–757.* (a) Neither Peter Denuzze nor any other person shall do any construction on the premises located at 166 Slater Road, New Britain, Connecticut, including putting up, altering, or completing the structure, unless hereafter specifically authorized in writing by the War Production Board or by the Federal Housing Administration.

(b) Neither Peter Denuzze nor Carmella Denuzze or any other person shall do any construction on the premises located at 43 Wilna Street, New Britain, Connecticut, including putting up, altering, or completing the structure, unless hereafter specifically authorized in writing by the War Production Board or by the Federal Housing Administration.

(c) For a period of three months from the date that this order takes effect, Peter Denuzze shall not apply or extend any preference ratings or use any CMP allotment symbols regardless of the delivery date named in any purchase order to which such ratings may be applied or extended or on which CMP allotment symbols are used.

(d) Nothing contained in this order shall be deemed to relieve Peter Denuzze or Carmella Denuzze from any restriction, prohibition, or provision contained in any other order or regulation of the War Production Board except insofar as the same may be inconsistent with the provisions hereof.

(e) The restrictions and prohibitions contained herein shall apply to Peter Denuzze and Carmella Denuzze, their successors and assigns, or persons acting on their behalf. Prohibitions against the taking of any action include the taking indirectly as well as directly of any such action.

(f) Paragraphs (a) and (b) of this order shall take effect upon issuance, and paragraph (c) of this order shall take effect upon the 20th day of April 1945.

Issued this 13th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–5966; Filed, Apr. 13, 1945; 4:46 p. m.]

PART 1010—SUSPENSION ORDERS

[Suspension Order S–759]

HELMUTH G. FINN

Helmuth G. Finn of 1391 Corbin Avenue, New Britain, Connecticut, in August of 1944 began and carried on construction of a family residence at 166 Slater Road, New Britain, Connecticut at an estimated cost of $6,925.00, without authorization from the War Production Board and in violation of Conservation Order L–41. This violation has diverted critical materials to uses not authorized by the War Production Board.

In view of the foregoing, it is hereby ordered, that:

§ 1010.759 *Suspension Order No. S–759.* (a) Neither Helmuth G. Finn, his successors and assigns, nor any other person, shall do any construction on the premises at 166 Slater Road, New Britain, Connecticut, including putting up, altering or finishing the said premises, unless hereafter specifically authorized in writing by the War Production Board or by the Federal Housing Administration.

(b) Nothing contained in this order shall be deemed to relieve Helmuth G. Finn, his successors or assigns, from any restriction, prohibition, or provision contained in any other order or regulation of the War Production Board except insofar as the same may be inconsistent with the provisions hereof.

Issued this 13th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–5967; Filed, Apr. 13, 1945; 4:46 p. m.]

PART 1010—SUSPENSION ORDERS

[Suspension Order S–760]

VIC COLTON SHOE MANUFACTURING

Victor Colton is engaged in the business of manufacturing women's shoes under the trade name Vic Colton Shoe Manufacturing at 3665 Whittier Boulevard, Los Angeles, California. During the six months' period beginning March 1, 1944 and ending August 21, 1944, he manufactured 3,284 pairs of shoes in excess of his permitted quota under Conservation Order M–217. Victor Colton was familiar with the provisions of Order M–217 and the manufacture of these shoes in excess of quota constituted a violation of that order. This violation has diverted critical materials to uses not authorized by the War Production Board. In view of the foregoing, it is hereby ordered, that:

§ 1010.760 *Suspension order No. S–760.* (a) During the six months' period beginning April 1, 1945 and ending October 1, 1945, Victor Colton, doing business under the trade name Vic Colton Shoe Manufacturing or otherwise, his successors or assigns, shall manufacture 3,284 pairs of women's shoes less than he otherwise would be entitled to manufacture during this period under the provisions of Conservation Order M–217, unless otherwise specifically authorized in writing by the War Production Board.

(b) Nothing contained in this order shall be deemed to relieve Victor Colton, doing business as Vic Colton Shoe Manufacturing or otherwise, his successors or assigns, from any restriction, prohibition, or provision contained in any other order or regulation of the War Production Board except insofar as the same may be inconsistent with the provisions hereof.

Issued this 13th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–5968; Filed, Apr. 13, 1945; 4:46 p. m.]

PART 1010—SUSPENSION ORDERS

[Suspension Order S–761]

JULIUS H. SMITH

Julius H. Smith of 1780 Orlando Circle, South Jacksonville, Florida, is engaged in business as a building contractor. During the month of September, 1944 he did construction work on property known as the "Windmill" restaurant and night club located nine miles south of Jacksonville, Florida on the Phillips Highway, which construction was not permitted by the War Production Board. This construction consisted of altering the old structure and adding thereto an orchestra room, ladies lounge, kitchen and bar room. At least $2,500 has been expended, thus exceeding the limit of $200 permitted by Conservation Order L–41 for such construction. Julius H. Smith was aware of the provisions of Conservation Order L–41 and doing this construction for which authorization had not been obtained was so grossly negligent as to constitute wilful violation of Conservation Order L–41.

This violation of Conservation Order L–41 has diverted critical materials to uses not authorized by the War Production Board and has hampered and impeded the war effort of the United States. In view of the foregoing, it is hereby ordered, that:

§ 1010.761 *Suspension Order No. S–761.* (a) Julius H. Smith shall not do

any construction on the premises known as the "Windmill" restaurant and night club located nine miles south of Jacksonville, Florida on the Phillips Highway, including putting up or altering the structure located on said premises, unless hereafter specifically authorized in writing by the War Production Board.

(b) For a period of three months from the effective date of this order, unless otherwise specifically authorized in writing by the War Production Board, Julius H. Smith shall not apply or extend any preference ratings regardless of the delivery date named in any purchase order to which such ratings may be applied or extended.

(c) The restrictions and prohibitions contained herein shall apply to Julius H. Smith, his successors or assigns, or persons acting on his behalf. Prohibitions against the taking of any action include the taking indirectly as well as directly of any such action.

(d) Nothing contained in this order shall be deemed to relieve Julius H. Smith, his successors or assigns, from any restriction, prohibition or provision contained in any other order or regulation of the War Production Board, except insofar as the same may be inconsistent with the provisions hereof.

(e) Paragraph (b) of this order shall take effect on April 20, 1945, and the balance of the order shall take effect on the date of issuance.

Issued this 13th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-5969; Filed, Apr. 13, 1945; 4:46 p. m.]

PART 1010—SUSPENSION ORDERS

[Suspension Order S-763]

VOGUE SHOE CO.

Vogue Shoe Company, a California corporation having a principal place of business at 1722 East 7th Street, Los Angeles, California, is engaged in the business of manufacturing women's and growing girls' shoes. In the base period specified in Conservation Order M-217 the corporation manufactured only one line of women's and growing girls' shoes for sale in a price line of $2.85 per pair. Between December 1, 1943 and November 30, 1944 the corporation manufactured 142,736 pairs of women's and growing girls' shoes for sale in a $3.35 per pair price line, which line of footwear it had not manufactured in the base period provided in Conservation Order M-217. The manufacture of the aforementioned line of footwear in the price line of $3.35 per pair constituted a violation of Order M-217 and has diverted critical materials to uses not authorized by the War Production Board and has hampered and impeded the war effort of the United States. In view of the foregoing, it is hereby ordered, that:

§ 1010.763 *Suspension Order No. S-763.* (a) Until such time as it shall have established a quota for a higher priced line for women's and growing girls' shoes pursuant to written authorization of the War Production Board, Vogue Shoe Company, its successors or assigns, shall not manufacture for sale any of its product in women's and growing girls' shoes known as its $2.85 price line at any price in excess of $3.13½ per pair as provided for in said order M-217, paragraphs (b) (10) and (b) (11).

(b) Nothing contained in this order shall be deemed to relieve Vogue Shoe Company, its successors or assigns, from any restriction, prohibition or provision contained in any order or regulation of the War Production Board except insofar as the same may be inconsistent with the provisions hereof.

Issued this 13th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-5970; Filed, Apr. 13, 1945; 4:46 p. m.]

PART 937—ZINC

[Conservation Order M-11-b, as Amended Apr. 14, 1945]

The fulfillment of requirements for the defense of the United States has created a shortage in the supply of zinc for defense, for private account and for export; and the following order is deemed necessary and appropriate in the public interest and to promote the national defense:

§ 937.3 *Conservation Order M-11-b*—(a) *Scope of the order.* This order controls generally the use of zinc and zinc products. Under the order some uses are entirely prohibited, other uses are permitted free of any restriction, and still other uses are permitted but with a limitation on the amount of zinc and zinc products which may be used. Special restrictions may also be found in other orders of the War Production Board relating to particular articles or parts. In such case the more restrictive provision governs. In no case shall any person use any zinc or zinc products in violation of this order.

(b) *Definitions.* For the purpose of this order:

(1) "Zinc" means zinc metal which has been produced by an electrolytic, electro-thermic, or fire refining process. It includes zinc scrap, zinc metal produced from scrap, and any alloy in which the percentages of zinc metal by weight is more than 50%.

(2) "Zinc products" means zinc in the form of sheet, strip, rod, wire, castings, or dust.

(c) *Prohibited articles; List A.* The use by any person of zinc and zinc products in the manufacture of articles on List A of this order, and of parts for these articles, is prohibited. This prohibition includes the use of zinc and zinc products to apply any protective coating or plating (other than paint) of zinc to articles on List A. It does not include the use of zinc or zinc products in the manufacture of repair parts to replace similar parts of zinc, or to the protective coating of such repair and replacement parts.

(d) *Unrestricted articles and uses; List B.* There are set forth in List B of this order certain articles and uses for which zinc and zinc products may be used with no restriction insofar as this order is concerned. For articles on this list, other orders of the War Production Board may limit production; this order does not remove any such limitation, but merely authorizes free use of zinc and zinc products providing other orders of the War Production Board are not violated.

(e) *Restricted articles.* For articles not on either List A or List B, the use of zinc and zinc products is permitted, but with the following limitation on the amounts which may be used; namely, that no person shall in any calendar quarter use more:

(1) Zinc for applying a protective coating or plating (other than paint): than 100% of the amount lawfully used for the same purpose during the fourth quarter of the year 1944.

(2) Zinc in the production of any zinc products not requiring further processing, assembling or finishing, or zinc products in the manufacture of any article or parts: than the amount by weight of zinc or zinc products lawfully used by him for the same purpose during the corresponding quarter of the year 1944.

(f) *General exceptions.* The prohibitions and restrictions in paragraphs (c) and (e) subparagraph (2) shall not apply to the use of zinc or zinc products for the manufacture of any items under a specific contract or sub-contract covering the manufacture of any product, or any component to be physically incorporated into such product, produced by or for the account of the Army or Navy of the United States, the United States Maritime Commission, the War Shipping Administration, or the Veterans' Administration.

(g) *Restrictions on sales and deliveries of zinc and zinc products.* No person shall sell or deliver any zinc or zinc products to any person if he knows or has reason to believe, such material is to be used in violation of the terms of this order.

(h) *Appeals from restrictions.* Any appeal from the restrictions of this order must be by letter in triplicate, referring to the particular provision appealed from and stating fully the grounds for the appeal, and filed with the field office of the War Production Board for the district in which is located the plant or branch of the appellant to which the appeal relates. The appeal shall contain in addition the following:

(1) Zinc consumed during the quarter of the year 1944 for the purpose for which the appeal is made.

(2) Whether the quantity appealed for is to establish or exceed the quota.

(3) Reason why zinc must be used if it was not consumed during the base period.

Attention is called to the requirement of Priorities Regulation 16, with respect

to the statement of manpower requirements which must be submitted with any appeal.

Requests for exceptions from the restrictions of this order may not be made under the provisions of Priorities Regulation 25. The use of zinc for production previously authorized under Priorities Regulation 25 is subject to the restrictions of this order.

(i) *Special directions.* The War Production Board may from time to time issue special directions to any person or persons as to the type, description, amount, source or destination of zinc or zinc products to be produced, delivered or acquired by such person or persons.

NOTE: Paragraph (j), formerly (i), redesignated Apr. 14, 1945.

(j) *Violation.* Any person who wilfully violates any provision of this order or who, in connection with this order, wilfully conceals a material fact or furnishes false information to any department or agency of the United States is guilty of a crime, and upon conviction may be punished by fine or imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using, material under priority control and may be deprived of priorities assistance.

Issued this 14th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

LIST A

NOTE: List A amended in the following respects: Items (11) to (26), inclusive, formerly (10) to (25), inclusive; items (28) to (41), inclusive, formerly (26) to (39), inclusive; item (43) formerly (40); redesignated Apr. 14, 1945.

The use of zinc or zinc products in the items below and in all component parts of such items is prohibited except to the extent permitted by the foregoing order.

(1) Advertising novelties.
(2) Andirons.
(3) Ash trays.
(4) Banks, personal toy, miniature.
(5) Bookends.
(6) Box openers.
(7) Bulletin and menu boards, directories and similar items, and letters for same.
(8) Calendar bases and holders.
(9) Candlesticks.
(10) Can openers (except for protective coating).
(11) Caskets, burial.
(12) Cigar and cigarette lighters.
(13) Coat hooks.
(14) Compacts.
(15) Cosmetic containers.
(16) Costume jewelry.
(17) Door chimes.
(18) Fireplace fittings.
(19) Grave markers.
(20) Handbag fittings.
(21) Jewelry cases.
(22) Letter openers.
(23) Lipstick holders.
(24) List finders.
(25) Lotion dispensers.
(26) Merchandise displays.
(27) Mechanical pencils.
(28) Mirror frames.
(29) Novelty jewelry.
(30) Ornamental and decorative uses (whether or not the item is included in List A).
(31) Paper coatings.
(32) Paper weights.
(33) Pen bases.
(34) Perfume dispensers.
(35) Picture frames.
(36) Slugs and tokens of all kinds (except as permitted in List B of this order).
(37) Smokers' accessories.
(38) Soot removers (except as produced from scrap).
(39) Souvenirs.
(40) Spittoons.
(41) Statues.
(42) Toys and games.
(43) Vaults, burial.

LIST B

NOTE: Former items (6), (7) (vii) and (viii), (8), (9), (11), (13) through (20), (23) through (41), (43) and (44) deleted, and items (6), (7), (8), (9), (10) and (11), formerly (7), (10), (12), (21), (22) and (42), respectively, redesignated Apr. 14, 1945.

Zinc or zinc products may be used for any of the following articles or purposes with no restriction insofar as this Order is concerned except where the list otherwise indicates.

(1) For use to comply with safety regulations issued under government authority which require the use of zinc to the extent employed, or in safety equipment as defined by General Limitation Order L–114 where and to the extent the use of any less scarce materials is impractical.

(2) For use in chemical and industrial plants to the extent that corrosive or chemical action makes the use of any other material impractical. This does not include production material.

(3) For use in research laboratories where and to the extent that the physical or chemical properties make the use of any other material impractical.

(4) For health supplies of the following types only:
(i) Dental instruments, apparatus and equipment;
(ii) Dental supplies and appliances;
(iii) Lamps, health electric;
(iv) Medicinal chemicals (limited to medical uses only);
(v) Ophthalmic products and instruments;
(vi) Physiotherapy products, electrical;
(vii) Surgical and medical instruments, equipment and supplies;
(viii) Orthopedic appliances;
(ix) X-Ray apparatus and tubes.

(5) For precision measuring, recording and control instruments, systems or equipment for use in industrial processes.

(6) For use as zinc dust in the following:
(i) Metal refining and recovery;
(ii) Smoke mixtures;
(iii) Rubber processing;
(iv) Chemicals for medicinal products;
(v) Sodium hydrosulfite and sulfoxylate and zinc hydrosulfite;
(vi) Dyestuffs, intermediates and dyes;

(7) For dry cell batteries and portable electric lights.

(8) For the manufacture of zinc oxide.

(9) For closures for glass containers subject to the terms of Limitation Order L–103b.

(10) For repair parts to replace similar parts of zinc.

(11) For research, developmental or experimental activities. Zinc or zinc products may be used to make experimental models or test runs, but only the minimum number of models or minimum size run needed to determine the suitability of the item for commercial production. Such models or materials shall not be distributed for the purpose of promoting sales or creating a consumer demand for such items, nor shall such item designed primarily for future civilian markets, be exhibited to the public. Research, developmental or experimental activities in connection with products or materials designed primarily for future civilian markets must be carried on without diverting any manpower, technical skill, or facilities from activities connected with the war effort.

(12) For electroplating where cadmium or tin had previously been used.

(13) For galvanizing and electroplating in plants owned and operated by the Navy.

(14) For electroplating ammunitions and parts therefor for the Army and Navy.

[F. R. Doc. 45–6014; Filed, Apr. 14, 1945; 11:34 a. m.]

PART 1010—SUSPENSION ORDERS

[Suspension Order S–695, Reinstatement]

SCHICK, INC.

Schick, Inc., located at Stamford, Connecticut, engaged in the business of manufacturing electric dry shavers and Shick Service, Inc., a wholly-owned subsidiary of Schick, Inc. operating service stations in the principal cities of the United States for the repair and servicing of its dry shavers, were suspended on January 27, 1945, by Suspension Order No. S–695. It appealed from the provisions of the suspension order and petitioned for a rehearing. The suspension order was stayed, subject to reinstatement, pending final determination of the appeal or until further order by the Chief Compliance Commissioner. The Chief Compliance Commissioner has reviewed the case and has directed that the appeal and petition for rehearing be dismissed, the stay be revoked and the suspension order be reinstated. In view of the foregoing, it is hereby ordered, that:

§ 1010.695, *Suspension Order No. S–695* be reinstated as of April 14, 1945 and the stay be revoked as of April 13, 1945.

Issued this 5th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6016; Filed, Apr. 14, 1945; 11:34 a. m.]

PART 1226—GENERAL INDUSTRIAL EQUIPMENT

[Preference Rating Order P–126, Direction 1]

CONDENSING UNITS, CABINETS, LOW-SIDE UNITS, AND SYSTEMS

The following direction is issued pursuant to Preference Rating Order P–126:

(a) *Purpose.* This direction prohibits the use of preference ratings assigned by Order P–126 to get any new condensing unit (as defined below), or any new cabinet or other new insulated enclosure, or any new low-side units (such as unit coolers), or any system containing a new condensing unit or a new cabinet or other new insulated enclosure. The only exception is where a hermetically sealed condensing unit is ordered for emergency maintenance or emergency repair of a specific job (but not for inventory).

It does not affect the use of such ratings for repair parts for a condensing unit, or repair parts for a cabinet or other insulated enclosure, or repair parts for a low-side unit.

As used in this direction, a "condensing unit" means any new assembly in which is

incorporated a compressor and a condenser, and which is desired for use in any refrigeration or air conditioning system. It includes any such assembly whether or not the compressor and condenser are actually interconnected, and whether or not the assembly also includes a flywheel, motor, controls, base, or other accessories.

(b) *Restriction on ratings and deliveries.* (1) All preference ratings applied under Order P–126 for a new condensing unit, or a new cabinet or other insulated enclosure, or a new low-side unit, or a system containing a new condensing unit or a new insulated enclosure, are hereby revoked. No service agency or any other person shall apply any preference rating assigned by Order P–126 to get any of such items. Any service agency who has applied a preference rating under Order P–126 to an order or orders for any of such items must immediately, in the case of each unfilled order for such items to which he has applied a P–126 rating, either cancel the order or inform his supplier that it is no longer to be treated as rated.

(2) Any person (including dealers, distributors, and manufacturers) who has accepted an order for a new condensing unit, or for a new cabinet or other insulated enclosure, or for a new low-side unit, or for a system containing a new condensing unit or new insulated enclosure, bearing a P–126 rating, shall not make delivery of any such items to fill such order. A person who has accepted such an order for any of such items and has extended the rating to get them to fill the order, must immediately, in the case of each order to which he has extended or applied a rating for such items, either cancel the order or inform his supplier that it is no longer to be treated as rated (unless his customer's order is rerated, as explained in (b) (3) below). A manufacturer who has accepted an order bearing a P–126 rating for any of such items, and has used a preference rating assigned him for his authorized production schedule in ordering them from his supplier, must promptly adjust his outstanding orders for them, in accordance with § 944.14 (b) of Priorities Regulation 1, to the extent necessary to avoid his having an inventory of such items which (as a result of the revocation of the P–126 ratings from his customers), would be in excess of the inventory restriction in that regulation. If any purchaser who has applied a P–126 rating or extended such a rating, or applied some other rating to get such items to fill an order rated under P–126, should fail to cancel it, as required by this direction, the supplier may not treat it as a valid rating if he knows or has reasonable cause to believe that it should be cancelled by his customer.

(3) A service agency who has applied a rating under Order P–126 to get a new condensing unit or insulated enclosure, or a new low-side unit, or a system containing a new condensing unit or insulated enclosure, to fill a purchase order from his customer which was rated in accordance with CMP Regulations 5 or 5A and for an installation permitted under paragraph (d) of Order L–38, or to fill an order from his customer rated on Forms WPB–1319 or GA–1456, should immediately extend his customer's rating for the items ordered for this purpose (in addition to cancelling the P–126 rating). If the agency has delivered such an item to fill a customer's order rated in accordance with CMP Regulations 5 or 5A and for an installation permitted under paragraph (d) of Order L–38, or rated on WPB–1319 or GA–1456, and has used a P–126 rating to replace in inventory the item delivered to the customer (instead of extending the customer's rating for that purpose), the service agency should immediately extend the customer's rating (if within the three months period permitted under paragraph (h) (1) of Priorities Regulation 3), in addition to cancelling the P–126 rating. Any such rating extended in accordance with this Direction is a rerating of the order under the provisions of Priorities Regulation 12, and constitutes a substitution of the extended rating in place of the P–126 rating.

(c) (1) *Hermetically sealed units.* The restrictions in paragraph (b) do not apply to the use of a P–126 rating applied to get a hermetically sealed condensing unit when required for the emergency replacement of a similar unit for a specific system which has broken down or is about to break down, and requires a new unit for immediate installation. However, this does not permit the use of any P–126 rating to get such units for inventory.

(2) *Individual applications.* The owner of any system who needs a new condensing unit or insulated enclosure, or a new low-side unit, for the emergency replacement of one which has been destroyed by fire or other casualty, or is broken down beyond repair, if unable to obtain it by the use of his CMP 5 or 5A rating, within the time required, may apply for additional priorities assistance to the nearest field office of the War Production Board.

Issued this 14th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6015: Filed, Apr. 14, 1945; 11:34 a. m.]

PART 3290—TEXTILE, CLOTHING AND LEATHER

[General Preference Order M–388 as Amended Apr. 14, 1945]

TEXTILES FOR CIVILIAN ITEMS

The fulfillment of requirements for the defense of the United States has created shortages in the supplies of cotton, synthetic fiber and wool textiles, apparel and other textile products, for defense, for private account and for export; and the following order is deemed necessary and appropriate in the public interest and to promote the national defense:

§ 3290.351 *General Preference Order M–388*—(a) *Explanation.* This order (including the additional orders in the M–388 series) states rules under which apparel and other textile end-product manufacturers may get preference ratings to make listed essential items within specified prices. Rules are also stated for producers of yarn and fabric, as well as for converters, finishers and importers of the fabric. "Set-asides" or rated delivery quotas are also imposed on certain kinds of suppliers, so that a specified percentage of the deliveries made by each of them must go to fill rated orders. Thus their unrated deliveries are limited.

This Order M–388 states the general rules which control the production and delivery of cotton, synthetic fiber, and wool materials and the use by end-product manufacturers of ratings to get these materials.

M–388A contains the special rules for cotton textiles and products made from cotton textiles, and lists cotton items for which ratings are assigned. The set-asides of cotton textiles and the assignment of preference ratings contained in the M–385 Supplements are transferred to M–388A with respect to deliveries after April 30, 1945. M–385 remains in effect for deliveries until then.

M–388B deals with synthetic fiber textiles, and M–388C with wool textiles.

Thus, any person concerned with civilian cotton textiles and products would look to M–388 and M–388A. A person concerned with civilian synthetic fiber textiles and products would look to M–388 and M–388B. A person concerned with civilian wool textiles and products would look to M–388 and M–388C.

Requirements for Producers, Importers and Intermediate Processors of Yarn and Cloth

(b) *Mill production.* The ratings assigned under this order are not extendible to producers (unless expressly stated, as in the case of cotton and synthetic fiber colored yarn fabrics and wool fabrics). In the case of ratings assigned otherwise than under this order, all mills must schedule their production so as to fill rated orders in accordance with Priorities Regulations and other applicable War Production Board orders. Producers of cotton textiles must also comply with loom freezes such as those under Order L–99, and with the set-aside provisions of M–388A. In the case of synthetic fiber and wool yarns and fabrics, loom freezes, producer set-asides and rated delivery quotas or other mandatory production requirements may be issued. In the absence of such mandatory requirements, producers of wool yarns and fabrics must produce to fill M–388 rated orders as required by Priorities Regulation 1, and producers of synthetic fiber yarns and fabrics are expected to arrange their production as to quality, kind and construction, so that the material they produce will fill the needs of intermediate processors who are filling M–388 rated orders.

(c) *Set-asides or rated delivery quotas for intermediate processors and importers.* Intermediate processors and importers of cotton and synthetic fiber fabrics and producers and importers of wool fabrics must comply with the quarterly set-asides and rated delivery quotas specified in M–388A, M–388B and M–388C, or other orders in the M–388 series.

(d) *General rules as to set-asides and rated delivery quotas*—(1) *When rated orders must be accepted.* When a producer, intermediate processor or importer is required under this order to make a set-aside or to comply with a rated delivery quota for the filling of orders which carry ratings assigned under this order, he may reject such rated orders if, at the time of rejection, he has not yet received title to or produced the unfinished fabric which he needs to fill the order for finished fabric. After he has received title to the unfinished fabric, or produced it, these rated orders must be accepted. In any event he must accept and fill rated orders to the full amount of his set-aside or delivery quota. AA–4 ratings need not be ac-

cepted outside the delivery quotas or set-asides.

(2) *Equitable distribution by producers, intermediate processors and importers to fill rated orders.* In order to provide equitable distribution of fabric as between manufacturers who place M–388 rated orders, the War Production Board will announce from time to time the percentage of any manufacturer's rated quota, which may be filled by suppliers within the times specified. For deliveries in May and June 1945, this percentage until further notice will be 75 percent of the manufacturer's rated quota for May and June 1945. (In the case of manufacturers who have filed Form WPB–4200 this will be the same as 50 percent of the yardage calculated on a full second calendar quarter basis.)

The War Production Board will announce by published direction when and the extent to which the balance of manufacturers' quotas for May and June may be filled, and also the percentages for subsequent calendar quarters. Suppliers shall not deliver and manufacturers shall not accept delivery on M–388 ratings in any quota period in excess of the percentage then in effect.

(3) *Rejects.* [Superseded by amendments of M–388A, M–388B, and M–388C.]

(4) *Exceptions to Priorities Regulation 1.* The rules stated above in this paragraph (d) are exceptions to the requirements of Priorities Regulation 1 as to the acceptance and filling of rated orders. These exceptions apply only to orders which carry ratings assigned by the M–388 series. Orders carrying any other ratings must be accepted and filled in accordance with the requirements of Priorities Regulation 1.

(e) *Producers' deliveries of unfinished cotton and synthetic fiber fabric.* As explained in M–388A and M–388B, deliveries by producers of unfinished cotton and synthetic fiber fabrics are restricted to rated orders, orders of customers who have serial numbers, and certain other specific types of orders.

(f) *How to get a serial number for purchases of unfinished cotton and synthetic fiber fabrics.* Applicants may get the serial number referred to in paragraph (e) above, by filing an application on Form WPB 4202, with the War Production Board, and complying with the instructions on that form.

(g) *When unrated deliveries may be credited to rated delivery quotas.* As explained in Orders M–388A, M–388B, and M–388C (or other orders in the M–388 series), producers, intermediate processors and importers are required to make set-asides or to meet rated delivery quotas for the purpose of filling orders which carry ratings assigned under this order. They may, however, also credit to these quotas deliveries described in subparagraphs (1) and (2) below. The customers who make the certifications described in (1) below must not accept delivery contrary to the certifications they have made. The standard form of certification given in Priorities Regulation 7 may not be used instead of these certifications.

(1) Deliveries up to a total of 10 percent of the supplier's set-aside or rated delivery quota against purchase orders carrying substantially any of the following certifications:

(i) The undersigned certifies, subject to the criminal penalties of section 35 (A) of the U. S. Criminal Code, that the total quantity of fabric of all kinds purchased by him from all suppliers on this kind of certification for delivery in the quarter in which this order is to be filled will not exceed 300 yards, or

(ii) The undersigned certifies subject to the criminal penalties of section 35 (A) of the U. S. Criminal Code, that the fabric covered by this purchase order will be sold only as over-the-counter piece goods at retail, or

(iii) The undersigned certifies subject to the criminal penalties of section 35 (A) of the U. S. Criminal Code that the fabric covered by this purchase order will be used by him to make civilian apparel and that the total yardage of broad woven fabrics of all kinds purchased by him for all purposes from all suppliers for delivery in the quarter in which this order is to be filled will not exceed 1,000 yards of body fabric and 1,500 yards of cotton and synthetic fiber and wool linings, bindings, stays, trimmings, and pocketings, or

(iv) The undersigned certifies subject to the criminal penalties of section 35 (A) of the U. S. Criminal Code that the fabric covered by this purchase order will be resold only on purchase orders either (1) bearing preference ratings assigned by an order in the M–388 series which ratings the undersigned will not extend, or (2) carrying any of the certifications set forth in paragraph (g) (1) of M–388.

A supplier who wants to sell more than 10 percent of his set-aside or rated delivery quota on orders bearing the above certifications may apply for permission to do so by filing Form WPB–4203. To the extent that such applications are granted, they will be granted for approximately the same percentage of the amounts of fabric sold by the applicants to the same kinds of customers in 1943.

(2) Other deliveries which are specifically authorized by the War Production Board, Application for such authorization should be made by letter, stating the quantities, prices, and types of fabric produced, finished or imported in the first quarter of 1945, the reasons why the applicant cannot fill his set-aside or rated delivery quota with rated orders, the quantity of material for which the exception is asked, the use for which it is to be sold, and the period of time for which he wants the exception. If the applicant is an intermediate processor, he must also name the producers from whom he will get the unfinished material for which he wants the exception. Applications will generally be granted only for minimum periods up to a calendar quarter and only if the applicant shows either (i) that he is unable to get rated orders for the kinds of materials he can produce or import and does not consume materials which are needed for more essential purposes, or (ii) that the deliveries which he proposes to make are needed for essential though unrated items and the making of the delivery will not substantially reduce production of rated items.

(h) *Restrictions on inventories of producers and intermediate processors.* No producer or intermediate processor shall have more than a practicable minimum working inventory (as defined in § 944.14 of Priorities Regulation 1) of cotton, synthetic fiber, or wool yarn or fabric.

Ratings for Manufacturers of Civilian Apparel and Other Civilian Items

(i) *General requirements.* A manufacturer of apparel or other textile products who wants to use a rating assigned in this order to get textiles for incorporation into his products must meet the requirements of this order and the order in the M-388 series which assigns the rating, and also the following requirements:

(1) *Manufacturer of same item in base period.* He must have been a manufacturer of the same item (regardless of price, but made of the same class of material—cotton, synthetic fiber or wool) in the base period. The base period is the corresponding quarter of 1943, except that a manufacturer who did not make an item in the corresponding quarter of 1943 may use as the base period the corresponding quarter of 1944. If he does this but also wants to use the rating for other items which he made in the corresponding quarter of 1943, he must use as his base for these other items the corresponding quarter of either 1943 or 1944, whichever results in the lower quota for the item, and must show his production of these other items in both 1943 and 1944 on the Form WPB–4200 filed as required by paragraph (i) (2). If he did not produce the item in the base period, he does not qualify unless he is specifically authorized in writing by the War Production Board to use the rating pursuant to application on Form WPB–4201, which must be filed at least one month before the beginning of the calendar quarter in which delivery is to be made.

If a person does not qualify as a manufacturer under the above rules, he may

not use any preference rating assigned by an order in the M–388 series, unless he is specifically authorized in writing by the War Production Board, pursuant to application on Form WPB–4201. This form may be used by manufacturers whose legal identity has changed since the base period and who cannot under the rules stated in paragraph (o) use Form WPB–4200; also by manufacturers who apply for quotas greater than those assigned in this order on the ground that the assigned quota does not fairly reflect their normal production in the base period. In acting on Form WPB–4201 applications, the War Production Board will consider the existing quotas of other manufacturers having base periods, the facilities of the applicant, the effect on production of other items, whether the manufacturer can promptly complete the items after obtaining the material, the extent of his distribution, and the availability of the particular material which the applicant wishes to use.

The quantity of material for which the rating may be used is explained in the next paragraph.

(2) *Getting a serial number and quota for use of rating.* Before using any rating assigned under this order, the manufacturer must file with the War Production Board four copies of Form WPB–4200, completely filled out, in accordance with the instructions. A separate form must be filed for each item for which he wants to use the rating. The quantity of material for which the rating can be used is calculated on that form and is based on the quota for the particular item as explained in the applicable preference rating schedule. In the case of deliveries to be made to him during the period from May 1 through June 30, 1945, he may use the rating for two-thirds of the quantity of material which he has entered on the form as the yardage quota for the full second calendar quarter for each item. Initially he is restricted to one-half the full calendar quota as explained in paragraph (d) (2)). The full calendar quarter quantity must be calculated in accordance with the conditions stated in the applicable preference rating schedule. (If he was not a manufacturer of the same item in the corresponding quarter of 1943, but was a manufacturer of the same item in the corresponding quarter of 1944, then he may apply the percentage specified in the applicable preference rating schedule against his production of the same item in the corresponding quarter of 1944. If he does this he must calculate his quota for items he made in 1943 as explained in the above paragraph (i) (1)), deliveries in each calendar quarter after June 30, 1945 (and for deliveries from May 1 to June 30, in the case of a manufacturer who did not produce the item during the corresponding quarter of either 1943 or 1944) the manufacturer may use the rating only for the quantities approved by the War Production Board by the copy of the form or other document which it will return to him with his serial number for the particular item, or for such larger or smaller quantities as it may later specify, either individually or by notice published in the FEDERAL REGISTER.

Form WPB–4200 must be filed by April 10, 1945, except that in the case of an item for which a rating is first assigned by an amendment of an order in the M–388 series published after February 19, 1945, the form must be filed within fifteen days after the issuance date of the amendment. A separate form must be filed for each item.

If a manufacturer's civilian production during the corresponding quarter of 1943 was reduced because of military orders which he is no longer able to get, the War Production Board may grant an increase in his regular quota to compensate for the reduction.

A manufacturer may not duplicate rated orders or place them for yardage in excess of the authorized quantities even if he intends to cancel some, or reduce the quantities ordered to the authorized amount before it is all delivered.

Whenever a rating is granted in any preference rating schedule of an order in the M–388 series, it also shall be good for cotton, synthetic fiber or wool linings, bindings, stays, trimmings, pocketings, and other component fabrics made of broad woven fabrics needed for incorporation into the number of units of the item for which the rating is assigned. The rating may be used to purchase either broad woven fabric or the component fabric parts made of broad woven fabrics, but only requirements for broad woven fabrics for these purposes should be included in Form WPB–4200 or 4201 filed by the applicant. These requirements must be shown separately for cotton, synthetic fiber or wool fabrics.

Deliveries to a manufacturer must be charged by him to his rated quota for the period in which the delivery is made, and unused parts of quotas cannot be used in subsequent periods. However, when an order has been accepted by a supplier, for delivery in the period for which the quota was assigned, but the delivery is made by the supplier in the next quarter, the manufacturer may charge the delivery to the earlier period.

(3) *Compliance with price (including quality) regulations and other conditions.* No textiles obtained with the rating shall be used to make items for sale at a higher price than permitted by the Office of Price Administration or as specified in this Order, whichever is lower. The quality of the item must be that required by the Office of Price Administration for the particular priced item, and the item also must conform to any quality or other conditions specified in this order.

(4) *Application and extension of ratings.* The preference ratings assigned in this order shall be applied and extended as provided by Priorities Regulation 3 and M–328, but subject to the limitations stated in this order. A manufacturer who applies a rating assigned by this order must use the following certification (which includes the Priorities Regulation 3 certification) signed manually or as provided in Priorities Regulation 7:

> The undersigned purchaser whose War Production Board serial number is _____ hereby represents to the seller and to the War Production Board, subject to the criminal penalties of section 35 (A) of the U. S. Criminal Code, that he is entitled to apply or extend the preference rating indicated opposite the items shown in this purchase order, and that such application or extension is in accordance with Priorities Regulation 3, as amended, with the terms of which the undersigned is familiar; that the textiles covered by this purchase order and all other purchase orders placed by him with an M–388 rating for delivery in _____ do not exceed _____ percent of his rated quota on a full calendar quota basis, as calculated on Form WPB 4200 or other form assigning him a quota, and that the textiles will be incorporated into an item for which this serial number was assigned. (For deliveries in the second calendar quarter of 1945, the serial number may be omitted and this statement added to the certification: "These textiles will be used to make Item No. __" (insert applicable item or group number from Preference Rating Schedule).)
>
> _____
> (Name of purchaser)
>
> _____
> (Address)
>
> By _____
> (Signature and title of duly authorized officer)
>
> _____
> (Date)

The delivery period and the percentage specified under paragraph (d) (2) must be inserted in the certification before delivery is accepted.

The serial number assigned by the War Production Board to the manufacturer for the particular item must be inserted on all rated orders for material to be delivered after June 30, 1945.

(5) *Time when rated orders may be placed and must be accepted.* Orders which are rated under this order may be placed at any time in advance of the requested delivery date. Paragraph (d) explains when such a rated order must be accepted.

(6) *Restriction on manufacturers' inventories of textiles.* No manufacturer who uses the rating may accept any delivery of cotton, synthetic fiber, or wool textiles, whether rated or unrated, which, together with textiles already on hand, will give him more than a three-months' inventory of the same material at current rate of operations, or a practicable minimum working inventory, whichever is less. Textiles on hand include goods wherever located if title has passed to the maufacturer, except goods in transit to him from his supplier. This rule does not prevent acceptance of the minimum quantity in which a textile can be procured or the acceptance in good faith of a delivery which is received before the date requested if the date actu-

ally requested would conform with the rule.

(7) *When apparel and textile products from rated materials must be completed.* Every manufacturer must use all textiles received on a rating assigned in this order at a rate of production so that the average period from the time the item is put into process to the completion of the finished product is not more than 90 days.

(8) *Rated material may not be used or disposed of for other purposes.* A manufacturer who gets any material with a rating asssigned in this order may not use it for any purpose except to make the completed item for which the rating was assigned or an item which is to be sold on a higher rated order. He may not sell, deliver or otherwise dispose of the material before processing except as permitted in Priorities Regulation 13 in the case of special sales. All rejects are subject to the restrictions of paragraph (e) of Order M–328.

(9) *Size assortments.* Items produced shall, to the extent called for by the customers' orders, be in the same size ranges and assortment of sizes as the manufacturer produced in 1943. If the manufacturer did not produce the item in 1943 he must comply with such size ranges and assortments as the War Production Board may specify for the particular item.

(j) *Special programs.* The War Production Board may assign, from time to time, other priorities assistance for particular programs or items. The terms under which such assistance will be granted, and the procedure to get the assistance, will be stated in supplements or directions to Orders in the M–388 series.

(k) *Equitable distribution, by manufacturers.* (This paragraph does not apply to sales by retailers, inasmuch as the Fair Distribution Policy for retailers is defined in Declaration of Policy of July 15, 1943.) Every manufacturer who uses a preference rating assigned in this order to make any item shall distribute his production of the item (including any production of the same item which he may have made without the rating) as follows after April 30, 1945:

(1) Up to 90 percent of civilian sales of each item in the period May–June 1945, and in subsequent calendar quarters, must be made to customers who purchased that item or any other textile product from the manufacturer during the corresponding quarter of 1943, to the extent that orders are received from such customers. However, the manufacturer need not sell any 1943 customer an amount which will be a greater percentage of the manufacturer's total sales for the period than the percentage of the manufacturer's total sales which were made to the same customer in 1943.

(2) As between such 1943 customers, each customer shall be entitled to a dollar share of the civilian sales referred to in (1) above up to the percentage which the customer's total purchases from the manufacturer in the corresponding quarter of 1943 was of the manufacturer's total sales in that quarter.

Any manufacturer may base his distribution under this paragraph on his style seasons instead of calendar quarters, but must treat all customers on the same basis. A manufacturer shall not be required to sell smaller than commercial quantities. The manufacturer may not discriminate against any of his customers in notifying the trade that he has the items available for sale or in making deliveries or allocating his production. If the manufacturer was not, in 1943, in the business of manufacturing an item for which a preference rating is assigned under this order, but is given a quota under paragraph (i) (2), he shall not sell to any one purchaser more than 10 percent of his total production of any item he produces with a rating (including any part of his production of the same item which he may have made without the rating). Purchasers who are subject to common control shall be deemed one purchaser. Further specific directions may be issued as to the distribution of items.

The above provisions are in addition to the provisions of paragraph (d) of General Conservation Order M–328.

Miscellaneous

(l) *Further restrictions.* No person shall put into process, process, sell, deliver or accept delivery of any textiles contrary to restrictions in additional orders or supplements in the M–388 series.

(m) *Records and reports.* (1) Each person who uses a preference rating assigned under this Order shall maintain at his regular place of business accurate records of the quantities of textile materials to which he is authorized under this order to apply ratings, the quantities ordered with the use of such rating, the quantities received and the quantities put into process. He shall also maintain records of the quantities of each item manufactured from the textile materials obtained with the rating.

(2) Each intermediate processor or producer who is required to make setasides or to meet rated delivery quotas shall maintain at his regular place of business accurate records of the amount of his output covered by these requirements and the amounts credited to them on deliveries to his customers.

(3) The above records shall be preserved for a period of not less than two years and shall, upon request, be submitted to audit and inspection by duly authorized representatives of the War Production Board.

(4) Subject to the approval of the Bureau of the Budget, pursuant to the Federal Reports Act of 1942, all persons affected by this Order shall execute and file with the War Production Board such reports and keep such records as the War Production Board shall from time to time require.

(n) *Definitions.* (1) "Producer" means a person who makes cotton, synthetic fiber or wool yarn or fabric in the United States.

(2) "Intermediate processor" means any person who, in the United States, bleaches, dyes, prints or otherwise finishes cotton or synthetic fiber or fabric, or produces finished wool fabric or causes any of the foregoing to be done, and delivers or uses the fabric for his own account, in the bleached, dyed, printed or otherwise finished state as piece goods or for making items for sale. (For example, a converter, a woolen or worsted mill producing finished fabric, or a manufacturer who gets unfinished fabric, is an "intermediate processor".)

(3) "Manufacturer" means any person engaged in the United States in manufacturing for sale any item listed in an order in the M–388 series from material which has not been supplied directly or indirectly by the person acquiring the item.

A person is also deemed a "manufacturer" for the purpose of using a preference rating under this order, if he is engaged in the business of selling and having manufactured in the United States for his account an item listed in an order of the M–388 series from material which he owns or material which he directly or indirectly supplies to a contractor or contractors. In no event shall more than one person be deemed a "manufacturer" of the same units which the one person fabricates in whole or in part and for which another person supplies the material. The person who was, or who under the above rules, may be deemed a "manufacturer" in the base period applicable under the preference rating schedule assigning the rating is the only one who may qualify by filing Form WPB–4200.

(4) "Merchant" means any person engaged in the United States in the business of purchasing textiles for resale in the United States in the form in which purchased.

(5) "User" means any person other than a producer, intermediate processor or processor, who purchases textiles for his own use in the United States in any business, industry, profession or occupation.

(6) Any person who performs the functions of one or more of the foregoing (regardless of his customary manner of conducting his business) shall, for the purpose of this order, be deemed a separate person with respect to each of those capacities.

(7) The term "item" unless otherwise designated, means the article produced for civilian sale, of the type, size and other description listed under an "Item Column" of an order in the M–388 series. An item must be considered as under M–388A if a cotton item; as under M–388B if a synthetic fiber item, or as under M–388C if a wool item, as these items are defined in this order.

(8) "Fabric", unless otherwise designated, means a woven fabric, 12 inches or more in width.

(9) "Cotton fabric" means any fabric containing less than 25 percent wool, by weight, but of which the remaining fibers are 50 percent or more cotton by weight. For example, a fabric containing 20 percent wool, 35 percent rayon, 45 percent cotton, is cotton; as is also a fabric containing 50 percent cotton, 50 percent rayon.

(10) "Cotton item" means an item of which more than 50 percent of the fabric yardage incorporated in it, exclusive of linings, bindings and trimmings, is made of cotton fabric.

(11) "Synthetic fiber fabric" means any fabric containing less than 25 percent wool, by weight, but of which the remaining fibers are more than 50 percent of synthetic fiber (staple or continuous filament) by weight. For example, a fabric containing 20 percent wool, 41 percent rayon, 39 percent cotton is rayon. The term does not include nylon, glass, rubber or asbestos fiber fabric.

(12) "Synthetic fiber item" means an item of which more than 50 percent of the fabric yardage incorporated in it, exclusive of linings, bindings and trimmings, is made of synthetic fabric.

(13) "Wool fabric" means any fabric incorporating 25 percent or more, by weight, of new, reprocessed, or re-used wool fiber, excepting upholstery pile fabrics and floor coverings, blankets and blanketing. The term includes woolen and worsted fabrics.

(14) "Worsted fabric" means a fabric made from yarn containing 25 percent or more wool fiber by weight in which the wool fiber content is 50% or more of combed wool fiber and spun on any system.

(15) "Woolen fabric" means any wool fabric other than a worsted fabric as defined in paragraph (n) (14).

(16) "Wool item" means an item of which 50 percent or more of the fabric yardage incorporated in it, exclusive of linings, bindings and trimmings, is made of woolen or worsted fabric.

(17) "Textiles" include yarns and fabrics. The term does not include scrap or pieces less than one yard in length, produced in normal operations.

(18) "Put into process" means the first change by a manufacturer or processor in the form of textiles from that form in which it was received.

(19) "Price" unless otherwise stated, means the list price of the manufacturer to an unaffiliated purchaser. A manufacturer who sells directly to consumers or to an affiliated purchaser must use the retail price in determining his eligibility to use a rating assigned in any preference rating schedule of this order. However, he may treat two-thirds of the retail price as the manufacturer's price equivalent or apply to the War Production Board for a manufacturer's price equivalent for the item under usual trade practices, taking into account the type of sale, and the applicable permitted mark-up under O. P. A. regulations. A purchaser is deemed affiliated with a manufacturer if he is an owned or controlled outlet, or is an outlet which owns, controls, or is subject to common control with the manufacturer.

(20) "Piece goods" means fabrics delivered to a merchant for ultimate over-the-counter sale at retail in the same form in which the fabrics are delivered to the merchant.

(21) Reference to this "order", unless otherwise specified, means and includes M–388 and all orders in the M–388 series.

(22) Reference to a "rated delivery quota" includes a "set-aside" made by an order in the M–388 series.

(23) Reference to "M–388 rated orders" unless otherwise specified, means a purchase order bearing a rating assigned by an order in the M–388 series.

(24) "Wool fiber" means the fiber from the fleece of the sheep or lamb, or the hair of the Angora goat (mohair) or the Cashmere goat, camel, alpaca, llama, vicuna, and related fibers, and includes noils, wastes, tanners' wool waste, reprocessed or reused wool.

(25) "Supplier" means a producer, intermediate processor or importer, who is required by an order in the M–388 series to comply with a set-aside or a rated delivery quota.

(26) "Quota period" when used with reference to a supplier, means the period of time during which set asides or deliveries required on the part of the supplier by an order in the M–388 series must be made. The term when used with respect to a manufacturer means the delivery period for which an M–388 rating is assigned.

(27) "Rated delivery quota" means the number of linear yards of fabric a supplier in a specified period is required by an order in the M–388 series to set aside for delivery, or to deliver to fill AA–4 orders.

(28) "Manufacturer's rated quota" means the number of linear yards of fabric for delivery in a quota period for which a manufacturer is assigned a rating under an order in the M–388 series. This quota is the number of yards calculated on Form WPB–4200 as required by paragraph (i) (2) and the schedule assigning the rating, or assigned on Form WPB–4201, but before the application of the equitable distribution percentage under paragraph (d) (2) of M–388.

(29) "Colored yarn fabrics" means colored yarn fabrics in the state (finished or unfinished) they are ordinarily sold by the producer.

(o) *Effect of changes in legal entity since base period.* For all purposes under this order, a supplier or manufacturer who is in substantially the same complete business which operated during the base period under substantially the same name is to be treated as the same person, even if the legal entity has been changed by incorporation of a partnership, admission of new partners, reorganization of a corporation, or similar transactions. If on dissolution of a manufacturer, the entire business was not transferred as a going concern to a single successor, the successors, who did not make the item in the corresponding quarter of 1943 or 1944 may not use Form WPB–4200.

NOTE: Paragraphs (p), (q), (r), and (s), formerly (o), (p), (q), and (r), redesignated Apr. 14, 1945.

(p) *Applicability of regulations.* Except as otherwise provided in this order, this order and all transactions affected thereby are subject to all applicable regulations of the War Production Board as amended from time to time.

(q) *Violations and false statements.* Any person who wilfully violates any provisions of this order, or who, in connection with this order, wilfully conceals a material fact or furnishes false information to any department or agency of the United States is guilty of a crime and upon conviction may be punished by fine or imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using material under priority control and may be deprived of priorities assistance.

(r) *Appeals for relief in exceptional cases.* Any person who considers that compliance by himself or others with a restriction of this order would work an exceptional and unreasonable hardship may appeal for relief. The appeal shall be made by filing a letter in triplicate referred to the particular provision appealed from, and stating fully the grounds of the appeal.

(s) *Communications.* All reports to be filed, appeals and other communications concerning M–388, or any order in the M–388 series, shall be filed with the War Production Board, Textile, Clothing and Leather Bureau, Washington 25, D. C., Ref.: M–388.

Issued this 14th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

INTERPRETATION 1

APPLICATION OF MANUFACTURER'S INVENTORY RESTRICTION TO SEASONAL ITEMS

The inventory restrictions of paragraph (i) (6) of Order M–388 permit a manufacturer to accept deliveries of textiles which will give him no more than "a two[1] months' inventory of the same material at current rate of operations, or a practicable minimum working inventory whichever is less." This does not prevent a manufacturer from accepting a seasonal material more than two[1] months before he will start using it.

The restriction applies separately to different constructions of material which are normally used in different seasons. A material needed for an item to be made in a later quarter which is of a different construction from a material needed for an item currently made would not be the "same material" for

purposes of the inventory restriction. Thus, a manufacturer who has on hand a two[1] months' or practicable minimum supply of material of the kind needed for current production may also accept up to (but not more than) a two[1] months' or practicable minimum supply of a different kind of material which he will use for a seasonal product beginning at a later time as long as he does not accept deliveries in greater quantities or further in advance than he would normally accept in the ordinary course of his business to meet reasonably anticipated seasonal requirements. (Issued Mar. 10, 1945.)

[F. R. Doc. 45-6010; Filed, Apr. 14, 1945; 11:33 a. m.]

PART 3290—TEXTILE, CLOTHING AND LEATHER

[General Preference Order M-388A as Amended Apr. 14, 1945]

COTTON TEXTILES FOR CIVILIAN ITEMS

§ 3290.352 *General Preference Order M-388A*—(a) *Explanation.* This order is supplemental to Order M-388. It states the special rules applicable to civilian items made from cotton textiles and lists the items for which ratings are assigned. This order supersedes Order M-385, beginning May 1, 1945.

(b) *Fabric "set-asides"*—(1) *Colored yarn fabric.* Each producer and importer of the colored yarn fabrics shown in Column 1 of Cotton Fabric Schedules I and II must set aside from his unrated yardage of the listed fabrics during May and June 1945, and each calendar quarter thereafter, at least the percentage shown in Column 2.

(2) *Cotton fabric other than colored yarn fabric.* Each intermediate processor and importer of a construction of cotton fabrics other than colored yarn fabrics shown in Column 1 of Cotton Fabric Schedules I and II must set aside, from his unrated yardage of the listed constructions during May and June 1945, and each calendar quarter thereafter, at least the percentage shown in Column 2.

(3) *How to determine "unrated yardage".* The "unrated yardage" from which set-asides must be made as described in subparagraphs (1) and (2) above means the total yardage, not needed to fill orders rated AA-3 or higher or, AA-5, which the producer, intermediate processor or importer either: (i) contracted to buy in the gray state before May 1, 1945, but receives title to on or after May 1, or (ii) contracts to buy in the gray state on or after May 1, 1945 and gets title to it on or after May 1, 1945, or (iii) produces in the gray state on or after May 1, 1945 and later finishes or causes to be finished, or (iv) produces as colored yarn fabric on or after May 1, 1945.

(c) *Finishing fabric covered by set-asides.* No intermediate processor or importer shall bleach, dye, print or otherwise finish, or permit to be bleached, dyed, printed or otherwise finished, any fabric, title to which passes to him or which he produces on or after May 1, 1945, except to fill rated orders which he has accepted, or to make unrated deliveries within the limits allowed by this order. Material must be finished in a manner which will make it suitable to fill the required amounts of rated orders.

(d) *Sales from set-asides.* Orders for the full amount of each set-aside must be accepted in accordance with paragraph (d) (1) of M-388 and in any event within or before the quarter during which the set-aside is made or within ten days thereafter.

(e) *Certifications on sales against set-asides.* No producer, importer, or intermediate processor shall deliver any cotton fabric set aside under paragraph (b) above, except on M-388 or higher rated orders, or on orders bearing a certification set forth in paragraph (g) (1) of M-388.

(f) *Unfinished fabric deliveries and finishing by integrated producers*—(1) *Producers' deliveries of unfinished cotton fabrics.* Effective May 1, 1945, a producer shall deliver unfinished cotton fabrics only if the delivery is in one of the following classes:

(i) Deliveries to fill rated orders.

(ii) Deliveries of unfinished fabric less than 10 yards in length unavoidably produced in normal production operations.

(iii) Deliveries to persons who have serial numbers from the War Production Board pursuant to applications on Form WPB 4202 and have on file with the producer a certification substantially as follows: (The certification once filed remains in effect until withdrawn. The standard certification in Priorities Regulation 7 may not be used instead.)

> The undersigned certifies subject to the Criminal Penalties of section 35 (A) of the U. S. Criminal Code, that he holds WPB serial number ------, and that the textiles covered by this and subsequent unrated purchase orders placed with you will be used or disposed of as required by the set-asides, delivery quotas and other applicable rules of M-388, or other orders in the M-388 series. This certification is a continuing representation to the War Production Board and to you until you are otherwise notified in writing.

(iv) Deliveries for essential though unrated items specifically authorized in writing pursuant to letter of application to the War Production Board. Deliveries will be authorized when needed for essential though unrated items if the deliveries will not substantially reduce production of rated items.

(v) Deliveries of not more than 10 percent of a producer's unrated reliveries in May or June 1945, or any calendar quarter thereafter, of any fabric listed in a fabric schedule of M-388A, in the gray state, for ultimate use in the gray state, or for making coated fabrics. Deliveries authorized by this paragraph may be made only against written certifications on the purchase orders substantially as follows:

> This fabric will be used in the gray state or for making coated fabrics.

(vi) Deliveries of any cotton fabric not listed in a fabric schedule of M-388A.

(2) *Finishing of fabrics by integrated producers.* A producer of cotton fabrics who is also an intermediate processor shall not finish any cotton fabrics after June 1, 1945, unless he has obtained a serial number from the War Production Board pursuant to application on Form WPB-4202.

(g) *Rejects and cancellations*—(1) *Rejects.* Rejects, including remnants over one yard, and seconds, must be included in calculating set-asides under this order.

(2) *Military and other cancellations.* Material resulting from cancellations of customers' orders must also be included in calculating set-asides. However, unless otherwise ordered by the War Production Board, a producer of colored yarn fabrics, an intermediate processor or importer who has a contract or subcontract with the United States Army, Navy, Maritime Commission, War Shipping Administration or the Procurement Division of the Treasury Department, which is cancelled after April 30, 1945, and for which cotton fabric or yarn has been dyed, may deliver the dyed fabric, or fabric made from the dyed yarn, free of his set-aside. This exception also applies where the fabric or yarn has been put into process for dyeing. It does not apply to fabric or yarn which has been bleached, but not dyed or put into process for dyeing.

NOTE: Paragraphs (h) and (i), formerly (g) and (h), redesignated Apr. 14, 1945.

(h) *Preference-rating schedules.* Preference ratings are assigned in the preference rating schedules of this order. The conditions under which the ratings can be used are explained in the schedules.

(i) *Records and reports.* In addition to complying with the record and report requirements of Order M-388, each intermediate processor and producer of colored yarn fabrics to whom Form WPB-3848 is sent by the War Production Board, shall execute this form monthly, in accordance with the instructions thereon, and file the executed form monthly with the War Production Board. This reporting requirement has been approved by the Bureau of the Budget, pursuant to the Federal Reports Act of 1942.

Issued this 14th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[1] Changed to "three" by paragraph (i) (6) of M-388 as amended April 14, 1945.

COTTON FABRIC SCHEDULE I

(For use with Preference Rating Schedule I)

NOTE: Schedule I amended Apr. 14, 1945.

Reference No.	Column 1 Construction of Fabric	Column 2 Percentage of Unrated Yardage Required to be set aside
1	Print cloth, sley of 66 to 78, any pick, all widths and weights, plain and fancy weaves	90
2	Print cloth, sley of 62 to 65, any pick, all widths and weights, plain and fancy weaves	90
3	Deleted.	
4	Deleted.	
5	Plissed print cloth, sley of 62 to 65, any pick, all widths and weights, plain and fancy weaves	90
6	Plissed print cloth, sley of 56 to 61, any pick, all widths and weights, plain and fancy weaves	90
7	Carded poplin, plain and slub, all counts, print cloth warp yarn (other than colored yarn)	90
8	Carded broadcloth over 100 sley, any pick, plain, slub and fancy weaves (other than colored yarn)	90
9	Carded broadcloth, more than 80, but not more than 100 sley, any pick, plain, slub and fancy weaves (other than colored yarn)	90
10	Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy weaves (other than colored yarn)	90
11	Cotton and spun rayon mixtures containing less than 25% by weight, of rayon, lighter than three square yards per pound	90
12	96/100, lawns, lighter than 5 yards per pound	90
13	88/80, lawns, all weights	90
14	76/72, lawns, all weights	90
15	72/56, lawns, all weights	90
16	Carded chambray, lighter than 3.90 yards per pound	90
17	Carded ginghams, average yarn heavier than 35's	90
18	Denims, 3.00 yards and lighter, basis 28"	90
19	Deleted.	
20	Soft-filled sheeting, lighter than 3.25 yards per pound	90
21	Dimity, combed and carded	90
22	Dotted swisses (carded undyed yarn)	90
23	Combed broadcloth, up to 136 sley, any pick, plain, slub and fancy weaves	90
24	Gabardines, 2.85 yards per pound and heavier	90
25	Twills (other than three leaf), 3.25 yards per pound and heavier	90
26	Drills, 3.25 yards per pound and heavier	90
27	Deleted.	
28	Deleted.	
29	Deleted.	
30	Deleted.	
31	Deleted.	

AA-4 PREFERENCE RATING SCHEDULE I—COTTON FABRIC CIVILIAN ITEMS

NOTE: Schedule amended Apr. 14, 1945.

Preference rating AA-4 for the particular cotton fabrics listed in the Fabric Maximum Price Column is assigned to manufacturers of items in this Schedule I who comply with M-388 and M-388A, including the following conditions:

(1) The rating may be used only to get the particular fabric shown in the Fabric Maximum Price Column.

(2) The fabric must be incorporated into an item produced for sale by the manufacturer at or below the lower of the following two prices:

(i) The price at which the manufacturer is permitted to sell the item under regulations of the Office of Price Administration; or

(ii) The price specified in the Fabric Maximum Price Column.

(3) The rated quota (the maximum yardage for which the rating may be used) must be calculated from the Quota Table below. For this purpose, products are classified as "items" and a separate quota is applicable to each item. An item classification generally includes several of the "Group No." classifications in which products are divided according to sizes and prices in the preference rating schedules. The table below shows in the respective columns the item number, description of item, the group numbers from the preference rating schedules which each item includes, and the rated quota percentages for the item. To determine his quota, the manufacturer must take the total number of units of the item (regardless of price) which he produced during the corresponding quarter of 1943 and multiply this by the percentage shown for that item in the last column. The result will be his total quota for total rated production of all civilian products included in the item. To determine the quota for which he may use the AA-4 rating he must subtract from this total quota the number of items he will produce for civilian sale on a rating other than AA-4. This net amount is his AA-4 rated quota for the item under the preference rating schedule. He may distribute his rated quota any way he wants as to the maximum prices specified in the item, but this does not exempt him from OPA regulations. He may not get more fabrics with the rating in any calendar quarter than the yardage necessary to fill this rated quota. This is the yardage which he must show in Form WPB-4200 before using the rating, as explained in paragraph (1) (2) of M-388.

(4) The rating is good to obtain cotton fabrics set aside in M-388A.

QUOTA TABLE

Item No.	Item Column: Description of item	Item Column: Size (or equivalent trade designation)	Includes these group numbers from preference rating schedules I and II	Rated quota percentages
A-1	Dresses: Women's	38 and up	1, 2, 54	55
	Misses'	10 to 20		
	Juniors'	9 to 17		
A-2	Dresses: Teens'	10 to 16	53	100
A-3	Slips: Women's and Misses'	38 to 44	3, 4, 105	55
		46 and up		
A-4	Pajamas: Women's and Misses'	32 and up	5, 104	35
		10 to 20		
A-5	Nightgowns: Women's and Misses'	32 and up	6, 7, 56	35
		10 to 20		
A-6	Shirts: Men's Dress and Sport	14 and up	8, 9, 10, 11, 57, 58	80
A-7	Under Shorts: Men's	28 and up	12, 13, 59	80
A-8	Pajamas: Men's	All sizes	14, 15, 97	35
A-9	Creepers and Rompers:	6 mo. to 2 yr	16, 60	100
A-10	Pajamas: Children's	1 to 4	17, 18, 19, 61	100
A-11	Pajamas: Children's	2 to 8	20, 21, 22, 62	100
A-12	Pajamas: Children's	8 to 16	23, 63	100
A-13	Nightgowns: Infants'	0 to 1 yr	24, 64	100
A-14	Nightgowns: Children's	1 to 3	25, 65	100
A-15	Nightgowns: Children's	2 to 8	26, 66	100
A-16	Nightgowns: Children's	8 to 16	27, 67	100
A-17	Kimonos: Infants'	0 to 1 yr	28, 68	100
A-18	Gertrudes: Infants'	0 to 1 yr	29, 69	100
A-19	Dresses: Infants'	0 to 1 yr	30, 70	100
A-20	Dresses: Toddlers'	1 to 3	31, 71	100
A-21	Dresses: Children's	3 to 6x	32, 72	100
A-22	Dresses: Girls'	7 to 14	33, 73	100
A-23	Slips: Toddlers'	1 to 3	34, 74	100
A-24	Slips: Girls' Gertrude type	2 to 14	35, 75	100
A-25	Slips: Girls'	10 to 16	36, 76	100
A-26	Blouses: Women's and Misses'	32 and up	55	55
		10 to 20		
A-27	Blouses: Girls'	2 to 6x	37, 77	100
A-28	Blouses: Girls'	7 to 14, 10 to 16	38, 78	100
A-29	Panties: Girls'	2 to 12	39, 79	100
A-30	Overalls & Coveralls	1 to 4	40, 80	100
A-31	Overalls: Crawler Type	6 mo. to 2 yr	41, 82	100
A-32	Overalls & Coveralls	2 to 8	42, 81	100
A-33	Wash Suits: Boys', Toddlers'	1 to 4	43, 83	100
A-34	Wash Suits: Boys'	2 to 8	44, 84	100
A-35	Shirts & Blouses: Boys'	3 to 10	45	100
A-36	Shirts: Boys' Dress & Sport	11 to 14½	46, 47, 85, 86, 87	100
A-37	Pants: Boys' short	4 to 10	48, 88	100
A-38	Pants: Boys' long or Knickers	4 to 18	49, 89	100
A-39	Undershorts: Boys'	6 to 16	50, 90	100
A-40	Crib Pads: Quilted	17 x 18, 18 x 34	51, 52, 106, 107	100
A-41	Handkerchiefs: Men's		92	55
A-42	Handkerchiefs: Ladies'		93	55
A-43	Sun Suits: Children's	2 to 14	91	100
A-44	Wash Suits: Boys'	3 to 10	44A	100
A-45	Wash Suits: Boys' Long Trousers	4 to 12, 3 to 10	94	100
A-46	Separate Trousers: Men's	All sizes	95	80
A-47	Suits: Men's (summer seersucker & woven cord only)	All sizes	96	80
A-48	Separate collars: Men's and Boys'	All sizes	98	80
A-49	Separate collars and cuffs, men's & boys' (for replacement use only)	All sizes	99	80
A-50	Bandeaux	All sizes	100	80
A-51	Brassieres (long line)	All sizes	101	80
A-52	Girdles & Corsets	All sizes	102	80
A-53	Foundation garments (one piece)	All sizes	103	80
A-54	Official Uniforms, Men's & Women's	All sizes	108	80
A-55	Religious Vestments & Clothing, Burial Clothing & Shrouds	All sizes	109	100
A-56	Nurses' Uniforms	All sizes	110	100

AA-4—PREFERENCE RATING SCHEDULE I—Continued

Group No.	Column 1 Description		Fabric—maximum price column (price per dozen)	Fabric—maximum price column (price per dozen)	Fabric—maximum price column (price per dozen)
	Type	Size (or equivalent trade designation)	2	3	4
1	Dresses: Misses' and women's.	10 and up	$24.00 Cotton and spun rayon mixtures containing less than 25% by weight of rayon and lighter than 3.00 square yards per pound. Carded gingham, average yarn heavier than 35's.		
2	Dresses: Women's	46 and up	$27.00 Cotton and spun rayon mixtures containing less than 25% by weight of rayon and lighter than 3.00 square yards per pound. Carded gingham, average yarn heavier than 35's.		
3	Slips: Women's	38 to 44	$6.75 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$8.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy.	
4	Slips: Women's	46 and up	$8.00 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$9.75 Print cloth, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy.	
5	Pajamas: Women's	32 and up	$18.75 Soft-filled sheetings, lighter than 3.25 yard.		
6	Nightgowns: Women's.	32 to 40	$15.75 76/72 lawns.	$16.50 96/100 lawns. 88/80 lawns. Soft-filled sheetings, lighter than 3.25 yard.	
7	Nightgowns: Women's.	42 and up	$17.25 76/72 lawns.	$18.50 96/100 lawns. 88/80 lawns. Soft-filled sheetings, lighter than 3.25 yard.	
8	Shirts: Men's dress and sport, long sleeve.	14 to 17	$14.75 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy.	$16.50 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Carded broadcloth, over 100 sley, any pick, plain, slub and fancy weaves.	$24.00 Combed broadcloth, up to 136 sley, any pick, plain, slub and fancy weaves.
9	Shirts: Men's sport, short sleeve.	14 to 17	$13.25 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy.	$15.00 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy.	
10	Shirts: Men's dress and sport, long sleeve.	17½ and up	$17.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$19.50 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80, but not more than 100 sley, any pick, plain, slub and fancy. Carded broadcloth, over 100 sley, any pick, plain, slub and fancy weaves.	$27.00 Combed broadcloth, up to 136 sley, any pick, plain, slub and fancy weaves.
11	Shirts: Men's sport, short sleeve.	17½ and up	$16.50 Print cloth, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$18.00 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Carded broadcloth, over 100 sley, any pick, plain, slub and fancy weaves.	
12	Under shorts: Men's	28 to 44	$4.00 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloths, 80 sley and less, any pick, plain, slub and fancy.	$4.75 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Carded, broadcloth, over 100 sley, any pick, plain, slub and fancy weaves.	
13	Under shorts: Men's	46 and up	$5.50 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$6.25 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Carded broadcloth, over 100 sley, any pick, plain, slub and fancy weaves.	

AA-4—Preference Rating Schedule I—Continued

Group No.	Column 1 Description		Fabric—maximum price column (price per dozen)	Fabric—maximum price column (price per dozen)	Fabric—maximum price column (price per dozen)
	Type	Size (or equivalent trade designation)	2	3	4
14	Pajamas: Men's	a, b, c, d	$22.50 Soft-filled sheetings, lighter than 3.25 yard.		
15	Pajamas: Men's	e and up	$25.50 Soft-filled sheetings, lighter than 3.25 yard.		
16	Creepers, rompers:	6 months to 2 years.	$8.50 Print cloth, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Print cloths, sley 56 to 61, any pick, all widths and weights, plisse crepe finish.	$10.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded chambray, lighter than 3.90 yards per pound.	
17	Pajamas: Button-on 2-piece.	1 to 4	$10.50 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. Soft-filled sheeting, 3.25 yards per pound and lighter.		
18	Pajamas: Button-on 2-piece with feet.	1 to 4	$10.50 Soft-filled sheeting, 3.25 yards per pound and lighter.		
19	Pajamas: 2-piece button-on with extra pants.	1 to 4	$12.00 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. Soft-filled sheeting, 3.25 yards per pound and lighter.		
20	Pajamas: 1-piece without feet.	2 to 8	$10.50 Print cloth, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$12.00 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley 62 to 65, any pick, all widths and weights, plisse crepe finish. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Soft-filled sheeting, 3.25 yards per pound and lighter.	
21	Pajamas: 1-piece with feet.	2 to 8	$12.00 Soft-filled sheeting, 3.25 yards per pound and lighter.		
22	Pajamas: 2-piece, jacket type.	2 to 8	$12.00 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$13.50 Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Soft-filled sheeting, 3.25 yards per pound and lighter. Print cloth, sley of 66 to 78, any pick, all widths and weights, plain and fancy.	
23	Pajamas: 2-piece, jacket type.	8 to 16	$13.50 Print cloth, sley 62 to 65, any pick, all widths and weights, plisse crepe finish. Print cloth, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$15.75 Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Soft-filled sheeting, 3.25 yards per pound and lighter. Print cloth, sley of 66 to 78, any pick, all widths and weights, plain and fancy.	
24	Nightgowns: Infants		$4.50 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. 96/100 lawns. 88/80 lawns. 76/72 lawns. Soft-filled sheeting, 3.25 yards per pound and lighter.		
25	Nightgowns	1 to 3	$5.25 76/72 lawns. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.	$6.00 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. 96/100 lawns. 88/80 lawns. Soft-filled sheeting, 3.25 yards per pound and lighter.	
26	Nightgowns	2 to 8	$6.50 76/72 lawns. Print cloth, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.	$8.50 96/100 lawns. 88/80 lawns. Print cloth, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Soft-filled sheeting, 3.25 yards per pound and lighter.	

AA-4—PREFERENCE RATING SCHEDULE I—Continued

Group No.	Column 1 Description		Fabric—maximum price column (price per dozen)	Fabric—maximum price column (price per dozen)	Fabric—maximum price column (price per dozen)
	Type	Size (or equivalent trade designation)	2	3	4
27	Nightgowns	8 to 16	$10.50 76/72 lawns. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.	$12.00 96/100 lawns. 88/80 lawns. Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Soft-filled sheeting, 3.25 yards per pound and lighter.	
28	Kimonos	Infants	$4.50 Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. Soft-filled sheeting, 3.25 yards per pound and lighter.		
29	Gertrudes	Infants	$3.75 76/72 lawns. 72/56 lawns.	$4.50 96/100 lawns. 88/80 lawns. Soft-filled sheeting, 3.25 yards per pound and lighter.	
30	Dresses: Infants'	0 to 1 yr	$10.50 Carded poplin, plain and slub (all counts), print cloth warp yarns. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. 96/100 lawns. 88/80 lawns. 76/72 lawns. 72/56 lawns.		
31	Dresses: Toddlers'	1 to 3	$10.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. 72/56 lawns.	$13.50 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Carded poplins, plain and slub (all counts), print cloth warp yarns. Carded broadcloth more than 80 but not more than 100 sley, any pick, plain, slub and fancy. 96/100 lawns. 88/80 lawns. 76/72 lawns. Carded chambray, lighter than 3.90 yards per pound. Dimities. Dotted swiss, carded undyed yarn.	
32	Dresses: Children's	3 to 6x	$12.00 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish. 72/56 lawns.	$15.75 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. 96/100 lawns. 88/80 lawns. 76/72 lawns. Carded chambray, lighter than 3.90 yards per pound. Dimities. Dotted swiss, carded, undyed yarn.	
33	Dresses: Girls'	7 to 14	$13.50 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.	$16.50 Carded poplins, plain and slub, (all counts), print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy Carded chambray, lighter than 3.90 yards per pound. Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Cotton and spun rayon mixtures, containing less than 25% by weight of rayon, and lighter than 3.00 yards per pound. Carded ginghams, average yarn heavier than 35's.	
34	Slips: Toddlers'	1 to 3	$3.75 Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. 72/56 lawns.	$4.50 Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain slub and fancy. 96/100 lawns. 88/80 lawns. 76/72 lawns.	
35	Slips: Girls', gertrude type.	2 to 14	$4.50 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. 72/56 lawns.	$6.75 Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain and fancy. Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. 96/100 lawns. 88/80 lawns. 76/72 lawns.	

AA-4—PREFERENCE RATING SCHEDULE I—Continued

Group No.	Column 1 Description		Fabric—maximum price column (price per dozen)	Fabric—maximum price column (price per dozen)	Fabric—maximum price column (price per dozen)
	Type	Size (or equivalent trade designation)	2	3	4
36	Slips: Girls' shoulder strap.	10 to 16	$8.50 Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$9.75 Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. 96/100 lawns. 88/80 lawns.	
37	Blouses: Children's	2 to 6x	$9.75 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Dimities. 76/72 lawns.	$12.00 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. 96/100 lawns. 88/80 lawns. Dotted swiss, carded undyed yarns.	
38	Blouses: Girls'	7 to 14	$10.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, slub and fancy. Dimities. 76/72 lawns.	$13.50 Carded poplins, plain and slub (all counts), print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. 96/100 lawns. 88/80 lawns. Dotted swiss, carded undyed yarns.	
39	Panties: Girls'	2 to 12	$3.00 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. 72/56 lawns.	$3.75 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. 76/72 lawns.	$4.50 Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. 96/100 lawns. 88/80 lawns.
40	Overalls: Coveralls	1 to 4	$9.75 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.	$10.50 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Carded poplins, plain and slub (all counts), print cloth warp yarns. Sport denims. Carded chambray lighter than 3.90 yards per pound. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy.	
41	Overalls: Crawler type	6 months-2 years.	$8.50 Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain slub and fancy. Print cloths, sley 56 to 61, any pick, all widths and weights, plisse crepe finish.	$10.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Carded poplins, plain and slub (all counts), print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Carded chambray, lighter than 3.90 yards per pound.	
42	Overalls: Coveralls	2 to 8	$10.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.	$12.00 Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Carded poplins, plain and slub (all counts), print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Sport denim. Carded chambray, lighter than 3.90 yards per pound. Carded broadcloth, over 100 sley, any pick, plain, slub and fancy weaves.	
43	Wash suits, including sun suits: Boys', toddlers'.	1 to 4	$10.50 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Print cloth, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, over 100 sley, any pick, plain, slub and fancy weaves. Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.		
44	Wash suits, including sun suits: Boys'.	2 to 8	$12.00 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Print cloth, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, over 100 sley, any pick, plain slub and fancy weaves. Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.		

AA-4—Preference Rating Schedule I—Continued

Group No.	Column 1 Description: Type	Column 1 Description: Size (or equivalent trade designation)	Fabric—maximum price column (price per dozen) 2	Fabric—maximum price column (price per dozen) 3	Fabric—maximum price column (price per dozen) 4
44A	Wash suits, Boys'	3 to 10	$15.75 Carded poplins, plain and slub, (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Print cloth, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Carded broadcloth, over 100 sley, any pick, plain slub and fancy weaves. Print cloths, sley of 62 to 65, any pick, all widths and weights, plisse crepe finish. Print cloths, sley of 56 to 61, any pick, all widths and weights, plisse crepe finish.		
45	Boys' Shirts and Blouses.	3 to 10	$9.00 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded poplins, plain and slub (all counts) print cloth warp yarn. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.		
46	Shirts: Boys' Dress or Sport, Long Sleeves.	11 to 14½	$10.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth, 80 sley and less, any pick, plain, slub and fancy.	$12.00 Carded poplins, plain and slub (all counts), print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub and fancy. Carded broadcloth, over 100 sley, any pick, plain, slub and fancy weaves.	
47	Shirts: Boys' dress or sport, short sleeve.	11 to 14½	$9.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths, and weights, plain and fancy. Carded broadcloth 80 sley and less, any pick, plain, slub and fancy.	$11.00 Carded poplins, plain and slub (all counts) print cloth warp yarns. Carded broadcloth, more than 80 but not more than 100 sley, any pick, plain, slub. Carded broadcloth over 100 sley, any pick, plain, slub and fancy.	
48	Pants: Boys' (short)	4 to 10	$10.50 Drills, twills (other than three leaf), 3.25 yards per pound and heavier.	$13.50 Gabardines, 2.85 yards per pound and heavier.	
49	Pants: Boys' (long or knicker).	4 to 12	$15.75 Drills and twills (other than three leaf), 3.25 yards per pound and heavier. Gabardines, 2.85 yards per pound and heavier.		
50	Undershorts: Boys'	6 to 16	$3.50 Print cloths, sley of 66 to 78, any pick, all widths and weights, plain and fancy. Print cloths, sley of 62 to 65, any pick, all widths and weights, plain and fancy. Carded broadcloth 80 sley and less, any pick, plain, slub and fancy.	$4.25 Carded poplins, plain and slub (all counts), print cloth warp yarns. Carded broadcloth, more than 80 but nor more than 100 sley, any pick, plain, slub and fancy. Carded broadcloth over 100 sley, any pick, plain, slub and fancy.	
51	Quilted crib pads	17 x 18	$2.75 Print cloth, sley of 62 to 65, any pick, all widths and weights, plain and fancy.		
52	Quilted crib pads	18 x 34	$5.25 Print cloth, sley of 62 to 65, any pick, all widths and weights, plain and fancy.		

Cotton Fabric Schedule II

For use with Preference Rating Schedule II

Note.—Schedule added Apr. 14, 1945.

Reference No.	Column 1 Construction of fabric	Column 2 Percentage of unrated yardage required to be set aside
1	Lawns and organdy, carded and combed, other than 96 x 100, lighter than 5 yards per pound, 88 x 80, 76 x 72 and 72 x 56 construction	65
2	Combed twills, all types including Army and Navy construction	65
3	Combed poplin	65

Cotton Fabric Schedule II—Continued

(For use with Preference Rating Schedule II)—Continued

Reference No.	Column 1 Construction of fabric	Column 2 Percentage of unrated yardage required to be set aside
4	Combed broadcloth, over 136 sley	65
5	Oxfords, carded and combed	65
6	Shirting jacquard, gray-dobby, colored yarn (combed)	65
7	Gabardines, combed and carded lighter than 2.85 yards per pound	65
8	Piques, combed and carded including novelties	65
9	Pongees	65
10	Voiles	65

Cotton Fabric Schedule II—Continued

(For use with Preference Rating Schedule II)—Continued

Reference No.	Column 1 Construction of fabric	Column 2 Percentage of unrated yardage required to be set aside
11	Combed and carded cotton and rayon fabrics, chiefly cotton, except cotton and spun rayons containing less than 25% by weight of rayon and lighter than 3.00 square yards per pound	65
12	Medium sheeting (Class C)	65
13	Window Shade quality Print Cloth	65

COTTON FABRIC SCHEDULE II—Continued

(For use with Preference Rating Schedule II)—Continued

Reference No.	Column 1 Construction of fabric	Column 2 Percentage of unrated yardage required to be set aside
14	Print Cloth, 80 sley and higher, all widths and weights, any pick, plain or fancy	65
15	Cotton suitings; all cotton, cotton and rayon, and cotton and wool, including checks and plaids	65
16	Carded poplins (sheeting yarns)	65
17	Pajama checks	65
18	Sateens, combed and carded	65
19	Tracing cloth	65
20	Seersucker, woven stripe, including checks and plaids	65
21	Fancy handkerchief fabrics (for handkerchiefs only)	65
22	Print Cloth, sley of 56 to 61, any pick, all widths and weights, plain and fancy weaves	65
23	Print cloth, less than 56 sley, 8.60 yards per pound and heavier	65
24	Outing flannel, 3.50 yards per pound and lighter	65
25	Interlining flannels and other napped fabrics other than blanketing and outing flannelette	65
26	Three leaf pocketing twills (sheeting yarns) (to be used only in pocketing for men's, boys' and children's clothing	65
27	Three leaf silesia twills (to be used in pocketings for men's, boys' and children's clothing only)	65
28	Three leaf twills (print cloth yarn) (to be used only in pocketings and waist band and fly linings in men's, boys' and children's clothing)	65

AA-4 PREFERENCE RATING SCHEDULE II—OTHER COTTON FABRIC CIVILIAN ITEMS

NOTE: Schedule amended Apr. 14, 1945.

Preference rating AA-4 for any cotton fabrics listed in Cotton Fabric Schedule II is assigned to manufacturers of items in this Schedule who comply with M-388 and M-388A, including the following conditions:

(1) The fabric must be incorporated into an item produced for sale by the manufacturer at or below the lower of the following two prices:

(i) The price at which the manufacturer is permitted to sell the item under regulations of the Office of Price Administration, or

(ii) The price specified in Column 2 of this schedule.

(2) Items in this Schedule, but in different price lines, are also listed in Preference Rating Schedule I. The manufacturer's total quota for the particular priced items in Preference Rating Schedule I and in this schedule must be figured under Sub-paragraph (3) of Schedule I as a combined quota. He may not get more fabric with the rating in any calendar quarter than the yardage necessary to fill this combined quota. This is the yardage which he must show in Form WPB-4200 before using the rating, as explained in paragraph (i) (2) of M-388.

AA-4 PREFERENCE RATING SCHEDULE II

Group No.	Column 1 Description	Size (or equivalent trade designation)	Column 2 Maximum price, per dozen
53	Dresses: Teens	10-16	$36.00
54	Dresses: Women's, misses' and juniors'	38 and up 10 to 20 9 to 17	45.00
55	Blouses: Women's and Misses'	32 and up 10-20	22.50
56	Nightgowns: Women's and Misses'	32 and up 10-20	22.50
57	Shirts: Men's sport, short sleeve only	All sizes	21.00
58	Shirts: Men's dress and sport, long sleeve	14 and up	24.00
59	Shorts: Men's	28 and up	9.50
60	Creepers and rompers	6 mos-2 yrs	15.75
61	Pajamas: Children's	1-4	18.00
62	Pajamas: Children's	2-8	18.00
63	Pajamas: Children's	8-16	22.50
64	Nightgowns: Infants'	0 to 1 yr	10.50
65	Nightgowns: Children's	1-3	12.00
66	Nightgowns: Children's	2-8	15.75
67	Nightgowns: Children's	8-16	18.00
68	Kimonos: Infants'	0 to 1 yr	10.50
69	Gertrudes: Infants'	0 to 1 yr	10.50
70	Dresses: Infants'	0 to 1 yr	18.00
71	Dresses: Toddlers'	1-3	22.50
72	Dresses: Children's	3-6x	22.50
73	Dresses: Girls'	7-14	30.00
74	Slips: Toddlers'	1-3	10.50
75	Slips: Girls', Gertrude type	2-14	12.00
76	Slips: Girls'	10-16	15.75
77	Blouses: Girls'	2-6x	15.75
78	Blouses: Girls'	7-14, 10-16	22.50
79	Panties: Girls'	2-12	6.00
80	Overalls and coveralls	1-4	18.00
81	Overalls and coveralls	2-8	18.00
82	Overalls: Crawler type	6 mos to 2 yrs	15.75
83	Wash suits: Boys', toddlers'	1-4	18.00
84	Wash suits: Boys'	2-8	22.50
85	Shirts: Boys', dress only	11-14½	18.00
86	Shirts: Boys' sport, long sleeve	11-14½	18.00
87	Shirts: Boys' sport, short sleeve only	11-14½	16.50
88	Pants: Boys', short	4-10	18.00
89	Pants: Boys', long	4-18	30.00
90	Shorts: Boys'	6-16	6.00
91	Sun suits: Children's	2-14	15.75
92	Handkerchiefs: Men's		2.50
93	Handkerchiefs: Ladies'		1.75
94	Wash suits: Boys', long trousers	3-12	30.00
95	Separate trousers: Men's	All sizes	36.00
96	Suits: Men's (summer seersucker and woven cord only)	All sizes	[1] 9.00
97	Pajamas: Men's	All sizes	30.00
98	Separate collars: Mens' and boys'	All sizes	2.50
99	Separate collars and cuffs, (for replacement use on men's and boys' shirts).	All sizes	2.50
100	Bandeaux	All sizes	12.00
101	Brassieres (long line)	All sizes	15.75
102	Girdles and corsets	All sizes	45.00
103	Foundation garments (one piece)	All sizes	60.00
104	Pajamas: Women's and misses'	32 and up 10-20	22.50
105	Slips: Women's and misses	32 and up 10-20	15.75
106	Crib pads, quilted	17 x 18	3.50
107	Crib pads, quilted	18 x 34	6.00
108	Men's and women's official uniforms and caps or hats (except Army or Navy uniforms, caps or hats) as required by government regulations, or for transportation, police, and industrial operations, but excluding sporting and amusement industries.	All sizes	[2]
109	Religious vestments and clothing, burial clothing and shrouds, as required by the rules of religious sects.	All sizes	[2]
110	Nurses' uniforms	All sizes	45.00

[1] Each.
[2] OPA maximum.

[F. R. Doc. 45-6011; Filed, Apr. 14, 1945; 11:33 a. m.]

PART 3290—TEXTILE, CLOTHING AND LEATHER

[General Preference Order M-388B, as Amended Apr. 14, 1945]

SYNTHETIC FIBER TEXTILES FOR CIVILIAN ITEMS

§ 3290.353 *General Preference Order M-388B*—(a) *Explanation.* This order is supplemental to M-388. It states the special rules applicable to civilian items made from synthetic fiber materials and lists the items for which ratings are assigned.

(b) *Delivery quotas*—(1) *General rule.* (Orders rated AA-3 or higher, and AA-5, must be filled as required by Priorities Regulation 1, in addition to the quotas under this paragraph.) Each producer of colored yarn fabrics, intermediate processor and importer must deliver to fill AA-4 orders in the period May 1, 1945, through June 30, 1945, inclusive, and in each subsequent calendar quarter, at least 80 percent of the total linear yards of synthetic fiber fabrics he delivers during the same period on both AA-4 and unrated orders. Stated another way, he must not deliver on unrated orders in any of these periods more than 20 linear yards of synthetic fiber fabrics for each 80 linear yards he delivers to fill AA-4 orders in the same period. He must not discriminate against rated orders in distributing widths as between rated and unrated deliveries.

(2) *Exception for 6 percent of total deliveries.* An exception to the above rule is that each producer of colored yarn fabrics, intermediate processor or importer may deliver up to 6 percent of his total deliveries in the period without regard to AA-4 ratings as long as he fills all other rated orders and complies with all other applicable orders, regulations and directions of the War Production Board.

(3) *Examples.* If an intermediate processor delivers a total of 1,000,000 yards in a calendar quarter, and half of this yardage is delivered to fill orders rated AA-3 or higher, or AA-5, he has available a total of 500,000 yards for both AA-4 and unrated deliveries. Eighty percent of this total, or at least 400,000 yards would have to be delivered on AA-4 orders and not more than 20 percent or 100,000 yards could be delivered on unrated orders. However, if he delivers in the period 750,000 yards on orders rated AA-3 or higher or AA-5, leaving 250,000 yards for unrated and AA-4 orders, he may still deliver 60,000 yards on unrated orders to the extent that these 60,000 yards are not needed to fill orders other than AA-4 or to comply with regulations, orders or directions of the War Production Board.

(4) *Rejects.* Rejects, including remnants over one yard and seconds, must be included in calculating required deliveries for rated delivery quotas under this order.

(5) *Military and other cancellations.* Material resulting from cancellations of customers' orders must also be included in calculating rated delivery quotas. However, unless otherwise ordered by the War Production Board, a producer of colored yarn fabrics, intermediate processor or importer who has a contract or subcontract with the United States Army, Navy, Maritime Commission, War Shipping Administration or the Procurement Division of the Treasury Department which is cancelled after April 30, 1945, and for which synthetic fiber fabric or yarn is already completed or in process either in his plant or that of one of his subcontractors, may deliver the completed finished fabric, or the finished fabric made from the material in process, free of his rated delivery quota.

(c) *Finishing, sale, and delivery of materials under delivery quotas.* No intermediate processor or importer shall bleach, dye, print or otherwise finish, or permit to be bleached, dyed, printed or otherwise finished, any fabric, title to which passes to him, or which he completes as gray goods, on or after May 1, 1945, except to fill rated orders which he has accepted, or to make unrated deliveries within the limits allowed by this order. Material must not be finished in a manner which will make it unsuitable to fill the required amounts of rated orders.

(d) *Unfinished fabric deliveries and finishing by integrated producers*—(1) *Producer deliveries of unfinished synthetic fiber fabrics.* Effective May 1, 1945, a producer shall deliver unfinished synthetic fiber fabrics only if the delivery is in one of the following classes:

(i) Deliveries to fill rated orders.

(ii) Deliveries of unfinished fabric less than 10 yards in length unavoidably produced in normal production operations.

(iii) Deliveries to persons who have serial numbers from the War Production Board pursuant to applications on Form WPB-4202 and have on file with the producer certification substantially as follows: (The certification once filed remains in effect until withdrawn. The standard certification in Priorities Regulation 7 may not be used instead.)

The undersigned certifies subject to the Criminal Penalties of section 35 (A) of the U. S. Criminal Code that he holds WPB serial number _____, that the textiles covered by this and all subsequent unrated purchase orders placed with you will be used or disposed of as required by the set-asides, delivery quotas, and other applicable rules of M-388, or other orders in the M-388 series. This certification is a continuing representation to the War Production Board and to you until you are otherwise notified in writing.

(iv) Deliveries authorized in writing pursuant to letter of application to the War Production Board. Deliveries will be authorized when needed for essential though unrated items if the deliveries will not substantially reduce production of rated items.

(2) *Finishing of fabrics by integrated producers.* A producer of synthetic fiber fabrics, who is also an intermediate processor shall not finish any synthetic fiber fabrics after June 1, 1945, unless he has obtained a serial number from the War Production Board pursuant to application on Form WPB-4202.

NOTE: Paragraph (e), formerly paragraph (d), redesignated April 14, 1945.

(e) *Preference rating schedules.* Preference ratings are assigned in the Preference rating schedules of this order. The conditions under which the ratings can be used are explained in these schedules.

Issued this 14th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

AA-4 PREFERENCE RATING SCHEDULE I—SYNTHETIC FIBER CIVILIAN ITEMS

Assignment of AA-4 rating to manufacturers of listed synthetic fiber apparel and other items. Preference rating AA-4 for synthetic fiber fabric is assigned to manufacturers of the items shown in this Schedule who qualify under M-388 and M-388B, and also comply with the following:

(1) This rating may not be used to get a delivery from a producer.

(2) The fabric must be incorporated into an item produced for sale by the manufacturer at or below the lower of the following two prices: (i) the price at which the manufacturer is permitted to sell the item under regulations of the Office of Price Administration, or (ii) the price specified in the Maximum Price Column in this Schedule.

(3) The Rated Quota Column in this Schedule shows for each item a quota of units of the item. This quota is a percentage of the total number of units (in all price lines) of the same item which the manufacturer made in the corresponding quarter of 1943. He may not get more fabric with the rating in any calendar quarter than the yardage necessary to fill this quota. This is the yardage which he must show in Form WPB-4200 before using the rating, as explained in paragraph (i) (2) of M-388.

NOTE: Table amended April 14, 1945.

AA–4 PREFERENCE RATING SCHEDULE I—SYNTHETIC FIBER CIVILIAN ITEMS—Continued

(The applicable provisions of each column are indicated for each numbered item opposite the item number)

Item column			Maximum price column	Rated quota column
Item No.	Name of synthetic fiber item	Size (or equivalent trade designation)	At or below the manufacturer's price permitted by OPA Regulations or at or below the price indicated opposite the item, whichever is lower	Percentage of production (in units) in corresponding quarter of 1943
	Dresses (street only):		*Each*	
B–1	Women's, extra sizes	46 and up	$12.75	80
B–2	Women's, misses' and juniors'	38 to 44; 16½ and up; 10 to 20; 9 to 17	12.75	75
B–3	Deleted April 14, 1945—Item included in B–2.)			
B–4	Deleted April 14, 1945—Item included in B–2.)			
B–5	Deleted April 14, 1945—Item included in B–2.)			
B–6	Maternity dresses	All sizes	12.75	90
B–7	Teen age—girls'	10 to 16	4.75	100
B–8	Girls'	7 to 14	3.75	100
B–9	Children's	2 to 6x	2.50	100
	Suits (two-piece, lined jacket or jacket with bound or completely finished seams):			
B–10	Women's, misses' and juniors'	32 and up; 16½ and up; 10 to 20; 9 to 17	16.75	70
B–11	(Deleted April 14, 1945—Item included in B–10).			
B–12	(Deleted April 14, 1945—Item included in B–10.)			
	Skirts:			
B–13	Women's, misses' and juniors'	32 and up; 10 to 20; 9 to 17	3.00	75
B–14	(Deleted April 14, 1945—Item included in B–13.)			
B–15	(Deleted April 14, 1945—Item included in B–13.)			
B–16	Teen age—girls'	10 to 16	3.00	110
B–17	Girls'	7 to 14	2.50	110
B–17A	Children's	2 to 6x	2.00	90
	Blouses, shirts and waists:		*Per Dozen*	
B–18	Extra sizes	42 and up	36.00	80
B–19	Women's, misses' and juniors'	32 to 40; 10 to 20; 9 to 17	36.00	80
B–20	Teen age—girls'	10 to 16	30.00	110
B–21	Girls'	7 to 14	22.50	110
B–22	Children's	2 to 6x	15.75	110
B–23	Dickies (only those types that can be worn with a suit as a substitute for a blouse).		14.50	90
B–24	Brassieres and bandeaux	32 and up	15.75	100
B–25	Corselets and foundation garments—one piece	All sizes	60.00	100
B–26	Girdles and corsets	All sizes	45.00	100
	Pajamas:			
B–27	Women's	32 and up	36.00	70
B–28	Teen age—girls'	10 to 16	22.50	100
	Nightgowns:			
B–29	Women's extra sizes	46 and up	36.00	80
B–30	Women's	32 to 44	36.00	70
B–31	Teen age—girls'	10 to 16	22.50	100
	Slips:			
B–32	Women's extra sizes	46 and up	24.00	90
B–33	Women's, misses' and juniors'	32 to 44; 16½ and up; 10 to 20; 9 to 17	24.00	80
B–34	Teen age, shoulder strap, girls'	10 to 16	15.75	110
B–35	Girls'—Gertrude style	2 to 14	12.00	110
B–36	Nurses' uniforms	All sizes	45.00	100
B–37	Religious garments: clothing, vestments, robes and burial garments as required by rules of religious sects.		OPA maximum	100
	Slacks:		*Each*	
B–38	Women's, misses' and juniors' (spun rayon fabric only).	38 and up; 10 to 20; 9 to 17	3.75	70
B–39	Slack suits, women's, misses' and juniors' (spun rayon fabric only).	38 and up; 10 to 20; 9 to 17	6.75	70
B–40	Men's Separate trousers	30 and up	4.50	60
B–41	Men's suits	34 and up	14.75	60
			Per dozen	
B–42	Men's shirts, short sleeves	13 and up	30.00	60
B–43	Men's shirts, long sleeves	13 and up	36.00	60
			Each	
B–44	Separate trousers, long, students'	25 to 32	3.75	60
B–45	Footwear as defined in M–217	All sizes	OPA maximum	100

[F. R. Doc. 45–6012; Filed, Apr. 14, 1945; 11:33 a. m.]

PART 3290—TEXTILE, CLOTHING AND LEATHER

[General Preference Order M–388C, as Amended Apr. 14, 1945]

WOOL AND WOOL TEXTILES FOR CIVILIAN ITEMS

Section 3290.354 *General Preference Order M–388C* is amended to read as follows:

§ 3290.354 *General Preference Order M–388C*—(a) *Explanation.* This order is supplemental to M–388. It states the special rules applicable to civilian items made from wool materials and lists the items for which ratings are assigned.

(b) *Delivery quotas*—(1) *General rule.* (Orders rated AA–3 or higher, or AA–5, must be filled as required by Priorities Regulation 1, in addition to the quotas under this paragraph.) Every producer and importer of wool fabrics must deliver to fill AA–4 orders in the period from May 1, 1945, through June 30, 1945, inclusive, and in each subsequent calendar quarter, at least 80 percent of his total deliveries of wool fabrics (by linear yards) during the same period on both AA–4 and unrated orders. Stated another way, he must not deliver on unrated orders in any of these periods more than 20 yards of wool fabrics for each 80 yards he delivers to fill AA–4 orders in the same period. He must not discriminate against rated orders in distributing fabric widths as between rated and unrated deliveries.

(2) *Exception for 6 percent of total deliveries.* An exception to the above rule is that each producer or importer may deliver up to 6 percent of his total deliveries in the period without regard to AA–4 ratings, as long as he fills all other rated orders and complies with all other applicable orders, regulations and directions of the War Production Board.

(3) *Examples.* If a woolen mill delivers a total of 1,000,000 yards in a calendar quarter, and half of this yardage is delivered to fill orders rated AA–3 or higher, or AA–5, it has available a total of 500,000 yards of both AA–4 and unrated deliveries. Eighty percent of this total, or at least 400,000 yards, would have to be delivered on AA–4 orders, and not more than 20 percent or 100,000 yards could be delivered on unrated orders. However, if the mill delivers in the period 750,000 yards on orders rated AA–3 or higher, or AA–5, leaving 250,000 yards for unrated and AA–4 orders, he may still deliver 60,000 yards on unrated orders to the extent that these 60,000 yards are not needed to fill orders other than AA–4 or to comply with regulations, orders or directions of the War Production Board.

(4) *Rejects.* Rejects, including remnants over one yard and seconds, must be included in calculating required deliveries for rated delivery quotas under this order.

(5) *Military and other cancellations.* Material resulting from cancellations of customers' orders must also be included in calculating rated delivery quotas. However, unless otherwise ordered by the War Production Board, a producer or importer who has a contract or subcontract with the U. S. Army, Navy, Maritime Commission, War Shipping Administration or the Procurement Division of the Treasury Department which is cancelled after April 30, 1945 and for which wool fabric, wool yarn or wool is already completed or in process either in his plant or that of one of his subcontractors may deliver the completed fabric, or the fabric made from the material in process free of his rated delivery quota.

(c) *Dyeing and finishing of fabrics.* A producer of wool fabrics or importer shall dye wool fabrics which he produces or imports after May 1, 1945, only to fill

accepted rated orders, or orders which are authorized under paragraph (g) of M-388, or unrated orders within the limits allowed by this order. Material must not be finished in a manner which will make it unsuitable to fill the required amounts of rated orders.

(d) *Preference rating schedules.* Preference ratings are assigned in the preference rating schedules of this order. The conditions under which the ratings can be used are explained in these schedules.

Issued this 14th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

AA-4 PREFERENCE RATING SCHEDULE I—WOOL CIVILIAN ITEMS

Assignment of AA-4 rating to manufacturers of listed wool apparel and other items. Preference rating AA-4 for wool fabric is assigned to manufacturers of the items shown in this schedule who qualify under M-388 and M-388C and comply with the following:

(1) This rating may be used only to get the fabric shown in the Fabric Column for the particular item and may be extended for wool material to be incorporated in the fabric, as permitted by Priorities Regulation 3.

(2) The fabric must be incorporated into an item produced for sale by the manufacturer at or below the lower of the following two prices: (i) the price at which the manufacturer is permitted to sell the item under regulations of the Office of Price Administration, or (ii) the price specified in the Maximum Price Column.

(3) The Rated Quota Column in this schedule shows for each item a quota of units of the item. This quota is a percentage of the total number of units (in all prices lines) of the same item which the manufacturer made in the corresponding quarter of 1943. He may not get more fabric with the rating in any calendar quarter than the yardage necessary to fill this quota. This is the yardage which he must show in Form WPB-4200 before using the rating, as explained in paragraph (i) (2) of M-388.

[The applicable provisions of each Column are indicated for each numbered item opposite the item number]

Item number	Item column (name of item)	Size (or equivalent trade designation)	Maximum price column	Rated quota column	Fabric column
C-1	Coats, women's and misses'.	9 to 17 10 to 20 36 to 44 46 and up	Untrimmed $22.75 each. Fur trimmed $45 each.	35	Woolen fabric, less than 26 oz. per linear yd. Worsted fabric.
C-2	Coats, teen age, girls'	10 to 16	$13.75 each	80	Woolen fabric, less than 26 oz. per linear yd. Worsted fabric.
C-3	Coats, girls'	7 to 14	$12.75 each	80	Woolen fabric, less than 26 oz. per linear yd. Worsted fabric.
C-4	Coats, children's and small boys'.	3 to 6X 3 to 8	$9.75 each	80	Woolen fabric, less than 26 oz. per linear yd. Worsted fabric.
C-5	Coats, toddlers'	1 to 4	$7.75 each	80	Woolen fabric, less than 19 oz. per linear yd.
C-6	Coats, infants'	6 mos. to 2 yrs.	$6.75 each	80	Woolen fabric, less than 19 oz. per linear yd.
C-7	Dresses, women's and misses', street only.	9 to 17 10 to 20 38 to 44 16½ to 26½ 46 and up	$12.75 each	35	Woolen fabric, less than 10 oz. per linear yd. Worsted fabric not over 9 oz. per linear yd., in which worsted yarn content is single ply.
C-8	Dresses, teen age, girls'	10 to 16	$5.75 each	80	Woolen fabric, less than 10 oz. per linear yd. Worsted fabric not over 9 oz. per linear yd. in which worsted yarn content is single ply.
C-9	Dresses, girls'	7 to 14	$5 each	80	Woolen fabric, less than 10 oz. per linear yd. Worsted fabric not over 9 oz. per linear yd. in which worsted yarn content is single ply.
C-10	Suits, Women's and Misses'.	9 to 17 10 to 20 38 and up	$22.75 each	35	Woolen fabric, less than 16 oz. per linear yd.
C-11	Suits, teen age girls'	10 to 16	$12.75 each	80	Woolen fabric, less than 16 oz. per linear yd.
C-12	Suits, girls'	7 to 14	$10.75 each	80	Woolen fabric, less than 16 oz. per linear yd.
C-13	Skirts, women's, misses', and juniors'.	36 and up 9 to 17 10 to 20	$5 each	40	Woolen fabric, less than 12 oz. per linear yd.
C-14	Skirts, teen age, girls'	10 to 16	$4.75 each	80	Woolen fabric, less than 12 oz. per linear yd.
C-15	Skirt, girls'	7 to 14	$3.75 each	80	Woolen fabric, less than 12 oz. per linear yd.
C-16	Skirts, children's	3 to 6x	$2.50 each	80	Woolen fabric, less than 12 oz. per linear yd.
C-17	Suits, men's	All sizes	$32.25 each	40	Worsted fabric. Woolen fabric, less than 19 oz. per linear yd.
C-18	Shirts, men's	All sizes	$4.50 each	80	Woolen fabric, less than 19 oz. per linear yd.
C-19	Men's separate trousers	All sizes	$6.25 each	80	Woolen fabric, less than 19 oz. per linear yd. Worsted fabric.
C-20	Overcoats, boys', Student.	10 to 20 12 to 24	$14.75 each	20	Woolen fabric, 32 oz. per linear yd. and lighter.
C-21	Suits, Students'	32 to 38	$17.50 each	80	Worsted fabric. Woolen fabric less than 19 oz. per linear yd.
C-22	Suits, cadet's	8 to 16	$13.50 each	80	Woolen fabric, less than 19 oz. per linear yd. Worsted fabric.
C-23	Suits, junior boys'	3 to 12	$10.00 each	80	Woolen fabric, less than 19 oz. per linear yd. Worsted fabric.
C-24	Separate trousers, students'.	25 to 32	$5.00 each	80	Woolen fabric, less than 19 oz. per linear yd. Worsted fabric.
C-25	Separate trousers, cadets'	21 to 26	$4.00 each	80	Woolen fabric, less than 19 oz. per linear yd. Worsted fabric.
C-26	Separate trousers, junior boys', including knickers.	3 to 12 6 to 16	$3.00 each	80	Woolen fabric, less than 19 oz. per linear yd. Worsted fabric.
C-27	Men's and Women's official uniforms and caps or hats, (except Army or Navy uniforms, caps or hats) as required by Government regulations, or for transportation, police, and industrial operations, but excluding sporting and amusement industries.	All sizes		40	Worsted fabric. Woolen fabric less than 19 oz. per linear yd.
C-28	Shoes, misses', women's and children's daytime outdoor type.	All sizes		100	Worsted fabric. Woolen fabric, less than 19 oz. per linear yd.
C-29	Religious vestments, clothing and robes as required by the rules of religious sects.			100	Woolen fabric, less than 19 oz. per linear yd.
C-30	Separate coats (jackets) men's.	All sizes	$15.75 each	40	Woolen fabric, less than 19 oz. per linear yd.
C-31	Separate coats (jackets) students'.	32 to 38	$11.75 each	80	Woolen fabric, less than 19 oz. per linear yd.
C-32	Separate coats (jackets) cadets'.	8 to 16	$7.75 each	80	Woolen fabric, less than 19 oz. per linear yd.
C-33	Separate coats (jackets) junior boys'.	3 to 12	$5.75 each	80	Woolen fabric, less than 19 oz. per linear yd.
C-34	Separate jackets, women's, misses' and juniors'.	36 and up 10 to 20 9 to 17	10.75 each	35	Woolen fabric, less than 12 oz. per linear yd.
C-35	Separate jackets, teen age, girls'.	10 to 16	$7.75 each	80	Woolen fabric, less than 12 oz. per linear yd.
C-36	Separate jackets, girls'	7 to 14	$6.75 each	80	Woolen fabric, less than 12 oz. per linear yd.
C-37	Separate jackets, children's.	3 to 6X	$5.75 each	80	Woolen fabric, less than 12 oz. per linear yd.

NOTE: 1. Weight per linear yard is based on 56-58 inches finished width.

2. When an AA-4 rating is applied to obtain wool linings or interlinings, it may only be used to get woolen fabric or lining, interlining or under-collar cloth containing at least 25 percent or more wool fiber by weight, however spun.

[F. R. Doc. 45-6013; Filed, Apr. 14, 1945; 11:33 a. m.]

PART 944—REGULATIONS APPLICABLE TO THE OPERATIONS OF THE PRIORITIES SYSTEM

[Priorities Reg. 1, Interpretation 14]

SUMMARY OF WPB CONTROLS REGARDING IDLE OR EXCESS INVENTORIES

The following interpretation is issued with respect to Priorities Regulation 1:

Introduction

(a) *Purpose of this interpretation.* This interpretation summarizes some of the important rules on what to do when you have materials or products which are idle or excess in your inventory because of a termination or cut-back in your war contracts or other change in your operations. These are not new rules on this subject, nor are they necesarily complete, but they are intended to be convenient references to rules which are now effective in WPB orders and regulations. As these orders and regulations are revised from time to time, you should be sure to look at the latest copies.

(b) *General rule.* The general rule is that if you got a material or product by using a preference rating, allotment or other WPB priorities assistance, you must if possible use or dispose of it (or of the product into which it has been incorporated) for the purpose for which the assistance was given. This is the rule of § 944.11a of Priorities Regulation 1, which also states the conditions under which physical segregation of inventory is not required.

Disposition or Use of Excess

(c) *In general.* If you have a termination, cut-back, or other reduction in your operations, it may be impossible to use the material or product for the purpose for which the priorities assistance was given. In this case, you may dispose of it as explained in paragraphs (b) (1) and (b) (2) of § 944.11 of PR–1, or you may use it as explained generally in paragraph (b) (3) of that section. These rules are summarized in paragraphs (d) and (e) below.

(d) *Disposition*—(1) *Special sales.* If you want to sell the excess material or product to someone else, and you acquired or made it for your own use and you do not sell it in the regular course of your business, you should look at Priorities Regulation 13 for the rules governing such "special sales". These include special sales as scrap (other than plant generated scrap). Also, all sales of surplus materials or products by Government agencies are special sales. (If you are an aircraft contractor listed in Schedule A of Directive 16, you should look there for special provisions on transfers of idle aircraft material to other listed contractors).

(2) *Other sales.* If the sale of the particular material or product, including scrap, is not a special sale, it is permitted as long as you comply with all requirements of WPB orders and regulations which apply to the material or product you are selling. For example, you are usually required to accept rated orders and observe the sequence of preference ratings; and if the material or product may be sold or scrapped only on specific WPB authorization as described in the applicable E, L, M, R, or U order, you must do what the order says.

(e) *Use*—(1) *Must be in compliance with applicable WPB orders.* If you want to use the excess material or product, you must always comply with all applicable WPB orders and regulations governing its use, inventory, etc. This is in addition to the rules in paragraphs (e) (2), (3) and (4) below. To find out what orders or regulations are applicable to the particular material or product, it may be helpful to look at the WPB monthly publication, "Products and Priorities," or you can ask your nearest WPB field office.

(2) *Use permitted if you could buy under PR–13.* You may use the excess material or product in your inventory for any permitted purpose for which you have the necessary rating or other qualification to buy from someone else at a "special sale" under PR–13. Thus, if that regulation says that a particular material may be sold for use only to someone who has an AA–5 rating, you could use it yourself for any permitted purpose for which you have that or a higher rating.

(3) *Use of controlled material.* In the case of steel, copper or aluminum in controlled material form, or a Class A product, you must look at paragraph (u) of CMP Regulation 1 which explains in more detail how you can divert and use such materials or products.

(4) *Special permission.* If you think you could get permission to buy the particular material or product from someone else under PR–13 and the rules in paragraphs (e) (2) and (3) above do not let you use it in your own inventory, you may ask for special permission to use the material or product yourself. The way to get this permission is explained in Direction 52 to CMP Regulation 1 on controlled materials and Class A products, and in Direction 4 to PR–1 for other materials and products. This permission may be given for use in other war contracts or in permitted civilian uses as long as there is no interference with war production in your area. (For prohibited or restricted civilian uses, see paragraph (f) below.) However, permission to use excess materials under these rules will not constitute an exception or appeal from the provisions of any E, L, or M order which might apply to the use you are interested in. Thus, you may also have to appeal or apply for the exception as provided in the particular order.

(f) *Resuming civilian production.* If you want to divert idle or excess materials for use in resuming civilian production presently limited or prohibited, the rules for getting the necessary permission are explained in Priorities Regulation 25. At the present time, this permission will not often be given on account of heavy requirements for war production. If permission is granted, however, you can use materials in your inventory under the rules described in paragraph (e) above. If your own inventory of idle and excess materials is not enough for the use authorized under PR–25, you can also buy from idle or excess inventories of others at a special sale to the extent permitted by Direction 1 to PR–13.

(g) *Special provision for transfer among war contractors.* If you have a war contract which has been terminated or modified, and another contractor is producing similar products for the same procuring agency, he may be able to receive excess materials (from you, your suppliers, or the procuring agency) in excess of inventory limits. This is permitted when authorized by the procuring agency to the extent described in Direction 3 to PR–1 and Inventory Direction 17 to CMP Regulation 2. These directions cover both the inventory exceptions necessary to receive excess materials of this kind, and also the sale or exchange of the materials.

Bringing Inventory Back to Normal

(h) *Inventory limitations.* If the termination or cut-back results in your having a bigger inventory than you need, the mere possession of it is not prohibited as long as the particular material or product was properly acquired. This is explained in Interpretation 3 to CMP Regulation 2. However, you may not receive further deliveries of the particular material or product held in excess, nor may you fabricate above permitted inventory levels, except as provided in the applicable regulations or orders. The general inventory rule is in § 944.14 of PR–1; there are also specific inventory limits on particular materials or products in certain E, L, M, P, R, and U orders, and CMP Regulation 2 sets forth a detailed inventory control for controlled materials. In general, upon any reduction in operations, outstanding orders for the items which constitute an excessive inventory must be promptly adjusted, or, if necessary, cancelled. However, certain further deliveries may be received to the extent permitted by § 944.14d of Priorities Regulation 1 and paragraph (c) of CMP Regulation 2, and special items may be received as permitted by those paragraphs. A limited inventory exception in the case of items bought on special sales is provided in paragraph (f) (2) of PR–13.

(i) *Cancelling ratings or allotments.* In cutting back or cancelling orders as described above you will probably have to cancel your ratings to the extent described in § 944.4a of PR–1, and make the necessary adjustments in your allotments as explained in paragraph (u) (2) of CMP Regulation 1.

Issued this 16th day of April, 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6085; Filed, Apr. 16, 1945; 11:19 a. m.]

PART 1042—IMPORTS OF STRATEGIC MATERIALS [1]

[General Imports Order M–63, as Amended Apr. 16, 1945]

The fulfillment of requirements for the defense of the United States has created a shortage in the supply of certain imported materials for defense, for private account, and for export; and the following order is deemed necessary and appropriate in the public interest and to promote the national defense:

§ 1042.1 *General Imports Order M–63*—(a) *Definitions.* For the purposes of this order:

(1) "Person" means any individual, partnership association, business trust, corporation, or any organized group of persons, whether or not incorporated.

(2) "Owner" of any material means any person who has any property interest in such material except a person whose interest is held solely as security for the payment of money.

(3) "Consignee" means the person to whom a material is consigned at the time of importation.

(4) "Import" means to transport in any manner into the continental United States from any foreign country or from any territory or possession of the United States (including the Philippine Islands). It includes shipments into a free port, free zone, or bonded custody of the United States Bureau of Customs (bonded warehouse) in the continental United States and shipments in bond into the continental United States for transshipment to Canada, Mexico, or any other foreign country.

(5) "Place of initial storage" means any warehouse, yard ground storage, or other place, to which the person making the entry or withdrawal from custody of the United States Bureau of Customs of material imported subject to this order directs or has directed that such material be transported from the port of entry to be held until disposed of pursuant to this order.

(6) Material shall be deemed "in transit" if it is afloat, if an on board ocean bill of lading has actually been issued

[1] Certain food items formerly on Lists I, II, and III are now subject to import control in accordance with War Food Administration Order 63.

with respect to it, or if it has actually been delivered to and accepted by a rail, truck, or air carrier, for transportation to a point within the continental United States.

(7) "Governing date" with respect to any material means the date when such material first became subject to General Imports Order M–63.

(b) *Restrictions on imports of materials*—(1) *General restriction.* No person, except as authorized in writing by the War Production Board, shall purchase for import, import, offer to purchase for import, receive, or offer to receive on consignment for import, or make any contract or other arrangement for the importing of, any material subject to this order after the governing date. The foregoing restrictions shall apply to the importation of any material subject to the order, regardless of the existence on the governing date or thereafter of any contract or other arrangement for the importation of such material. The materials subject to this order are those listed from time to time upon List I, List II, and List III attached hereto.

(2) *Authorization by War Production Board.* Any person desiring such authorization, whether owner, purchaser, seller, or consignee of the material to be imported, or agent of any of them, shall make application therefor in duplicate on Form WPB–1041 (formerly PD–222C) addressed to the War Production Board, Ref.: M–63, Washington 25, D. C. Unless otherwise expressly permitted, such authorization shall apply only to the particular material and shipment mentioned therein and to the persons and their agents concerned with such shipment; it shall not be assignable or transferable either in whole or in part.

(3) *Restrictions on financing of imports.* No bank or other person shall participate, by financing or otherwise, in any arrangement which such bank or person knows or has reason to know involves the importation after the governing date of any material subject to this order, unless such bank or person either has received a copy of the authorization issued by the War Production Board under the provisions of paragraph (b) (2) or is satisfied from known facts that the proposed transaction comes within the exceptions set forth in paragraph (b) (4).

(4) *Exceptions.* Unless otherwise directed by the War Production Board, the restrictions set forth in this paragraph (b) shall not apply:

(i) To the Foreign Economic Administration, U. S. Commercial Company, Commodity Credit Corporation, Metals Reserve Company, Defense Supplies Corporation, or any other United States governmental department, agency, or corporation, or any agent acting for any such department, agency or corporation; or

(ii) To any material of which any United States governmental department, agency, or corporation is the owner at the time of importation, or to any material which the owner at the time of importation had purchased or otherwise acquired from any United States governmental department, agency or corporation; or

(iii) To any material which on the governing date was in transit to a point within the continental United States.

(iv) [Deleted Mar. 30, 1944]

(v) To any material consigned as a gift or imported for personal use where the value of each consignment or shipment is less than $100.00; or to any material consigned or imported as a sample where the value of each consignment or shipment is less than $25.00; or to any used material in the category of household goods imported by the owner for his own personal use; or

(vi) To materials consigned as gifts for personal use by or to members of the Armed Services of the United States; or

(vii) [Deleted Nov. 13, 1944.]

(viii) To manufactured materials which are imported in bond solely for the purpose of having them repaired and then returned to the owner outside the continental United States; or

(ix) To materials which were grown, produced, or manufactured in the continental United States, and which were shipped outside the continental United States on consignment or pursuant to a contract of purchase, and which are now returned as rejected by the prospective purchaser; or

(x) To materials shipped into the United States in transit from one point in Mexico to another point in Mexico, or from one point in Canada to another point in Canada.

(xi) To materials on List III which are located in, and are the growth, production, or manufacture of, and are transported into the Continental United States overland, by air, or by inland waterway from Canada, Mexico, Guatemala or El Salvador.

(c) *Restrictions on disposition of List I material.* Except as hereinafter specifically provided in paragraph (d) hereof:

(1) *Restrictions upon owners and consignees.* No owner or consignee of any material on List I which is imported after the governing date shall in any way, directly or indirectly:

(i) Dispose of any interest in such material;

(ii) Process or in any way change the physical condition of such material;

(iii) Transfer possession, or cause or permit a transfer of possession, of such material except to the port of entry and from the port of entry to the place of initial storage of such material; or

(iv) Change or cause or permit a change of, the location of such material except to the port of entry and from the port of entry to the place of initial storage of such material.

Provided: That a consignee of such material may dispose of his interest in such material to the extent necessary to complete any commitment or contract made prior to the governing date. The person to whom he disposes of such interest shall be subject to all restrictions imposed upon owners by this order.

(2) *Restrictions upon banks and persons similarly situated.* No bank or other person which, as agent, pledgee, beneficiary under a trust receipt, or otherwise, has possession of or any interest in any written instrument evidencing any interest in any material on List I shall in any way, directly or indirectly, dispose of any such interest, or transfer possession, or cause or permit a transfer of possession, of such instrument, unless:

(i) Such material was imported before the governing date; or

(ii) Such person neither knows nor has reason to know that such material was imported after the governing date; or

(iii) Such disposition or transfer is necessary to permit a consignee to make a permissible disposition of material in accordance with subparagraph (1) of this paragraph (c); or

(iv) Such disposition or transfer is made to the owner of the material and such owner has complied with all the provisions of this order.

(d) *Permissible disposition of List I materials* — (1) *Transfer to governmental agency.* Nothing contained in this order shall prohibit an owner or consignee of any material on List I imported after the governing date, or a bank or other person having possession of, or an interest in, a written instrument evidencing an interest in such material, from disposing of, or making any arrangement to dispose of, any interest in such material to the Foreign Economic Administration, Commodity Credit Corporation, Metals Reserve Company, Defense Supplies Corporation, or any other United States governmental department, agency, or corporation.

(2) *Authorization by War Production Board.* Notwithstanding the provisions of paragraph (c), an owner or consignee of material on List I imported after the governing date or a bank or other person having possession of or an interest in a written instrument evidencing an interest in such material, may process such material or may dispose of any interest in such material or any such written instrument, or transfer possession or change the location thereof, or cause or permit such a transfer of possession or change of location, upon written authorization by the War Production Board. Any such person may make application in duplicate for such an authorization on Form WPB–1039 (formerly PD–222A), which form shall be addressed to the War Production Board, Ref.: M–63, Washington 25, D. C.

(3) *Exceptions.* The restrictions set forth in paragraph (c) shall not apply to any material after any United States governmental department, agency, or corporation becomes the owner thereof, and shall not apply to any material of which any United States governmental department, agency, or corporation is the owner at the time of importation, and shall not apply to any material purchased or otherwise acquired from any United States governmental department agency, or corporation.

(e) *Restrictions on disposition of List II or List III material.* Unless otherwise provided by the terms of the authorization issued pursuant to paragraph (b) (2), any material on List II or List III, which is imported in accordance with the provisions of this order after the governing date, may be sold, delivered, processed, consumed, purchased, or received without restriction under this order, but all such transactions shall be

subject to all applicable provisions of the regulations of the War Production Board and to all orders and directions of the War Production Board which now or hereafter may be in effect with respect to such material.

(f) *Reports*—(1) *Reports on customs entry.* No material which is imported after the governing date, including materials imported by or for the account of the Foreign Economic Administration, U. S. Commercial Company, Commodity Credit Corporation, Metals Reserve Company, Defense Supplies Corporation, or any other United States governmental department, agency, or corporation, shall be entered through the United States Bureau of Customs for any purpose, whether for consumption, for warehouse, in transit, in bond, for re-export, for appraisal, or otherwise, unless the person making the entry shall file with the entry Form WPB–1040 (formerly PD–222B) in duplicate except in the case of a material described in paragraph (b) (4) (xi) when the person making the entry need not file with the entry Form WPB–1040 (formerly PD–222b). The filing of such form a second time shall not be required upon any subsequent entry of such material through the United States Bureau of Customs for any purpose; nor shall the filing of such form be required upon the withdrawal of any material from bonded custody of the United States Bureau of Customs, regardless of the date when such material was first transported into the continental United States. Both copies of such form shall be transmitted by the Collector of Customs to the War Production Board, Division of Stockpiling and Transportation, Ref.: M–63, Washington 25, D. C.

(2) *Other reports.* All persons having any interest in, or taking any action with respect to, any material imported after the governing date, whether as owner, agent, consignee, or otherwise, shall file such other reports as may be required from time to time by the War Production Board.

(3) *Exceptions.* The provisions of this paragraph (f) shall not apply to materials imported and consigned as gifts for personal use by or to members of the Armed Services of the United States.

(g) *Routing of communications.* All communications concerning this order shall, unless otherwise herein directed, be addressed to: War Production Board, Washington 25, D. C., Ref.: M–63.

(h) *Violations.* Any person who wilfully violates any provision of this order, or who, in connection with this order, wilfully conceals a material fact or who furnishes false information to any department or agency of the United States is guilty of a crime, and upon conviction may be punished by fine or imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using material under priority assistance. In addition, the War Production Board may direct the disposition and use of any material which is imported without authorization as required by paragraph (b).

(i) *Applicability of priorities regulations.* This order and all transactions affected thereby are subject to all applicable provisions of the priorities regulations of the War Production Board, as amended from time to time.

(j) *Effect on liability of removal of material from order.* The removal of any material from the order shall not be construed to affect in any way any liability for violation of the order which accrued or was incurred prior to the date of removal.

Issued this 16th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

LIST I

NOTE: List I amended Apr. 16, 1945.

The numbers listed after the following materials are commodity numbers taken from Schedule A, Statistical Classification of Imports of the Department of Commerce (issue of January 1, 1943). Materials are included in the list to the extent that they are covered by the commodity numbers listed below. If no commodity number is listed, the description given shall control.

Material	Commerce Import Class No.	Governing date
Broomcorn	2936. 000	11/23/42
Chrome ore (Chromite)	6213. 100	[1] 12/28/41
	6213. 300	[1] 12/28/41
	6213. 500	[1] 12/28/41
Feathers for beds (including goose and duck feathers and down, and mixtures thereof, new and used)	0922. 200	6/28/43
Manganese ore (including ferruginous) or concentrates, and manganiferrous iron ore, containing 35 percent and over of manganese	6211. 200	5/14/43
	6211. 300	5/14/43

[1] Moved from List II 5/14/43.

N. S. C.—No separate class or commodity number has been assigned for the material as described by the Department of Commerce, Statistical Classification of Imports.

LIST II

NOTE: List II amended Apr. 16, 1945.

The numbers listed after the following materials are commodity numbers taken from Schedule A, Statistical Classification of Imports of the Department of Commerce (issue of January 1, 1943). Materials are included in the list to the extent that they are covered by the commodity numbers listed below. If no commodity number is listed, the description given shall control.

Material	Commerce Import Class No.	Governing date
Agave fibers, unmanufactured, not elsewhere specified on this order (except flume tow and bagasse waste)	N. S. C.	8/5/43
Agave manufactures and semimanufactures:		
Sisal cordage, including cables, tarred or untarred composed of 3 or more strands, each strand composed of 2 or more yarns	3417. 010	[1] 1/18/43
	3417. 110	[1] 1/18/43
Carpet yarns of agave, dyed or undyed	N. S. C.	[1] 7/21/42
Cordage of agave fibers, other than sisal	N. S. C.	[1] 1/18/43
Cords and twines of agave fibers	N. S. C.	[1] 1/18/43
Fabrics woven of agave fibers	N. S. C.	[1] 9/11/42
Other manufactures (including all products in whole or in part of agave fibers)	N. S. C.	[1] 1/18/43

See footnotes at end of table.

LIST II—Continued

Material	Commerce Import Class No.	Governing date
Alpargatas	0369. 500	[2] 6/28/43
Beryl ore or beryllium ore	6270. 000	5/4/42
Beryllium oxide, carbonate and other beryllium salts	8380. 963	5/4/42
Bones, crude	0911. 200	[3] 7/2/42
Brazilian pebble (quartz crystals) unmanufactured	5120. 600	[2] 10/6/42
Brazilian pebble (quartz crystal) manufactured and semimanufactured in blanks, slabs, bars, etc.	N.S.C.	[2] 10/6/42
Bristles, hog and pig	0917. 000	[2] 3/14/42
	0979. 100	[2] 3/14/42
Brushes, n. s. p. f.:		
Paint brushes (including artists)	9715. 100	9/23/43
Other (except toilet brushes and hair pencils)	9715. 900	[1] 9/23/43
Cattle, ox, and calf tail hair including switches	3696. 100	7/2/42
Cinchona bark or other bark from which quinine may be extracted	2201. 000	[1] 5/22/42
Coir yarn and coir manufactures:		
Coir yarn	3420. 000	11/23/42
Matting and articles of cocoa fiber (coir fiber) or rattan	3963. 000	[2] 10/21/42
Pile mats and floor coverings of cocoa fiber (coir fiber)	3960. 100	[2] 10/21/42
Coir manufactures (including all products of coir fiber), other than pile mats, floor coverings, matting, etc., elsewhere specified on this order	N. S. C.	11/23/42
Copper	6401. 800	12/28/41
	6417. 100	3/14/42
	6430. 000	3/14/42
	6418. 300	6/1/42
Corundum in grains, or ground, pulverized or refined	N. S. C.	5/22/42
Corundum ore	5460. 000	5/22/42
Cotton fabrics:		
Grey tracing cloth fabric	N. S. C.	11/23/42
Tracing cloth	3970. 000	8/21/42
Typewriter ribbon fabric	N. S. C.	8/21/42
Diamonds, rough or uncut (suitable for cutting into gem stones)	5950. 000	9/16/44
Diamonds, industrial (rough or uncut not advanced in condition or value by cleaving, splitting, cutting, boring, or other process):		
Carbonado and ballas	5952. 100	9/16/44
Diamond dust	5952. 300	9/16/44
Bort (Glaziers' and engravers' diamonds not set, and miners' diamonds, n. e. s., and other industrial diamonds)	5952. 700	9/16/44
Emetine and salts thereof	N. S. C.	[1] 8/5/43
Fish liver oil, n. e. s. (include halibut-liver oil)	2220. 250	[4] 1/12/44
Graphite or plumbago:		
Amorphous, natural (except of Mexican origin)	5730. 100	[1] 4/8/42
Crystalline flake	5730. 500	[1] 12/28/41
Crystalline, crucible lump and chip graphite	5730. 610	[1] 4/8/42
Crystalline, dust and other crystalline lump and chip graphite	5730. 630	4/8/42
Hair, curled	3398. 800	6/29/44
Hemp (Cannabis Sativa type only) unmanufactured:		
Hackled including "line of hemp"	3263. 000	[2] 9/11/42
Not hackled	3263. 200	[2] 9/11/42
Tow	3263. 300	[2] 9/11/42
Hides and skins:		
Buffalo hides dry and wet	0203. 000	1/13/42
	0203. 100	1/13/42
Buffalo hides (India water buffalo, for use in rawhide articles) dry and wet	0209. 000	9/16/44
	0209. 100	9/16/44
Cabretta skins or hair sheepskins	0235. 000	7/2/42
Calf, dry and wet	0207. 000	1/13/42
	0208. 000	1/13/42
Cattle hides, dry and wet	0201. 000	1/13/42
	0202. 000	1/13/42
Deer: buck or doe	0293. 100	[2] 9/11/42
Goat and kid skins, dry and wet	0241. 000	7/2/42
	0242. 000	7/2/42
Kip, dry and wet	0205. 000	1/13/42
	0206. 000	1/13/42
Horse mane and tail hair, raw and drawn, including switches	3694. 000	[3] 3/14/42
	3694. 100	[3] 3/14/42
Ipecac, crude and advanced in value or condition	2210. 450	[1] 1/18/43
	2220. 170	[1] 1/18/43
Iron and steel scrap fit only for remanufacture	6004. 000	6/1/42
	6004. 100	6/1/42
Istle or tampico fiber, manufactured in whole or in part (dressed)	3410. 010	3/5/43

LIST II—Continued

Material	Commerce Import Class No.	Governing date
Istle or tampico fiber manufactures (incl. all products in whole or in part of istle)	N. C. C.	11/23/42
Istle or tampico fiber, unmanufactured (including istle waste)	3405. 000	3/14/42
Jute and manufactures:		
Waste bagging and waste sugar sack cloth	3243. 000	6/10/43
Jute yarns or roving, single	3244. 000	6/10/43
	3244. 100	6/10/43
	3244. 200	6/10/43
	3244. 300	6/10/43
Jute cordage, twine and twist or 2 or more yarns twisted together, size of single yarn or roving:		
Not bleached, dyed or otherwise treated	3245. 200	6/10/43
	3245. 300	6/10/43
	3245. 400	6/10/43
	3245. 500	6/10/43
Bleached, dyed or otherwise treated	3245. 220	6/10/43
	3245. 320	6/10/43
	3245. 420	6/10/43
	3245. 520	6/10/43
Bagging for cotton, gunny cloth, etc., of single yarns, not bleached, colored, or printed, not exceeding 16 threads in warp and filling to the square inch, or jute or other vegetable fiber	3246. 000	6/10/43
	3246. 100	6/10/43
Burlaps and other woven fabrics wholly of jute, n. s. p. f.	3247. 000	6/10/43
	3247. 200	6/10/43
Plain woven fabrics of jute, weighing less than 4 ounces per square yard	3248. 000	6/10/43
Woven fabrics of jute for paddings or interlinings exceeding 30 threads in warp and filling to the square inch weighing from 4½ to 12 ounces, inclusive, per square yard	3248. 100	6/10/43
Woven fabrics, n. s. p. f. in chief value but not wholly of jute	3248. 200	6/10/43
Jute sliver	3250. 000	6/10/43
Jute webbing, not exceeding 12 inches in width	3250. 700	6/10/43
Jute manufactures, n. s. p. f.	3250. 900	6/10/43
Jute bags or sacks	3249. 000	4/2/43
	3249. 100	4/2/43
Jute butts, unmanufactured	3242. 000	10/6/42
Jute, unmanufactured	3241. 000	10/6/42
Kapok	3403. 000	7/2/42
Lead manufactures:		
Collapsible tube discs or slugs and any other semi-fabricated form, manufactured in whole or in part of lead or lead alloy	N. S. C.	4/16/45
Collapsible tubes, manufactured in whole or in part of lead or lead alloy, filled or empty	N. S. C.	2/14/45
Foil, manufactured in whole or in part of lead or lead alloy	N. S. C.	2/14/45
Storage batteries (lead acid type)	N. S. C.	2/14/45
Leather, unmanufactured:		
Chamois leather	0335. 350	[4] 7/2/42
	0335. 800	[4] 7/2/42
Goatskin and kidskin leather (except vegetable-tanned)	0333. 000–0333. 500 incl.	[5] 7/2/42
	0335. 400	[5] 7/2/42
	0340. 800	[5] 7/2/42
	0345. 200	[5] 7/2/42
	0345. 300	[5] 7/2/42
Leather made from hides or skins of cattle of the bovine species	0300. 100–0317. 900 incl.	[5] 7/2/42
Leather made from hides or skins of animals of the equine species	N. S. C.	[5] 7/2/42
Rough tanned leather (incl. India-tanned):		
Vegetable-tanned goat and sheepskins	0339. 000	[5] 7/2/42
	0339. 100	[5] 7/2/42
Sheep and lamb leather (including shearlings and cabrettas)		
Leather for shoe purposes	0332. 000	[4] 7/2/42
	0332. 100	[4] 7/2/42
Glove and garment leather	0335. 300	[4] 7/2/42
Leather n. s. p. f. cut into shoe uppers, vamps or other forms	N. S. C.	[4] 7/2/42
Patent leather for the manufacture of footwear	N. S. C.	[4] 7/2/42
Grained, embossed, etc., or fancy leather	0345. 400	[4] 7/2/42
Skivers, n. s. p. f.	0335. 200	[4] 7/2/42

See footnotes at end of table.

LIST II—Continued

Material	Commerce Import Class No.	Governing date
Leather, unmanufactured—con.		
Sheep, etc.—con.		
In the rough, in the white, crust or russet, partly finished or finished	N. S. C.	[4] 7/2/42
Other (except glove and garment)	0332. 500	[4] 7/2/42
Leather products made in whole or in part of bovine, equine or goatskin leather:		
Aprons	N. S. C.	5/27/44
Belts, transmission	N. S. C.	5/27/44
Belts, designed to be worn on the person	N. S. C.	5/27/44
Chaps, work	N. S. C.	5/27/44
Flat leather goods	N. S. C.	5/27/44
Footwear (including slippers)	N. S. C.	5/27/44
Furniture	N. S. C.	5/27/44
Garments	N. S. C.	5/27/44
Handbags and purses	N. S. C.	5/27/44
Harness	N. S. C.	5/27/44
Horse collars	N. S. C.	5/27/44
Hydraulic, packing mechanical, and textile leather products	N. S. C.	5/27/44
Laces and thongs	N. S. C.	5/27/44
Luggage and related articles (including suitcases, valises, satchels, traveling and overnight bags, hatboxes, trunks, and other luggage, and boxes, caskets, chests, baskets, rolls, brief cases, golf bags, and other cases)		
Made wholly or in part of bovine leather	N. S. C.	8/5/43
Made wholly or in part of equine leather	N. S. C.	5/27/44
Made wholly or in part of goatskin leather	N. S. C.	5/27/44
Rifle scabbards, rifle slings, pistol holsters and pistol belts	N. S. C.	5/27/14
Saddles and saddlery	N. S. C.	5/27/44
Suspenders	N. S. C.	5/27/44
Loofa (Luffa) sponges	N. S. C.	8/21/42
Maguey or cantala, unmanufactured	3409. 200	1/18/43
Mahogany, dressed (sawed and not further manufactured than planed, tongued, and grooved)	4204. 100	7/21/42
Mahogany logs	4031. 000	7/2/42
Mahogany rough (not further manufactured than sawed)	4202. 100	7/21/42
Manila or abaca cordage, including cables, tarred or untarred, composed of 3 or more strands, each strand composed of 2 or more yarns	3417. 095	6/28/43
	3417. 195	6/28/43
Manila or abaca fiber (except T grade tow)	3402. 300	4/28/43
Manila or abaca tow (T grade only)	3402. 500	4/28/43
Manila or abaca fiber manufactures (incl. all manila or abaca products)	N. S. C.	4/28/43
Meshta fiber	N. S. C.	10/6/42
Metallic beryllium, caesium, lithium, and potassium	8380. 870	5/4/42
Mica	5560. 810	3/14/42
	5560. 840	3/14/42
	5560. 860	3/14/42
	5560. 890	3/14/42
	5560. 910	3/14/42
	5560. 940	3/14/42
	5560. 960	3/14/42
	5560. 990	3/14/42
	5561. 000	3/14/42
	5561. 300	3/14/42
	5561. 400	3/14/42
	5561. 500	7/21/42
	5561. 600	3/14/42
	5561. 900	3/14/42
	5564. 000	3/14/42
	5564. 200	3/14/42
Milkweed	N. S. C.	1/18/43
Molasses and sugar sirup	1640. 000	[6] 7/2/42
Pyrethrum on insect flowers	2202. 000	[7] 10/21/42
Pyrethrum or insect flowers, advanced in value or condition	2220. 310	[7] 10/21/42
Punga fiber	N. S. C.	3/5/43
Quebracho extract	2344. 000	[3] 7/2/42
Quebracho wood	2305. 000	[3] 7/2/42
Quinine salts or alkaloids from cinchona bark:		
Quinine sulphate	8102. 000	3/5/43
Quinine alkaloid	8103. 200	3/5/43
Other salts and derivatives of quinine	8103. 300	3/5/43
Cinchonidine and its salts	8103. 400	3/5/43
Cinchonine and its salts	8103. 500	3/5/43
Quinidine and its salts	8103. 600	3/5/43
Totaquine and totaquine compounds	N. S. C.	3/5/43

LIST II—Continued

Material	Commerce Import Class No.	Governing date
Red squill	2210. 650	[7] 10/21/42
Rotenone bearing roots (cube root (timbo or barbasco), derris and tuba), crude and advanced	2210. 280	[7] 5/4/42
	2210. 300	[7] 5/4/42
	2220. 360	[7] 5/4/42
	2220. 370	[7] 5/4/42
Shark-liver oil, including oil produced from dogfish livers, n. s. p. f.	0808. 730	1/12/44
Silk:		
Cocoons	3703. 000	10/21/42
Silk waste	3704. 000	10/21/42
Silver:		
Ores, concentrates, and base bullion, valuable chiefly for silver content	6819. 500	7/21/42
Bullion, refined	6819. 600	7/21/42
Coin, foreign	6819. 800	7/21/42
Sweepings and scrap, including silver sulphides	6819. 900	7/21/42
Semiprocessed items, valuable chiefly for silver content	N. S. C.	7/21/42
Compounds, mixtures and salts, valuable chiefly for silver content	N. S. C.	7/21/42
Sisal and henequen, unmanufactured (except flume tow and bagasse waste)	N. S. C.	1/18/43
Urena lobata fiber	N. S. C.	10/ 6/42
Yucca fiber	N. S. C.	3/ 5/43
Zinc blocks, pigs or slabs	6558. 200	12/28/41

[1] Moved from List I 1/8/44.
[2] Moved from List I 3/30/44.
[3] Moved from List I 3/30/44.
[4] Moved from List III 5/17/44.
[5] Moved from List I 11/13/44.
[6] Moved from List III 11/13/44.
[7] Moved from List I 12/28/44.
[8] Moved from List III 2/1/45.
[9] Moved from List I 4/16/45.

N. S. C.—No separate class or commodity number has been assigned for the material as described by the Department of Commerce, Statistical Classification of Imports.

LIST III

The numbers listed after the following materials are commodity numbers taken from Schedule A Statistical Classification of Imports of the Department of Commerce (issue of January 1, 1943): Materials are included in the list to the extent that they are covered by the commodity numbers listed below. If no commodity number is listed, the description given shall control.

Material	Commerce Import Class No.	Governing date
Agave fiber processors' mill waste (including sisal and henequen processors' mill waste)	N. S. C.	8/5/43
Agave flume tow and bagasse waste not elsewhere specified on this order	N. S. C.	8/5/43
Balata, Coquirana (crude and washed)	N. S. C.	5/27/44
Balata, Massarunduba	N. S. C.	3/5/43
Balata, Peruvian chicken wire	N. S. C.	5/27/44
Balata, Peruvian F. A. Q. white	N. S. C.	3/5/43
Balata, not elsewhere specified on the order	N. S. C.	10/1/44
Bone black, bone char, and blood char	0990. 130	7/2/42
Casein or lactarene	0943. 000	7/2/42
Congo gum copal	N. S. C.	1/12/44
Cotton linters (all grades)	3005. 000	7/2/42
Cotton, raw (all staple length)	3001. 000	7/2/42
	3003. 600	7/2/42
	3003. 700	7/2/42
	3003. 800	7/2/42
Cotton waste	3006. 350	7/2/42
Glue stock, not elsewhere specified	0930. 900	8/5/43
Hide cuttings, raw	0930. 800	7/2/42
Hide splits, limed, pickled or dried (suitable for manufacturing into leather)	N. S. C.	1/12/44
Hides and skins:		
Horse, colt, and ass	0211. 100	7/2/42
	0211. 300	7/2/42
	0212. 100	7/2/42
	0212. 200	7/2/42
	0212. 300	7/2/42
	0212. 500	7/2/42

LIST III—Continued

Material	Commerce Import Class No.	Governing date
Hides and Skins—Continued		
Sheep and Lambskins except Shearlings, Cabrettas, etc.:		
Pickled skins, not split, no wool	0234.000	7/2/42
Pickled fleshers, split, flesh side	0234.100	7/2/42
Pickled skivers, split, grainside	0234.200	7/2/42
Lignaloe oil or Bois de Rose	2280.270	7/2/42
Sisal and henequen flume tow and bagasse waste	N.S.C.	1/18/43
Tapioca, tapioca flour, and cassava (including mandoica flour)	1228.000	7/2/42
Wool, apparel, 40's or coarser, except on the skin	3506.000	7/2/42
	3507.100	7/2/42
	3507.200	7/2/42
	3507.300	7/2/42
	3508.000	7/2/42
	3509.100	7/2/42
	3509.200	7/2/42
	3509.300	7/2/42
Wool, apparel, finer than 44's [1], except on the skin	3520.000	7/2/42
	3521.100	7/2/42
	3521.200	7/2/42
	3521.300	7/2/42
	3522.000	7/2/42
	3523.100	7/2/42
	3523.200	7/2/42
	3523.300	7/2/42
	3526.000	7/2/42
	3527.100	7/2/42
	3527.200	7/2/42
	3527.300	7/2/42
	3528.000	7/2/42
	3529.100	7/2/42
	3529.200	7/2/42
	3529.300	7/2/42
Wool apparel, (finer than 40's but not finer than 44's) [1] except on the skin	3513.000	7/2/42
	3514.100	7/2/42
	3514.200	7/2/42
	3514.300	7/2/42
	3524.000	7/2/42
	3525.100	7/2/42
	3525.200	7/2/42
	3525.300	7/2/42
Wool, carpet, except on the skin	3501.000	7/2/42
	3502.100	7/2/42
	3502.200	7/2/42
	3502.300	7/2/42

[1] Moved from List II 9/23/43.
[2] Moved from List I 1/8/44.
[3] Moved from List I 3/30/44.

N. S. C.—No separate class or commodity number has been assigned for the material as described by the Department of Commerce, Statistical Classification of Imports.

INTERPRETATION 1

No authorization under paragraph (b) of the order is necessary for the release or withdrawal of materials on List II or List III from a free port, a free zone, or the bonded custody of the United States Bureau of Customs (bonded warehouse) in the continental United States regardless of the date when such materials first entered such place. The actual importation, which is the subject of restriction under paragraph (b), is deemed to have occurred before the question of release or withdrawal arises. Also no authorization under paragraph (d) of the order is necessary for the subsequent disposition, processing, or shipment of such released or withdrawn List II and List III materials.

As to List I materials which are similarly situated, no authorization under paragraph (b) of the order is necessary for their release or withdrawal from free port, free zone, or bonded custody, but authorization under paragraph (d) of the order is necessary for their subsequent disposition, processing, or shipment unless they are shipped in bond to Canada, Mexico, or some other foreign country, in which event the foreign destination is deemed to be the place of initial storage as such term is used in the order; *Provided, however,* That List I materials which are imported in bond after July 2, 1942, can be shipped to Mexico, Canada, or some other foreign country without the express authorization required under paragraph (d) only if the import application filed under paragraph (b) stated that the material was being imported for the purpose of such export shipment. (Issued June 30, 1942, and amended Sept. 23, 1943.)

INTERPRETATION 2

The following official interpretation is hereby issued by the War Production Board with respect to the meaning of the term "in transit" as defined in paragraph (a) (6) of General Imports Order M-63 (§ 1042.1) as amended.

By amendment dated December 17, 1942, the definition of material "in transit" was changed by adding the following clause, "or if it has actually been delivered to and accepted by a rail, truck, or air carrier for transportation to a point within the continental United States." The question has been raised as to the meaning of the term as applied to a case where the material on the governing date had been delivered to and accepted by a rail, truck, or air carrier on a through bill of lading for transportation to a specified port and from thence by boat to a point within the continental United States.

The material in the stated case is not deemed to be in transit within the meaning of the term as used in the order. If the material is to be carried to the port of arrival in the continental United States by ship the material must have been afloat, or an on board ocean bill of lading must have been issued with respect to it on the governing date in order for it to be considered as having been in transit on such date.

Material which has been delivered to and accepted by a rail, truck, or air carrier on the governing date for transportation to a point within the continental United States is deemed to be in transit within the meaning of the term as used in the order only when the transportation specified in the bill of lading issued by such carrier calls for delivery of the material at the port of arrival in the continental United States by rail, truck, or air carrier, not by ship. (Issued March 5, 1943.)

INTERPRETATION 3

When by amendment of the order a material already on List II or List III is moved to List I and hence becomes subject to the restrictions of paragraph (c) covering the disposition, processing, transfer, or change of location of such material, the governing date for the application of such restrictions is the effective date of the amendment by which the material was moved to List I and not the date when such material first became subject to General Imports Order M-63 (Issued May 14, 1943.)

[F. R. Doc. 45-6077; Filed, Apr. 16, 1945; 11:18 a. m.]

PART 3133—PRINTING AND PUBLISHING

[Limitation Order L-289, as Amended Apr. 16, 1945]

GREETING CARDS AND ILLUSTRATED POST CARDS

§ 3133.20 *Limitation Order L-289.*

SCOPE

(a) The purpose of this order.

DEFINITIONS AND EXPLANATIONS

(b) Greeting cards and illustrated post cards.
(c) Publisher.
(d) Paper.
(e) Paperboard.
(f) Use.
(g) Production waste.
(h) Inventory.
(i) Transfer of quota.

RESTRICTIONS

(j) Number of designs.
(k) Dealer helps.

CONSUMPTION QUOTA

(l) Computation of consumption quota, paper.
(m) Computation of consumption quota, paperboard.
(n) Borrowing and carry-over.
(o) Total permitted consumption.
(p) New publishers.
(q) Certification to printer.

DELIVERY RESTRICTIONS

(r) Limit on tonnage which may be accepted.
(s) Certification to paper dealer or mill.

CARDS OR PARTS THEREOF PRINTED IN VIOLATION OF ORDER

(t) Restrictions on paper suppliers, printers, processors, distributors, wholesalers and others.

MISCELLANEOUS PROVISIONS

(u) Records.
(v) Applicability of regulations.
(w) Appeals.
(x) Communications.
(y) Violations.

Scope

(a) *The purpose of this order.* This order does five things. First, it limits the tonnage of paper which a publisher may cause to be used in the production of greeting cards and illustrated post cards. Second, it limits the tonnage of paperboard which a publisher may cause to be used in the packaging of greeting cards and illustrated post cards. A publisher's "consumption quotas" of paper and paperboard are determined by the tonnage of these materials which he caused to be consumed in 1942. A publisher may not exceed his consumption quotas even though the paper or paperboard is physically available to him. Third, the order limits the tonnage of paper and paperboard which may be accepted by or on behalf of a publisher of greeting cards or illustrated post cards. This is based upon his inventory of these items. Fourth, it prohibits the furnishing of "dealer help" material by a publisher. Fifth, it places certain restrictions on paper suppliers, printers, processors, wholesalers and others in their dealings with publishers who violate this order.

Definitions and Explanations

(b) *Greeting cards and illustrated post cards.* (1) "Greeting card" means any commercial form of card, sheet or folder which conveys a greeting or similar type of message by means of printed reading matter or pictorial matter. The term includes "chromos" which contain pictures but no words, and also cards which contain words but no pictures. The term does not include photographs made without the use of ink, nor does it include cards, sheets or folders of which no copies are offered for sale at any level of distribution.

(2) "Illustrated post card" means any form of card, sheet or folder containing printed pictorial matter and space for the addition of a personal message. The term does not include photographs made without the use of ink, nor does it in-

clude cards, sheets or folders of which no copies are offered for sale at any level of distribution.

(3) If a publisher is uncertain as to whether or not particular printed matter is a "greeting card" or an "illustrated post card" as defined in this order, he may ask the War Production Board for an official determination. The War Production Board may also make this determination upon its own motion. Such a determination may be made only by the Washington office of the War Production Board and shall be issued to the publisher in the name of the Recording Secretary of the War Production Board. It shall be conclusive for the purpose of this order, unless revoked or modified by the same authority.

(c) *Publisher.* (1) A person who was engaged in the greeting card or illustrated post card business in 1942 is the "publisher" of any greeting card or illustrated post card which he caused to be produced in that year, unless exclusive distribution rights in that card for 1942 were transferred to another person engaged primarily in the greeting card or illustrated post card business. In such a case, the person who had the exclusive distribution rights in 1942 is the "publisher" of that card.

(2) A "publisher" may use his consumption quota for the production of greeting cards or illustrated post cards whether he retains for himself or assigns to someone else the exclusive or nonexclusive reproduction rights or distribution rights, either permanently or temporarily.

(3) The term "publisher" includes an individual, partnership, association, business trust, corporation, or any organized group of persons, whether incorporated or not. It does not mean the author or designer of the cards or the plate maker, printer, finisher, packager, wholesaler, jobber or retailer, unless one of these persons also performs the functions of a publisher. It is immaterial whether the cards are produced in the publisher's plant or in someone else's plant.

(d) *Paper.* "Paper" means any grade, quality, type, basis weight or size of paper or paperlike substance used in the manufacture of greeting cards or illustrated post cards. The term includes paper reclaimed wholly or partly from printed or unprinted waste, as well as paper made entirely from virgin fiber.

(e) *Paperboard.* "Paperboard" means any grade, quality, type, basis weight or size of paperboard or bristol used in the manufacture of boxes or packages for greeting cards or illustrated post cards. The term includes paperboard reclaimed wholly or partly from printed or unprinted waste, as well as paperboard made entirely from virgin fiber.

(f) *Use.* (1) Paper is "used" in the manufacture of greeting cards and illustrated post cards when ink is first applied to it or, if unprinted, when the paper is first assembled with printed sheets in the manufacture of a card.

(2) Paperboard is "used" in the boxing or packaging of greeting cards and illustrated post cards when the first operation occurs in manufacturing the boxes.

(3) When a job is started in one calendar quarter and runs over into the next, the paper or paperboard actually used during each quarter must be charged against the publisher's consumption quota for that quarter. The entire job may not be regarded as if it were started and finished in the same quarter.

(g) *Production waste.* All production waste before, during and after printing and assembling (such as trim and waste sheets) shall be included in determining the tonnage of paper or paperboard which a publisher uses in the manufacture of greeting cards and illustrated post cards.

(h) *Inventory.* A publisher's "inventory" means the aggregate weight of all kinds, grades, sizes, base weights and items of paper or paperboard available for his immediate or possible future use under Order L–289, including paper or paperboard held by another person for that publisher's ultimate use under Order L–289. It is immaterial whether such paper or paperboard is in the publisher's hands or in the hands of a paper dealer or other person. Paper or paperboard in transit is not included.

(i) *Transfer of quotas.* (1) Quotas provided by one War Production Board order may not be used for the purposes set forth in any other order. Thus, for example, a publisher may not cause to be used for the manufacture of greeting cards or illustrated post cards any part of a paper consumption quota established under Order L–241 (Commercial Printing and Duplicating), Order L–244 (Magazines), Order L–245 (Books and Booklets), or any other order, and he may not permit any part of his consumption quota for paper established under this order to be used for any purpose other than the manufacture of greeting cards and illustrated post cards.

(2) Similarly, a publisher may not permit any part of his consumption quota for paperboard established under this order to be used for any purpose other than the boxing or packaging of greeting cards or illustrated post cards, and he may not cause any paperboard other than that provided by his consumption quota established under this order to be used for the boxing or packaging of greeting cards and illustrated post cards.

(3) The rules governing the assignability of quotas are stated in Priorities Regulation 7A.

Restrictions

(j) [Deleted Oct. 13, 1944.]

(k) *Prohibition of dealer helps.* No publisher may furnish any "dealer helps" for greeting cards or illustrated post cards. This prohibition applies to items such as date books, advertising cards, banners, merchandise bags, window displays, inserts, etc., and to sample cards. However, it does not apply to mounted samples for the display of cards to the public.

Consumption Quota

(l) *Computation of consumption quota for paper.* In the third calendar quarter of 1944 and in each calendar quarter after that, no publisher may cause to be used for the manufacture of greeting cards and illustrated post cards any paper in excess of his quarterly consumption quota of paper, which shall be computed as follows:

(1) Determine the gross tonnage of paper consumed in manufacturing the publisher's greeting cards and illustrated post cards during the corresponding calendar quarter of 1942.

(2) Determine the gross tonnage of paper consumed during the corresponding calendar quarter of 1942 in manufacturing the publisher's "dealer helps" as defined in paragraph (k) of this order.

(3) Take 60 percent of the total of these two tonnage figures. This is the publisher's consumption quota of paper which he may cause to be used in the manufacture of greeting cards and illustrated post cards in the corresponding calendar quarter of 1944 and succeeding years.

(m) *Computation of consumption quota for paperboard.* In the third calendar quarter of 1944 and in each calendar quarter after that, no publisher may cause to be used for the manufacture of boxes or packages for greeting cards and illustrated post cards any paperboard in excess of his quarterly consumption quota of paperboard, which shall be computed as follows:

(1) Determine the gross tonnage of paperboard consumed in boxing and packaging the publisher's greeting cards and illustrated post cards during the corresponding calendar quarter of 1942.

(2) Take 50 percent of this tonnage figure. This is the publisher's consumption quota of paperboard which he may cause to be used in boxing and packaging his greeting cards and illustrated post cards in the corresponding calendar quarter of 1944 and succeeding years.

(n) *Borrowing and carry-over.* (1) A publisher may add an extra 15 percent to his consumption quota of either paper or paperboard in any quarter if he subtracts that amount from his consumption quota of that material for the next quarter.

(2) A publisher may carry over for future use accumulated savings resulting from under-use of quota, but he may not use, in a calendar quarter, any portion of his carry-over in excess of 15 percent of his consumption quota for that quarter.

(o) *Total permitted consumption.* A publisher may use in any calendar quarter:

(1) His quarterly consumption quota of the particular material as determined under paragraphs (l) and (m),

(2) Plus permitted borrowing from his consumption quota of that material for the next calendar quarter, as provided in paragraph (n) (1).

(3) Plus any less-than-quota savings of that material which may be used in that calendar quarter as provided in par-

agraph (n) (2), or minus any tonnage of that material which had been borrowed during the preceding calendar quarter from his consumption quota of that material for that calendar quarter, as provided in paragraph (n) (1),

(4) Plus ex quota tonnage of that material, if any, which may have been granted on appeal for consumption in that quarter.

(p) *New publishers.* Any person who did not publish greeting cards or illustrated post cards in 1942 has no consumption quota of paper or paperboard under this order and may not publish greeting cards or illustrated post cards.

(q) *Certification to printer.* No publisher may order greeting cards or illustrated post cards to be printed or manufactured, and no person may print or manufacture such cards unless the publisher furnishes, or has previously furnished, to that printer or manufacturer a certification in substantially the following form, signed manually or as provided in Priorities Regulation 7 (§ 944.27) by an official duly authorized for such purpose:

The undersigned publisher certifies, subject to the penalties of section 35 (A) of the United States Criminal Code, to the printer and to the War Production Board that he is familiar with Order L–289 and that all orders placed by the publisher with that printer for items regulated by Order L–289, as amended from time to time, will be in compliance therewith.

This is a one-time certification and need not accompany each individual order.

Delivery restrictions

(r) *Limits on tonnage which may be accepted.* No publisher may accept, and no person may accept for a publisher's use, delivery of paper or paperboard (including boxes) if the publisher's inventory of that material exceeds a 50-days' supply or if acceptance of the delivery will bring his inventory of that material above the 50-day level. For the purpose of this limitation, inventories of paper for use in the manufacture of cards and of paperboard (including boxes) for the boxing and packaging of the cards must be determined independently. The number of days' supply shall be computed at the average daily rate of allowable consumption for the current calendar quarter.

NOTE: Paragraph (s), formerly paragraph (t), redesignated Apr. 16, 1945.

(s) *Certification to paper dealer or mill.* No publisher or his agent may order or acept delivery of paper or paperboard and no person may deliver paper or paperboard to a published or his agent, unless the published furnishes, or has previously furnished, to the person making the delivery a certification in substantially the following form, signed manually or as provided in Priorities Regulation 7 (§ 944.27) by an official duly authorized for such purpose:

The undersigned published certifies, subject to the penalties of section 35 (A) of the United States Criminal Code, to the seller and to the War Production Board that he is familiar with the provisions of Order L–289 as amended April 16, 1945 and that all purchases by him of items regulated by that order, as amended from time to time, will be in compliance therewith.

This is a one-time certification and need not accompany each individual order.

Cards or Parts Thereof Printed in Violation of Order

(t) *Restrictions on paper suppliers, printers, processors, distributors, wholesalers, and others.* (1) No person may sell or deliver any paper or paperboard (including boxes) which he knows or has reason to believe will be accepted or used in violation of this order.

(2) No person may apply ink to any paper in the production of greeting cards or illustrated post cards if he knows or has reason to believe that the printing of such paper will be in excess of the publisher's permitted consumption under this order.

(3) No person may apply any additional ink to paper, and no person may bind or otherwise process paper, in the production of greeting cards or illustrated post cards if he knows or has reason to believe that such paper was printed in excess of the publisher's permitted consumption under this order.

(4) No person may manufacture boxes which he knows or has reason to believe will be used in violation of this order.

(5) No person may agree to purchase for resale, and no person may accept for resale, any greeting cards or illustrated post cards which he knows or has reason to believe were printed or packaged in excess of the publisher's permitted consumption under this order.

(6) No person may sell, distribute or otherwise dispose of greeting cards or illustrated post cards, except for re-delivery to his supplier or for use as waste paper scrap, if, before he accepted them, he knew or had reason to believe that they were printed or packaged in excess of the publisher's allowable consumption under this order.

Miscellaneous Provisions

(u) *Records.* In order to assure compliance with this order, every publisher must calculate, as accurately as he can, the tonnage of paper and paperboard which he used during each calendar quarter of 1942 for the items covered by this order. He must also keep accurate records of this type of information for each calendar quarter beginning with July 1, 1943. He must preserve these figures and his work sheets subject to inspection by War Production Board officials as long as this order remains in force and for two years after that.

(v) *Applicability of regulations.* This order and all transactions affected by it are subject to all present and future regulations of the War Production Board.

(w) *Appeals.* Any appeal from the provisions of this order shall be made by filing a letter referring to the particular provisions appealed from, stating fully the grounds of the appeal. Regardless of the provisions of Priorities Regulation 16, no statement with respect to manpower information on Form WPB–3820 (or letter explaining why that form is not filed) need accompany any appeal.

(x) *Communications.* All communications concerning this order shall be addressed to: War Production Board, Printing and Publishing Division, Washington 25, D. C., Ref: L–289.

(y) *Violations.* Any person who wilfully violates any provision of this order, or who, in connection with this order, wilfully conceals a material fact or furnishes false information to any department or agency of the United States, is guilty of a crime, and upon conviction may be punished by fine or imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using materials under priority control, and may be deprived of priorities assistance.

Issued this 16th day of April 1945.

WAR PRODUCTION BOARD.
By J. JOSEPH WHELAN,
Recording Secretary.

INTERPRETATION 1

CARDS WHICH ARE OFFERED "FOR SALE"

Paragraphs (b) (1) and (b) (2) of Order L–289 provides that the order does not apply to "cards, sheets or folders of which no copies are offered for sale at any level of distribution."

Greeting cards or illustrated post cards are "offered for sale" if they are offered either in consideration of a monetary payment, as a premium bonus or dividend, in part consideration of society membership dues, or for any other consideration direct or indirect, or if the published receives any compensation for the inclusion of material therein. (Issued December 21, 1944.)

[F. R. Doc. 45–6084; Filed, Apr. 16, 1945; 11:19 a. m.]

PART 3133—PRINTING AND PUBLISHING

[Limitation Order L–340, as Amended Apr. 16, 1945]

GOVERNMENTAL COMMERCIAL PRINTING AND DUPLICATING

(a) The purpose of this order.

Definitions and Explanations

(b) Government.
(c) Commercial printing.
(d) Printer.
(e) Paper.
(f) Use.
(g) Production waste.
(h) Inventory.

Consumption Quota

(i) Printing which is covered by other orders.
(j) Printing which is not restricted.
(k) Consumption restrictions for governments other than the United States Government.
(l) Consumption restrictions for the United States Government.
(m) Certification to printer.

Delivery Restrictions

(n) Limit on tonnage which may be accepted.
(o) Certification to paper dealer or mill.
(p) Limits on basis weights.

Miscellaneous Provisions

(q) Records.
(r) Applicability of regulations.
(s) Appeals.
(t) Communications.
(u) Violations.

§ 3133.50 *Limitation Order L–340*—(a) *The purpose of this order.* This order does three things. First, it limits the tonnage of paper which a government may cause to be used for commercial printing. Second, it limits the tonnage of paper which may be accepted by or on behalf of a government. It also limits the tonnage of paper which may be accepted by or on behalf of a printer for a particular government's use in the production of governmental commercial printing. Third, it limits the basis weight of paper which a government may cause to be used in printing certain items.

Definitions and Explanations

(b) *Government*—(1) "Government" means the United States Government and the government of any State, county, municipality or local political unit. A State, county, municipality or local political unit may, as a separate government under this order, apportion its consumption quota among its constituent departments, agencies, bureaus and other subdivisions, but such departments, agencies, bureaus and subdivisions may not, collectively, cause more paper to be used in commercial printing than the consumption quota of the government which they comprise.

(2) The Army, Navy, War Shipping Administration and Maritime Commission are exempt from all of the provisions of this order except paragraph (l).

(3) Paragraphs (n) and (o) do not apply to the United States Government as a whole, but only to the Government Printing Office and the Procurement Division of the Treasury Department, and the provisions of those paragraphs apply to each of the above-named agencies separately.

(4) This order does not apply to any government if its consumption of paper is less than one ton per year, or if the total cost of commercial printing it purchases does not exceed $1,000 per year.

(c) *Commercial printing.* "Commercial printing" means all printing and duplicating produced by any type of printing machine covered by Order L–226 or any type of duplicating machine covered by Order L–54–c, List I, Item 5. However, this order does not affect printing which is covered by other orders of the War Production Board, as described in paragraph (i), and printing which is unrestricted, as described in paragraph (j). "Printed matter" includes duplicated matter as well as printed matter.

(d) *Printer.* The term "printer" is used throughout this order, for the sake of convenience and brevity, to include printers who operate printing machines and duplicators who operate duplicating machines. This order applies to a government which operates its own printing plant as well as a government which purchases printing.

(e) *Paper.* "Paper" means any grade, quality, type, basis weight or size of paper, gummed paper, paperboard or bristol used in commercial printing. The term includes paper reclaimed wholly or partly from printed or unprinted waste, as well as paper made entirely from virgin fiber.

(f) *Use.* Paper is "used" when ink is first applied to it by a printer. However, paper is not "used" under this order when ink is applied to it by pen-ruling equipment. Sometimes paper is put through a press more than once, either by the same printer or by different printers; for instance, when a sheet is printed on its second side, or when several colors are used. For the purposes of this order the paper is deemed to be "used" when the first application of ink is made by a printer. It makes no difference how many other applications of ink are put on the paper by the same or different printers.

(g) *Production waste.* All production waste before, during and after printing (such as trim and waste sheets) shall be included in determining the tonnage of paper which a government causes to be used in commercial printing.

(h) *Inventory.* A government's "inventory" means the aggregate weight of all kinds, grades, sizes, basis weights and items of paper available for its immediate or possible future use under Order L–340, including paper for use in printing which is unrestricted under paragraph (j) and paper held by a printer or any other person for that government's ultimate use under Order L–340. It is immaterial whether such paper is in the printer's hands or in the hands of the paper dealer, government, or other person. Paper in transit is not included.

Consumption Quota

(i) *Printing which is covered by other orders.* Certain types of printing are not covered by this order. When a government adds up the weight of paper which it caused to be used in the base year, it may not count the paper which went into these items. Also, a government may not use the consumption quota which it gets under this order for the printing of any of these items. They are:

(1) Newspapers (defined in Limitation Order L–240).

(2) Magazines (defined in Limitation Order L–244).

(3) Books and booklets (defined in Limitation Order L–245).

(4) Converted products named in Lists A, B, C or D of General Conservation Order M–241–a, except gummed paper.

(j) *Printing which is not restricted.* A government is not limited in the amount of paper which it may cause to be used in commercial printing required for any official election.

(k) *Consumption restrictions for governments other than the United States government.* In the 12-month period beginning July 1, 1944 and ending June 30, 1945, or in the last fiscal year ending prior to January 1, 1946, and in each corresponding 12-month period after that, no government (other than the United States government) may cause to be used for commercial printing any paper in excess of its annual consumption quota which shall be computed as follows:

(1) (i) Select a base period which shall be either the 12-month period ending June 30, 1942, or the last fiscal year ending prior to June 30, 1942.

(ii) Add up the total pounds of paper used in the base period for all types of printing.

(iii) Subtract the pounds of paper used in the base period for all the items covered by other orders as listed in paragraph (i).

(iv) Subtract the pounds of paper used in the base period for the unrestricted items described in paragraph (j).

(v) This is the government's base tonnage from which the required reductions shall be made.

(2) If the government's base tonnage is more than 1 ton but less than 1⅓ tons, its annual consumption quota is 1 ton.

(3) If the government's base tonnage is more than 1⅓ tons, its annual consumption quota is 75 percent of its base tonnage.

(4) A government may cause its annual consumption quota to be used for any type of printing which is not covered by other orders as listed in paragraph (i). Also, it may cause any amount of paper to be used in addition to its annual consumption quota for the unrestricted items described in paragraph (j).

(5) If a government is unable to determine its base period consumption in tons of paper, it may, as an alternative, compute the dollar value of its purchases of commercial printing during the base year using the method described in paragraph (k) (1).

(i) If the government's purchases of commercial printing in the base year were more than $1,000, but less than $1,110, its annual consumption quota is $1,000.

(ii) If the government's purchases of commercial printing in the base year were more than $1,110, its annual consumption quota is 90% of the cost of commercial printing purchased in the base year.

(l) *Consumption restrictions for the United States Government.* After July 1, 1944, no department, agency or other subdivision of the United States Government may cause any paper to be used for commercial printing except in accordance with the conservation orders issued by the Director of the Bureau of the Budget.

(m) *Certification to printer.* No person may order commercial printing on behalf of a government (except the United States Government) and no person may accept such an order, unless the person placing the order furnishes or has previously furnished to that printer

a certification in substantially the following form, signed manually or as provided in Priorities Regulation 7 (§ 944.27) by an official duly authorized for such purpose.

The undersigned certifies, subject to the penalties of section 35 (A) of the United States Criminal Code, to the printer and to the War Production Board that he is familiar with Order L–340, and that all orders placed by the undersigned with that printer for items regulated by Order L–340, as amended from time to time, will be in compliance therewith.

This is a one-time certification and need not accompany each individual order for printing.

Delivery Restrictions

(n) *Limit on tonnage which may be accepted.* No government may accept, and no person may accept for that government's use, delivery of any paper for use under Order L–340 which will cause its inventory on and after June 30, 1945, to be in excess of 50 calendar days' supply. The number of calendar days' supply shall be computed at the average rate of proposed lawful consumption during the succeeding 60 days.

NOTE: Paragraphs (o) to (u), inclusive, formerly paragraphs (p) to (v), redesignated Apr. 16, 1945. Former paragraph (o) deleted Apr. 16, 1945.

(o) *Certification to paper dealer or mill.* No government may order or accept delivery of paper, and no person may deliver paper to a government, unless the government furnishes, or has previously furnished, to the person making the delivery a certification in substantially the following form, signed manually or as provided in Priorities Regulation 7 (§ 944.27) by an official duly authorized for such purpose:

The undersigned certifies, subject to the penalties of section 35 (A) of the United States Criminal Code, to the seller and to the War Production Board that he is familiar with Order L–340 and that all purchases by the undersigned of items regulated by that order, as amended from time to time, will be in compliance therewith.

This is a one-time certification and need not accompany each individual order for paper.

Miscellaneous Provisions

(p) *Limits on basis weights.* Schedule I of Order L–241 provides, "No person may manufacture and no person may cause to be manufactured any of the items listed in this schedule in a basis weight or thickness, area or weight per unit greater than the maximum specified for such use." All commercial printing which a government causes to be produced under this order must be in compliance with Schedule I of Order L–241.

(q) *Records.* In order to secure compliance with this order, every government (except the United States Government) must calculate, as accurately as it can, the tonnage of paper which it used during the base period for the items covered by this order. It must also keep accurate records of this type of information for each 12-month period beginning July 1, 1944, or for each fiscal year commencing after June 30, 1944. It must preserve these figures and its work sheets, subject to inspection by War Production Board officials, as long as this order remains in force and for two years after that.

(r) *Applicability of regulations.* This order and all transactions affected by it are subject to all present and future regulations of the War Production Board.

(s) *Appeals.* Any appeal from the provisions of this order shall be made by filing a letter referring to the particular provision appealed from and stating fully the grounds of the appeal. Regardless of the provisions of Priorities Regulation 16, no statement with respect to manpower information on Form WPB–3820 (or letter explaining why that form is not filed) need accompany any appeal.

(t) *Communications.* All communications concerning this order shall be addressed to the War Production Board, Printing and Publishing Division, Washington 25, D. C., Ref: L–340.

(u) *Violations.* Any person who wilfully violates any provision of this order or who, in connection with this order, wilfully conceals a material fact or furnishes false information to any department or agency of the United States, is guilty of a crime and upon conviction may be punished by fine or imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using, materials under priority control, and may be deprived of priorities assistance.

Issued this 16th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6082; Filed, Apr. 16, 1945; 11:19 a. m.]

PART 3281—PULP AND PAPER

[General Conservation Order M–241, as Amended Apr. 14, 1945]

PAPER AND PAPERBOARD

§ 3281.63 *General Conservation Order M–241*—(a) *Applicability of regulations.* This order and all transactions affected thereby are subject to all applicable regulations of the War Production Board, as amended from time to time, except to the extent of any inconsistency, in which event the provisions of this order shall govern.

(b) *Definitions.* For the purpose of this order:

(1) "Person" means any individual, partnership, association, business trust, corporation, governmental corporation or agency, or any organized group of persons whether incorporated or not.

(2) "Produce" and "manufacture" mean and include all making and finishing operations prior to packing or packaging.

(3) "Finished production" means paper or paperboard ready for packing or packaging.

(4) "Grade" means any kind of paper or paperboard for which a caption or subcaption is provided in Form WPB–514 or any particular grade even though not specifically mentioned within such kind, except those grades listed below which are covered by other WPB orders as specified. Also included are all the coated papers not mentioned by captions but for which any captioned grade or item thereunder is used as a base stock.

Paper and paperboard under the following WPB–514 Captions in the table immediately following are specifically excluded from this order and are subject to and should be reported under the appropriate controlling order indicated therein.

TABLE 1

Type	WPB–514 Caption	Controlling order
Container board	210000 through 219000	M–290
Paperboard	220000 through 269000 (except 240000 through 249000, 253000 and "Sanitary food container stock" as listed in Appendix B to this order and 261100 261200, 262000).	M–378
Building boards	261100, 261200 and 262000	
Asbestos and asbestos filled paper.	123000	M–79

(5) "Paper merchant" means a person principally engaged in the business of buying and reselling paper and paperboard.

(c) *Restrictions on production of paper and paperboard.* Unless specifically authorized by the War Production Board, no person shall produce paper or paperboard on any paper machine (Yankee, Harper, Fourdrinier, Cylinder or Wet Machine) which did not produce paper or paperboard in the period May 1, 1943 to July 15, 1943 inclusive.

(d) *Reserve production.* (1) (i) Each manufacturer shall reserve in his total overall production of paper and paperboard for the month of October, 1944, and for each calendar month thereafter time and supplies sufficient to produce and deliver within such month the following percentage applied either to his total production or to his production of a stated "grade" or "class" as indicated in Table 2:

TABLE 2

Type	WPB–514 Caption	Percent
(Grade) Condenser tissue	047200	100
(Grades) "Sanitary food containers stock"	For captions see Appendix B to this order	100
(Class) Groundwood printing, book, writing and coarse wrapping.	020000 through 049000 inc., and 051100 to 054900 inc.	35
(Class) All other papers and paperboards	All other captions except those excluded under paragraph (b) (4).	20

The War Production Board may from time to time change such percentage or percentages and apply percentages to other grades or combinations, by notice in writing to each manufacturer or by publication in the FEDERAL REGISTER at least ten days prior to the first of the month to the production of which such change is applicable.

(ii) When production is reserved by applying a percentage to a "class", "classes", "grade" or "grades", (see Table 2) the production of such "class", "classes", "grade" or "grades" for which a manufacturer is obligated shall be determined by applying the percentage to the monthly production of the "class", "classes", "grade" or "grades", which the manufacturer can produce subject to his authorized use of pulp under Order M-93.

NOTE: The words in quotations refer to listed types in Table 2.

(iii) On or before the 15th day of any month, the War Production Board may direct any manufacturer to employ his reserve production for any month to produce any grade of paper or paperboard which such manufacturer is qualified to produce and in any quantity not exceeding the percentage of his production designated for such month by the War Production Board less his tonnage credit current at the time against such month's reserve production under the provisions of paragraph (d) (4). Similar directions may be issued by the War Production Board after the 15th day of any month under paragraph (d) (2) (ii). The War Production Board may require the manufacturer to sell and deliver such tonnage to any person it may name. The manufacturer may refuse to so produce, sell, or deliver such reserve production only for the reasons specified for the refusal of rated orders in § 944.2 of Priorities Regulation No. 1.

(2) (i) If, on or before the 15th day of any month in which production is reserved, the manufacturer does not receive from the War Production Board directions as to the disposition of all production reserved in such month, he may employ, subject to the provisions of paragraph (d) (2) (ii) below, the production for which no directions have been received as he may desire consistent with the provisions of this and other orders of the War Production Board.

(ii) If, as of record with the War Production Board on the 15th day of any month, a manufacturer of paper or paperboard has not been credited with accepting voluntarily or by directive from the War Production Board an order or orders for paper and paperboard to be delivered directly or through another person to the Armed Forces (i. e., the first six procurement activities listed in paragraph (d) (5)) from his production in such month in a total amount equal to 30% of his reserve production by type, the manufacturer shall continue to be obligated for such month until the close of the fourth calendar day prior to the first day of the next succeeding month, for that portion of such percentage of his reserve production for which he has accepted no orders for delivery to the Armed Forces.

(3) The War Production Board may establish in an appendix or appendices to this Order M-241 additional controls over the production, distribution, delivery and use of any grade or combination of grades of paper or paperboard for which 100 percent production is reserved. The reserve of such grade or combination of grades shall then be subject to direction for the entire month and continuously for so long as 100 percent of such production is reserved. When 100 percent of the production of any grade or combination of grades is reserved, the use of reporting Form WPB-3270 is not required for such grade or combination since the full control will be specified in the proper appendix.

(4) (i) *Credit for directed tonnage.* Should the War Production Board direct a manufacturer of paper or paperboard to accept an order to be shipped from his reserve production, the reserve production for which such manufacturer is obligated shall be reduced (except as provided in the paragraph immediately following) by the tonnage specified in such directive, and such reduction concurrently recorded to such manufacturer's credit on the records of the War Production Board.

(ii) *When directed tonnage is not credited.* Credit against the reserve production obligations of a manfacturer is not given for the tonnage specified in a directive when the following conditions prevail:

(*a*) Any one of the first six procurement activities (the Armed Forces) requests a qualified manufacturer to bid on a contract or accept a purchase order from such activity, and

(*b*) The manufacturer fails to bid on the contract or refuses to voluntarily accept the purchase order, and

(*c*) The War Production Board records on the acceptance of contracts and purchase orders by such manufacturer against his reserve production show that the acceptance of such contract or part thereof or such purchase order at the time the request was issued would not have caused him to produce more tonnage in any month than his reserve production obligations for such month, and

(*d*) Because of such failure to bid on the contract or refusal to accept the purchase order, a directive is issued to the manufacturer by the War Production Board.

(iii) Any manufacturer who has accepted, directly or through another person, an order or orders for paper or paperboard to be produced for the account of any activity or use listed in paragraph (d) (5), shall immediately report such acceptance in triplicate on Form WPB-3270 and thereafter shall immediately report to the War Production Board on such form any change requested by the purchaser in any previously reported order or orders, if such change involves cancellation, or a change in quantity or in the month of manufacture. When the proper order or orders or requested changes reported on Form WPB-3270 have been correctly reported to the War Production Board, the manufacturer will be notified accordingly and credit against the manufacturer's reserve production will be recorded, subject to the provisions of paragraph (d) (2) (ii). Thereafter the manufacturer shall produce such orders according to his schedule as so reported to the War Production Board. (The reporting requirements of this paragraph have been approved by the Bureau of the Budget, pursuant to the Federal Reports Act of 1942.)

(5) Procurement activities:

1. United States Army.
2. United States Army Map Service.
3. United States Army Air Forces.
4. United States Navy.
5. The United States Marine Corps.
6. The United States Coast Guard.
7. United States Maritime Commission and War Shipping Administration.
8. Lend-Lease Administration — Foreign Economic Administration.
9. Panama Canal.
10. Bureau of Public Debt.
11. United States Government Printing Office.
12. United States Bureau of Engraving and Printing.
13. Procurement Division of the United States Treasury.
14. Office of Economic Warfare—Foreign Economic Administration (orders with an F. E. A. approved export license).
15. United States Post Office.
16. Rubber Reserve Corporation.
17. Producers of products, or parts thereof, for any of the sixteen procurement activities listed above to the extent that the primary paper or paperboard is to be used exclusively as a component part of the product or part thereof, or is to be used exclusively for the necessary packaging of the product or part thereof, to be delivered on a contract or purchase order issued by such activity. (Report Government Department, Order Number and Name of Convertor or user. If the use of the paper cannot be identified directly with a Government Order Number by a producer of a product of indirect military or Governmental nature, then the CMP Allotment Symbol, if available, and the name of the product may be supplied for identification.)

(e) *Restrictions on inventory.* Unless specifically authorized by the War Production Board or excepted by paragraph (e) (5):

(1) *Consumers inventories except those covered by M-241-a, L-240, L-241, L-244, L-245, L-289, L-336, and L-340.*

(i) No person shall knowingly deliver to any person except a paper merchant, and no person except a paper merchant shall accept delivery of, any quantity of paper or paperboard if such person's total inventory is, or will by virtue of such delivery become, in excess of the greater of (a) thirty tons or (b) thirty calendar days' supply on the basis of his average rate of consuming such paper and paper board for the latest preceding three full calendar months.

(ii) Regardless of the provisions of (1) (i) above no person shall knowingly deliver to a manufacturer of folding boxes, setup boxes, or paper shipping sacks and no manufacturer of folding boxes, setup boxes, or paper shipping sacks shall accept delivery of any quantity of paper or paperboard if the manufacturer's total inventory of paper and paperboard is, or will by virtue of such delivery become, in

excess of the greater of (a) forty tons or (b) sixty calendar days' supply on the basis of his average rate of consuming such paper and paperboard during the latest preceding three full calendar months.

(2) *Merchant inventories.* No paper merchant shall accept delivery of, and no person shall knowingly deliver to a paper merchant, any paper or paperboard for his warehouse stock if the dollar inventory value, as determined by customary accounting practice, of all paper and paperboard (excluding that which has been sold to and paid for by another person) in the merchant's store and warehouses exceeds or by virtue of such delivery will exceed fifty percent (50%) of the total merchant cost price of the merchant's total dollar sales from his store and warehouse inventory during the first six months of 1944. Each affiliate, subsidiary or branch is to be considered individually in applying the provisions of this paragraph.

(3) *Mill inventories.* "Mill inventory" means all paper and paperboard other than that produced or being produced for prompt shipment against a definite order.

No person shall produce at any mill any quantity of paper or paperboard, if his total inventory at such mill is, or will by virtue of such production become, in excess of the greater of (a) thirty tons, or (b) thirty calendar days' supply on the basis of the average rate of shipment of paper or paperboard from such mill during the latest preceding three full calendar months.

(4) (i) *Restrictions on delivery of all paper except newsprint: certification requirements.* No mill or other supplier shall sell or deliver to a paper merchant any paper, except newsprint, unless the paper merchant has previously furnished the mill with a certification in substantially the following form signed manually or as provided in Priorities Regulation No. 7 by an official duly authorized for such purpose:

> The undersigned certifies, subject to the penalties of section 35 (A) of the U. S. Criminal Code, to the seller and to the War Production Board that he is familiar with Order M-241 and that all purchases by him of items regulated by that order, as amended from time to time, will be in compliance therewith.

No paper merchant and no person on behalf of a paper merchant may order or accept delivery of any paper (except newsprint), from a paper mill or other supplier unless he furnishes, or has previously furnished to the person making the delivery the certification described above. The above certification must be used and the certification provided for in Priorities Regulation No. 7 may not be used in its place. This is a one-time certification and need not accompany each individual order for paper.

(ii) *Certification requirements for newsprint deliveries.* No mill or other supplier may sell or deliver to any person, and no person may accept, any newsprint except on a delivery order bearing or accompanied by a certification substantially in the form set forth below. This certification must be signed manually or as provided in Priorities Regulation No. 7 by the purchaser or by an official duly authorized for such purpose.

> The undersigned certifies, subject to the penalties of section 35 (A) of the U. S. Criminal Code, to the seller and to the War Production Board; (a) that he is permitted to place this delivery order and to accept the newsprint ordered; (b) that the newsprint will be used or delivered, or that it is required to replace in inventory newsprint previously used or delivered, under one or more of the following War Production Board Orders: L-177, L-240, L-241, L-244, L-245, L-289, L-294, L-340, M-241-a.

This certification must contain a breakdown of the delivery order by setting forth, opposite each War Production Board order listed above, the tonnage of newsprint which will be used or delivered, or which is required to replace in inventory newsprint previously used or delivered, under that specific order. The above certification must be placed on, or must accompany, each delivery order for newsprint placed by any person, and the certification provided for in Priorities Regulation No. 7 may not be used in its place. Paper mills have orders for more newsprint than the mills are capable of filling. It is the intention of the War Production Board that previous users of newsprint who purchase through dealers shall receive the same consideration as those who purchase directly from the mills. These certifications will provide the mills with the information necessary to enable them to deliver newsprint to direct purchasers and (through dealers) to indirect purchasers on the basis of previous usage of newsprint.

(iii) No manufacturer, paper merchant or other person shall sell or deliver paper or paperboard to any other person whose inventory or use of paper or paperboard is controlled by one or more of the orders in List I below unless and until he has received such certificates (if any) as may be called for under the order governing delivery and use of the paper and paperboard by the purchaser:

LIST I

L-177	Wallpaper manufacturers
L-240	Newspaper publishers
L-241	Commercial printers
L-244	Magazine publishers
L-245	Book publishers
L-289	Greeting card and picture postcard producers
L-294	Display
L-340	Government commercial printing
M-241-a	Certain converters
M-241	Paper and paperboard

(5) *Item inventories.* The restrictions of paragraph (e) apply equally to paper and paperboard of foreign and domestic origin, and apply to intra company deliveries as defined in § 944.12 of Priorities Regulation No. 1. They do not, however, apply to those papers commonly reported on United States Department of Commerce (Census) Form WPB-514, as revised, under the captions "Blueprint and similar base stock (043110 and 043210); photographic and other sensitizing stock (043130, 043220 and 043230); and Cigarette (047300)"; or to any paper or paperboard after it is printed or to paper or paperboard converted otherwise than by coating.

(f) *Miscellaneous provisions*—(1) *Records.* All persons affected by this order shall keep and preserve for not less than two years accurate and complete records concerning inventories, production and sales.

(2) *Audit and inspection.* All records required to be kept by this order shall upon request, be submitted to audit and inspection by duly authorized representatives of the War Production Board.

(3) *Reports.* All persons affected by this order shall execute and file with the War Production Board such reports and questionnaires as said Board shall from time to time request, subject to the approval of the Bureau of the Budget pursuant to the Federal Reports Act of 1942.

(4) *Violations.* Any person who wilfully violates any provision of this order or who, in connection with this order, wilfully conceals a material fact or furnishes false information to any department or agency of the United States, is guilty of a crime and upon conviction may be punished by fine or imprisonment. In addition any such person may be prohibited from making or obtaining further deliveries of or from processing or using materials under priority control and may be deprived of priorities assistance.

(5) *Appeals.* Any appeal from the provisions of this order shall be made by filing a letter in triplicate, referring to the particular provision appealed from and stating fully the grounds of the appeal.

(6) *Communications.* All communications concerning this order shall unless otherwise directed be addressed to War Production Board, Paper Division, Washington 25, D. C., Ref.: M-241.

Issued this 14th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

APPENDIX A—CONDENSER TISSUE

(a) *Definitions:* For the purpose of this appendix:

"Condenser tissue" includes the following mill grades: Kraft Condenser Tissue, Linen Condenser Tissue; Tan Condenser Tissue; Kraft Electrolytic; Manila Electrolytic; Kraft Coil; Rag Coil; and Cream and Grey Special Tissue, and any other similar grade which may be produced from time to time.

Restriction on delivery and receipt of condenser tissue:

(b) *Restrictions on acceptance of delivery.* On and after July 1, 1944, no consumer shall accept delivery from a producer of con-

denser tissue except as authorized by the War Production Board on Form WPB-3680.

(c) *Delivery restrictions.* On and after July 1, 1944 no producer shall deliver condenser tissue except on an order accompanied by a written statement, manually signed by the consumer or an authorized official of the consumer in the following form:

Authorized under M-241 Appendix A. Date of authorization _____, authorization number _____.

This written statement shall constitute a representation (subject to the penalties of section 35A of the United States Criminal Code) that the consumer is authorized under this and other applicable War Production Board regulations and orders to place the delivery order and receive the items ordered for the purpose for which ordered. The standard certification of Priorities Regulation 7 must not be used instead of the certification described in this paragraph (c).

(d) *Ratings.* Ratings shall be used in connection with condenser tissue only as may be directed by the War Production Board on form WPB-3680. No consumer shall apply any other rating to any order for condenser tissue or use a rating in any other way to procure condenser tissue from a producer.

(e) The War Production Board may at any time by wire or letter revise a previously issued authorization so as to make any of the paper covered by such authorization available for another use, and, for the purpose of fulfilling a time requirement of the armed forces, may direct a producer to produce and deliver condenser tissue for such requirement prior to the production and delivery of any other condenser tissue.

(f) *Applications and reports.* (1) Each person who desires to receive a delivery or deliveries of condenser tissue in any calendar month shall file his application in triplicate on Form WPB-3680 with the War Production Board on or before the fifth day of the month immediately preceding such month, or at any other time currently required in such form, and shall furnish the information provided for on such form.

(2) The reporting requirements set forth in paragraph (f) (1) of this appendix have been approved by the Bureau of the Budget pursuant to the Federal Reports Act of 1942.

(g) This Appendix A of M-241 is subject to all the provisions of M-241 not inconsistent with the provisions of this appendix.

APPENDIX B—SANITARY FOOD CONTAINER STOCK

(a) *Definitions.* For the purpose of this appendix:

(1) "Sanitary foods container stock" means and is limited to the following captions as they appear in WPB Form 514:

	W. P. B.—514
224001	Milk bottle stock
224002	Milk bottle hood and lip cover stock
224003	Liquid tight container stock
224004	Cup and round nested food container stock
224005	Cup lid stock
224008	Milk bottle cap and plug stock

(b) *Reserve production.* (1) The reserve production for which a manufacturer is obligated under this Appendix B shall be determined for each kind of "Sanitary Food Container Stock" by the total monthly production of such kind which the manufacturer can produce subject to his authorized use of pulp under WPB Order M-93.

(2) The War Production Board may at any time direct any manufacturer to employ that part of his reserve production for which no directive has been issued (and which has not been used or for which a definite commitment has not been made to fill a purchase order authorized by the War Production Board) to produce any grade of "sanitary food container stock" and to sell and deliver such production to any person it may name, and thereafter such manufacturer shall so produce and deliver. The manufacturer may refuse to so sell and deliver such production only for the reasons specified for the refusal of rated orders in § 944.2 of Priorities Regulation No. 1.

(3) A manufacturer may use any part of his reserve production for which he has not received a directive or directives by the War Production Board to produce and deliver the quantity of "sanitary food container stock" specified by a purchaser in an order authorized and certified in accordance with the provisions of paragraph (c) (2) below.

(c) *Delivery restrictions.* (1) On and after July 18, 1944 no person shall purchase or accept delivery from any manufacturer of any quantity of "sanitary food container stock" except as authorized by the War Production Board on Form GA-1959.

(2) On and after July 18, 1944 no person shall sell or deliver any part of his production of "sanitary food container stock" except in accordance with a directive issued by the War Production Board or in fulfillment of a purchase order containing a statement manually signed by an authorized official of the purchaser in the following form:

Authorized by the War Production Board under M-241
Appendix B. Date of authorization _____
Authorization No. _____
Quantity _____

This written statement shall constitute a representation (subject to the penalties of section 35A of the United States Criminal Code) that the purchaser is authorized under this and other applicable War Production Board regulations and orders to purchase and receive the quantity of "sanitary food container stock" ordered, for the purpose, if any, specified in the purchase authorization issued to him by the War Production Board. The Standard Certification of Priorities Regulation 7 must not be used as a substitute for the certification specified in this paragraph (c).

(3) An authorization to purchase given to a converter of "sanitary food container stock" may be passed on by the converter to an intermediate processor, such as a waxer of the stock, and the manufacturer may sell and deliver to the processor under the authorization provided the processor delivers a certificate in the form prescribed in paragraph (c) (2) and also certifies on his order that the stock so purchased under a particular authorization number will be delivered only to the converter to whom the authorization was issued.

(d) *Variations in quantity produced and delivered.* (1) Each directive and each purchase authorization issued by the War Production Board under this order is subject as to quantity manufactured, delivered and accepted, to the following percent of variation in quantity ordered:

	Percent
Less than 20,000 pounds	15
20,000 to 40,000 pounds	10
40,000 pounds or more	5

This variation shall not be exceeded as to delivery, and if exceeded in manufacture, the amount of the excess, unless it can and may be used in filling another authorized purchase order, shall be immediately reported to the War Production Board with information as to the specifications, amounts, and name of purchaser who ordered it. The War Production Board will thereafter promptly direct its disposition.

(2) If, on or before the 15th day of the second month in any calendar quarter year, a manufacturer has not received directives and accepted authorized purchase orders for "sanitary food container stock" in a total tonnage equal to the total tonnage he is able to produce in such calendar quarter year, subject to his use of pulp authorized under Order M-93, he shall on or before the 20th day of such month mail to the War Production Board a statement of the tonnage of each kind of "sanitary food container stock" he is able to produce in such calendar quarter year over and above the tonnage for which he has received directives or accepted authorized purchase orders. The War Production Board will thereafter endeavor to see that such manufacturer receives directives or authorized purchase orders of sufficient tonnage to cover such production. This provision shall not prevent the manufacturer from accepting authorized purchase orders thereafter voluntarily offered him and is only for the purpose of assuring the full production authorized under Order M-93 and the distribution of any unsold production to those who have not received the full amount they have been authorized to purchase.

(3) If, for any reason beyond his control, a manufacturer finds he is unable to use in any calendar quarter year the pulp allocated to him for the manufacture of "sanitary food container stock" or to produce and deliver during such calendar quarter year in accordance with any directive or directives issued to him by the War Production Board or to produce and deliver any authorized purchase order or orders accepted by him for production in such quarter year, he shall immediately so notify the War Production Board giving specific information with respect to each such directive or purchase order as to name of customer, specifications, promised shipping dates and the tonnage of the pulp allocated to him which he is unable to use in such quarter. The War Production Board may, pursuant to Order M-93, direct that the pulp such manufacturer is unable to use for producing such directives or authorized purchase orders be sold and shipped to another manufacturer or manufacturers of such stock for use in manufacturing such "sanitary food container stock" and may, pursuant to M-93 authorize such other manufacturer to use such pulp for manufacturing such stock. Thereafter, such other manufacturer's reserve production of "sanitary food container stock" shall be correspondingly increased.

(e) This Appendix B of M-241 is subject to all the provisions of M-241 not inconsistent with the provisions of this Appendix except the provisions of paragraphs (d) (2) and (d) (4).

NOTE: The reporting requirements of this appendix have been approved by the Bureau of the Budget, pursuant to the Federal Reports Act of 1942.

[F. R. Doc. 45-6009; Filed, Apr. 14, 1945; 11:33 a. m.]

PART 3291—CONSUMER DURABLE GOODS[1]

[Limitation Order L-37-a, as Amended Apr. 16, 1945]

MUSICAL INSTRUMENTS

§ 3291.190[1] *Limitation Order L-37-a*—(a) *Definitions.* For the purposes of this order:

(1) "Musical instrument" means any manufactured instrument designed primarily to produce sound according to musical notation, including any electrically amplified musical instrument and any amplifier therefor, except radios, phonographs and articles designed primarily as toys.

(2) "Essential accessory" means any item which is not a part of a musical

[1] Formerly Part 1070, § 1070.2.

instrument, but which is used in connection with and is essential to the playing of a musical instrument.

(3) "Non-essential accessory" means any pitch pipe and any item which is used in connection with a musical instrument but which is not essential to the playing of a musical instrument.

(4) "Critical materials" means steel, brass, tin contained in solder, and nickel used for plating functional parts.

(5) "Producer" means any person engaged in the business of manufacturing or assembling any musical instruments, essential accessories or non-essential accessories, or parts therefor.

(6) "Repairer" means any person engaged in the business of repairing or overhauling musical instruments.

(7) "Special order" means any purchase order or contract of the Army or Navy of the United States, the Veterans Administration, the U. S. Maritime Commission or the War Shipping Administration.

(b) *Materials prohibited in production and repair*—(1) *Prohibited materials.* No producer or repairer shall use in the manufacture, assembly, repair, or overhauling of any musical instrument, essential or non-essential accessory, or replacement or other part, any of the following materials:

NOTE: "Methyl methacrylate plastics" and "phenol formaldehyde plastics" deleted Apr. 16, 1945.

Chromium,
Copper, except in brass and except for repairs under paragraph (b) (2),
Neoprene, except as may be permitted under Order R-4.
Nickel, except for plating functional operating parts,
Rubber, except as may be permitted under Order R-1.
Tin, except in solder,
Zinc, except in brass.

(2) *Repairs.* Notwithstanding the restriction of the preceding paragraph (b) (1), a producer or repairer may use copper or copper base alloy for the conduction of electricity in the manufacture, assembly, repair or overhauling of a part for a specific repair or replacement on a used musical instrument, *Provided*, That no more copper and copper base alloy is used than the greater of either of the following two amounts:

(i) Two pounds in the aggregate, or

(ii) One pound in excess of the amount of copper and copper base alloy scrap recovered, and delivered to a scrap dealer or other person specified under Copper Order M-9.

(c) *Use of critical materials in production and repair and overhauling of instruments and accessories*—(1) *Production of instruments and accessories.* Except as provided for special orders in paragraph (e) below, the following rules state the quantity of critical materials that may be used in each new musical instrument or accessory.

(i) *Pianos and organs.* No producer may use any critical materials in making or assembling any new piano or organ (pipe, reed or electric) unless authorized in writing by the War Production Board. No authorization will be given to make any piano or organ containing more than 10% by weight of critical materials. Application for authorization should be made by writing a letter (in triplicate) to the War Production Board, Washington 25, D. C., Ref: L-37-a, stating the number of pianos or organs to be made and the amounts and kinds of critical materials to be used.

(ii) *Other musical instruments and essential accessories.* No producer may use more critical materials in making or assembling any other new musical instrument or any new essential accessory than 10% of the weight of the instrument or accessory. Special authorizations for such use issued before April 16, 1945, to fill special orders shall remain in effect.

(iii) *Non-essential accessories.* No producer may use any critical materials in making or assembling any new non-essential accessory except nails, bolts, nuts, screws, clasps, rivets and other joining hardware not exceeding 5% of the weight of the accessory.

(2) *Production of replacement parts.* No producer shall use in any calendar quarter commencing April 1, 1943, in the manufacture or assembly of replacement parts for musical instruments and essential accessories more critical materials than the greater of the following amounts:

(i) 1¼% of the aggregate weight of critical materials and prohibited materials used in all new musical instruments manufactured and assembled by him during 1940; or

(ii) 18¾% of the aggregate weight of critical materials and prohibited materials used in replacement parts for musical instruments and essential accessories manufactured and assembled by him during 1940.

(3) *Repair and overhauling.* Except upon specific authorization in writing from the War Production Board for any additional amount, no producer or repairer shall use in the repair or overhauling of any musical instrument, essential or nonessential accessory, or part, any critical materials other than necessary joining hardware and the following permitted amounts (in each instance weight of critical materials in any replacement part installed is to be counted):

(i) *Pianos.* Maximum of 18 pounds of critical materials permitted.

(ii) *Pipe organs.* Maximum of 50 pounds of critical materials permitted. No new metal pipes may, in any event, be installed.

(iii) *Reed or electric organs.* Maximum of 12 pounds of critical materials permitted.

(iv) *Other instruments and accessories.* Maximum of 10 ounces of critical materials permitted.

(v) *Applications for specific authorizations.* Applications for a specific authorization in accordance with this paragraph (c) (3) may be made by addressing a letter in triplicate to the War Production Board, Ref: L-37-a, stating the number of instruments or accessories which the producer or repairer proposes to overhaul and the amount and kind of material which the producer or repairer proposes to use.

(d) *Permitted rate of production.* No producer shall in any calendar quarter commencing April 1, 1943, manufacture or assemble:

(1) More stringed instruments containing any critical material than 32% of the total number of stringed instruments of all types, sizes and weights manufactured or assembled by him during the year 1940. For the purpose of this restriction, a piano shall not be considered a stringed instrument.

(2) Other musical instruments (excluding stringed instruments, pianos, and pipe, reed and electric organs) containing in the aggregate more critical materials than 18¾% of the aggregate weight of critical and prohibited materials used by him in the manufacture of such instruments of all types, sizes and weights during the year 1940.

(3) Essential accessories containing in the aggregate more critical materials than 8¾% of the aggregate weight of critical and prohibited materials used by him in the manufacture or assembly of all such essential accessories during the year 1940.

(e) *Use of critical materials for special orders.* A person may use idle and excess critical materials (but not prohibited materials) in filling special orders to make or repair musical instruments or accessories under the following rules. "Idle and excess material" means material which is obtained by special sale under Priorities Regulation 13, or under paragraph (c) of Direction 44 to CMP Reg. 1, or which is in his own inventory and cannot be used for the purpose for which it was obtained.

(1) Special sales of idle and excess material may be made only under the rules stated in Priorities Regulation 13. In using material in his own inventory which he got with priorities assistance, a person is subject to the rules stated in paragraph (b) (3) of § 944.11 of Priorities Regulation 1. Direction 52 to CMP Regulation 1 for controlled materials, and Direction 4 to Priorities Regulation 1 for other materials, explain how to get an authorization when it is needed.

(2) A person using idle and excess brass to fill special orders may not have it reprocessed by a controlled materials producer without specific authorization of the War Production Board in writing. If it is necessary to have the materials reprocessed by a controlled materials producer, the person should apply, by letter, to the Copper Division, War Production Board, Washington 25, D. C., Ref.: L-37-a, for specific authorization. The letter should present a description of the materials, the amount in pounds, the

name of the controlled materials producers and any other relevant facts. Generally such authorization will be granted if facilities are available.

(3) In using idle and excess material to fill special orders actually received and on hand a person is not subject to the provisions of paragraphs (c) (1) or (c) (3) of this order.

(4) A person using idle and excess material to fill special orders actually received and on hand may exceed any quota under paragraphs (c) (2) and (d) of this order if he does not make more instruments or use more critical materials for civilian orders within that quota than he made or used for civilian orders in the preceding calendar quarter. All instruments, parts or accessories not made to fill special orders actually received and on hand are considered made for civilian orders.

(5) A person may, of course, use idle and excess critical materials within his quotas in paragraphs (c) (2) and (d) without being subject to the rule stated above in paragraph (e) (4).

(f) *Applicability of other orders and regulations.* This order and all transactions affected by it are subject to all applicable regulations of the War Production Board. If any other order of the War Production Board limits the use of any material in the production of musical instruments, accessories or parts for them to a greater extent than this order does, the other order governs.

(g) [Deleted Apr. 16, 1945.]

(h) [Deleted Apr. 16, 1945.]

(i) *Violations.* Any person who wilfully violates any provisions of this order, or who, in connection with this order, wilfully conceals a material fact or furnishes false information to any department or agency of the United States, is guilty of a crime, and upon conviction may be punished by fine and imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using, material under priority control and may be deprived of priorities assistance.

(j) *Exceptions and appeals*—(1) *Production under Priorities Regulation 25.* Any person who wants to manufacture or assemble more musical instruments or essential accessories than he is permitted by paragraph (d), and any person who wants to use more critical materials in the manufacture or assembly of replacement parts for musical instruments and essential accessories than he is permitted by paragraph (c) (2) (including a person who has no quota under this order) may apply for permission to do so as explained in Priorities Regulation 25.

(2) *Appeals.* Any appeal from the provisions of this order should be filed on Form WPB–1477 with the field office of the War Production Board for the district in which is located the plant or branch of the appellant to which the appeal relates. Appeals from paragraphs (c) (2) and (d) are permitted only in the cases stated in paragraph (j) (4) (iii) of Priorities Regulation 25. The procedure governing appeals, including the need for a statement of manpower requirements, is explained in Priorities Regulation 16.

(k) *Communications.* All reports required to be filed hereunder and all communications concerning this order shall, unless otherwise directed, be addressed to the War Production Board, Consumers Durable Goods Division, Washington, D. C., Ref.: L–37–a.

Issued this 16th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6081; Filed, Apr. 16, 1945; 11:18 a. m.]

PART 3293—CHEMICALS

[Limitation Order L–20, as Amended Apr. 16, 1945]

CELLOPHANE

§ 3293.1 *Limitation Order L–20*—(a) *Definitions.* For the purpose of this order:

(1) "Supplier" means any manufacturer, converter, jobber, dealer, printer and any other person who directly or indirectly delivers cellophane to the users.

(2) "Cellophane" means a film of plasticized regenerated cellulose, whether in nonmoisture proof or moistureproof grades and whether or not heat sealing. It does not include any material which has been used to package, wrap or seal any product or in manufacture.

(b) *Restriction on use.* Except as provided in paragraphs (f) and (g), no person shall use cellophane for retail decorative "point of sale" packaging or wrapping, or for the packaging, wrapping, sealing or manufacture of the following materials or products:

(1) Cosmetics, soaps, deodorants (including paradichlorobenzene), and cleaning materials, except that cellophane may be used as a replacement of metal for collapsible tubes for tooth paste.

(2) All textiles other than bandages, sanitary swabs and typewriter ribbons.

(3) All rubber and rubber products, except that cellophane may be used in the manufacture of rubber products, as a substitute for Holland Cloth in the backing of retreading stocks for tires, tire reliners, patches and sandblast stencils, and as a wrapping on friction and rubber tape.

(4) All hardware, metals and sporting goods, except that cellophane may be used for packaging and wrapping precision metal parts.

(5) All paper and paper products, including cellulose backed adhesive tape for household purposes.

(6) Glassware, including optical lenses and jewelry.

(7) Candles and wax products.

(8) Electrical equipment, except that cellophane may be used in the manufacture of such equipment.

(9) Wood and wood products other than medical tongue depressers and swabs.

(10) Leather and leather products.

(11) Bottles and jars for any use except that disc inner liners may be used with paper tops to containers for foods, liquid and paste soap, industrial oils and greases.

(12) Canned goods of any sort.

(13) Flowers, plants, seeds and grains.

(14) All decorations and novelties.

(15) Bowl and basket covers, household dyes, household rolls, soda straws, sewing supplies, garment covers, toys and games, pipe filters, coin wrappings, natural and artificial sponges, doilies, hair waving equipment, brake linings, molding materials, window covers (except automobile fog and frost shields).

(16) Milk bottle hoods, except by a dairy bottling 84,000 or less bottles per month.

(17) Putty and paint, except that cellophane may be used as a replacement for metal containers and disc inner liners may be used with paper tops to containers.

(18) Plastic products (other than tooth brushes) and except that cellophane may be used in the manufacture of plastic products.

(19) Drug products, chemicals and antiseptics, except where necessary for the protection of the product itself.

(20) Candy products and chewing gum as follows:

(i) For box overwraps, including the wrapping of either lid or box of "set-up" boxes.

(ii) For open end sleeves on boats or trays.

(iii) In addition to any wrapper of waxed paper, glassine, grease proof, vegetable parchment, or super calendered sulphite.

(iv) For use as both a container and individual wrap for the same candy piece to form a single packaging unit.

(v) For any other type of packaging of candy products and chewing gum, except where necessary for the protection of the product itself.

(21) All foods for animals.

(22) All insecticides and rodenticides, other than paradichlorobenzene and napthalene insecticides.

(23) Tea, spices, peppers, condiments, sugar, flour, and unshelled nuts.

(24) Carton overwraps for dried food products, including but not limited to peas, beans, rice, barley and lentils, macaroni, noodles and similar paste goods, cereal, cooked and uncooked, and dessert and drink powders.

(25) Window cartons and window bags for all non-food products and for candy products, chewing gum, teas, spices, condiments, sugar, flour and unshelled nuts.

(26) Advertising displays.

(c) *Restrictions on deliveries.* No person shall knowingly, directly or indirectly, deliver or cause to be delivered any cellophane, and no person shall accept cellophane to be used for packaging, wrapping, sealing or manufacture

in violation of the provisions of paragraph (b), unless such packaging, wrapping, sealing or manufacturing is exempt under the provisions of paragraphs (f) or (g).

(d) *Inventory restriction.* No person within the forty-eight states of the United States or within the District of Columbia shall accept delivery of cellophane if the amount accepted, together with his inventory of such material then on hand, shall exceed a forty-five day supply, having regard to his orders on hand and his current method and rate of operation. However, the restrictions of this paragraph (d) shall not apply to the acceptance of delivery of fifty pounds or less of cellophane by any person whose inventory of cellophane, immediately prior to delivery, is fifty pounds or less. No person shall deliver cellophane if he knows or has reason to believe that the person accepting delivery will have, on acceptance an amount of cellophane in excess of the inventory allowed him by the previous sentences of this paragraph.

(e) *Monthly reports.* Each converter, agent, fabricator, jobber or similar supplier acting as direct or indirect sales agent for any producer must, by the tenth day of each month, submit to such producer a report of his sales during the preceding month of cellophane (other than waste material as defined in paragraph (f) hereof) purchased by such agent from such producer, classifying sales according to industry (such as candy and chewing gum industry, baking industry, drug industry, tobacco industry, and other specifically named industries) and stating as to each class the total number of pounds sold and the number of pounds sold for civilian use, for military use, and for Lend-Lease. Each producer shall keep records of such reports available for inspection by representatives of the War Production Board. Each person affected by this order shall file such other reports as may from time to time be required by the War Production Board, subject to the approval of the Bureau of the Budget under the Federal Reports Act of 1942.

(f) *Waste material exception.* Nothing contained in this order shall prohibit the sale, delivery or use of waste cellophane (known as roll end trim and rejected or defective rolls and sheets), but producers and suppliers of waste cellophane shall report to the War Production Board by the tenth day of each month the quantities of such material sold or delivered during the preceding month and the recipients thereof.

(g) *Military exception.* The restrictions of this order shall not apply to the use of cellophane for packaging, wrapping, sealing or manufacturing any material or product to be delivered to or for the account of the United States Army, Navy, Veterans' Administration, Maritime Commission or War Shipping Administration, or to any foreign country pursuant to the Act of March 11, 1942, (Lend-Lease Act); *Provided*, That where this material is not used in connection with implements of war, the primary contract specifically requires the use of such material or of a transparent wrapping material. Persons using cellophane in accordance with the above exception shall nevertheless file reports as required in paragraphs (e) and (f).

(h) *Miscellaneous provisions*—(1) *Applicability of regulations.* This order and all transactions affected thereby are subject to all applicable regulations of the War Production Board as amended from time to time.

(2) *Violations.* Any person who wilfully violates any provision of this order or who, in connection with this order, conceals a material fact or furnishes false information to any department or agency of the United States, is guilty of a crime and upon conviction may be punished by fine or imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using, material under priority control and may be deprived of priorities assistance.

(3) *Appeals.* Any appeal from the provisions of this order shall be made by filing a letter in triplicate with the field office of the War Production Board for the district in which the appellant is located, referring to the particular provisions appealed from and stating fully the grounds of the appeal.

(4) *Communications.* All reports required to be filed hereunder, and all communications concerning this order, shall, unless otherwise directed, be addressed to the War Production Board, Chemicals Division, Washington 25, D. C., Ref: L–20.

NOTE: The reporting provisions of this order have been approved by the Bureau of the Budget pursuant to the Federal Reports Act of 1942.

Issued this 16th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6083; Filed, Apr. 16, 1945; 11:19 a. m.]

PART 3293—CHEMICALS

[General Allocation Order M–300, Revocation of Schedule 43]

LACTIC ACID

Section 3293.1043 *Schedule 43 to General Allocation Order M–300*, and all authorizations and directions issued under that section, are hereby revoked. This revocation does not affect any liabilities incurred thereunder.

Issued this 16th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6078; Filed, Apr. 16, 1945; 11:18 a. m.]

PART 3293—CHEMICALS

[General Allocation Order M–300, Schedule 102]

ACETONE AND DIACETONE

§ 3293.10102 *Schedule 102 to General Allocation Order M–300*—(a) *Definition.* (1) "Acetone" means acetone (dimethyl ketone) of any grade and from whatever source derived. The term does not include the product commonly known as methyl acetone obtained as a by-product of wood distillation.

(2) "Diacetone" means diacetone alcohol of any grade and from whatever source derived.

(b) *General provisions.* Acetone and diacetone are subject to the provisions of General Allocation Order M–300 as Appendix C materials. The initial allocation date is September 28, 1943, when these materials first became subject to allocation under Order M–352 (revoked). The allocation period is the calendar month. The small order exemption per person per month is 350 pounds of acetone and 415 pounds of diacetone. Purchasers must furnish use certificates when ordering in quantities specified in paragraph (f) and must file application on Form WPB–2945 for specific authorization to receive quantities specified in paragraph (e). Applications must be filed on Form WPB–2945 in accordance with paragraph (e) for specific authorization to use stocks which are not exempt or which cannot be used as previously certified or specifically authorized.

(c) *Transition from M–352.* Regular and interim allocations heretofore issued under Order M–352 are effective under this schedule, but are limited in duration as if originally issued under this schedule. Pending applications need not be refiled.

(d) *Suppliers' applications on WPB–2947.* Each supplier seeking authorization to deliver shall file application on Form WPB–2947 (formerly PD–602). Filing date is the 20th day of the month before the proposed delivery month. File separate sets of forms for acetone and diacetone. Send three copies (one certified) to the War Production Board, Chemicals Bureau, Washington 25, D. C., Ref: M–300–102. The unit of measure is pounds. In Table I, first, list in Column 1 the names of customers who have filed WPB–2945 forms with the applicant and in Column 1a specify "WPB–2945"; second, list in Column 1 the names of customers who have filed use certificates with the applicant and in Column 1a transcribe the uses stated in the certificates; third, specify in Column 1 "Aggregate small order deliveries" and leave Column 1a blank; fill in other columns as indicated. Fill in Table II (leaving Column 8 blank).

(e) *Customers' applications on WPB–2945.* Each person seeking delivery of more than 1750 pounds of acetone or of more than 2075 pounds of diacetone per month in the aggregate from all suppliers, or seeking specific authorization to use acetone or diacetone, shall file application for authorization on Form WPB–2945 (formerly PD–600). Filing date is the 10th day of the month before the month for which allocation is requested. Separate sets of forms shall be filed for each supplier and for acetone and diacetone. Send three copies (one certified) to the War Production Board, Chemicals Bureau, Washington 25, D. C., Ref: M–300–102, and one copy (reverse side blank) to the supplier. The unit of measure is pounds.

Specify primary product or primary use in Column 3 in terms of the following examples:

Acetic anhydride
Denaturant
Methyl isobutyl ketone
Other primary product
Inventory (in original form)
Export (in original form)
Resale (in original form)

Opposite any primary product listed in Column 3 which is subject to allocation, specify in Column 4 only the allocation order or schedule number, (for example: "M–300–26" for acetic anhydride).

Opposite any primary product listed in Column 3 which is not under allocation, specify end use in terms of the following, giving also Army and Navy contract numbers, and Lend-Lease or UNRRA requisition or contract numbers when available:

Acetylene solvent
Artificial leather
Cellulose acetate (rayon and plastics)
Shoe cements
Transmission belting cements
Cements (other)
Cleaners
Dewaxing lubricating oils
Explosives
Extraction
Fingernail enamel and enamel removers
Insecticides
Liniments
Medicinals and pharmaceuticals
Nitrocellulose lacquers
Nitrocellulose plastics
Paint and varnish removers
Perfumes
Photographic films
Printing inks
Resins
Rubber anti-oxidants and other rubber applications
Wash thinners
Other (specify)

Opposite "Inventory", "Export" or "Resale" in Column 3, fill in Column 4 as required by paragraph (11–a) of Appendix E of Order M–300. Fill in the other columns of Table I, and fill in Tables II and III, as indicated. Leave Table IV blank.

In Table V list in Column 23 each primary product produced the last month (the month before the month in which the form is being filed). In Column 24, list quantity of acetone or diacetone consumed in the last month in the manufacture of such primary product. In Column 25, list the quantity of acetone or diacetone allocated to the applicant for the manufacture of each such primary product in last month.

(f) *Certified uses with purchase orders.* Each person placing purchase orders for delivery of between 350 and 1,750 pounds of acetone, or of between 415 and 2075 pounds of diacetone, per month in the aggregate from all suppliers, shall furnish each supplier with a certified statement of proposed use. Describe proposed use as shown in paragraph (e) above. The statement of use shall be followed by the certification "Use certified-Ref: M–300" and shall be duly signed (as prescribed in Appendix D of Order M–300). However, the form of certificate provided in Appendix C of Order M–352, as last amended prior to its revocation, may continue to be used instead.

(g) *Budget Bureau approval.* The above reporting requirements have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

(h) *Communications to War Production Board.* Communications concerning this schedule shall be addressed to War Production Board, Chemicals Bureau, Washington 25, D. C., Ref: M–300–102.

Issued this 16th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6079; Filed, Apr. 16, 1945; 11:18 a. m.]

PART 3293—CHEMICALS

[Allocation Order M–352, Revocation]

ACETONE AND DIACETONE

Section 3293.541 *Allocation Order M–352* is hereby revoked. This revocation does not affect any liabilities incurred under the order.

Acetone and diacetone are subject to allocation under General Allocation Order M–300 as Appendix C materials, subject to Schedule 102 issued simultaneously with this revocation.

Regular and interim allocations of acetone and diacetone heretofore issued under Order M–352 are effective under that schedule, but authorizations are limited in duration as if originally issued under that schedule. Pending applications need not be refiled.

Issued this 16th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–6080; Filed, Apr. 16, 1945; 11:18 a. m.]

PART 4500—POWER, WATER, GAS AND CENTRAL STEAM HEAT

[Utilities Order U-9, Direction 2, as Amended Apr. 13, 1945]

EXEMPTION OF DESIGNATED AREAS FROM APPLICATION OF ORDER U-9

Direction 2 to Utilities Order U-9 is amended to read as follows:

Whereas, upon investigation, it has been determined that the application of Order U-9 in the areas specified below will not reduce the consumption of coal or other scarce fuels in accordance with the purposes of the order;

Therefore, it is ordered and directed pursuant to paragraph (d) (2) of Utilities Order U-9 that electric suppliers and persons using electricity located in the following areas, are exempt from the provisions of Utilities Order U-9 until June 30, 1945, except that the Territory of Alaska is exempt without time limit:

Alaska: Entire Territory (no time limit)
Arizona: Entire State
Arkansas: City of Hope
California: Entire State except the area served by San Diego Gas and Electric Company and Santa Catalina Island Company.
Colorado: Entire State
Idaho: Entire State
Indiana: City of Linton
Kansas: (a) Counties: The portion of Morton County served by Southwestern Public Service Company.
(b) Cities:
(1) Garden City
(2) Walnut
Louisiana: (a) Parishes of:
(1) Calcasieu
(2) Cameron
(3) Jefferson Davis
(4) Acadia
(5) Vermilion
(6) Lafayette
(7) St. Martin
(8) Iberville
(9) Iberia
(10) St. Mary
(11) Terrebonne
(12) Plaquemines
(13) St. Bernard
(14) Orleans
(15) St. Charles
(16) Assumption
(17) West Baton Rouge
(18) East Baton Rouge
(19) St. John the Baptist
(20) East Feliciana
(21) West Feliciana
(22) St. James
(23) Ascension
(24) Livingston
(25) Pointe Coupee
(26) Jefferson
(27) Lafourche
(28) Those portions of parishes adjacent to those above named in which the only electric energy furnished to consumers is energy transmitted from the system of the Gulf States Utilities Company.
(29) The portions of the parishes of De Soto, Sabine, Vernon and Beauregard served by Louisiana Public Utilities Company, Inc.
(b) City of Monroe
Maine: Entire State
Michigan: (a) Counties:
(1) The portion of the County of Delta served by the Upper Michigan Power and Light Company, including the cities of Gladstone and Escanaba.
(2) The portions of the counties of Houghton, Keweenaw, Baraga, and Ontonagon served by the Copper District Power Company and the Houghton County Electric Light Company.
(b) City of Hillman
Mississippi: Yazoo City
Montana; Entire State
Nebraska: City of Palisade
Nevada: Entire State
New Mexico: Entire State
New York: (a) Counties:
(1) The portions of the counties of Clinton, Franklin, and Essex served by Cities of Plattsburg, Lake Placid, and Rouses Point, Paul Smith's Electric Light and Power and Railroad Company, and New York State Electric and Gas Corporation.
(b) Cities:
(1) Copenhagen
(2) Gouverneur
(3) Hailesboro
Oklahoma: (a) Counties:
(1) The portions of the counties of Cimarron, Texas, and Beaver served by Southwestern Public Service Company.
(b) City of Stillwater
Oregon: Entire State
South Dakota: Cities:
(1) Hill
(2) Rapid City
(3) Lead
(4) Deadwood
(5) Spearfish
(6) Sturgis
(7) Belle Fourche
(8) Newell
(9) Custer
(10) Areas adjacent to the above cities supplied by Black Hills Power and Light Company

Texas: Entire State except those portions of the counties of Bowie, Cass, Marion, Harrison, Panola, Shelby, Rusk, Smith, Gregg, Upshur, Camp, Morris, Red River, Titus, Franklin, Hopkins, Wood, and Van Zandt, which receive service from or whose electric supplier receives service from the Southwestern Gas and Electric Company.
Utah: Entire State
Vermont: Cities:
(1) Derby Line
(2) Norton
Washington: Entire State
West Virginia: City of Rainelle
Wisconsin: City of Radisson
Wyoming: Entire State

Issued this 13th day of April 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-5971; Filed, Apr. 13, 1945; 4:54 p. m.]

Chapter XI—Office of Price Administration

PART 1445—LIVESTOCK

[MPR 574,[1] Amdt. 2]

LIVE BOVINE ANIMALS (CATTLE AND CALVES)

A statement of the considerations involved in the issuance of this amendment has been issued simultaneously herewith and filed with the Division of the Federal Register.

Maximum Price Regulation No. 574 is amended in the following respects:

1. Section 1 (b) (1) is amended to read as follows:

(1) To sales or deliveries of live bovine animals for serum or vaccine production or for breeding or dairy purposes.

2. Section 1 (b) (4) is added to read as follows:

(4) To sales or deliveries of live bovine animals to a person, not engaged in the slaughter of live bovine animals except as a farm slaughterer, for feeding for more than 30 days. The slaughter of such animals, however, shall be governed by the provisions of section 14 of this regulation. A person shall be deemed to be engaged in the slaughter of live bovine animals if he is financially affiliated with a person who is engaged in the slaughter of live bovine animals.

3. Section 5 (a) is amended by adding at the end thereof the following sentence:

Provided, That where live bovine animals are sold and purchased on a per head basis in accordance with the provisions of section 8 (b), the records shall show the estimated live weight (using the word "estimated"), and the number of live bovine animals, indicating whether they were bulls or live bovine animals other than bulls, in place of the information required by subparagraphs (a) (3) and (4) above, and shall show the price paid per pound based on the estimated live weight, in addition to all other information required by this section 5 (a).

[1] 10 F.R. 1270, 1404, 3691.

4. Section 6 (a) is amended by adding at the end thereof the following sentence:

Provided, That where live bovine animals are sold on a per head basis in accordance with the provisions of section 8 (b), the invoice or receipt, or both, shall show the date of sale, the estimated live weight (Using the word "estimated"), and the number of live bovine animals sold, indicating whether they were bulls or live bovine animals other than bulls, in place of the information required by subparagraphs (a) (1), (3) and (4) above, and shall show the price paid per pound based on the estimated live weight in addition to all other information required by this section 6 (a).

5. Section 8 (a) is amended to read as follows:

(a) *How overriding ceiling prices are fixed where live bovine animals are sold by weight.* (1) Except as provided in paragraph (b) of this section, all sales of live bovine animals shall be made on an actual weight basis as required by this paragraph (a).

(2) The overriding ceiling price for any live bovine animal sold depends on the location of the scales upon which the animal is weighed for sale. No live bovine animal shall be weighed for sale except on scales suitable to the weighing of livestock.

(3) All sales of live bovine animals shall be deemed made on the day of weighing. Live bovine animals sold to different buyers must be weighed separately.

(4) No sale of live bovine animals shall be made except at the weight so determined.

(5) All expenses of transporting live bovine animals to the place of weighing shall be paid by the seller.

(6) Sales of bulls shall be made separately from sales of other bovine animals.

(7) To find the overriding ceiling price for live bovine animals weighed for sale,

(i) Find the zone or market in which is located the scales upon which the animal is weighed for sale. The zones and markets into which the United States is divided are given in section 13 (b) of this regulation.

(ii) Refer to paragraph (c) of this section for the overriding ceiling price. The overriding ceiling price for sale or delivery of any live bovine animal or lot of live bovine animals shall be the price listed in paragraph (c) of this section for the zone or market in which is located the scales upon which the live bovine animal is weighed for sale.

6. Section 8 (b) is amended to read as follows:

(b) *How overriding ceiling prices are fixed where live bovine animals are sold by the head.* (1) Sales of live bovine animals may be made on a per head basis if (i) neither the buyer or his agent nor the seller or his agent possess scales suitable for the weighing of livestock and possession of the live bovine animals is taken by the buyer or his agent at a point in the immediate vicinity of which scales suitable to the weighing of livestock are not available, or (ii) such bovine animals are cripples or "down" cattle or calves unable to walk across scales suitable to the weighing of livestock: *Provided,* That the records required to be kept by section 5 (a) and the invoice or receipt required by section 6 (a) shall show that such live bovine animals are cripples or "down" cattle or calves in addition to all other information required by sections 5 (a) and 6 (a).

(2) To find the overriding ceiling price for live bovine animals permitted to be sold on a per head basis by subparagraph (b) (1) of this section,

(i) The buyer and the seller must agree upon a reasonable estimate of the live weight of such bovine animals, except that in the case of public auction sales of such live bovine animals, the seller and the operator of the auction market must agree on a reasonable estimate of the live weight of such bovine animals and such reasonably estimated live weight shall be publicly announced by such operator to the bidders prior to the bidding and the buyer must accept such reasonably estimated live weight in making his purchase on a per head basis under this section 8 (b).

(ii) Refer to subparagraph (a) (7) and paragraph (c) of this section to find the overriding ceiling price applicable to the point where possession of such live bovine animals is taken by the buyer or his agent if live bovine animals were to be weighed at such point,

(iii) Subtract $2.00 per hundredweight from the figure obtained in subdivision (ii) hereof,

(iv) Multiply the figure obtained in subdivision (iii) hereof converted to a per pound basis by the estimated live weight obtained in subdivision (i) hereof.

(v) The result obtained in subdivision (iv) hereof is the overriding ceiling price for the sale of live bovine animals on a per head basis.

Example: Assume a sale of a live bovine animal on a per head basis under subparagraph (b) (1) in any point in California. The reasonably estimated live weight agreed upon by buyer and seller is 1,020 pounds. Following subparagraph (a) (7) and paragraph (c) of this section, $18.60 per hundredweight is found to be the overriding ceiling price applicable to live bovine animals weighed for sale in California. $2.00 subtracted from $18.60 gives $16.60. $0.1660 ($16.60 per hundredweight converted to a pound basis) multiplied by 1,020 gives $169.32 which is the overriding ceiling price for the per head sale of the live bovine animal.

(3) Sales of bulls pursuant to the provisions of this paragraph (b) shall be made separately from sales of other live bovine animals.

7. The headnote of section 8 (c) is amended to read as follows:

(c) *Table of overriding ceiling prices for live bovine animals sold by weight.*

8. That part of section 9 (a) (2) preceding the proviso clause is amended to read as follows:

(2) The provisions of this section shall be applicable to any slaughterer who, during any accounting period, slaughters 5 or more cattle and less than 50,000

pounds, live weight, of bovine animals in all establishments (including bovine animals custom killed for him) and all of whose cattle slaughtered within 30 days of purchase during each accounting period are purchased by actual weight:

9. Section 9 (a) (4) is added to read as follows:

(4) The provisions of this section shall be applicable to any slaughterer who, during any accounting period, slaughters 5 or more cattle and less than 50,000 pounds, live weight, of bovine animals in all establishments (including bovine animals custom killed for him) and who purchased on a per head basis in accordance with the provisions of section 8 (b) any such cattle slaughtered within 30 days of purchase. The provisions of this section shall continue to be applicable to such a slaughterer even though during a subsequent accounting period all of his cattle slaughtered within 30 days of purchase were purchased by actual live weight.

The provisions of this subparagraph (4) shall be applicable to that portion of an accounting period remaining after April 16 1945, as well as to each succeeding accounting period and the reports required by section 10 (a) shall be mailed for that portion of such accounting period as well as for succeeding accounting periods.

10. Section 10 (a) (7) is added to read as follows:

(7) In the event that cattle are purchased on a per head basis in accordance with the provisions of section 8 (b), a signed statement attached to the report mailed under subparagraphs (1) or (3) above and (5) above, showing the number of cattle slaughtered which were purchased on a per head basis and the estimated live weight of such cattle. In preparing the reports required by subparagraphs (1) or (3) above and (5) above, the estimated live weight of cattle slaughtered shall be used in the place of actual live weight where such cattle slaughtered were purchased on a per head basis in accordance with the provisions of section 8 (b).

This amendment shall become effective April 17, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

Approved: April 9, 1945.

GROVER B. HILL,
First Assistant War Food Administrator.

[F. R. Doc. 45-5964; Filed, Apr. 18, 1945; 3:54 p. m.]

PART 1395—NONFERROUS FOUNDRY PRODUCTS

[RMPR 125,[1] Amdt. 8]

NONFERROUS CASTINGS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Revised Maximum Price Regulation No. 125 is amended in the following respects:

1. A new § 1395.2a is added to read as follows:

§ 1395.2a *Dollars and cents maximum prices and other special pricing provisions to be used instead of §§ 1395.3 and 1395.4.*—(a) *Certain railway car journal bearings.* (1) Maximum prices for broached railway car journal bearings, sizes 6 inch by 11 inch and under with ¼ inch lining, made to AAR Specification E–M–501–43.

(i) *Straight sale, no exchange of metal.*

TABLE ONE

	Cents per pound f. o. b producer's plant
In quantities of 7,500 lbs. or more	18.65
In quantities of less than 7,500 lbs	[1] 18.65

[1] Plus the seller's usual or customary differential for the quantity sold.

Sales covered by this provision are those transactions in which the producer of journal bearings sells and delivers bearings of the above specifications without receiving an exchange of scrap as under a conversion or toll agreement.

(ii) *Conversion or toll agreement transactions.*

TABLE TWO

	Cents per pound f. o. b. producer's plant	
	Billing charge	Conversion or toll charge
	Column I	Column II
Where bearing is returned with lining	18.40	5.91
Where bearing is returned without lining	18.90	8.03

Where railway car journal bearings are produced under a toll or conversion agreement or contract, the billing charge or price and the scrap price allowance shall be so set that the toll or conversion charge shall not exceed the amounts set forth in the table above for the appropriate transaction based on a return of the maximum amounts of metal returnable. (Backs figured at 82% and linings at 18% of total weight of bearings.) The scrap allowance plus the conversion charge must not exceed the figures in Column I nor shall the difference between the billing charge and the scrap allowance exceed the conversion charge or toll stated in Column II.

"Conversion or toll agreement transactions" mean those transactions covered by a written agreement entered into between a producer of railway car journal bearings and a user of such bearings; which agreement, among other things, provides that, for a stated term, the producer shall furnish the user with all or a portion of the journal bearings required by the user, and the user shall return to the producer scrap journal bearing material, whether these agreements are referred to, or known, as "toll," "conversion," "service" agreements or by any other similar title. (The term "user" means any person who owns, operates or maintains railway rolling stock.)

NOTE: Railway car journal bearings which are not made to the above AAR Specification E–M–501–43 are excluded from this section and shall continue to be priced under § 1395.3 or § 1395.4, whichever is applicable.

This amendment shall become effective May 1, 1945.

NOTE: Approval of the Bureau of the Budget not required.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5978; Filed, Apr. 14, 1945; 11:22 a. m.]

PART 1312—LUMBER AND LUMBER PRODUCTS

[RMPR 109, Amdt. 7]

AIRCRAFT LUMBER

NOTE: An amendment to the statement of considerations involved in the issuance of Amendment 7 to Revised Maximum Price Regulation 109 was filed with the Division of the Federal Register as F. R. Doc. 45-3780 (NP), on April 14, 1945, at 11:32 a. m.

PART 1426—WOOD PRESERVATION AND PRIMARY FOREST PRODUCTS

[MPR 554,[1] Amdt. 1]

WESTERN RED CEDAR POLES AND PILING

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation 554 is amended in the following respects:

1. The initial undesignated paragraph of section 4 is amended to read as follows:

The transportation charges set forth below may be added to the maximum f. o. b. railroad loading-out point or towable water prices when the seller makes delivery to the destination except that no charge may be made for inbound towing on poles and piling originating in Canada. Transportation from the mill or point of production to the railroad loading-out point or booming and rafting ground must, in every instance, be provided on the seller's account.

All invoices on delivered sales must show:

(1) Point of origin of shipment.
(2) Destination.
(3) Rail rate, if estimated weights are used; otherwise the actual amount added for transportation.

2. Section 10 is amended by inserting after the phrase "Western red cedar poles," in the first undesignated paragraph, the words "or piling."

3. Section 15 is amended as follows:

[1] 8 F.R. 1271, 2597, 2721; 9 F.R. 676, 3856, 5590, 12266; 10 F.R. 1976.

a. Delete Note 2 of "General notes applying to Tables 1, 2, 3 and 4".

b. Redesignate notes 3, 4, 5, 6, 7, 8, 9, and 10 of General Notes applying to Tables 1, 2, 3, and 4 as 2, 3, 4, 5, 6, 7, 8 and 9 respectively.

c. General Note 2 applying to Tables 5 and 6 is amended to read as follows:

2. *Extended incised area.* When the buyer requires an extended groundline incised area greater than three feet but not more than six feet, the maximum price for creosote incised butt treatment shall not exceed the maximum charge for the next larger class pole in the five foot longer length, to provide for service and any additional height of treatment. When the buyer requires incision of poles greater than six feet, the seller may charge not more than $0.15 per pole for each 3 feet by which the required incised area exceeds six feet on poles 50 feet and shorter, and not more than $0.18 per pole for each three feet by which the required incised area exceeds six feet on poles 55 feet and longer.

d. Redesignate Table 7 as Table 8.

e. Table 7 is added to read as follows:

TABLE 7—PEELED WESTERN RED CEDAR PILING

American Standard Association Specifications (F. O. B. Cars Loading-out Point or Dumped, Boomed, Rafted and Prepared for Towing in Towable Waters)

Length (feet)	10″ min. butt including 9″–1′ to 9″–6′		11″ min. butt including 10″–1′ to 10″–6′		12″ min. butt including 11″–1′ to 11″–6′		13″ min. butt including 12″–1′ to 12″–6′		14″ min. butt including 13″–1′ to 13″–6′		15″ min. butt including 14″–1′ to 14″–6′		16″ min. butt including 15″–1′ to 15″–6′		17″ min. butt including 16″–1′ to 16″–6′		18″ min. butt including 17″–1′ to 17″–6′		19″ min. butt including 18″–1′ to 18″–6′		20″ min. butt including 19″–1′ to 19″–6′	
	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.	Weight pounds per lin. ft.	Price per lin. ft.
20	20	$0.19	24	$0.21	29	$0.26	34	$0.27	39	$0.29	46	$0.30										
25	19	.19	23	.21	28	.24	32	.26	38	.28	44	.30										
30			22	.21	26	.24	31	.25	36	.28	42	.30										
35					25	.24	29	.25	34	.27	40	.29										
40					24	.24	28	.25	33	.27	38	.29	44	$0.29								
45					23	.24	27	.25	31	.27	37	.29	43	.30								
50					22	.24	26	.26	30	.27	35	.29	41	.31	47	$0.36						
55							25	.26	29	.28	33	.30	39	.33	44	.39	51	$0.45				
60							24	.26	28	.29	32	.31	37	.35	43	.43	49	.49	56	$0.54		
65									27	.30	31	.32	36	.39	42	.47	48	.53	54	.58	61	$0.63
70											30	.36	35	.43	40	.51	46	.57	52	.62	59	.67
75													34	.47	39	.55	44	.61	50	.66	56	.71
80													33	.51	38	.60	42	.66	48	.71	54	.78
85															36	.65	41	.73	47	.81	53	.90
90																	39	.83	45	.94	51	1.03
95																			43	1.02	49	1.11
100																			42	1.10	48	1.19

GENERAL NOTES APPLYING TO TABLE 7

1. These prices include all production costs such as yarding, inspection and transportation to the loading-out point.

2. If a top diameter only is specified, or where the top diameter controls, the butt size shall be determined by adding 1 inch to the top diameter for each 8 feet or fraction thereof in length.

3. To arrive at the maximum price for piling with a minimum diameter at a specified point more than 6 feet from the butt:

(a) Convert this diameter to a diameter 6 feet from the butt by adding 1 inch for each 8 feet or fraction thereof by which the distance from the butt to the specified point exceeds 6 feet.

(b) Select the maximum price in the table applicable to the diameter 6 feet from the butt determined in (a) above.

For example: (i) A pile measuring 12″ seven feet from the butt would be figured as follows:

	Inches
Diameter 7′ from butt 7′ exceeds 6′ by 1′	12
Add for 1′ (fraction of 8′)	1
Diameter 6′ from butt	13

Maximum price found under column headed 14″ minimum butt, which includes 13″ six feet from butt.

(ii) A 70′ pile measuring 12″ one quarter of the length from the butt would be figured as follows:

	Inches
Diameter 17½′ from butt (¼ of 70′) 17½′ exceeds 6′ by 11½′	12
Add for 8′	1
Add for 3½′ (fraction of 8′)	1
Diameter 6′ from butt	14

Maximum price found under column headed 15″ minimum butt, which includes 14″ six feet from butt.

4. On orders to established concentration, distribution or treating plant yards, for less than carload minimum weight as established by railroad tariffs, and where the invoice value of the piling at maximum prices does not exceed $300.00 on items 50 feet and shorter, or $450.00 where 50 percent of the items are more than 50 feet in length, the seller may add a service charge of not more than 25% of the total invoice value of the material, not including transportation. The transportation addition on "less than carload sales" must not exceed that permitted by section 4 for transportation from the point of origin to the concentration, distribution or treating plant yard from which the shipment is made. The service charge may be made only on sales f. o. b. the seller's yard, with transportation outbound for the buyer's account.

5. *Inspection service.* On shipments where the buyer requests special inspection service, furnished by an approved inspection agency, an addition may be made to cover the actual cost of such service. This charge must be shown separately on the invoice.

6. *Untreated piling.* On shipments from treating plant yards of untreated piling, the seller may add a charge of not more than $.075 per cwt. times the estimated weight for that length and size in the appropriate table.

This amendment shall become effective April 19, 1945.

NOTE: All reporting and record keeping requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45–5977; Filed, Apr. 14, 1945; 11:21 a. m.]

PART 1439—UNPROCESSED AGRICULTURAL COMMODITIES

[RMPR 487, Amdt. 5]

WHEAT

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Revised Maximum Price Regulation No. 487 is amended in the following respect:

1. Section 23 is added to read as follows:

SEC. 23. *Maximum prices for sales of wheat on futures markets.* The maximum price per bushel, bulk, for the sale of any wheat on any futures market designated as a contract market under the authority of the Commodity Exchange Act whose rules provide for the delivery of such wheat in store and for the subsequent resale and redelivery in store of the wheat delivered on such futures contracts, shall be the formula price set forth in Appendix A of this regulation for the applicable terminal city for the grade and quality stipulated in such futures contract, plus the amount provided in this regulation for one merchandising markup and one commission merchant's service charge. In connection with any limitation in this regulation on the total number or amount of markups or the total amount of service charges that may be included in a maximum price, the above maximum price shall be deemed to include one merchandising markup and one commission merchant's service charge.

This amendment shall become effective April 19, 1945.

Issued this 14th day of April 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

Approved: April 6, 1945.

ASHLEY SELLERS,
Assistant War Food Administrator.

[F. R. Doc. 45–5976; Filed, Apr. 14, 1945; 11:21 a. m.]

---

[1] 9 F.R. 10986.

PART 1499—COMMODITIES AND SERVICES

[SR 14J, Amdt. 2]

MAXIMUM PRICES FOR RESALE OF INSECTICIDE SPRAYERS

A statement of the considerations involved in the issuance of this amendment issued simultaneously herewith has been filed with the Division of the Federal Register.

Supplementary Regulation 14J is amended in the following respect:

Section 2.1 is amended to read as follows:

SEC. 2.1 (a) *Maximum prices for resale of an insecticide sprayer manufactured by the American Specialty Company of Amherst, Ohio.* (1) For sales by the Gulf Oil Corporation or Gulf Refining Company, Gulf Building, Pittsburgh, Pennsylvania, of the insecticide sprayer only, designated as "Gulf Sprayer" and manufactured by the American Specialty Company, Amherst, Ohio, or as part of the sale of assorted specialties in the quantities listed below, the maximum prices are the following:

For sales to retailers:	Per dozen
In less than ½ gross lots	$4.82
In lots of ½ gross to one gross	4.58
In lots of over 1 gross and less than 2 gross	4.34
In lots of 2 gross and less than 3 gross	4.10
In lots of 3 gross and over	3.86
For sales to jobbers:	
Minimum sale of one gross	3.86

(2) For sales of the "Gulf Sprayer" by jobbers to retailers, the maximum price is $4.82 per dozen.

(3) For all sales of the "Gulf Sprayer" at retail, the maximum price is $.55 per unit.

(b) *Maximum prices for resale of insecticide sprayers manufactured by H. D. Hudson Manufacturing Company, Chicago, Illinois.* (1) For sales by the Gulf Oil Corporation or Gulf Refining Company, Gulf Building, Pittsburgh, Pennsylvania, of the following insecticide sprayers only, manufactured by the H. D. Hudson Manufacturing Company, Chicago, Illinois, or as part of the sale of assorted specialties in the quantities listed below, the maximum prices are the following:

	Master fog #403 ND	Capital #437	Cardinal #435
For sales to retailers			
	Dozen	*Each*	*Dozen*
In less than ½ gross lots	$3.90	$2.10	$11.60
In lots of ½ gross to 1 gross	3.71	2.00	11.02
In lots of over 1 gross and less than 2 gross	3.51	1.89	10.44
In lots of 2 gross and less than 3 gross	3.32	1.79	9.86
In lots of 3 gross and over	3.12	1.68	9.28
For sales to jobbers			
Minimum sale of one gross	3.12	1.68	9.28

(2) For sales of the insecticide sprayers by jobbers to retailers, the maximum prices are as follows:

Master Fog #403ND	Capital #437	Cardinal #435
Dozen	*Each*	*Dozen*
$3.90	$2.10	$11.60

(3) For all sales of the insecticide sprayers at retail, the maximum prices are as follows:

Master Fog #403ND	Capital #437	Cardinal #435
Each	*Each*	*Each*
$0.45	$2.85	$1.30

(c) *Maximum prices for resale of an insecticide sprayer manufactured by the Acmeline Manufacturing Company, Traverse City, Michigan.* (1) For sales by the Gulf Oil Corporation or Gulf Refining Company, Gulf Building, Pittsburgh, Pennsylvania, of the insecticide sprayer only, designated as "Acme #331" or "331" and manufactured by Acmeline Manufacturing Company, Traverse City, Michigan, or as part of the sale of assorted specialties in the quantities listed below, the maximum prices are the following:

For sales to retailers:	Per dozen
In less than ½ gross lots	$2.66
In lots of ½ gross to one gross	2.53
In lots over 1 gross and less than 2 gross	2.39
In lots of 2 gross and less than 3 gross	2.26
In lots of 3 gross and over	2.13
For sales to jobbers:	
Minimum sale of one gross	1.86

(2) For sales of the "Acme #331" sprayer by jobbers to retailers, the maximum price is $2.66 per dozen.

(3) For all sales of the "Acme #331" or "#331" sprayer at retail, the maximum price is $0.30 per unit.

(d) *Terms.* All of the foregoing prices in this amendment are subject to the seller's customary terms, discounts, allowances and other price differentials on sales to each class of purchaser.

(e) *Notification.* At the time of the first invoice Gulf Oil Corporation or Gulf Refining Company as the case may be shall notify in writing each jobber and retailer and each jobber shall notify in writing each retailer who purchases from them of the maximum prices established by this amendment for resale of the sprayers by the purchaser. This written notice may be given in any convenient form.

This amendment shall become effective on the 19th day of April 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5979; Filed, Apr. 14, 1945; 11:22 a. m.]

PART 1305—ADMINISTRATION

[Gen. RO 5,[1] Amdt. 101]

FOOD RATIONING FOR INSTITUTIONAL USERS

A rationale for this amendment has been issued simultaneously herewith and has been filed with the Division of the Federal Register.

General Ration Order 5 is amended in the following respects:

1. Section 13.3 is amended to read as follows:

SEC. 13.3. *New establishments which are registering separately.* (a) A person who desires to operate a new Group III establishment at which a charge will be made for the meals served, or a Group IV, V, or VI establishment, and who has no such establishment, or who has two or more such establishments which have been registered separately, or who has only one such establishment and will register the new establishmnt separately, must apply to the Board, on OPA Form R-1307 (Revised), and give the information called for by Part 1 of that form.

(b) The Board shall send the application to the District Office.

(c) If the District Office is satisfied that the establishment will be a new Group III establishment at which a charge for meal services will be made, or a new Group IV, V, or VI establishment, it shall give the applicant an allotment of rationed foods for meal services (but none for refreshment services) for the thirty days following the opening of the establishment.

(d) The amount of his allotment for each rationed food for the first 30 days shall be determined on the basis of allotments granted to similar or comparable establishments, as follows:

(1) The base of the comparable establishment is divided by the number of meals served in that establishment's base month.

(2) The result is multiplied by the number of meals to be served during the proposed establishment's first thirty days.

(3) The result in (2) is reduced in the case of sugar and foods covered by RRO 16, by the percentage reduction in the comparable establishment's allotment by sections 5.7 and 5.8.

(e) After acting on the application, the District Office shall return the file to the Board and authorize the Board to issue any ration evidences to which the applicant may be entitled.

(f) At the end of the first thirty days, he shall report to the Board on OPA Form R-1307 (Revised), the information called for by Part II of that form. The Board shall then compute a base for meal services for each rationed food in the following way:

(1) The number of meals actually served is multiplied by the result arrived at in (d) (1) for each rationed food;

(2) His use of each rationed food for meal services is determined in the following way:

(i) Divide his actual use of sugar by the difference between one hundred percent (100%) and the percentage by which the allotment of the comparable establishment was reduced under section 5.8;

(ii) Divide his actual use of foods covered by RRO 16 (in points) by 80%;

(iii) His use of processed foods, in points.

[1] 8 F.R. 10002, 11479, 11480, 11676, 12403, 12483, 12744, 14472, 15488, 16787, 17485; 9 F.R. 491, 455, 692, 1810, 2212, 2252, 2287, 2476, 2789, 3030, 3075, 3340, 3577, 3704, 4196, 4393, 4647, 4874, 5041, 5232, 5684, 5827, 5915, 6108, 6504, 6628, 7167, 7260, 7703, 7770, 8242, 8813, 9952, 10069, 10578, 12121, 12449, 12919.

(3) The lower of the figures obtained in (1) and (2) is his base for meal services.

(g) The allotment of each rationed food for meal services for the remainder of the allotment period following the first thirty days of operation shall be pro-rated on the basis of the number of days remaining in that allotment period. The allotment for the following allotment period shall be twice his base for each rationed food. The allotment for subsequent periods shall be computed in the same way as the allotments of other users.

(h) If the number of meals actually served during the first thirty days is less than the number of meals which the District Office estimated he would serve, his next allotment shall be reduced by the difference between the amount of the allotment as granted by the District Office and the amount he would have been entitled to obtain on the basis of the number of meals actually served.

2. The definition of "persons served" in section 22.1 is amended to read as follows:

"Persons served" includes both persons served "meals" and persons served "refreshments only". The terms "persons served meals", "persons served food"; "meal services" or "meals", used interchangeably, and "persons served refreshments only" are used when a distinction between refreshment services only and other types of services are intended.

This amendment shall become effective April 20, 1945.

NOTE: All reporting and record-keeping requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6051; Filed, Apr. 16, 1945; 11:06 a. m.]

PART 1305—ADMINISTRATION

[Gen. RO 7,[1] Amdt. 15]

METHOD OF SURRENDER AND DEPOSIT OF RATION STAMPS AND COUPONS

A rationale accompanying this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Section 1.1 (b) is amended to read as follows:

(b) This order does not apply to stamps in War Ration Book Four designated for the acquisition of sugar, to sugar coupons (OPA Form R-330 (Revised)) or to home canning coupons (OPA Form R-342), issued in accordance with the provisions of Second Revised Ration Order 3. Stamps designated for the acquisition of sugar, sugar coupons (OPA Form R-330 (Revised)) or home canning coupons (OPA Form R-342), may be transferred, surrendered or deposited only if they are affixed to gummed sheets in accordance with the procedure set forth in Second Revised Ration Order 3.

This amendment shall become effective April 20, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6052; Filed, Apr. 16, 1945; 11:07 a. m.]

PART 1347—PAPER, PAPER PRODUCTS, RAW MATERIALS FOR PAPER AND PAPER PRODUCTS, PRINTING AND PUBLISHING

[MPR 30,[1] Amdt. 11]

WASTEPAPER

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation 30 is amended in the following respect:

Section 1347.14 (f) is amended to read as follows:

(f) Each shipment of commercially packed wastepaper shall be invoiced and shall be accompanied by a manifest.

Invoice Requirements. Each invoice shall separately state:

(1) The date of loading; the name and address of the buyer and seller, and of any consignee;

(2) The name of each grade, the total weight of each grade, and, if baled, the number of bales of each grade and the weight of each bale. The grade name shall be the applicable grade name listed in § 1347.14 (a) or it shall be the grade name of a specialty sold in accordance with the provisions of § 1347.14 (c);

(3) The price charged per ton for each grade, the loading charge, if any, and the amount of broker's allowance, if any;

(4) Identification of origin of shipment by street and city or town address;

(5) The license number, or truck number, of any truck into which the wastepaper is loaded, or the railroad car number and initials; or both, if the paper is loaded first into a truck and later into a railroad car.

The invoice shall be prepared by the seller and mailed to his buyer before the end of the business day following the day when the wastepaper was shipped, except that when the seller does not receive the description of the wastepaper from his supplier within that time, he shall prepare and mail an invoice to his buyer as soon as he receives that description.

Manifest requirements. Each manifest shall separately state all the above data except that it need not state data required by subparagraphs (1), (3) and (4); but the name of the town or city of origin and the date of loading shall be stated.

The manifest shall be prepared by the first seller making delivery from a warehouse or a packing plant, regardless of the nature of his buyer, and shall accompany the shipment of wastepaper to the consumer irrespective of who owns or controls the vehicle or carrier in which the shipment is made and irrespective of any resale of the paper by such first seller to any intermediate buyer except that where the buyer places the wastepaper in a warehouse for resale, such buyer, on resale, shall prepare the manifest which shall accompany the shipment to the consumer.

The manifest shall be posted in the railroad car or other vehicle by the first seller who causes the wastepaper to be loaded in the car or other vehicle.

In all cases, the buyer shall keep every invoice and manifest received by him and the seller shall keep a copy of each invoice and manifest prepared by him. The broker shall, except with respect to wastepaper shipped out of his own warehouse, attach to his copy of each invoice prepared by him, all invoices representing his purchases of the wastepaper covered by his invoice to his buyer, or shall otherwise identify by his records his sources of supply of all paper in each shipment made by him.

This amendment shall become effective April 21, 1945.

(56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

NOTE: All of the reporting and record-keeping requirements of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6042; Filed, Apr. 16, 1945; 11:08 a. m.]

PART 1351—FOOD AND FOOD PRODUCTS

[FPR 4]

PRICING PROVISIONS FOR CERTAIN FOOD PRODUCTS SOLD AT RETAIL

A statement of the considerations involved in the issuance of this regulation has been issued and filed with the Division of the Federal Register.

Sec.

1. Compliance with adopting orders.
2. Relation to other regulations.
3. Deliveries.
4. Posting.
5. Evasion.
6. Taxes.
7. Sales slips and receipts.
8. Licensing.
9. Applicability of Revised General Order No. 51.
10. Enforcement.
11. Definitions.

AUTHORITY: § 1351.473 issued under 56 Stat. 23, 765; Pub. Law 151, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681; Revised General Order 51, 9 F.R. 408, 11982.

[1] 8 F.R. 2585, 2997, 4840, 6965, 11738, 16279, 16839; 9 F.R. 2287, 5216, 7704, 9261, 10578, 15047; 10 F.R. 318, 1145.

[1] 7 F.R. 9732; 8 F.R. 3845, 6109, 7350, 7821, 7199, 13049, 17483; 9 F.R. 6107, 8056, 11108; 10 F.R. 1787.

Explanation of the regulation. This regulation puts into one document the provisions common to all retail community pricing orders which cover dry groceries and certain related items, fresh fruits and vegetables, and fish, and which will be issued for various areas in the United States.

Taken by itself, this regulation names no maximum prices. These are issued in separate documents which are called "adopting orders". Such "adopting orders" when issued, will expressly adopt some or all of the provisions of this regulation. The provisions of this regulation will become effective only when they are so adopted.

SECTION 1. *Compliance with adopting orders.* No person, except as otherwise provided in the applicable adopting order, may sell or offer to sell, at retail, any food item at a price higher than the dollars-and-cents ceiling price for that item fixed in the price list for his group of retail stores contained in the adopting order applicable in his area. Unless otherwise provided in an adopting order, farmers selling produce grown on their own farms, "health food stores" and "retail route sellers" shall be subject to all adopting orders.

SEC. 2. *Relation to other regulations.* The ceiling prices fixed in the applicable adopting order may be either "replacement" ceilings or "over-riding" ceilings. If the adopting order fixes "replacement" ceiling prices for certain groups of stores, they shall be the only ceiling prices for the sellers covered. If the adopting order fixes "over-riding" ceiling prices for certain groups of stores, the ceiling price for each seller in such group for each item shall be the ceiling price figured by him in accordance with the provisions of the applicable maximum price regulation: *Provided, however,* That any ceiling price figured by a seller which is higher than the ceiling price for that item fixed in the price list for his group of retail stores in the applicable adopting order must be reduced to the price in the adopting order. All sellers must refer to the applicable adopting order to find out whether the ceiling prices established are replacement ceiling prices or over-riding ceiling prices.

SEC. 3. *Deliveries*—(a) *Dry groceries and fresh fruits and vegetables.* Except as otherwise provided in an adopting order, every seller who delivers to his customers' homes or places of business any items of dry groceries, fresh fruits and vegetables or any other commodity covered by Maximum Price Regulation No. 422 [1] or Maximum Price Regulation No. 423 [2] for which dollars-and-cents ceiling prices are established by an adopting order may add to the total value of the delivery, as a separate charge, whichever of the following amounts applies:

Value of delivery:	*Addition allowed*
$0.00–$1.99	No addition
$2.00–$2.99	10¢
$3.00–$4.49	15¢
$4.50–$5.49	20¢
Over $5.49	25¢

[1] 10 F.R. 1505, 2024.
[2] 10 F.R. 1523, 2025.

(b) *Fresh and frozen fish and seafood.* Every "fish store" which delivers to customers' homes or places of business any fresh or frozen fish or seafood items for which dollars-and-costs ceiling prices are established by an adopting order may add to the total value of the delivery, as a separate charge, whichever of the following amounts applies:

Value of delivery:	*Addition allowed*
$0.00–$0.99	No addition
$1.00–$1.99	10¢
$2.00–$2.49	15¢
$2.50–$3.49	20¢
Over $3.49	25¢

(c) If the deliveries are made and the charges added in accordance with paragraphs (a) or (b) of this section, the seller must keep for one month a copy of each sales slip, itemizing clearly his selling prices for the items delivered and the amounts of the delivery charges made.

(d) *Mail-order sales.* Any person making mail-order sales of any food item for which dollars-and-cents ceiling prices are established by an adopting order may add to the ceiling price the actual express charge or postage to the purchaser's address.

SEC. 4. *Posting*—(a) *Ceiling prices.* Every person selling food items at retail must obtain from the Office of Price Administration one or more copies (as many copies as may be needed to satisfy the requirements of this paragraph) of each list of the applicable dollars-and-cents ceiling prices fixed by the applicable adopting order for such food items. Unless a list contains a statement that it need not be posted, the following rules shall apply: One copy of each list of the dollars-and-cents ceiling prices fixed for dry groceries must be posted for each 1500 square feet of selling space. If more than one copy of a list of dry groceries is required, they must be posted at least 25 feet apart. One copy of each list of the dollars-and-cents ceiling prices for all items other than dry groceries must be posted at or near the place where the item or items are offered for sale. Each list must be posted in such a manner that it can be easily read and so that customers can approach it within a distance of two feet. If the dollars-and-cents ceiling prices established in an adopting order do not replace the ceiling prices of a seller, he must continue to post his ceiling prices as required by any other applicable regulation.

(b) *Selling prices.* Every person selling food items at retail must also post his selling price for each food item for which an adopting order fixes a dollars-and-cents ceiling price. The selling price must be posted either on the item or at or near the place where the item is offered for sale.

(c) *Group of store.* Every person selling food items at retail must post the group his store or selling establishment is in on a sign clearly visible to purchasers, reading "OPA–1", "OPA–2", "OPA–3", "OPA–3A", "OPA–4" or "OPA–4A", whichever applies, or on a sign which may be furnished by the Office of Price Administration.

SEC. 5. *Evasion.* No person may evade any of the provisions of this regulation or of an adopting order by any stratagem, scheme or device. He must not, as a condition of selling any particular food item, require a customer to buy anything else.

SEC. 6. *Taxes.* Where a statute or ordinance imposing a tax upon or incident to a sale at retail of any food item covered by an adopting order does not prohibit stating and collecting the tax separately from the selling price, any seller may collect the tax in addition to his ceiling price if he states the tax separately.

SEC. 7. *Sales slips and receipts.* Any seller who has customarily given a sales slip, receipt or other similar evidence of purchase must continue to do so. Furthermore, regardless of custom, every seller must give any customer who asks for it a receipt showing the date of the sale, the name and address of his place of business, the customer's name, the quantity and name of each food item sold, and the price charged for each item.

SEC. 8. *Licensing.* The provisions of Licensing Order No. 1 [3], licensing persons who make sales under price control, apply to all persons covered by this regulation or by an adopting order, but no such license is required of, or granted to, a farmer as a condition of selling an agricultural commodity produced by him. A seller's license may be suspended for violations of the license or of one or more applicable maximum price schedules or regulations. A person whose license is suspended may not, during the period of suspension, make any sales for which his license has been suspended.

SEC. 9. *Applicability of Revised General Order No. 51.* This regulation and all adopting orders are issued pursuant to Revised General Order No. 51, under which the Regional and District Offices have been authorized by the Price Administrator to fix community dollars-and-cents ceiling prices for food items. All of the provisions of Revised General Order No. 51 are just as much a part of this regulation as if printed here.

SEC. 10. *Enforcement.* On and after the effective date of the applicable adopting order, any person who sells or offers to sell at a price higher than that in the applicable adopting order, or who otherwise violates any provision of this regulation, or of the applicable adopting order, shall be subject to the criminal penalties, civil enforcement actions, license suspension proceedings, and suits for treble damages as provided for by the Emergency Price Control Act of 1942, as amended. In addition, any person who in the course of trade or business buys from a person covered by an adopting order at a price higher than the ceiling price permitted by the order, is subject to the criminal penalties and civil enforcement actions provided for by that act.

SEC. 11. *Definitions*—(a) *Group of store.* "Group of store", except as otherwise provided in an applicable adopting order, shall be determined in accordance with Maximum Price Regulations Nos. 422 and 423 or the applicable maximum

[3] 8 F.R. 13240.

price regulation covering the sale at retail of the food items listed in the applicable adopting order. Any retail seller who has been reclassified by an order under Revised General Order No. 51, or under any applicable maximum price regulation, shall not determine his group classification in accordance with paragraphs (b), (c), (d) and (e) of this section, but shall be governed by the classification established in such order so long as it remains in effect.

(b) *Group 1 retail stores.* A store is in Group 1 if it is an "independent" store with annual gross sales of less than $50,000. A store is an "independent" store if it is not one of four or more stores under one ownership whose combined annual gross sales are $500,000 or more.

(c) *Group 2 retail stores.* A store is in Group 2 if it is an "independent" store with annual gross sales of $50,000 or more, but less than $250,000.

(d) *Group 3 retail stores.* A store is in Group 3 if its annual gross sales are less than $250,000, and if it is not an "independent" store.

(e) *Group 4 retail stores.* A store is in Group 4 if its annual gross sales are $250,000 or more.

(f) *Health food stores.* A "health food store" is one whose sales to consumers consist principally of especially prepared vitamin-enriched foods customarily included in the trade term "health foods" which are usually sold for special dietary purposes.

(g) *Retail route seller.* A "retail route seller" is a retailer who distributes food products to ultimate consumers who are not commercial, industrial or institutional users, either on a future delivery basis or otherwise, from an inventory stocked in trucks or other conveyances operated by driver-salesmen over regular routes. A retailer, most of whose business is the personal solicitation of orders by salesmen calling at the homes or places of business of ultimate consumers, who are not commercial, industrial or institutional users, shall also be considered a retail route seller. A retailer is a "retail route seller" only of the food products he sells in this way.

(h) *Sale at retail.* "Sale at retail" means a sale to an ultimate consumer other than a commercial, industrial or institutional user.

(i) *Fish store.* A "fish store" is a store at least 90 percent of whose sales are sales of fish or seafood to ultimate consumers other than commercial, industrial or institutional users.

(j) Unless the context otherwise requires, the definitions set forth in section 302 of the Emergency Price Control Act of 1942, as amended, in the General Maximum Price Regulation,[4] as amended, and in Revised General Order No. 51, shall apply to other terms used herein.

This regulation shall become effective April 21, 1945.

NOTE: The record-keeping and reporting requirements of this regulation have been approved by the Bureau of the Budget in accordance with Federal Reports Act of 1942.

[4] 9 F.R. 1385, 5169, 6106, 8150, 10193, 11274.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6050; Filed, Apr. 16, 1945; 11:06 a. m.]

PART 1407—RATIONING OF FOOD AND FOOD PRODUCTS

[2d Rev. RO 3,[1] Amdt. 14]

SUGAR

A rationale accompanying this amendment has been issued simultaneously herewith and has been filed with the Division of the Federal Register.

Second Revised Ration Order 3 is amended in the following respects:

1. Section 2.2 (c) is amended by amending the second paragraph to read as follows:

The maximum amount to be issued in any event is subject to the limitation in paragraph (a), and may not exceed the amount applied for. The Board shall issue coupons (OPA Forms R-342, R-330 and R-330 (Revised)) for the amount of sugar granted. (Before June 1, 1945 a Board which does not have "home canning coupons" OPA Form R-342 may issue no more than four (4) checks, in the total amount granted.)

2. Section 7.4 (b) is amended by amending the last sentence to read as follows: "Home canning coupons" (OPA Form R-342) and sugar coupons (OPA Form R-330 (Revised)) must be pasted on gummed sheets and surrendered or deposited in the same way stamps are surrendered and deposited."

3. Section 7.5 (b) (2) is amended to read as follows:

(2) A "ration coupon" (OPA Forms R-1209, R-330 or R-330 (Revised)) may be used by a consumer at any time to get one pound of sugar. If received in accordance with this order by a registering unit which is neither a depositor or required to be one, it authorizes the registering unit to take delivery of one pound of sugar at any time. If it is surrendered to a depositor it is valid for deposit in his account at any time. (The one pound ration coupon may be issued only pursuant to General Ration Order No. 9 and sections 2.2 and 2.8 of this order.)

4. Section 7.5 (d) is amended to read as follows:

(d) A registering unit, primary distributor, or Collector of Customs to whom coupons (other than home canning coupons (OPA Form R-342) and sugar coupons (OPA Form R-330 (Revised)) are surrendered by a consumer shall enclose such coupons in an envelope and shall surrender or deposit them in accordance with the procedure prescribed for stamps or coupons by General Ration Order 7. Such coupons shall be received, surrendered or deposited, and sugar may be delivered against them, by a registering unit, primary distributor, or Collector of Customs, only in the same manner, for the same purpose and with the same effect as such registering unit, primary distributor, or Collector of Customs could receive, surrender, deposit, or deliver sugar against, stamps of equal weight value.

5. Section 17.15 (b) is amended to read as follows:

(b) No person may accept stamps from any person other than a consumer or person acting on behalf of a consumer unless pasted on gummed sheets as provided in section 7.4 of this order.

6. Section 17.16 (d) is amended to read as follows:

(d) As used in this section the word "stamps" includes "home canning coupons" (OPA Form R-342) and sugar coupons (OPA Form R-330 (Revised)).

7. Section 17.17 (g) is amended to read as follows:

(g) As used in this section the word "stamps" includes "home canning coupons" (OPA Form R-342) and sugar coupons (OPA Form R-330 (Revised)).

This amendment shall become effective April 20, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[1] 9 F.R. 13992, 14642, 15048; 10 F.R. 201, 412, 1537, 1143, 2144.

[F. R. Doc. 45-6053; Filed, Apr. 16, 1945; 11:06 a. m.]

PART 1418—TERRITORIES AND POSSESSIONS

[MPR 373, Amdt. 140]

MUNG BEANS IN HAWAII

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

The table following section 21 (c) (1) is amended by adding a new item to read as follows:

	Wholesale maximum prices	Retail maximum prices
Beans, mung	$38.50 per 100 lb. bag.	$0.48 per lb.

This amendment shall become effective as of March 31, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6044; Filed, Apr. 16, 1945; 11:09 a. m.]

PART 1418—TERRITORIES AND POSSESSIONS

[MPR 395, Amdt. 41]

IMPORTED COMMODITIES IN VIRGIN ISLANDS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation 395 is amended in the following respects:

1. Section 16, Table III is amended by changing Item 3 to read as follows:

Commodity	Quantity	Island of St. Croix	Island of St. Thomas	Island of St. John
3. Corn Meal, imported.	1 pound..	$0.05	$0.05	$0.06
	2 pounds.	.10	.10	.11

2. Section 22, Table IX is amended by changing the prices of one item and by adding a new item to read as follows:

Commodity	Quantity	Island of St. Croix	Island of St. Thomas	Island of St. John
17. Pigs Feet, dry salted.	1 pound.	$0.11	$0.11	$0.12
24. Frozen Pork Loin, regular.	1 pound.	.42	.42	.44

3. Section 23, Table XI is amended by changing the price of one item to read as follows:

Commodity	Quantity	Island of St. Croix	Island of St. Thomas	Island of St. John
1. Soap, laundry (bar).	1 pound [1].	$0.12	$0.12	$0.13

[1] Adjusted for shrinkage only.

This amendment shall become effective April 21, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6045; Filed, Apr. 16, 1945; 11:09 a. m.]

PART 1420—BREWERY, DISTILLERY AND WINERY PRODUCTS

[RMPR 259,[1] Amdt. 5]

MALT BEVERAGES

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Revised Maximum Price Regulation 259 is amended in the following respects:

1. Section 2.2 (d) (1) is amended by deleting the phrase "(as defined in section 4.1 (b))" and substituting in place thereof "(as defined in section 4.1 (c))".

2. Section 4.1 (b) (3) is amended to read as follows:

(3) Applicable United States, state and local taxes at rates in effect on December 18, 1944, if not included in the supplier's selling price. However, the applicable amount of any United States, state or local tax first imposed after December 18, 1944 or the applicable amount of any increase imposed after that date in any such tax may be added to the seller's maximum price *Provided*, That the amount of any such new tax or increase in tax is paid by the seller to the taxing authorities or to a prior vendor and *Provided further*, That on and after April 14, 1945 no seller shall include in his maximum price a markup on the amount of any tax he is authorized to charge and collect under this section.

3. Section 4.2 (b) (1) (i) (*b*) is amended by adding the following sentence at the end thereof: Notwithstanding the provisions of section 1.2 (d) the term "case" as used in the preceding sentence shall apply only to cases containing the following number of containers:

24/7 ounces.	24/12 ounces.
24/8 ounces.	24/16 ounces.
48/7 ounces.	12/24 ounces.
48/8 ounces.	12/32 ounces.
24/11 ounces.	6/64 ounces.

4. Section 4.2 (b) (4) is amended by adding at the end of the second sentence thereof the following phrase: "and applicable transportation charges".

5. Section 4.2 (b) (5) (ii) is amended by adding the following sentence at the end thereof: Notwithstanding the provisions of section 1.2 (d) the term "case" as used in the preceding sentence shall apply only to cases containing the following number of containers:

24/7 ounces.	24/12 ounces.
24/8 ounces.	24/16 ounces.
48/7 ounces.	12/24 ounces.
48/8 ounces.	12/32 ounces.
24/11 ounces.	6/64 ounces.

6. Subparagraph (6) is added to section 4.2 (b) to read as follows:

(6) *Maximum prices for sales of domestic malt beverages in bottles or cans by sub-wholesalers to all classes of purchasers.* A sub-wholesaler's maximum price per case for his sales of an item of domestic malt beverages in bottles or cans to any class of purchasers shall not exceed the maximum price of his supplier to the same class of purchasers plus applicable transportation charges.

This amendment shall become effective April 14, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5963; Filed, Apr. 13, 1945; 3:54 p. m.]

PART 1423—GUMS AND NATURAL RESINS

[MPR 297,[1] Amdt. 2]

NATURAL RESINS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation No. 297 is amended in the following respects:

1. A new paragraph is added to § 1423.1 to read as follows:

On and after April 21, 1945 regardless of any contract, agreement, lease, or other obligation, no person in the United States who deals directly or through his purchasing agent with a foreign seller or with the selling agent of such foreign seller shall (1) buy, or (2) receive delivery in the United States of, any natural resin, in the course of trade or business at a price higher than the maximum price set forth in Table III of Appendix A (§ 1423.14, Appendix A (c)); and no person shall agree, offer, solicit, or attempt to do any of the foregoing.

2. Section 1424.5 is amended to read as follows:

§ 1424.5 *Evasion.* Price limitations set forth in this regulation shall not be evaded, whether by direct or indirect methods, in connection with any offer, solicitation, agreement, sale, delivery, purchase or receipt of, or relating to natural resins or processed natural resins alone, or in conjunction with any other commodity, service or consideration, or by way of commission, service, transportation or other charge, discount, premium or other privilege, or by tying agreement or other trade understanding, or by transactions with or through the agency of subsidiaries, affiliates, employees or agents or otherwise.

3. The prices in cents per pound of "14⅜", "12⅜" and "11¼" listed for Congo No. 1, No. 2 and No. 3, respectively, under the heading "Congo" in Table I of Appendix A (a) (1), § 1423.14, are changed to "15⅜", "13⅛" and "12¼", respectively.

4. Table II in § 1423.14, Appendix A (b) (1), is amended to read as follows:

TABLE II

Resin	Price (cents per pound)		
	Carload lots	10 drums to carload	Less than 10 drums
FCD 342	18¾	19¼	19¾
FCD 346	15¼	15¾	16¼
FCD 347	22	22½	23
FCD 348	22	22½	23
Fused No. 5	22	22½	23
Fused No. 8	17	17½	18
Congo Ester No. 10	17½	18	18½
Congo Ester No. 15	18½	19	19½
No. 500 Kopol	22½	23	23½
No. 501 Kopol	20½	21	21½
No. 502 Kopol	17	17½	18
No. 1400 Beckopol	19½	20	20½
No. 1401 Beckopol	16½	17	17½
No. 1400 Beckopol Special	17½	18	18½

5. Appendix A (c) incorporating Table III is added to § 1423.14 to read as follows:

(c) *Natural resins—importers' maximum buying prices.*

TABLE III

Resin:	*Per metric ton f. o. b. Matadi, Belgian Congo*
Congo No. 1	$225
Congo No. 2	170
Congo No. 3	155

6. A new § 1423.15 is added to read as follows:

§ 1423.15 *Buyer's commissions.* If the buyer purchases natural resins or processed natural resins through a broker, finder or other agent acting for the buyer, the sum of the price paid by the buyer to the seller, plus the commission, fee or other charge or considera-

[1] 9 F.R. 14537, 14781, 15107; 10 F.R. 2585, 3558.

[1] 8 F.R. 263.

tion paid by or moving from the buyer to such broker, finder or agent may not exceed the maximum prices established by this regulation.

This amendment shall become effective April 21, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6041; Filed, Apr. 16, 1945; 11:07 a. m.]

PART 1441—CHEMICAL TANNING MATERIALS

[MPR 352, Amdt. 3]

CHESTNUT EXTRACT

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, have been filed with the Division of the Federal Register.

Maximum Price Regulation 352 is amended in the following respects:

1. The table in section 2 (a) (1) (i) is amended by changing the prices set forth for sales by Teas Extract Company to "$3.10 for sales in tank cars or tank trucks," to "$3.70 for sales in barrels in carloads," and to "$3.95 for sales in barrels in less than carloads."

2. The table in section 2 (b) (1) (i) is amended by changing the price for sales by Teas Extract Company to "$8.71 for sales in bags in carloads" and to "$9.46 for sales in bags in less than carloads."

3. Section 6a (b) (4) is amended to read as follows:

(4) Notwithstanding limitations on the amount of adjustment heretofore indicated and regardless of applicant's earnings position, no adjusted price shall exceed factory or total cost per unit if historically applicant sold chestnut extract at not more than factory or total cost per unit.

This amendment shall become effective April 21, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6043; Filed, Apr. 16, 1945; 11:08 a. m.]

PART 1499—COMMODITIES AND SERVICES

[MPR 188, Amdt. 53]

PRICING METHODS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation No. 188 is amended in the following respects:

1. The first paragraph of § 1499.157 is amended to read as follows:

§ 1499.157 *Third pricing method: pricing by comparable articles.* The maximum price of any article which cannot be priced under § 1499.155 or § 1499.156 and which is comparable to any article produced by the manufacturer for which a maximum price has already been established, shall be the price derived by the pricing formula set forth in this section.

2. Paragraph (a) (2) of § 1499.157 is amended by deleting from the first sentence the words "currently being sold."

3. Paragraph (b) (2) (ii) of § 1499.157 is amended to read as follows:

(ii) *Articles being priced.* The price of any material used in the article being priced shall be the highest price charged during March 1942 (as defined in § 1499.163) by the manufacturer's supplier; except that if the Office of Price Administration has established a lower maximum price for the sale of the material to the manufacturer by his supplier, such lower price shall govern. Material prices must be based on purchases in comparable quantities from the same or corresponding class of supplier as for the comparable articles.

4. Paragraph (b) (3) of § 1499.157 is amended to read as follows:

(3) *Operating conditions.* Using the wage rates and material prices determined under (1) and (2), the manufacturer shall compute the cost per unit of direct labor and materials for an article according to the methods customarily employed by him in computing his cost. He shall compute this cost on the basis of the same productive techniques, the same labor efficiency and the same volume of production for the comparable articles as for the article being priced.

This amendment shall become effective on the 21st day of April 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6046; Filed, Apr. 16, 1945; 11:07 a. m.]

PART 1499—COMMODITIES AND SERVICES

[Rev. SR 1, Amdt. 98]

ARMY ARCTIC EQUIPMENT AND CLAY PIGEONS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Revised Supplementary Regulation No. 1 is amended in the following respects:

1. Section 4.2 (f) is amended to read as follows:

(f) Clay pigeons—but this exemption shall expire on December 31, 1945.

2. The introductory sentence of section 4.3 (k) is amended to read as follows:

(k) The following commodities—but this exemption shall expire on July 1, 1945.

This amendment shall become effective on the 21st day of April 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6049; Filed, Apr. 16, 1945; 11:07 a. m.]

PART 1499—COMMODITIES AND SERVICES

[2d Rev. SR 14,[1] Amdt. 6]

LUGGAGE FRAMES

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Section 3.6 of Article III of Second Revised Supplementary Regulation 14 to the General Maximum Price Regulation is hereby amended to read as follows:

SEC. 3.6. *Luggage frames*—(a) *Products and persons covered.* This section applies to all sales and deliveries of luggage frames manufactured in the States of New York, New Jersey, and Pennsylvania. As used in this section, the term "luggage frame" means the complete frame no matter what material is used in the manufacture.

(b) *Maximum prices.* The maximum prices for a complete luggage frame are set forth in the following table:

Material	Sizes				
	18"	21"	26"	29"	"Two suiters"
Cardboard or kraftboard	$0.66	$0.76	$1.14	$1.21	$1.13
Upson, Tekwood or Beaverboard	0.75	0.88	1.31	1.41	1.32
Plywood	0.83	0.97	1.44	1.57	1.46

(c) *Items not specifically priced.* For the price of any luggage frame not specifically priced in paragraph (b), the manufacturer shall submit an application for a price to the Lumber Branch, Office of Price Administration, Washington 25, D. C., setting forth:

1. Size of frame.
2. Net footage, waste factor and type of material used.
3. Cost of the material used and the average cost for the first six months of 1944 of the most similar material listed in the table in paragraph (b), which the manufacturer had used during that period. This average cost is to be computed by dividing the total purchases of that similar material by the total number of board feet or other units purchased.
4. Requested price.
5. Any other factors which may aid the Office of Price Administration in establishing a proper price.

The Office of Price Administration will by letter order approve, modify or deny the application for a price of the item in line with the prices established under this section.

All prices include commissions, delivery and all other charges.

This amendment shall become effective April 21, 1945.

NOTE: All reporting and record keeping requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6047; Filed, Apr. 16, 1945; 11:08 a. m.]

---

[1] 10 F.R. 1154, 2026, 2161.

PART 1499—COMMODITIES AND SERVICES

[SR 14J, Amdt. 3]

ELECTRIC IRONS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Supplementary Regulation 14J is amended in the following respect:

The following is added to the list of company names, model numbers, descriptions and retail ceiling prices at the end of section 2.3 (a) (1).

	Each
Bayshore Specialties Company, Brightwater, Long Island, New York, A–1, Non-automatic, 660 watts	$5.50
Bersted Manufacturing Company, Fostoria, Ohio, #507, Non-automatic, 550 watts	3.40
Dejur Electric Works, New York City, #A–1, Non-automatic, 3 heat	12.55
Industrial Tool & Die Works, Incorporated, Minneapolis, Minn.:	
#9, Non-automatic, wood handle, 675 watts	5.00
#11, Non-automatic, plastic handle, 675 watts	5.60
#10, Automatic, wood handle, 1,000 watts	7.95
#12, Automatic, plastic handle, 1,000 watts	8.95
Nelson Machine & Manufacturing Company, Cleveland, Ohio, #138, Non-automatic, 550 watts, without cord	2.29
Stern-Brown, Incorporated, Long Island City, New York, #13–S, Non-automatic, 600 watts:	
Without cord set	3.73
With cord set	4.41

All prices include cord set unless otherwise specified.

This amendment shall become effective on the 21st day of April 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45–6048; Filed, Apr. 16, 1945; 11:08 a. m.]

Chapter XVIII—Office of Economic Stabilization

[Directive 33, Amdt. 1]

PART 4003—SUBSIDIES: SUPPORT PRICES

1945 DAIRY PRODUCTION

The War Food Administrator and the Price Administrator having submitted certain information and recommendations to me with respect to the continuation through April 1945, of certain payments under the subsidy program, embodied in Directive No. 33 (10 F.R. 1979) issued by this office.

I hereby find it necessary in order to effectuate the policy established by Executive Orders 9250 and 9328, (3 CFR, Cum. Supp.) to promulgate this amendment to Directive No. 33.

Accordingly, the War Food Administrator is hereby authorized and directed to make payments to producers of whole milk, under the aforesaid subsidy program, for April 1945 at the same rates of payment as were in effect for March 1945, excluding special drought payments.

Effective date: March 31, 1945.

(E.O. 9250 and E.O. 9328)

Issued this 12th day of April 1945.

WILLIAM H. DAVIS,
Economic Stabilization Director.

[F. R. Doc. 45–6025; Filed, Apr. 16, 1945; 10:03 a. m.]

[Directive 13, Amdt. 2]

PART 4004—PRICE STABILIZATION; MAXIMUM PRICES

1944 CANNED VEGETABLES

The War Food Administrator on March 29, 1945, and the Price Administrator on April 11, 1945, having submitted certain information and recommendation that the subsidy on canned products processed from the four major vegetables authorized and directed by Directive 13 issued on October 7, 1944, as amended on January 20, 1945 (9 F.R. 12540, 10 F.R. 900), be extended so as to apply to eligible sales made during the period March 1, 1944 to June 30, 1945, both dates inclusive,

I hereby find that the payment of the subsidy with respect to eligible sales made during the period March 1, 1944 to June 30, 1945, both dates inclusive, is necessary to effectuate the purposes of the Emergency Price Control Act of 1942, as amended, and Executive Orders No. 9250 and 9328.

Accordingly the War Food Administration is hereby authorized and directed to extend the subsidy program authorized and directed by Directive 13, as amended, to apply to eligible sales made during the period March 1, 1944 to June 30, 1945, both dates inclusive.

(E.O. 9250 and E.O. 9328)

Issued this 12th day of April 1945.

WILLIAM H. DAVIS,
Economic Stabilization Director.

[F. R. Doc. 45–6024; Filed, Apr. 16, 1945; 10:03 a. m.]

Chapter XIX—Defense Supplies Corporation

[Rev. Reg. 5, Amdt.]

PART 7005—MID-CONTINENT CRUDE COMPENSATORY ADJUSTMENTS

MISCELLANEOUS AMENDMENTS

APRIL 6, 1945.

Defense Supplies Corporation Regulation Number 5 (9 F.R. 5380), Mid-Continent Crude Compensatory Adjustments, has been amended by adding to and making a part of Schedule B thereof the following amendments:

1. The amounts of compensation per barrel applicable to the destinations listed below are hereby amended to read as follows:

Destination:	*Compensation (shown in dollars per barrel)*
Allen, Oklahoma	$0.4512
Hartford, Illinois	.5709

This amendment to Schedule B shall become effective as of April 10, 1944.

2. The amounts of compensation per barrel applicable to the destinations listed below are hereby amended to read as follows:

Destination:	*Compensation (shown in dollars per barrel)*
Catlettsburg, Kentucky	$0.7519
Centralia, Illinois	.5809
Cleves (Cincinnati), Ohio	.8739
Heath, Ohio	.8782
Indianapolis, Indiana (Rock Island)	.8850
Latonia, Kentucky	.8739
Lima, Ohio	.8910
Louisville, Kentucky	.7739
Mt. Vernon, Indiana	.7796
Salem, Illinois	.5809

This amendment to Schedule B shall become effective as of July 20, 1944.

3. A. The rates of compensation for shipments to the destinations listed below are hereby amended with respect to shipments commenced from point of origin on or after July 20, 1944, to read as follows:

Destination:	*Compensation (shown in dollars per barrel)*
Latonia, Kentucky	$0.9050
Louisville, Kentucky	.6806

B. The rates of compensation for shipments to the destinations listed below are hereby amended with respect to shipments commenced from point of origin on or after July 31, 1944, to read as follows:

Destination:	*Compensation (shown in dollars per barrel)*
Indianapolis (Rock Island) Indiana	$0.6829
Troy, Indiana	.5702

SAMUEL H. SABIN,
Executive Vice President.

[F. R. Doc. 45–5972; Filed, Apr. 14, 1945; 11:15 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, War Department

PART 203—BRIDGE REGULATIONS

SAN JOAQUIN RIVER, LATHROP, CALIF.

Pursuant to section 5 of the River and Harbor Act of August 18, 1894 (28 Stat. 362; 33 U.S.C. 499), paragraph (b) (5) of § 203.710 is hereby further amended to include the following special regulations governing operation of The Western Pacific Railroad Company's bridge across the San Joaquin River near Lathrop, California:

§ 203.710 *State of California: bridge regulations for all navigable waterways of the United States within California, including San Francisco Bay and connected bays and river systems tributary thereto.* * * *

(b) *Special regulations.* * * *

(5) *San Joaquin River below Paradise Dam, Middle River, Burns Cut-Off and Potato Slough.* * * *

Western Pacific Railroad Bridge, San Joaquin River. Between the hours of 8:00 a. m. and 5:00 p. m. daily, The Western Pacific Railroad Bridge crossing the San Joaquin River between Stockton and Carbona, California, shall, upon proper signal, be opened promptly, depending upon train movements, for the passage of any vessel or vessels or other watercraft not able to pass underneath.

Between the hours of 5:00 p. m. and 8:00 a. m. daily, opening of the bridge under the above condition may be assured only after previously notifying The Western Pacific Railroad Company's Chief Dispatcher at Sacramento before 4:00 p. m. When previous notice, including the time of intended passage, is given, the bridge shall be opened upon proper signal as promptly as possible. Vessels making trips through this bridge without proper notification as specified above, will be delayed until such time as The Western Pacific Railroad Company's Dispatcher at Sacramento is notified and informs the bridge tender of the desired opening. Every reasonable means, however, shall be used by the bridge owners to expedite openings at all times.

(Sec. 5, 28 Stat. 362; 33 U.S.C. 499) [Regs. 4 April 1945, (CE 823 (San Joaquin River-Lathrop, Calif. — Mile 56.5)—SPEWR)]

[SEAL] J. A. ULIO,
Major General,
The Adjutant General.

[F. R. Doc. 45-5962; Filed, Apr. 13, 1945; 3:40 p. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[S. O. 300]

PART 95—CAR SERVICE

ICING RESTRICTIONS ON POTATOES FROM MAINE

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 13th day of April, A. D. 1945.

It appearing, that the icing of potatoes originating at points in Maine shipped in refrigerator cars impedes unduly the use, control, supply, movement, and distribution of such cars and contributes to the shortage of equipment and congestion of traffic; the Commission is of opinion an emergency requiring immediate action exists in the eastern section of the country: It is ordered, that:

Icing restrictions on potatoes from Maine. (a) No common carrier by railroad subject to the Interstate Commerce Act shall initially ice, or reice in transit at any point located east of the Mississippi River and north of the southern boundaries of the States of Tennessee and North Carolina, a refrigerator car or cars loaded with potatoes originating at any point or points in the State of Maine.

(b) *Application.* The provisions of this order shall apply to all such shipments billed or rolling on or after the effective date of this order.

(c) Tariff provisions suspended. The operation of all tariff rules or regulations insofar as they conflict with the provisions of this order is hereby suspended.

(d) *Announcement of suspension.* Each railroad affected by this order, or its agent, shall publish, file, and post a supplement to each of its tariffs affected hereby, in substantial accordance with the provisions of Rule 9 (k) of the Commission's Tariff Circular No. 20 (§ 141.9 (k) of this chapter) announcing the suspension of any of the provisions therein affected by this order.

(e) *Special and general permits.* The provisions of this order shall be subject to any special or general permits issued by the Director of the Bureau of Service, Interstate Commerce Commission, Washington, D. C., to meet specific needs or exceptional circumstances.

(f) *Effective date.* This order shall become effective at 12:01 p. m., April 13, 1945.

(g) *Expiration date.* This order shall expire at 11:59 p. m., May 15, 1945, unless otherwise modified, changed, suspended or annulled by order of this Commission. (40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U.S.C. 1, (10)-(17))

It is further ordered, that a copy of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 45-5975; Filed, Apr. 14, 1945; 11:18 a. m.]

[S. O. 301]

PART 95—CAR SERVICE

RESTRICTION OF BAUXITE ORE FROM NEW YORK HARBOR AREA

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., and the 13th day of April A. D. 1945.

It appearing, that railroad freight cars are to be used to transport bauxite ore or bauxite ore concentrates from the New York Harbor area to Arvida or Port Alfred, Quebec, Canada; that railroad freight cars are urgently needed; and that the diversion of this traffic to other ports involving shorter hauls will save car days, alleviate somewhat the existing short car supply, and aid in preventing congestion of traffic in the New York Harbor area; the Commission is of opinion an emergency requiring immediate action exists in the New York Harbor area: *It is ordered,* That:

(a) No common carrier by railroad subject to the Interstate Commerce Act shall furnish or supply a railroad freight car for loading with, or for the transfer from ships to such cars of, bauxite ore or bauxite ore concentrates, at any point located in the New York Harbor area, as defined in Agent W. S. Curlett's tariff I. C. C. No. A-788, supplements thereto or reissues thereof, for movement to Arvida or Port Alfred, Quebec, Canada.

(b) No common carrier by railroad subject to the Interstate Commerce Act shall transport or move a railroad freight car loaded with bauxite ore or bauxite ore concentrates from any point located in the New York Harbor area, as defined in paragraph (a) herein, to Arvida or Port Alfred, Quebec, Canada, or shall accept or execute a diversion or reconsignment order to transport or move to Arvida or Port Alfred, Quebec, Canada, any car loaded with bauxite ore or bauxite ore concentrates shipped from the said New York Harbor area.

(c) *Tariff provisions suspended.* The operation of all tariff rules or regulations insofar as they conflict with the provisions of this order is hereby suspended.

(d) *Announcement of suspension.* Each railroad affected by this order, or its agent, shall publish, file, and post a supplement to each of its tariffs affected hereby, in substantial accordance with the provisions of rule 9 (k) of the Commission's Tariff Circular No. 20 (§ 141.9 (k) of this chapter) announcing the suspension of any of the provisions therein affected by this order.

(e) *Special and general permits.* The provisions of this order shall be subject to any special or general permits issued by the Director of the Bureau of Service, Interstate Commerce Commission, Washington, D. C., to meet specific needs or exceptional circumstances.

(f) *Effective date.* This order shall become effective at 12:01 a. m., April 15, 1945.

(g) *Expiration date.* This order shall expire at 11:59 p. m., April 15, 1946, unless otherwise modified, changed, suspended or annulled by order of this Commission. (40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1, (10)-(17))

It is further ordered, That a copy of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

W. P. BARTEL,
Secretary.

[F. R. Doc. 45-6029; Filed, April. 16, 1945; 11:03 a. m.]

Notices

DEPARTMENT OF THE INTERIOR.

Office of the Secretary.

[Public Land Order 271]

NEW MEXICO

MODIFYING TAOS PROJECT AND GRAZING DISTRICT NO. 1, AND REDUCING STOCK DRIVEWAY WITHDRAWAL NO. 254

Whereas it has been found that a transfer of lands between the Taos Project of the Department of Agriculture and New Mexico Grazing District No. 1 of the Department of the Interior will facilitate the administration of the project and the grazing district, and will best serve the purposes of section 32, Title III, of the Bankhead-Jones Farm Tenant Act of July 22, 1937, 50 Stat. 522, 525 (U.S.C., Title 7, secs. 1010–1013), and that the revocation of a certain stock driveway withdrawal within the project and the grazing district will also be beneficial to their administration;

Now, therefore, by virtue of the authority vested in the President by the act of June 25, 1910, c. 421, 36 Stat. 847, as amended by the act of August 24, 1912, c. 369, 37 Stat. 497 (U.S.C., Title 43, secs. 141–143), and the above-cited Bankhead-Jones Farm Tenant Act, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The following-described public lands are hereby withdrawn from settlement, location, sale, or entry, and reserved, subject to valid existing rights, for the use of the Department of Agriculture as an addition to the lands reserved by Executive Order No. 7734 of November 1, 1937, in connection with the Taos Project, subject to use, administration, and disposition under the Bankhead-Jones Farm Tenant Act as provided by Executive Order No. 7908 of June 9, 1938, as amended by Executive Order No. 8531 of August 31, 1940:

NEW MEXICO PRINCIPAL MERIDIAN

T. 25 N., R. 9 E.,
Secs. 33 and 34.
T. 26 N., R. 9 E.,
Sec. 25, W½.

The areas described aggregate 1,600 acres.

The order of the Acting Secretary of the Interior of June 12, 1941, establishing New Mexico Grazing District No. 1, is hereby revoked so far as it affects any of the above-described lands.

The above-mentioned Executive Order No. 7734 of November 1, 1937, reserving certain lands in connection with the Taos Project, and Executive Order No. 7908 of June 6, 1938, as amended by Executive Order No. 8531 of August 31, 1940, transferring such lands to the Secretary of Agriculture for use, administration and disposition in accordance with Title III of the aforesaid Bankhead-Jones Farm Tenant Act and the related provisions of Title IV thereof, are hereby revoked so far as they affect the following-described lands; and all public lands and all lands which have been acquired by the United States within the following-described areas, which are within the exterior boundaries of New Mexico Grazing District No. 1, are hereby transferred to the jurisdiction of the Secretary of the Interior for administration as a part of that grazing district:

NEW MEXICO PRINCIPAL MERIDIAN

T. 23 N., R. 8 E.,
Sec. 1, lots 1 to 7, inclusive, S½NE¼, SE¼NW¼, SE¼, and that part of Ojo Caliente Grant east of Caliente River;
Sec. 12, lots 1 to 4, inclusive, E½, and that part of Ojo Caliente Grant east of Caliente River;
Sec. 13, those parts of NE¼SW¼, lots 9 and 12, and that part of Ojo Caliente Grant in NW¼, east of Caliente River;
Sec. 24, those parts of NE¼NW¼, and lots 4 and 5 east of Caliente River.
T. 23 N., R. 9 E.,
Sec. 6;
Sec. 14, N½NE¼ and NE¼NW¼;
Sec. 15.
T. 24 N., R. 9 E.,
Sec. 7, NE¼ and E½NW¼;
Sec. 8, N½;
Sec. 31, SE¼.
T. 26 N., R. 10 E.,
Sec. 13, E½;
Sec. 24, E½.

The areas described aggregate 4,312.01 acres, including 3,908.58 acres of public land and 403.43 acres of non-public land.

The orders of the Secretary and Acting Secretary of the Interior of February 14, 1919 and March 9, 1920, withdrawing certain lands in New Mexico for stock driveway purposes under section 10 of the act of December 29, 1916, 39 Stat. 865, 43 U.S.C. 300, designated by the order of the Under Secretary of the Interior of January 6, 1939, as Stock Driveway Withdrawal No. 254, New Mexico No. 14, are hereby revoked so far as they affect the following-described lands, which are within the boundaries either of the Taos Project or of Grazing District No. 1, as modified by this order:

NEW MEXICO PRINCIPAL MERIDIAN

(Within the boundaries of the Taos Project)
T. 26 N., R. 9 E.,
Sec. 25, W½.
T. 26 N., R. 10 E.,
Sec. 6, NW¼ and S½;
Sec. 7, N½.
T. 27 N., R. 10 E.,
Sec. 31, N½ and SW¼.

The areas described aggregate 1,600 acres of public land.

(Within the boundaries of the Grazing District)
T. 23 N., R. 8 E.,
Sec. 13, E½;
Sec. 24, E½ and NE¼NW¼;
Sec. 25, E½, SE¼NW¼, and E½SW¼.
T. 24 N., R. 9 E.,
Secs. 5, 8, and 17;
Sec. 18, NE¼ and S½.
T. 27 N., R. 10 E.,
Sec. 30, S½.

The areas described aggregate 3,840 acres, including 3,832 acres of public land and 8 acres of non-public land.

This order shall become effective immediately as to the administration by the Grazing Service of any of the lands which are hereby made a part of New Mexico Grazing District No. 1, but shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 63d day from the date on which it is signed. At that time the public lands therein shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selections as follows:

(a) For a period of 90 days, commencing on the day and at the hour named above, the lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the act of June 1, 1938, 52 Stat. 609 (43 U. S. C. sec. 682a), by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (Public Law 434—78th Congress), subject to the requirements of applicable law, and (2) application under any applicable public land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) For a period of 20 days immediately prior to the beginning of such 90-day period, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on the first day of the 90-day period, shall be treated as simultaneously filed.

(c) Commencing at 10:00 a. m. on the 91st day after the lands become subject to application, as hereinabove provided, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public land laws.

(d) Applications by the general public may be presented during the 20-day period immediately preceding such 91st day, and all such applications, together with those presented at 10:00 a. m. on that day, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which should be filed in the District Land Office at Santa Fe, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circ. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that Title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Subchapter I of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the act of June 1, 1938 shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

HAROLD L. ICKES,
Secretary of the Interior.

APRIL 5, 1945.

[F. R. Doc. 45-6022; Filed, Apr. 16, 1945; 9:53 a. m.]

INTERSTATE COMMERCE COMMISSION.

[S. O. 70-A, Special Permit 961]

RECONSIGNMENT OF TOMATOES AT CHICAGO, ILL.

Pursuant to the authority vested in me by paragraph (f) of the first ordering paragraph (§ 95.35, 8 F.R. 14624) of Service Order No. 70-A of October 22, 1943, permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard entirely the provisions of Service Order No. 70-A insofar as it applies to the reconsignment at Chicago, Illinois, April 12, 1945, by Gust Relias, of car PFE 34371, tomatoes, now on the Chicago, Burlington & Quincy Railroad, to Steel City Fruit Company, Pittsburgh, Pennsylvania (P. R. R.).

The waybill shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 12th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6030; Filed, Apr. 16, 1945; 11:03 a. m.]

[S. O. 70-A, Special Permit 962]

RECONSIGNMENT OF CABBAGE AT CHICAGO, ILL.

Pursuant to the authority vested in me by paragraph (f) of the first ordering paragraph (§ 95.35, 8 F.R. 14624) of Service Order No. 70-A of October 22, 1943, permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard entirely the provisions of Service Order No. 70-A insofar as it applies to the reconsignment at Chicago, Illinois, April 12, 1945, by La Mantia Brothers Arrigo of car WFE 67934, cabbage, now on the Chicago Produce Terminal, to A. J. Sweet Company, Madison, Wisconsin. (I. C.).

The waybill shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 12th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6031; Filed, Apr. 16, 1945; 11:03 a. m.]

[S. O. 70-A, Special Permit 963]

RECONSIGNMENT OF POTATOES AT CHICAGO, ILL.

Pursuant to the authority vested in me by paragraph (f) of the first ordering paragraph (§ 95.35, 8 F.R. 14624) of Service Order No. 70-A of October 22, 1943, permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard entirely the provisions of Service Order No. 70-A insofar as it applies to the reconsignment at Chicago, Illinois, April 12, 1945, by R. A. Klotz, of car SFRD 22146, potatoes, now on the C&NW (Wood Street) to C. M. Buller Company, Mt. Vernon, Illinois, via IC-Sou.

The waybill shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 12th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6032; Filed, Apr. 16, 1945; 11:03 a. m.]

[S. O. 262, 3d Amended Gen. Permit 1, Cancelation]

REFRIGERATION OF CITRUS FRUITS FROM FLORIDA

Pursuant to the authority vested in me by paragraph (e) of the first ordering paragraph of Service Order No. 262 of December 18, 1944 (9 F.R. 14786):

Third Amended General Permit No. 1 (10 F.R. 3698), under Service Order No. 262 is hereby canceled, effective 12:01 a. m., April 16, 1945.

A copy of this revocation has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this revocation shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 12th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6033; Filed, Apr. 16, 1945; 11:03 a. m.]

[S. O. 262, Amended Gen. Permit 2, Cancelation]

REFRIGERATION OF CITRUS FRUITS FROM FLORIDA

Pursuant to the authority vested in me by paragraph (e) of the first ordering paragraph of Service Order No. 262 of December 18, 1944 (9 F.R. 14786):

Amended General Permit No. 2 (10 F.R. 3698) under Service Order No. 262 is hereby canceled, effective 12:01 a. m., April 16, 1945.

A copy of this revocation has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this revocation shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 12th day of April 1945.

V. C. CLINGER,
Director.
Bureau of Service.

[F. R. Doc. 45-6034; Filed, Apr. 16, 1945; 11:03 a. m.]

[S. O. 262, 2d Amended Gen. Permit 3]

REICING OF CITRUS FRUITS FROM FLORIDA

Pursuant to the authority vested in me by paragraph (e) of the first ordering paragraph of Service Order No. 262 of December 18, 1944 (9 F.R. 14786), permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

Subject to the exception shown below, on any refrigerator car or cars loaded with citrus fruits, originating at any point or points in the State of Florida, after the first or initial icing at an icing station in the State of Florida, to reice in transit to full bunker capacity at regular icing stations at Florence, South Carolina, Hamlet or Aberdeen, North Carolina, Spencer, North Carolina, Erwin, Tennessee, Atlanta, Georgia, Pensacola, Florida, Montgomery, Alabama, or Birmingham, Alabama, and thereafter at all regular icing stations en route, provided that waybills shall show reference to this general permit.

Exception: Shipments billed or ordered initially iced at High Springs, Florida, at the option of the Atlantic Coast Line Railroad, may be initially iced at Waycross, Georgia.

This general permit shall become effective at 12:01 a. m., April 16, 1945, and shall apply only on cars billed on or after that time, and it shall expire at 11:59 p. m., June 30, 1945.

A copy of this general permit has been served upon the Association of Ameri-

can Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 12th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6035; Filed, Apr. 16, 1945; 11:03 a. m.]

[S. O. 262, Gen. Permit 4, Cancelation]

REFRIGERATION OF CITRUS FRUITS FROM FLORIDA

Pursuant to the authority vested in me by paragraph (e) of the first ordering paragraph of Service Order No. 262 of December 18, 1944 (9 F.R. 14786):

General Permit No. 4 (10 F.R. 3698), under Service Order No. 262 is hereby canceled, effective 12:01 a. m., April 16, 1945.

A copy of this revocation has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this revocation shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 12th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6036; Filed, Apr. 16, 1945; 11:04 a. m.]

[S. O. 262, Special Permit 13]

REFRIGERATION OF ORANGES FROM FLORIDA

Pursuant to the authority vested in me by paragraph (e) of the first ordering paragraph of Service Order No. 262 of December 18, 1944 (9 F.R. 14786), permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard the provisions of Service Order No. 262 insofar as it applies to the furnishing of standard refrigeration on the following named refrigerator cars loaded with oranges, car NP 90013, shipped by Vaughn, April 9, 1945, via A. C. L. Railroad, from Howey, Florida, to Kroger Grocery & Baking Company, Cleveland, Ohio; car MDT 16738 shipped by Phillip, April 9, 1945, via S. A. L. Railway, from Orlando, Florida, to Kroger Grocery & Baking Company, Grand Rapids, Michigan; and car FGE 46636, shipped by Adams Packing Company, April 11, 1945, via S. A. L. Railway, from Auburndale, Florida, to Kroger Grocery & Baking Company, Peoria, Illinois.

The waybills shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 11th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6037; Filed, Apr. 16, 1945; 11:04 a. m.]

[S. O. 262, Special Permit 14]

REICING OF ORANGES AT MONTGOMERY, ALA.

Pursuant to the authority vested in me by paragraph (e) of the first ordering paragraph of Service Order No. 262 of December 18, 1944 (9 F.R. 14786), permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard the provisions of Service Order No. 262 insofar as it applies to the reicing in transit, one time only, by the L. & N. Railroad, at Montgomery, Alabama, car FGE 52555, oranges, shipped by Roper Brothers from Wintergarden, Florida, April 11 or 12 (via S. A. L.-L. & N.-IC delivery) and car NP 90062, oranges, shipped by Lakeland Packing Company, Lakeland, Florida, April 11 or 12, 1945, (via A. C. L.-L. & N.-IC delivery), both moving on Government bills of lading, consigned to Quarter Master Market Center, % Quarter Master Cold Storage, New Orleans, Louisiana, for export.

The waybills shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 11th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6038; Filed, Apr. 16, 1945; 11:04 a. m.]

[S. O. 262, Special Permit 15]

REFRIGERATION OF ORANGES FROM ORLANDO, FLA.

Pursuant to the authority vested in me by paragraph (e) of the first ordering paragraph of Service Order No. 262 of December 18, 1944 (9 F.R. 14786), permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard the provisions of Service Order No. 262 insofar as it applies to the furnishing of standard refrigeration on refrigerator car WFE 62168, oranges, shipped by Dr. Phillips, April 11, 1945, from Orlando, Florida, to Kroeger Grocery & Baking Company, Grand Rapids, Michigan. (SAL-G&F-C&WC-CC&O-C&O-PM-PRR delivery.)

The waybill shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 12th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6039; Filed, Apr. 16, 1945; 11:04 a. m.]

[S. O. 288, Special Permit 10]

REFRIGERATION OF SHELL EGGS AT WASHINGTON, D. C.

Pursuant to the authority vested in me by paragraph (E) of the first ordering paragraph of Service Order No. 288 of February 27, 1945 (10 F. R. 2408), permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard the provisions of paragraph (A) (2) of Service Order No. 288, only insofar as is necessary to permit the Washington Co-operative Egg and Poultry Association to load refrigerator cars which are less than ninety nine (99) inches in width, inside measurement, with fibreboard egg cases only, containing shell eggs, loaded crosswise in said cars, provided that the shipper of any such car furnishes to the Director, Bureau of Service, Interstate Commerce Commission, Washington, D. C., a telegraphic report, containing name of consignor, place and date of shipment, name of consignee, destination and full route of each car so loaded, within twenty four (24) hours of time of shipment of said car.

This special permit shall become effective at 12:01 a. m., April 13, 1945, and it shall expire at 11:59 p. m., May 13, 1945.

The car order, bill of lading, other shipping papers and the waybill shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 11th day of April 1945.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 45-6040; Filed, Apr. 16, 1945; 11:04 a. m.]

OFFICE OF ALIEN PROPERTY CUSTODIAN.

[Vesting Order 4710]

MRS. JAKOB HUBER, ET AL.

In re: Interest in real property, property insurance policies and a claim owned by Mrs. Jakob Huber and others.

Under the authority of the Trading with the Enemy Act, as amended, and Executive Order No. 9095, as amended, and pursuant to law, the undersigned, after investigation, finding:

1. That the last known addresses of Anna Marie Gerstacker, Hans Gerstacker, John Gerstacker, also known as Georg Johann Gerstacker, Mrs. Jakob Huber, widow of Jakob Huber, deceased, and the children of Jakob Huber, deceased, whose names are unknown, are Germany and that they are residents and nationals of a designated enemy country (Germany);

2. That the persons named in subparagraph 1 hereof are the owners of the property described in subparagraph 3 hereof;

3. That the property described as follows:

a. An undivided 8/25ths interest in and to the real property situated in the City of Detroit, County of Wayne, State of Michigan, particularly described in Exhibit A, attached hereto and by reference made a part hereof, together with all hereditaments, fixtures, improvements and appurtenances thereto, and any and all claims for rents, refunds, benefits or other payments arising from the ownership of such property,

b. All right, title and interest of the persons named in subparagraph 1 hereof in and to the following insurance policies:

(i) Policy issued by the American Insurance Company of Newark, New Jersey, expiring June 11, 1947, in the amount of $4,200.00 fire insurance coverage;

(ii) Policy issued by the American Insurance Company of Newark, New Jersey, War Risk Insurance Coverage in the amount of $5,000.00 expiring August 12, 1945, and

c. All right, title, interest and claim of the persons named in subparagraph 1 hereof in and to any obligations, contingent or otherwise and whether or not matured, owing to them by Cutler Hubble Company, Penobscot Building, Detroit, Michigan, and all security rights in and to any and all collateral for any or all such obligations, and the right to enforce and collect the same,

is property within the United States owned or controlled by nationals of a designated enemy country (Germany);

And determining that the property described in subparagraph 3-b hereof is necessary for the maintenance or safeguarding of other property (namely, that property described in subparagraph 3-a hereof) belonging to the same nationals of the same designated enemy country and subject to vesting (and in fact vested by this order) pursuant to section 2 of said Executive order;

And further determining that to the extent that such nationals are persons not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany);

And having made all determinations and taken all action required by law, including appropriate consultation and certification, and deeming it necessary in the national interest,

hereby vests in the Alien Property Custodian the property described in subparagraph 3-a hereof, subject to recorded liens, encumbrances and other rights of record held by or for persons who are not nationals of designated enemy countries, and hereby vests in the Alien Property Custodian the property described in subparagraphs 3-b and 3-c hereof,

All such property so vested to be held, used, administered, liquidated, sold or otherwise dealt with in the interest and for the benefit of the United States.

Such property and any or all of the proceeds thereof shall be held in an appropriate account, or accounts, pending further determination of the Alien Property Custodian. This order shall not be deemed to limit the power of the Alien Property Custodian to return such property or the proceeds thereof in whole or in part, nor shall this order be deemed to indicate that compensation will not be paid in lieu thereof, if and when it should be determined to take any one or all of such actions.

Any person, except a national of a designated enemy country, asserting any claim arising as a result of this order may, within one year from the date hereof, or within such further time as may be allowed, file with the Alien Property Custodian on Form APC-1 a notice of claim, together with a request for a hearing thereon. Nothing herein contained shall be deemed to constitute an admission of the existence, validity or right to allowance of any such claim.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order No. 9095, as amended.

Executed at Washington, D. C., on March 5, 1945.

[SEAL] JAMES E. MARKHAM,
Alien Property Custodian.

EXHIBIT A

All that certain piece or parcel of land situated and being in the City of Detroit, County of Wayne and State of Michigan, particularly described as follows:

Lot number 223 of Baldwin Park, Subdivision of Lots 2, 3, 4, 5, 11, 12 and 13 and part of lots 1 and 10 of Youngblood's Subdivision of the Southeast Quarter of Section 11, Town 1, South Range 11 East, according to the recorded plat thereof.

[F. R. Doc. 45-6027; Filed, Apr. 16, 1945; 10:43 a. m.]

[Supplemental Vesting Order 4818]

ORE & CHEMICAL CORP.

Under the authority of the Trading with the Enemy Act, as amended, and Executive Order No. 9095, as amended, and pursuant to law, the Alien Property Custodian, after investigation:

1. Having found and determined in Vesting Order Number 2587, dated November 17, 1943, that The Ore & Chemical Corporation and Metallgesellschaft, A. G., are nationals of a designated enemy country (Germany);

2. Finding that of the outstanding capital stock of The Ore & Chemical Corporation, a corporation organized and doing business under the laws of the State of New York and a business enterprise within the United States, consisting of 2,000 shares of no par value common stock and 2,000 shares of $100 par value preferred stock, 500 shares (25%) of the common stock and 500 shares (25%) of the preferred stock are registered in the name of Hornblower & Weeks for the account of Holland American Merchants Corporation and are owned by N. V. Hollandsche Koopmansbank, Curacao, Dutch West Indies, acting directly or indirectly for the benefit or on behalf of Metallgesellschaft, A. G., which shares, together with the shares previously vested by Vesting Order Number 2587, dated November 17, 1943, are evidence of ownership and control of The Ore & Chemical Corporation;

and determining:

3. That N. V. Hollandsche Koopmansbank is acting for or on behalf of or as a cloak for Metallgesellchaft, A. G., and is a national of a designated enemy country (Germany);

4. That to the extent that such nationals are persons not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany);

and having made all determinations and taken all action required by law, including appropriate consultation and certification, and deeming it necessary in the national interest,

hereby vests in the Alien Property Custodian the 500 shares of no par value common stock and 500 shares of $100 par value preferred stock of The Ore & Chemical Corporation, hereinbefore more fully described in subparagraph 2 above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest and for the benefit of the United States.

Such property and any or all of the proceeds thereof shall be held in an appropriate account or accounts, pending further determination of the Alien Property Custodian to return such property or the proceedings thereof in whole or in part, nor shall it be deemed to indicate that compensation will not be paid in lieu thereof, if and when it should be determined to take any one or all of such actions.

Any person, except a national of a designated enemy country, asserting any claim arising as a result of this order may, within one year from the date hereof, or within such further time as may be allowed, file with the Alien Property Custodian on Form APC-1 a notice of claim, together with a request for a hearing thereon. Nothing herein contained shall be deemed to constitute an admission of the existence, validity or right to allowance of any such claim.

The terms "national," "designated enemy country" and "business enterprise within the United States" as used herein shall have the meanings prescribed in section 10 of Executive Order No. 9095, as amended.

Executed at Washington, D. C., on April 14, 1945.

[SEAL] JAMES E. MARKHAM,
Alien Property Custodian.

[F. R. Doc. 45-6028; Filed, Apr. 16, 1945; 10:43 a. m.]

OFFICE OF DEFENSE TRANSPORTATION.

[Supp. Order ODT 3, Rev. 462, Amdt. 1]

ARIZONA

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a petition filed with the Office of Defense Transportation by the persons named below, and good cause appearing therefor,

It is hereby ordered, That Supplementary Order ODT 3, Revised–462 (10 F.R. 1294), be, and it hereby is, amended by adding to Appendix 1 thereof the following persons as carriers subject to the said order:

Howard Van Horne and Harold Painter, copartners, Tempe, Ariz.
R. C. Wheeler, doing business as Ashfork Water Works & Transfer, Ashfork, Ariz.
Merle M. Wygal, Springerville, Ariz.
Elzie H. Mahan, Williams, Ariz.
J. Hubert Underhill and Emily C. Underhill, copartners, doing business as Underhill Transfer, Yuma, Ariz.

This amendment shall become effective on April 19, 1945.

Issued at Washington, D. C., this 14th day of April 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

[F. R. Doc. 45-5956; Filed, Apr. 13, 1945; 3:35 p. m.]

[Supp. Order ODT 3, Rev. 634]

DAYTON AND CHILLICOTHE, OHIO

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a plan for joint action filed with the Office of Defense Transportation by the persons named in Appendix 1 hereof to facilitate compliance with the requirements and purposes of General Order ODT 3, Revised, as amended (7 F.R. 5445, 6689, 7694; 8 F.R. 4660, 14582; 9 F.R. 2793, 3264, 3357, 6778), a copy of which plan is attached hereto as Appendix 2,[1] and

It appearing that the proposed coordination of operations is necessary in order to assure maximum utilization of the facilities, services, and equipment, and to conserve and providently utilize vital equipment, materials, and supplies, of the carriers, and to provide for the prompt and continuous movement of necessary traffic, the attainment of which purposes is essential to the successful prosecution of the war, *It is hereby ordered*, That:

1. The plan for joint action above referred to is hereby approved and the carriers are directed to put the plan in operation forthwith, subject to the following provisions, which shall supersede any provisions of such plan that are in conflict therewith.

2. Each of the carriers forthwith shall file a copy of this order with the appropriate regulatory body or bodies having jurisdiction over any operations affected by this order, and likewise shall file, and publish in accordance with law, and continue in effect until further order, tariffs or supplements to filed tariffs, setting forth any changes in rates, charges, operations, rules, regulations, and practices of the carrier which may be necessary to accord with the provisions of this order and of such plan; and forthwith shall apply to such regulatory body or bodies for special permission for such tariffs or supplements to become effective on the shortest notice lawfully permissible, but not prior to the effective date of this order.

3. Whenever transportation service is performed by one carrier in lieu of service by another carrier, by reason of a diversion, exchange, pooling, or similar act made or performed pursuant to the plan for joint action hereby approved, the rates, charges, rules, and regulations governing such service shall be those that would have applied except for such diversion, exchange, pooling, or other act.

4. The provisions of this order shall not be so construed or applied as to require any carrier subject hereto to perform any service beyond its transportation capacity, or to authorize or require any act or omission which is in violation of any law or regulation, or to permit any carrier to alter its legal liability to any shipper. In the event that compliance with any term of this order, or effectuation of any provision of such plan, would conflict with, or would not be authorized under, the existing interstate or intrastate operating authority of any carrier subject hereto, such carrier forthwith shall apply to the appropriate regulatory body or bodies for the granting of such operating authority as may be requisite to compliance with the terms of this order, and shall prosecute such application with all possible diligence. The coordination of operations directed by this order shall be subject to the carriers' possessing or obtaining the requisite operating authority.

5. All records of the carriers pertaining to any transportation performed pursuant to this order and to the provisions of such plan shall be kept available for examination and inspection at all reasonable times by accredited representatives of the Office of Defense Transportation.

6. Withdrawal of a carrier from participation in the plan for joint action hereby approved shall not be made without prior approval of the Office of Defense Transportation.

7. The provisions of this order shall be binding upon any successor in interest to any carrier named in this order. Upon a transfer of any operation involved in this order, the successor in interest and the other carriers named in this order forthwith shall notify, in writing, the Office of Defense Transportation of the transfer and, unless and until otherwise ordered, the successor in interest shall perform the functions of his predecessor in accordance with the provisions of this order.

8. The plan for joint action hereby approved and all contractual arrangements made by the carriers to effectuate the plan shall not continue in operation beyond the effective period of this order.

9. Communications concerning this order should refer to it by the supplementary order number which appears in the caption hereof, and, unless otherwise directed, should be addressed to the Highway Transport Department, Office of Defense Transportation, Washington 25, D. C.

This order shall become effective April 19, 1945, and shall remain in full force and effect until the termination of the present war shall have been duly proclaimed, or until such earlier time as the Office of Defense Transportation by further order may designate.

Issued at Washington, D. C., this 14th day of April 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

APPENDIX 1

Commercial Motor Freight, Inc., Columbus, Ohio.
John W. Harlow, doing business as Dayton-Chillicothe Transportation Co., Dayton, Ohio.

[F. R. Doc. 45-5957; Filed, Apr. 13, 1945; 3:36 p. m.]

[Supp. Order ODT 3, Rev. 636]

MARSHALLTOWN AND MASON CITY, IOWA

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a plan for joint action filed with the Office of Defense Transportation by the persons named in Appendix 1 hereof to facilitate compliance with the requirements and purposes of General Order ODT 3, Revised, as amended (7 F.R. 5445, 6689, 7694; 8 F.R. 4660, 14582; 9 F.R. 2793, 3264, 3357, 6778), a copy of which plan is attached hereto as Appendix 2,[1] and

It appearing that the proposed coordination of operations is necessary in order to assure maximum utilization of the facilities, services, and equipment, and to conserve and providently utilize vital equipment, materials, and supplies, of the carriers, and to provide for the prompt and continuous movement of necessary traffic, the attainment of which purposes is essential to the successful prosecution of the war, *It is hereby ordered*, That:

1. The plan for joint action above referred to is hereby approved and the carriers are directed to put the plan in operation forthwith, subject to the following provisions, which shall supersede any provisions of such plan that are in conflict therewith.

2. Each of the carriers forthwith shall file a copy of this order with the appropriate regulatory body or bodies having jurisdiction over any operations affected by this order, and likewise shall file, and publish in accordance with law, and continue in effect until further order, tariffs or supplements to filed tariffs, setting forth any changes in rates, charges, operations, rules, regulations, and practices of the carrier which may be necessary to accord with the provisions of this order and of such plan; and forthwith shall apply to such regulatory body

[1] Filed as part of the original document.

or bodies for special permission for such tariffs or supplements to become effective on the shortest notice lawfully permissible, but not prior to the effective date of this order.

3. Whenever transportation service is performed by one carrier in lieu of service by another carrier, by reason of a diversion, exchange, pooling, or similar act made or performed pursuant to the plan for joint action hereby approved, the rates, charges, rules, and regulations governing such service shall be those that would have applied except for such diversion, exchange, pooling, or other act.

4. The provisions of this order shall not be so construed or applied as to require any carrier subject hereto to perform any service beyond its transportation capacity, or to authorize or require any act or omission which is in violation of any law or regulation, or to permit any carrier to alter its legal liability to any shipper. In the event that compliance with any term of this order, or effectuation of any provision of such plan, would conflict with, or would not be authorized under, the existing interstate or intrastate operating authority of any carrier subject hereto, such carrier forthwith shall apply to the appropriate regulatory body or bodies for the granting of such operating authority as may be requisite to compliance with the terms of this order, and shall prosecute such application with all possible diligence. The coordination of operations directed by this order shall be subject to the carriers' possessing or obtaining the requisite operating authority.

5. All records of the carriers pertaining to any transportation performed pursuant to this order and to the provisions of such plan shall be kept available for examination and inspection at all reasonable times by accredited representatives of the Office of Defense Transportation.

6. Withdrawal of a carrier from participation in the plan for joint action hereby approved shall not be made without prior approval of the Office of Defense Transportation.

7. The provisions of this order shall be binding upon any successor in interest to any carrier named in this order. Upon a transfer of any operation involved in this order, the successor in interest and the other carriers named in this order forthwith shall notify, in writing, the Office of Defense Transportation of the transfer and, unless and until otherwise ordered, the successor in interest shall perform the functions of his predecessor in accordance with the provisions of this order.

8. The plan for joint action hereby approved and all contractual arrangements made by the carriers to effectuate the plan shall not continue in operation beyond the effective period of this order.

9. Communications concerning this order should refer to it by the supplementary order number which appears in the caption hereof, and, unless otherwise directed, should be addressed to the Highway Transport Department, Office of Defense Transportation, Washington 25, D. C.

This order shall become effective April 19, 1945, and shall remain in full force and effect until the termination of the present war shall have been duly proclaimed, or until such earlier time as the Office of Defense Transportation by further order may designate.

Issued at Washington, D. C., this 14th day of April 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

APPENDIX 1

Bos Freight Line, Inc., Marshalltown, Iowa.
National Freight Lines, Inc., Chicago, Ill.

[F. R. Doc. 45-5958; Filed, Apr. 13, 1945; 3:35 p. m.]

[Supp. Order ODT 3, Rev. 637]

SAYRE AND TEXOLA, OKLA.

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a plan for joint action filed with the Office of Defense Transportation by the persons named in Appendix 1 hereof to facilitate compliance with the requirements and purposes of General Order ODT 3, Revised, as amended (7 F.R. 5445, 6689, 7694; 8 F.R. 4660, 14582; 9 F.R. 2793, 3264, 3357, 6778), a copy of which plan is attached hereto as Appendix 2,[1] and

It appearing that the proposed coordination of operations is necessary in order to assure maximum utilization of the facilities, services, and equipment, and to conserve and providently utilize vital equipment, materials, and supplies, of the carriers, and to provide for the prompt and continuous movement of necessary traffic, the attainment of which purposes is essential to the successful prosecution of the war, *It is hereby ordered,* That:

1. The plan for joint action above referred to is hereby approved and the carriers are directed to put the plan in operation forthwith, subject to the following provisions, which shall supersede any provisions of such plan that are in conflict therewith.

2. Each of the carriers forthwith shall file a copy of this order with the appropriate regulatory body or bodies having jurisdiction over any operations affected by this order, and likewise shall file, and publish in accordance with law, and continue in effect until further order, tariffs or supplements to filed tariffs, setting forth any changes in rates, charges, operations, rules, regulations, and practices of the carrier which may be necessary to accord with the provisions of this order and of such plan; and forthwith shall apply to such regulatory body or bodies for special permission for such tariffs or supplements to become effective on the shortest notice lawfully permissible, but not prior to the effective date of this order.

3. Whenever transportation service is performed by one carrier in lieu of service by another carrier, by reason of a diversion, exchange, pooling, or similar act made or performed pursuant to the plan for joint action hereby approved, the rates, charges, rules, and regulations governing such service shall be those that would have applied except for such diversion, exchange, pooling, or other act.

4. The provisions of this order shall not be so construed or applied as to require any carrier subject hereto to perform any service beyond its transportation capacity, or to authorize or require any act or omission which is in violation of any law or regulation, or to permit any carrier to alter its legal liability to any shipper. In the event that compliance with any term of this order, or effectuation of any provision of such plan, would conflict with, or would not be authorized under, the existing interstate or intrastate operating authority of any carrier subject hereto, such carrier forthwith shall apply to the appropriate regulatory body or bodies for the granting of such operating authority as may be requisite to compliance with the terms of this order, and shall prosecute such application with all possible diligence. The coordination of operations directed by this order shall be subject to the carriers' possessing or obtaining the requisite operating authority.

5. All records of the carriers pertaining to any transportation performed pursuant to this order and to the provisions of such plan shall be kept available for examination and inspection at all reasonable times by accredited representatives of the Office of Defense Transportation.

6. Withdrawal of a carrier from participation in the plan for joint action hereby approved shall not be made without prior approval of the Office of Defense Transportation.

7. The provisions of this order shall be binding upon any successor in interest to any carrier named in this order. Upon a transfer of any operation involved in this order, the successor in interest and the other carriers named in this order forthwith shall notify, in writing, the Office of Defense Transportation of the transfer and, unless and until otherwise ordered, the successor in interest shall perform the functions of his predecessor in accordance with the provisions of this order.

8. The plan for joint action hereby approved and all contractual arrangements made by the carriers to effectuate the plan shall not continue in operation beyond the effective period of this order.

9. Communications concerning this order should refer to it by the supplementary order number which appears in the caption hereof, and, unless otherwise directed, should be addressed to the Highway Transport Department, Office of Defense Transportation, Washington 25, D. C.

This order shall become effective April 19, 1945, and shall remain in full force and effect until the termination of the present war shall have been duly proclaimed, or until such earlier time as the Office of Defense Transportation by further order may designate.

Issued at Washington, D. C., this 14th day of April 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

[1] Filed as part of the original document.

APPENDIX 1

Doane R. Farr, doing business as Clinton Transfer & Storage Co., Clinton, Okla.
Lee Way Motor Freight, Inc., Oklahoma City, Okla.

[F. R. Doc. 45-5959; Filed, Apr. 13, 1945; 3:35 p. m.]

[Supp. Order ODT 3, Rev. 636]

MEMPHIS, TENN., AND FORT SMITH, ARK.

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a plan for joint action filed with the Office of Defense Transportation by the persons named in Appendix 1 hereof to facilitate compliance with the requirements and purposes of General Order ODT 3, Revised, as amended (7 F.R. 5445, 6689, 7694; 8 F.R. 4660, 14582; 9 F.R. 2793, 3264, 3357, 6778), a copy of which plan is attached hereto as Appendix 2,[1] and

It appearing that the proposed coordination of operations is necessary in order to assure maximum utilization of the facilities, services, and equipment, and to conserve and providently utilize vital equipment, materials, and supplies, of the carriers, and to provide for the prompt and continuous movement of necessary traffic, the attainment of which purposes is essential to the successful prosecution of the war, *It is hereby ordered,* That:

1. The plan for joint action above referred to is hereby approved and the carriers are directed to put the plan in operation forthwith, subject to the following provisions, which shall supersede any provisions of such plan that are in conflict therewith.

2. Each of the carriers forthwith shall file a copy of this order with the appropriate regulatory body or bodies having jurisdiction over any operations affected by this order, and likewise shall file, and publish in accordance with law, and continue in effect until further order, tariffs or supplements to filed tariffs, setting forth any changes in rates, charges, operations, rules, regulations, and practices of the carrier which may be necessary to accord with the provisions of this order and of such plan; and forthwith shall apply to such regulatory body or bodies for special permission for such tariffs or supplements to become effective on the shortest notice lawfully permissible, but not prior to the effective date of this order.

3. Whenever transportation service is performed by one carrier in lieu of service by another carrier, by reason of a diversion, exchange, pooling, or similar act made or performed pursuant to the plan for joint action hereby approved, the rates, charges, rules, and regulations governing such service shall be those that would have applied except for such diversion, exchange, pooling, or other act.

4. The provisions of this order shall not be so construed or applied as to require any carrier subject hereto to perform any service beyond its transportation capacity, or to authorize or require any act or omission which is in violation of any law or regulation, or to permit any carrier to alter its legal liability to any shipper. In the event that compliance with any term of this order, or effectuation of any provision of such plan, would conflict with, or would not be authorized under, the existing interstate or intrastate operating authority of any carrier subject hereto, such carrier forthwith shall apply to the appropriate regulatory body or bodies for the granting of such operating authority as may be requisite to compliance with the terms of this order, and shall prosecute such application with all possible diligence. The coordination of operations directed by this order shall be subject to the carriers' possessing or obtaining the requisite operating authority.

5. All records of the carriers pertaining to any transportation performed pursuant to this order and to the provisions of such plan shall be kept available for examination and inspection at all reasonable times by accredited representatives of the Office of Defense Transportation.

6. Withdrawal of a carrier from participation in the plan for joint action hereby approved shall not be made without prior approval of the Office of Defense Transportation.

7. The provisions of this order shall be binding upon any successor in interest to any carrier named in this order. Upon a transfer of any operation involved in this order, the successor in interest and the other carriers named in this order forthwith shall notify, in writing, the Office of Defense Transportation of the transfer and, unless and until otherwise ordered, the successor in interest shall perform the functions of his predecessor in accordance with the provisions of this order.

8. The plan for joint action hereby approved and all contractual arrangements made by the carriers to effectuate the plan shall not continue in operation beyond the effective period of this order.

9. Communications concerning this order should refer to it by the supplementary order number which appears in the caption hereof, and, unless otherwise directed, should be addressed to the Highway Transport Department, Office of Defense Transportation, Washington 25, D. C.

This order shall become effective April 19, 1945, and shall remain in full force and effect until the termination of the present war shall have been duly proclaimed, or until such earlier time as the Office of Defense Transportation by further order may designate.

Issued at Washington, D. C., this 14th day of April 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

[1] Filed as part of the original document.

APPENDIX 1

Mercury Motors, Inc., Fort Smith, Ark.
Ralph England, doing business as England Bros. Truck Line, Fort Smith, Ark.

[F. R. Doc. 45-5960; Filed, Apr. 13, 1945; 3:37 p. m.]

[Supp. Order ODT 3, Rev. 639]

ALABAMA

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a plan for joint action filed with the Office of Defense Transportation by the persons named in Appendix 1 hereof to facilitate compliance with the requirements and purposes of General Order ODT 3, Revised, as amended (7 F.R. 5445, 6689, 7694; 8 F.R. 4660, 14582; 9 F.R. 2793, 3264, 3357, 6778), a copy of which plan is attached hereto as Appendix 2,[1] and

It appearing that the proposed coordination of operations is necessary in order to assure maximum utilization of the facilities, services, and equipment, and to conserve and providently utilize vital equipment, materials, and supplies, of the carriers, and to provide for the prompt and continuous movement of necessary traffic, the attainment of which purposes is essential to the successful prosecution of the war, *It is hereby ordered,* That:

1. The plan for joint action above referred to is hereby approved and the carriers are directed to put the plan in operation forthwith, subject to the following provisions, which shall supersede any provisions of such plan that are in conflict therewith.

2. Each of the carriers forthwith shall file a copy of this order with the appropriate regulatory body or bodies having jurisdiction over any operations affected by this order, and likewise shall file, and publish in accordance with law, and continue in effect until further order, tariffs or supplements to filed tariffs, setting forth any changes in rates, charges, operations, rules, regulations, and practices of the carrier which may be necessary to accord with the provisions of this order and of such plan; and forthwith shall apply to such regulatory body or bodies for special permission for such tariffs or supplements to become effective on the shortest notice lawfully permissible, but not prior to the effective date of this order.

3. Whenever transportation service is performed by one carrier in lieu of service by another carrier, by reason of a diversion, exchange, pooling, or similar act made or performed pursuant to the plan for joint action hereby approved, the rates, charges, rules, and regulations governing such service shall be those that would have applied except for such diversion, exchange, pooling, or other act.

4. The provisions of this order shall not be so construed or applied as to require any carrier subject hereto to perform any service beyond its transportation capacity, or to authorize or require any act or omission which is in violation

of any law or regulation, or to permit any carrier to alter its legal liability to any shipper. In the event that compliance with any term of this order, or effectuation of any provision of such plan, would conflict with, or would not be authorized under, the existing interstate or intrastate operating authority of any carrier subject hereto, such carrier forthwith shall apply to the appropriate regulatory body or bodies for the granting of such operating authority as may be requisite to compliance with the terms of this order, and shall prosecute such application with all possible diligence. The coordination of operations directed by this order shall be subject to the carriers' possessing or obtaining the requisite operating authority.

5. All records of the carriers pertaining to any transportation performed pursuant to this order and to the provisions of such plan shall be kept available for examination and inspection at all reasonable times by accredited representatives of the Office of Defense Transportation.

6. Withdrawal of a carrier from participation in the plan for joint action hereby approved shall not be made without prior approval of the Office of Defense Transportation.

7. The provisions of this order shall be binding upon any successor in interest to any carrier named in this order. Upon a transfer of any operation involved in this order, the successor in interest and the other carriers named in this order forthwith shall notify, in writing, the Office of Defense Transportation of the transfer and, unless and until otherwise ordered, the successor in interest shall perform the functions of his predecessor in accordance with the provisions of this order.

8. The plan for joint action hereby approved and all contractual arrangements made by the carriers to effectuate the plan shall not continue in operation beyond the effective period of this order.

9. Communications concerning this order should refer to it by the supplementary order number which appears in the caption hereof, and, unless otherwise directed, should be addressed to the Highway Transport Department, Office of Defense Transportation, Washington 25, D. C.

This order shall become effective April 19, 1945, and shall remain in full force and effect until the termination of the present war shall have been duly proclaimed, or until such earlier time as the Office of Defense Transportation by further order may designate.

Issued at Washington, D. C., this 14th day of April 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

APPENDIX 1

A. E. Henderson Truck Line, Montgomery, Ala.
Jack-Green Company, Inc., Montgomery, Ala.
T. D. Martin, doing business as T. D. Martin Truck Line, Montgomery, Ala.
J. L. McMath, doing business as J. L. McMath Truck Line, Montgomery, Ala.
L. P. Moore, Montgomery, Ala.
Jones Transfer Company, Inc., Montgomery, Ala.
John Richards, Montgomery, Ala.

[F. R. Doc. 45-5961; Filed, Apr. 13, 1945; 3:36 p. m.]

OFFICE OF PRICE ADMINISTRATION.

[Order 39 Under 3 (e)]

WAVERLY PETROLEUM PRODUCTS CO.

ESTABLISHMENT OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith, *It is ordered:*

(a) The maximum delivered prices for sales of Kan-Doo, a liquid cleanser manufactured by the Waverly Petroleum Products Company, Philadelphia, Pennsylvania, shall be as follows:

	Per case of 24 8-ounce bottles	Per gallon in 5-gallon containers	Per gallon in la than 5-gallon containers
To jobbers	$3.31		
To retailers	4.14		
To consumers	5.52	$1.50	$1.25

(b) No extra charge may be made for containers.

(c) With or prior to the first delivery of the aforesaid commodity to a jobber, the manufacturer shall furnish such jobber with a written notice containing the schedule of maximum prices set out in paragraph (a) above and a statement that they have been established by the Office of Price Administration.

(d) Prior to making any delivery of Kan-Doo after the effective date of this order, the manufacturer shall mark or cause to be marked on each 8 oz. bottle the following legend:

Maximum retail price—$0.23.

This order shall become effective April 14, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5933; Filed, Apr. 13, 1945; 11:41 a. m.]

[MPR 120, Correction to Order 1063]

DENKERT MINE, ET AL.

APPROVAL OF MAXIMUM PRICES

Order No. 1063 under Maximum Price Regulation No. 120 is hereby corrected as follows:

Order No. 68, included as "68" among the orders revoked in subsection (b) of Order No. 1063 is hereby deleted.

This correction to Order No. 1063 shall be effective as of October 18, 1944.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5934; Filed, Apr. 13, 1945; 11:41 a. m.]

[MPR 120, Order 1335]

C. M. HALL, ET AL.

ESTABLISHMENT OF MAXIMUM PRICES AND PRICE CLASSIFICATIONS

For the reasons set forth in an accompanying opinion, and in accordance with § 1340.210 (a) (6) of Maximum Price Regulation No. 120, *It is ordered:*

Producers identified herein operate named mines assigned the mine index numbers, the price classifications and the maximum prices in cents per net ton, for the indicated uses and shipments as set forth herein. All are in District No. 2. The mine index numbers and the price classifications assigned are permanent but the maximum prices may be changed by an amendment issued after the effective date of this order. Where such an amendment is issued for the district in which the mines involved herein are located and where the amendment makes no particular reference to a mine or mines involved herein, the prices shall be the prices set forth in such amendment for the price classifications of the respective size groups. The location of each mine is given by county and State. The maximum prices stated to be for truck shipment are in cents per net ton f. o. b. the mine or preparation plant and when stated to be for rail shipment or for railroad fuel are in cents per net ton f. o. b. rail shipping point. In cases where mines ship coals by river the prices for such shipments are those established for rail shipment and are in cents per net ton f. o. b. river shipping point. However, producer is subject to the provisions of § 1340.213 and all other provisions of Maximum Price Regulation No. 120.

C. M. HALL, DELMONT, PA., HALL NO. 5 MINE, PITTSBURGH SEAM, MINE INDEX NO. 4293, ALLEGHENY COUNTY, PA., SUBDISTRICT 9, RAIL SHIPPING POINT, LEAK RUN, PA., STRIP MINE, RAILROAD FUEL PRICE GROUP 2, MAXIMUM TRUCK PRICE GROUP NO. 5

	Size group Nos.										
	1	2	3	4	5	6	7	8	9	10	11
Price classification	D	D	C	C	G	F	G	G	G	------	------
Rail shipment	310	310	310	310	275	265	245	245	230	------	------
Railroad fuel	310	310	310	310	290	275	245	245	235	235	------
Truck shipment	425	425	425	390	360	360	360	325	285	285	270

HAPPY HOLLOW COAL CO., CARE OF ROBT. C. BROWN, R. D. 2, ELIZABETH, PA., HAPPY HOLLOW MINE, PITTSBURGH SEAM, MINE INDEX NO. 4298, ALLEGHENY COUNTY, PA., SUBDISTRICT 9, DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 5

Truck shipment	425	425	425	390	360	360	360	325	285	285	270

JONES COAL CO., BOX 8214, PITTSBURGH, PA., IRVIN MINE, PITTSBURGH SEAM, MINE INDEX NO. 4287, ALLEGHENY COUNTY, PA., SUBDISTRICT 7, RAIL SHIPPING POINT: CURRY HOLLOW, PA., STRIP MINE, RAILROAD FUEL PRICE GROUP 1, MAXIMUM TRUCK PRICE GROUP NO. 5

	Size group Nos.										
	1	2	3	4	5	6	7	8	9	10	11
Price classification	D	D	C	C	C	C	C	C	C	-----	-----
Rail and river shipments	310	310	310	310	310	300	275	275	255	-----	-----
Railroad fuel	310	310	310	310	310	300	275	275	255	245	-----
Truck shipment	425	425	425	390	360	360	360	325	285	285	270

STEFAN KLEIN, R. D. NO. 3, ELIZABETH, PA., KLEIN NO. 4 MINE, REDSTONE SEAM, MINE INDEX NO. 4306, ALLEGHENY COUNTY, PA., SUBDISTRICT 9, RAIL SHIPPING POINT: WYLIE, PA., DEEP MINE, RAILROAD FUEL PRICE GROUP 2, MAXIMUM TRUCK PRICE GROUP NO. 5

Price classification	G	G	G	G	G	G	G	G	G	-----	-----
Rail and river shipments	310	310	300	300	300	290	270	270	255	-----	-----
Railroad fuel	315	315	315	315	315	300	270	270	260	260	-----
Truck shipment	425	425	425	390	360	360	360	325	285	285	270

KLOTZ & KLEIN, 422 LEXINGTON AVE., MCKEESPORT, PA., KLOTZ & KLEIN MINE, PITTSBURGH SEAM, MINE INDEX NO. 4302, ALLEGHENY COUNTY, PA., SUBDISTRICT 9, RAIL SHIPPING POINT: BOSTON, PA., STRIP MINE, RAILROAD FUEL PRICE GROUP 1, MAXIMUM TRUCK PRICE GROUP NO. 5

Price classification	D	D	C	C	C	C	C	C	C	-----	-----
Rail and river shipments	310	310	310	310	310	300	275	275	255	-----	-----
Railroad fuel	310	310	310	310	310	300	275	275	255	245	-----
Truck shipment	425	425	425	390	360	360	360	325	285	285	270

LATROBE CONSTRUCTION CO., BOX 150, LATROBE, PA., KILEY MINE, PITTSBURGH SEAM, MINE INDEX NO. 4307, WESTMORELAND COUNTY, PA., SUBDISTRICT 4, RAIL SHIPPING POINT: ALLSWORTH, PA., STRIP MINE, RAILROAD FUEL PRICE GROUP 13, MAXIMUM TRUCK PRICE GROUP NO. 8

Price classification	F	F	D	D	D	D	D	D	D	-----	-----
Rail shipment	285	285	300	300	300	290	270	270	245	-----	-----
Railroad fuel	290	290	300	300	300	290	270	270	245	245	-----
Truck shipment	415	415	415	395	365	365	365	305	285	285	255

LATROBE CONSTRUCTION CO., P. O. BOX 150, LATROBE, PA., KLINGENSMITH MINE, PITTSBURGH SEAM, MINE INDEX NO. 4308, WESTMORELAND COUNTY, PA., SUBDISTRICT 4, RAIL SHIPPING POINT: ALLSWORTH, PA., STRIP MINE, RAILROAD FUEL PRICE GROUP 13, MAXIMUM TRUCK PRICE GROUP NO. 8

Price classification	F	F	D	D	D	D	D	D	D	-----	-----
Rail shipment	285	285	300	300	300	290	270	270	245	-----	-----
Railroad fuel	290	290	300	300	300	290	270	270	245	245	-----
Truck shipment	415	415	415	395	365	365	365	305	285	285	255

LATROBE CONSTRUCTION CO., P. O. BOX 150, LATROBE, PA., SANTUCCI MINE, PITTSBURGH SEAM, MINE INDEX NO. 4309, WESTMORELAND COUNTY, PA., SUBDISTRICT 9, RAIL SHIPPING POINT: ALLSWORTH, PA., STRIP MINE, RAILROAD FUEL PRICE GROUP 20, MAXIMUM TRUCK PRICE GROUP NO. 8

Price classification	G	G	F	F	E	E	E	E	E	-----	-----
Rail shipment	285	285	275	275	280	270	250	250	235	-----	-----
Railroad fuel	290	290	290	290	290	275	250	250	245	245	-----
Truck shipment	415	415	415	395	365	365	365	305	285	285	255

LATROBE FUEL CO., 343 WELDON ST., LATROBE, PA., LATROBE MINE, BAKERSTOWN SEAM, MINE INDEX NO. 4284, WESTMORELAND COUNTY, PA., SUBDISTRICT 5, DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 8

Truck shipment	415	415	415	395	365	365	365	305	285	285	255

This order shall become effective April 14, 1945.

(56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5935; Filed, Apr. 13, 1945; 11:42 a. m.]

[MPR 120, Order 1336]

ASSOCIATED ENGINEERS, INC., ET AL.

ESTABLISHMENT OF MAXIMUM PRICES AND PRICE CLASSIFICATIONS

For the reasons set forth in an accompanying opinion, and in accordance with § 1340.210 (a) (6) of Maximum Price Regulation No. 120, *It is ordered:*

Producers identified herein operate named mines assigned the mine index numbers, the price classifications and the maximum prices in cents per net ton, for the indicated uses and shipments as set forth herein. All are in District No. 8. The mine index numbers and the price classifications assigned are permanent but the maximum prices may be changed by an amendment issued after the effective date of this order. Where such an amendment is issued for the district in which the mines involved herein are located and where the amendment makes no particular reference to a mine or mines involved herein, the prices shall be the prices set forth in such amendment for the price classifications of the respective size groups. The location of each mine is given by county and state. The maximum prices stated to be for truck shipment are in cents per net ton f. o. b. the mine or preparation plant and when stated to be for rail shipment or for railroad fuel are in cents per net ton f. o. b. rail shipping point. In cases where mines ship coals by river the prices for such shipments are those established for rail shipment and are in cents per net ton f. o. b. river shipping point. However, producer is subject to the provisions of § 1340.219 and all other provisions of Maximum Price Regulation No. 120.

ASSOCIATED ENGINEERS, INC., 1625 CONNECTICUT AVE. NW., WASH., D. C., SHUMWAY NO. 1 MINE, SWEANEE SEAM, MINE INDEX NO. 7112, CUMBERLAND COUNTY, TENN., SUBDIST. 6, RAIL SHIPPING POINT, CROSSVILLE, TENN., F. O. G. 72, STRIP MINE, MAXIMUM TRUCK PRICE GROUP NO. 5

	Size group Nos.													
	1	2	3	4	5	6	7	8	9	10	15, 16, 17	18	19	20, 21
Price classification	P	P	P	P	M	M	L	K	J	M	G	O	O	O
Rail shipment	345	340	335	335	335	330	325	310	305	355	310	280	275	270
Railroad fuel	345	340	335	335	335	330	325	310	310	355	310	280	275	270
Truck shipment	380	360	335	335	320	295	260	255	-----	-----	-----	-----	-----	-----

C. P. COAL CO., C/O LACEY E. FULLER, COEBURN, VA., C. P. COAL CO. MINE, BLAIR SEAM, MINE INDEX NO. 7041, WISE COUNTY, VA., SUBDIST. 7, RAIL SHIPPING POINT, ESSERVILLE, VA., F. O. G. 200, DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 5

Price classification	O	O	O	O	K	K	J	F	C	E	D	G	G	G
Rail shipment and railroad fuel	345	340	325	325	345	335	315	315	315	370	300	295	285	280
Truck shipment	380	360	335	335	320	295	260	255	-----	-----	-----	-----	-----	-----

CONGLETON BROTHERS, C/O G. P. CONGLETON, BEATTYVILLE, KY., STONE COAL MINE, STURGEON SEAM, MINE INDEX NO. 7318, LEE COUNTY, KY., SUBDIST. 3, RAIL SHIPPING POINT, BEATTYVILLE, KY., F. O. G. 100, DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 5

Price classification	K	K	K	K	J	J	H	G	G	J	D	M	M	M
Rail shipment	365	360	350	350	345	335	315	310	300	340	300	265	260	255
Railroad fuel	365	360	350	350	345	335	315	310	310	340	300	265	260	255
Truck shipment	380	360	335	335	320	295	260	255	-----	-----	-----	-----	-----	-----

BILL HALE, STRATTON, VA., HALE MINE, WIDOW KENNEDY SEAM, MINE INDEX NO. 7317, DICKENSON COUNTY, VA. SUBDIST. 7, RAIL SHIPPING POINT, ALLEN, VA., F. O. G. 10, DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 5

Price classification	M	M	M	M	K	K	J	G	E	E	D	G	G	G
Rail shipment and railroad fuel	350	350	345	345	345	335	315	310	310	370	300	295	285	280
Truck shipment	380	360	335	335	320	295	260	255	-----	-----	-----	-----	-----	-----

NEW LONG COAL CO., C/O RICHARD & BRADLEY LONG, WALLINS CREEK, KY., NEW LONG COAL CO. MINE, BULL DOG SEAM, MINE INDEX NO. 7334, HARLAN COUNTY, KY., SUBDIST. 2, RAIL SHIPPING POINT, WALLINS, KY., F. O. G. 80, DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 5

Price classification	O	O	O	O	L	L	K	F	D	D	D	H	H	H
Rail shipment and railroad fuel	345	340	325	325	320	320	310	315	315	370	300	295	285	280
Truck shipment	380	360	335	335	320	295	260	255	-----	-----	-----	-----	-----	-----

This order shall become effective April 14, 1945.

(56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5936; Filed, Apr. 13, 1945; 11:42 a. m.]

[MPR 120, Order 1338]

ALSTED COAL CO., ET AL.

ESTABLISHMENT OF MAXIMUM PRICES AND PRICE CLASSIFICATIONS

For the reasons set forth in an accompanying opinion, and in accordance with § 1340.210 (a) (6) of Maximum Price Regulation No. 120, *It is ordered:*

Producers identified herein operate named mines assigned the mine index numbers, the price classifications and the maximum prices in cents per net ton, for the indicated uses and shipments as set forth herein. All are in district No. 3. The mine index numbers and the price classifications assigned are permanent but the maximum prices may be changed by an amendment issued after the effective date of this order. Where such an amendment is issued for the district in which the mines involved herein are located and where the amendment makes no particular reference to a mine or mines involved herein, the prices shall be the prices set forth in such amendment for the price classifications of the respective size groups. The location of each mine is given by county and state. The maximum prices stated to be for truck shipment are in cents per net ton f. o. b. the mine or preparation plant and when stated to be for rail shipment or for railroad fuel are in cents per net ton f. o. b. rail shipping point. In cases where mines ship coals by river the prices for such shipments are those established for rail shipment and are in cents per net ton f. o. b. river shipping point. However, producer is subject to the provisions of § 1340.214 and all other provisions of Maximum Price Regulation No. 120.

ALSTED COAL CO., % E. BAILEY WYCOFF, FLEMINGTON, W. VA., GYPSY MINE, PITTSBURGH SEAM, MINE INDEX NO. 2117, HARRISON COUNTY, W. VA., RAIL SHIPPING POINT: GYPSY, W. VA., DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 3

	Size group Nos.				
	1	2	3	4	5
Price classification	E	E	E	F	F
Rail shipment and railroad fuel	285	280	270	250	240
Truck shipment	310	310	285	275	265

BOYLES & KING, % W. R. BOYLES, GILMER, W. VA., JONTEE NO. 2 MINE, PITTSBURGH SEAM, MINE INDEX NO. 2116, GILMER COUNTY, W. VA., RAIL SHIPPING POINT: GILMER, W. VA., DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 3

Price classification	F	F	F	F	F
Rail shipment and railroad fuel	275	275	260	250	240
Truck shipment	310	310	285	275	265

JOHN SCHULTZ CONTRACTING CO., BOX 1307, FAIRMONT, W. VA., SCHULTZ MINE, PITTSBURGH SEAM, MINE INDEX NO. 2111, MARION COUNTY, W. VA., RAIL SHIPPING POINT: KINGMONT, W. VA., STRIP MINE, MAXIMUM TRUCK PRICE GROUP NO. 3

Price classification	DE	DE	DE	DF	DF
Rail and river shipments and railroad fuel [1]	285	280	270	250	240
Truck shipment	310	310	285	275	265

[1] The per net ton maximum prices applicable to coal having a sulphur content of 1.35% or under for all methods of shipment except by truck or wagon for all uses shall be as listed below:

Size group No.	1	2	3	4	5
	285	280	270	265	260

This order shall become effective April 14, 1945.

(56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5938; Filed, Apr. 13, 1945; 11:43 a. m.]

[MPR 120, Order 1337]

THE BRETTELL COAL CO., ET AL.

ESTABLISHMENT OF MAXIMUM PRICES AND PRICE CLASSIFICATIONS

For the reasons set forth in an accompanying opinion, and in accordance with § 1340.210 (a) (6) of Maximum Price Regulation No 120, *It is ordered:*

Producers identified herein operate named mines assigned the mine index numbers, the price classifications and the maximum prices in cents per net ton, for the indicated uses and shipments as set forth herein. All are in District No. 4. The mine index numbers and the price classifications assigned are permanent but the maximum prices may be changed by an amendment issued after the effective date of this order. Where such an amendment is issued for the district in which the mines involved herein are located and where the amendment makes no particular reference to a mine or mines involved herein, the prices shall be the prices set forth in such amendment for the price classifications of the respective size groups. The location of each mine is given by county and state. The maximum prices stated to be for truck shipment are in cents per net ton f. o. b. the mine or preparation plant and when stated to be for rail shipment or for railroad fuel are in cents per net ton f. o. b. rail shipping point. In cases where mines ship coals by river the prices for such shipments are those established for rail shipment and are in cents per net ton f. o. b. river shipping point. However, producer is subject to the provisions of § 1340.215 and all other provisions of Maximum Price Regulation No. 120.

THE BRETTELL COAL CO., MINGO NAT. BANK BLDG., MINGO JUNCTION, OHIO, MONTGOMERY MINE, NO. 8 SEAM, MINE INDEX NO. 4127, JEFFERSON COUNTY, OHIO, SUBDISTRICT 1, RAIL SHIPPING POINT: MINGO JUNCTION, OHIO, STRIP MINE

	Size group Nos.												
	1	2	3	3A	4	5	6	7	8	9	10	11	12
Rail shipment and R. R. fuel	305	305	285	285	285	285	270	235	225	260	210	------	270
Truck shipment	350	350	350	310	310	280	280	255	245	280	------	------	280

PH. FELDMAN, 135 N. CHESTNUT ST., JACKSON, OHIO, FELDMAN MINE, NO. 1 SEAM, MINE INDEX NO. 4130, JACKSON COUNTY, OHIO, SUBDISTRICT 7, RAIL SHIPPING POINT: JACKSON, OHIO, DEEP MINE

Rail shipment and R. R. fuel	345	345	315	315	315	315	285	255	245	275	------	------	285
Truck shipment	375	375	375	335	335	265	265	240	230	265	------	------	265

M. H. Y. COAL CO., C/O L. C. YOUNG, CALDWELL, OHIO, M. H. Y. NO. 1 MINE, NO. 8 SEAM, MINE INDEX NO. 4129, NOBLE COUNTY, OHIO, SUBDISTRICT 2, RAIL SHIPPING POINT: BELLE VALLEY, OHIO, STRIP MINE

Rail shipment and R. R. fuel	305	305	285	285	285	285	270	235	225	260	210	------	270
Truck shipment	350	350	350	310	310	280	280	255	245	280	------	------	280

RHOTEN & FRYSINGER CONSTRUCTION CO., 16 E. BROAD ST., COLUMBUS 15, OHIO, FOREST MINE, NO. 8 SEAM, MINE INDEX NO. 4128, BELMONT COUNTY, OHIO, SUBDISTRICT 1, RAIL SHIPPING POINT: MAYNARD, OHIO, STRIP MINE

Rail shipment and R. R. fuel	305	305	285	285	285	285	270	235	225	260	210	------	270
Truck shipment	350	350	350	310	310	280	280	255	245	280	------	------	280

SPEIDEL COAL CO., ST. CLAIRSVILLE, OHIO, SPEIDEL MINE, NO. 8 SEAM, MINE INDEX NO. 4133, BELMONT COUNTY, OHIO, SUBDISTRICT 1, RAIL SHIPPING POINT: SPEIDEL, OHIO, STRIP MINE

	Size group Nos.												
	3	4	3	3A	4	5	6	7	8	9	10	11	12
Rail shipment and railroad fuel	305	305	285	285	285	285	270	235	225	260	210	-----	270
Truck shipment	350	350	350	310	310	280	280	255	245	280	-----	-----	280

STEVENS COAL CO., C/O NEWT STEVENS, RAILROAD NO. 2, NEW LEXINGTON, OHIO, STEVENS COAL CO. MINE, NO. 6 SEAM, MINE INDEX NO. 4132, PERRY COUNTY, OHIO, SUBDISTRICT 6, RAIL SHIPPING POINT: MCLUNEY, OHIO, DEEP MINE

Rail shipment and railroad fuel	325	325	295	295	295	295	285	245	245	250	-----	-----	250
Truck shipment	360	360	360	320	320	265	265	230	230	265	-----	-----	265

JOHN WHITE, R. F. D. NO. 2, NEW LEXINGTON, OHIO, J. W. COAL CO. MINE, NO. 6 SEAM, MINE INDEX NO. 4134, PERRY COUNTY, OHIO, SUBDISTRICT 6, RAIL SHIPPING POINT: CROOKSVILLE, OHIO, STRIP MINE

Rail shipment and railroad fuel	325	325	295	295	295	295	285	245	245	250	210	-----	250
Truck shipment	360	360	360	320	320	265	265	230	230	265	-----	-----	265

NOTE: The subdistrict numbers listed herein for the coals of the foregoing mines apply for all methods of transportation unless otherwise indicated.

This order shall become effective April 14, 1945.

(56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5937; Filed, Apr. 13, 1945; 11:42 a. m.]

[MPR 188, Rev. Order 3237]

ROCKOFF MANUFACTURING CO.

APPROVAL OF MAXIMUM PRICES

Order No. 3237 under § 1499.158 of Maximum Price Regulation No. 188 is revised and amended to read as follows:

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of MPR 188, *It is ordered:*

(a) This revised order establishes maximum prices for sales and deliveries of a nursery chair manufactured by Rockoff Manufacturing Company, 4904 Chicago Avenue, Chicago, Ill.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Manufacturer's maximum price to persons, other than retailers, who sell from the manufacturer's stock	Maximum price for sales to retailers by the manufacturer, and by persons, other than retailers, who sell from the manufacturer's stock
		Each	*Each*
Nursery chair	40	$2.30	$2.70

These prices are f. o. b. factory, are subject to a cash discount of two percent for payment within ten days, net thirty days and are for the articles described in the manufacturer's application dated June 22, 1944.

(2) For sales by the manufacturer the maximum prices apply to all sales and deliveries since the effective date of MPR 188. For sales by persons, other than retailers, who sell from the manufacturer's stock, the maximum prices apply to all sales and deliveries after the effective date of this revised order.

(3) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158, of MPR 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) At the time of, or prior to, the first invoice to each purchaser, other than a retailer, who sells from the manufacturer's stock, the manufacturer shall notify the purchaser of the maximum prices and conditions established by this revised order for sales by the purchaser. This notice may be given in any convenient form.

(c) This revised order may be revoked or amended by the Price Administrator at any time.

This revised order shall become effective on the 14th day of April 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5939; Filed, Apr. 13, 1945; 11:43 a. m.]

[MPR 188, Order 3641]

MARIETTA HOLLOW-WARE & ENAMELING CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188, *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by the Marietta Hollow-Ware and Enameling Company, Marietta, Pa.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

	Dutch oven with cast iron lid	Dutch oven with glass lid
Maximum prices for manufacturer to—	*Each*	*Each*
Jobber	$1.92	$1.74
Dropship jobber	2.04	1.84
Department Store	1.92	1.74
Other Retailers	2.40	2.17
Maximum prices for sales by sellers other than the manufacturer to—		
Department Store	2.40	2.17
Other Retailers	2.40	2.17
Consumers	3.60	3.25

The maximum prices are for the articles described in the manufacturer's application dated March 10, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. These prices are f. o. b. factory and are subject to a cash discount of 1% for payment within 10 days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement with the retail prices properly filled in.

OPA Retail Ceiling Price, $____
Do Not Detach

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 14th day of April 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R Doc. 45-5941; Filed, Apr. 13, 1945; 11:44 a. m.]

[MPR 188, Order 3642]

ROYAL SPECIALTY CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188, *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by Royal Specialty Company, of 233 West 42nd Street, New York 18, N. Y.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Maximum price to jobber	Maximum price to retailer	Maximum price to consumer
Safety razor	A	*Each* $0.25	*Each* $0.30	*Each* $0.49

These maximum prices are for the articles described in the manufacturer's application dated March 19, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. These prices are f. o. b. factory and subject to a cash discount of 2% for payment in 10 days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. These prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement

OPA Retail Ceiling Price, $0.49
Do Not Remove or Obliterate

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 14th day of April 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5942; Filed, Apr. 13, 1945; 11:44 a. m.]

[MPR 188, Order 3643]

CALIFORNIA WOODCRAFTERS

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188, *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by California Woodcrafters, 1606 Hamilton Avenue, San Jose, Calif.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model	Maximum price for sales by manufacturer to—		Maximum price for sellers other than manufacturer to—	
		Jobber	Retailer	Retailer	Consumer
Cutlery tray	14" x 10" x 2½"	*Each* $0.50	*Each* $0.60	*Each* $0.60	*Each* $1.00

These maximum prices are for the articles described in the manufacturer's application dated March 9, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. These prices are f. o. b. factory and are subject to a cash discount of 2% for payment within 10 days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement:

OPA Retail Ceiling Price, $1.00
Do Not Detach

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 14th day of April 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5943; Filed, Apr. 13, 1945; 11:44 a. m.]

[MPR 188, Order 3645]

JOHN F. FRANKLIN AND CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of MPR 188, *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles of furniture manufactured by John F. Franklin and Company, 2041 Fifth Street, Glendale 1, California.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Manufacturer's maximum price to persons, other than retailers, who sell from their own stock	Manufacturer's maximum price to persons, other than retailers, who sell from the manufacturer's stock	Maximum price for sales to retailers by the manufacturer, and by persons, other than retailers, who sell from the manufacturer's stock
Metal table	1A1	*Each* $35.60	*Each* $37.83	*Each* $44.50
Metal table	1A2	20.00	21.25	25.00
Metal table	1A3	12.80	13.60	16.00
Metal chair	1B1	9.20	9.78	11.50

These prices are f. o. b. factory, are subject to a cash discount of two percent for payment within ten days, net thirty days, and are for the articles described in the manufacturer's application dated February 13, 1945.

(2) For sales by the manufacturer the maximum prices apply to all sales and deliveries since the effective date of MPR 188. For sales by persons, other than retailers, who sell from the manufacturer's stock, the maximum prices apply to all sales and deliveries after the effective date of this order.

(3) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and

conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158, of MPR 188, for the establishment of maximum prices of those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) At the time of, or prior to, the first invoice to each purchaser, other than a retailer, who sells from the manufacturer's stock, the manufacturer shall notify the purchaser of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(c) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective on the 14th day of April 1145.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5944; Filed, Apr. 13, 1945, 11:46 a. m.]

[MPR 260, Order 726]

NORTH AMERICAN IMPORT & EXPORT CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102a of Maximum Price Regulation No. 260, as amended, *It is ordered*, That:

(a) North American Import & Export Co., 6 Woodward Bldg., Washington, D. C. (hereinafter called "importer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand, frontmark and packing of the following imported cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Frontmark	Packing	Maximum list price	Maximum retail price
Wernado	Londres	50	$151	$0.20

(b) The importer and wholesalers shall grant, with respect to their sales of each brand and frontmark of imported cigars for which maximum prices are established by this order, the discounts they customarily granted during March 1942 on their sales of imported cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and frontmark of cigars priced by this order and shall not be reduced. If a brand or frontmark of imported cigars for which maximum prices are established by this order is of a price class not sold by the importer or the particular wholesaler during March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) during March 1942 by his most closely competitive seller of the same class on sales of imported cigars of the same price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and frontmark of imported cigars for which maximum prices are established by this order, the importer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and frontmark of imported cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260, as amended.

(d) Unless the context otherwise requires, the provisions of Maximum Price Regulation No. 260, as amended, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 14, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5945; Filed, Apr. 13, 1945; 11:47 a. m.]

[MPR 260, Order 727]

CATZ AMERICAN CO., INC.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102a of Maximum Price Regulation No. 260, as amended, *It is ordered*, That:

(a) Catz American Co., Inc., 99 Hudson St., New York 13, N. Y. (hereinafter called "importer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand, frontmark and packing of the following imported cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Each*
Detallista	Panetellas	50	$115.00	$0.15
	Petit-Cetros	25	176.00	.22
	Nacionales	25	212.25	.28
	Conchas	50	145.00	3 for .55
	Victory	25	190.00	.25
	Cremas	50	245.00	3 for 1.00

(b) The importer and wholesalers shall grant, with respect to their sales of each brand and frontmark of imported cigars for which maximum prices are established by this order, the discounts they customarily granted during March 1942 on their sales of imported cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and frontmark of cigars priced by this order and shall not be reduced. If a brand or frontmark of imported cigars for which maximum prices are established by this order is of a price class not sold by the importer or the particular wholesaler during March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) during March 1942 by his most closely competitive seller of the same class on sales of imported cigars of the same price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and frontmark of imported cigars for which maximum prices are established by this order, the importer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and frontmark of imported cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260, as amended.

(d) Unless the context otherwise requires, the provisions of Maximum Price Regulation No. 260, as amended, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 14, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5946; Filed, Apr. 13, 1945; 11:46 a. m.]

[MPR 260, Order 728]

RODRIGUEZ AND GARCIA CIGAR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260, *It is ordered*, That:

(a) Rodriguez and Garcia Cigar Co., 1806 12th Ave., Tampa 5, Fla. (hereinafter called "manufacturer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or Frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Each*
Mara-Villa	Londres Grandes	50	$97.50	$0.13
Rodriguez & Garcia.	Pina Chicos	50	64.00	.08
	Grandes	50	72.00	.09
	Brevas	50	169.00	.22
	Admiral	50	177.00	.23
	Media Corona	50	161.50	.21
	Epicure	50	138.00	.18
	Queen	50	161.50	.21
	Pina Chicos	50	64.00	.08

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 14, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5947; Filed, Apr. 13, 1945; 11:47 a. m.]

[MPR 260, Order 729]

GEORGE SAMUELS & ASSOCIATES

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102a of Maximum Price Regulation No. 260, as amended, *It is ordered*, That:

(a) George Samuels & Associates, 226 W. 4th St., Chico, Calif., (hereinafter called "importer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand, frontmark and packing of the following imported cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Each*
Flor de Lis	Nationales	25	$250	3 for $1.00
	Selectos	25	176	.22

(b) The importer and wholesalers shall grant, with respect to their sales of each brand and frontmark of imported cigars for which maximum prices are established by this order, the discounts they customarily granted during March 1942 on their sales of imported cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and frontmark of cigars priced by this order and shall not be reduced. If a brand or frontmark of imported cigars for which maximum prices are established by this order is of a price class not sold by the importer or the particular wholesaler during March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) during March 1942 by his most closely competitive seller of the same class on sales of imported cigars of the same price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and frontmark of imported cigars for which maximum prices are established by this order, the importer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and frontmark of imported cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260, as amended.

(d) Unless the context otherwise requires, the provisions of Maximum Price Regulation No. 260, as amended, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 14, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5948; Filed, Apr. 13, 1945; 11:47 a. m.]

[MPR 260, Order 730]

SCHWARZ & SON

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102a of Maximum Price Regulation No. 260, as amended, *It is ordered*, That:

(a) Schwarz & Son, 72 William St., Newark 2, N. J. (hereinafter called "importer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand, frontmark and packing of the following imported cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Frontmark	Packing	Maximum list price	Maximum retail price
Particulares	Twentys	50	$161.50	$0.20
	Cadets	25	176.00	.22
	Bankers	25	212.25	.28
	Panetelas	50	154.00	3 for .55

(b) The importer and wholesalers shall grant, with respect to their sales of each brand and frontmark of imported cigars for which maximum prices are established by this order, the discounts they customarily granted during March 1942 on their sales of imported cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same

class shall be allowed on corresponding sales of each brand and frontmark of cigars priced by this order and shall not be reduced. If a brand or frontmark of imported cigars for which maximum prices are established by this order is of a price class not sold by the importer or the particular wholesaler during March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) during March 1942 by his most closely competitive seller of the same class on sales of imported cigars of the same price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and frontmark of imported cigars for which maximum prices are established by this order, the importer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and frontmark of imported cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260, as amended.

(d) Unless the context otherwise requires, the provisions of Maximum Price Regulation No. 260, as amended, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 14, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5949; Filed, Apr. 13, 1945; 11:48 a. m.]

[MPR 260, Order 731]

PACKER BROTHERS

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102a of Maximum Price Regulation No. 260, as amended, *It is ordered*, That:

(a) Packer Brothers, 318 W. 47th St., New York, N. Y. (hereinafter called "importer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand, frontmark and packing of the following imported cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Each*
Particulares	Twentys	50	$161.50	$0.20
	Cadets	25	176.00	.22
	Bankers	25	212.25	.28
	Panetelas	50	154.00	3 for .55
Belinda	Victory	25	244.00	3 for 1.00

(b) The importer and wholesalers shall grant, with respect to their sales of each brand and frontmark of imported cigars for which maximum prices are established by this order, the discounts they customarily granted during March 1942 on their sales of imported cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and frontmark of cigars priced by this order and shall not be reduced. If a brand or frontmark of imported cigars for which maximum prices are established by this order is of a price class not sold by the importer or the particular wholesaler during March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) during March 1942 by his most closely competitive seller of the same class on sales of imported cigars of the same price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and frontmark of imported cigars for which maximum prices are established by this order, the importer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and frontmark of imported cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260, as amended.

(d) Unless the context otherwise requires, the provisions of Maximum Price Regulation No. 260, as amended, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 14, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5950; Filed, Apr. 13, 1945; 11:48 a. m.]

[RMPR 136, Order 424]

L. LINK & CO., INC.

ESTABLISHMENT OF MAXIMUM PRICES

Order No. 424 Under Revised Maximum Price Regulation 136. Machines, parts and industrial equipment. L. Link & Company, Incorporated. Docket No. 2-136.25a-18.

For the reasons set forth in an opinion, issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 21 of Revised Maximum Price Regulation 136, *It is ordered:*

(a) The maximum net prices for sales by L. Link & Company, Incorporated, New York, New York, of the following models of gum tape dispensers shall be as follows:

	Maximum net price
Gum tape dispensers:	
Senior model	$25.90
Junior model	10.20

(b) The maximum net prices for sales by resellers of Senior and Junior gum tape dispensers manufactured by L. Link & Company, Incorporated, shall be determined as follows: The reseller shall add to the maximum net price he had in effect to a purchaser of the same class just prior to the issuance of this order, the amount, in dollars-and-cents, by which his net invoice cost has been increased due to the adjustment granted by this order.

(c) L. Link & Company, Incorporated, shall notify each person who buys the Senior and Junior model gum tape dispensers for resale of the dollars-and-cents amounts by which this order permits the reseller to increase his maximum net price. A copy of each such notice shall be filed with the Machinery Branch, Office of Price Administration, Washington 25, D. C.

(d) On or before June 30, 1945, L. Link & Company, Incorporated, shall file profit and loss statements for the period December 1, to December 31, 1944, and for the period January 1 to April 30, 1945, inclusive.

(e) Order No. 63 issued under the provisions of § 1390.25a of Maximum Price Regulation 136, as amended, by the New York Regional Office, on January 22, 1945, is hereby revoked.

(f) All requests not granted herein are denied.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 13, 1945.

Issued this 13th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5965; Filed, Apr. 13, 1945; 3:55 p. m.]

[MPR 478, Order 140]

A. J. TOWER CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 15 of Maximum Price Regulation No. 478, it is ordered:

(a) *What this order does.* This order establishes maximum prices for sales by the A. J. Tower Company, Boston, Massachusetts, of waterproof oiled sheeting which it manufactures from 40" 64 x 64 3.15 cotton sheeting. It also establishes

a method whereby resellers of this sheeting shall determine the maximum prices for their resales.

(b) *Maximum prices.* The maximum prices for sales by the A. J. Tower Company, of the waterproof oiled sheeting described in paragraph (a) of this order, shall be $0.31 per linear yard.

(c) *Maximum prices for sales by sellers other than the manufacturer.* The maximum prices for sales of the sheeting described in paragraph (a), by a person other than the manufacturer thereof, shall be the maximum price that was in effect for the reseller's sales immediately prior to the effective date of this order, plus $0.07 per linear yard.

(d) With or prior to the first delivery of any sheeting covered by this order to a reseller, the manufacturer or other person making such sale shall furnish such reseller with a notification in writing stating that the reseller is required to establish the maximum price for his resales under paragraph (c) of this order. Such notice shall also describe the method by which the reseller computes his maximum price as set forth in paragraph (c) of this order.

(e) All discounts, allowances, and trade practices of the seller in effect during March, 1942, shall apply to sales of the coated fabric covered by this order.

(f) All provisions of Maximum Price Regulation No. 478 not inconsistent with this order shall apply to sales covered by this order.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 16, 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5990; Filed, Apr. 14, 1945; 11:25 a. m.]

[MPR 188, Amdt. 9 to 2d Rev. Order A-3]

CERTAIN DURABLE GOODS

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.159b of Maximum Price Regulation No. 188, Second Revised Order A-3 is amended in the following respects:

1. Paragraph (e) (1) is amended to include the following commodities:

Screw holding screw drivers
Levels
Watchmakers' hand tools
Carpenters' squares
Gasoline (pressure type) self-heating irons

2. Paragraph (e) (1) is amended by the deletion of the following commodity:

Screw Drivers

This amendment shall become effective on the 16th day of April, 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5988; Filed, Apr. 14, 1945; 11:24 a. m.]

[MPR 200, Order 1]

HOOD RUBBER CO., AND WEBSTER RUBBER CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1315.1405b of Maximum Price Regulation 200, it is ordered:

(a) *What this order does.* This order establishes the manufacturer's, wholesalers', and shoe repairmen's maximum prices for sales in the shoe repair trade of men's brown and black wood core super grade half heels and women's brown and black wood core super grade Cuban heels, bearing the brand name Goodrich D Cushion or Vogue, which are manufactured by Hood Rubber Company of Watertown, Massachusetts. It also establishes maximum prices for all sales in the shoe repair trade of the special competitive grade women's Cuban brown heels and the special competitive grade ⅜" Junior wedge heels, which are manufactured by Webster Rubber Company of Sabattus, Maine. The shoe repairman's maximum prices for sales of these heels attached are also established by this order.

(b) *Maximum prices.* The manufacturers' and wholesalers' maximum prices for sales in the shoe repair trade of the heels described in paragraph (a) and for shoe repairmen's sale of these heels attached are as follows:

	Sales by shoe repairmen to consumers		Sales to shoe repairmen per dozen pair	Sales to wholesalers per dozen pair
	Attached per pair	Unattached per pair		
Men's wood core super grade half heels manufactured by Hood Rubber Co.:				
Brown	$0.60	$0.24	2.65	$1.99
Black	.55	.22	2.25	1.69
Women's wood core super grade Cuban heels manufactured by Hood Rubber Co.				
Brown	.50	.20	2.10	1.58
Black	.45	.18	1.75	1.31
Women's special competitive grade Cuban brown heels manufactured by Webster Rubber Co	.40	.16	1.15	.86
⅜" special competitive grade Junior wedge brown heels manufactured by Webster Rubber Co	.40	.16	1.15	.86

The above maximum prices for sales to shoe repairmen shall be reduced by any cash discounts given by the seller to shoe repairmen of the same class during March 1942.

The above maximum prices for sales to wholesalers shall be decreased by 5 percent if the purchaser pays cash within thirty days after delivery.

All other discounts, allowances, and trade practices of sellers which were in effect during March 1942 shall apply to sales covered by this order.

(c) *Notification of maximum prices.* With or prior to the first delivery to a wholesaler or a shoe repairman of any of the heels covered by this order, the seller shall notify the purchaser in writing of the maximum price for sales by the shoe repairmen of the rubber heel attached and the maximum price for sales by shoe repairmen of the unattached heel as established by paragraph (b) of this order. If the purchaser is a wholesaler the notification shall include the maximum price applicable to the wholesaler's resales to wholesalers and to shoe repairmen and a statement that such purchaser is required by this order to notify any shoe repairman to whom he sells of the maximum prices for the sales of the heels by the shoe repairmen attached or unattached, as established by paragraph (b) of this order.

(d) All provisions of Maximum Price Regulation 200 not inconsistent with this order shall apply to sales covered by this order.

(e) This order may be revoked or amended by the Administrator at any time.

This order shall become effective April 16, 1945.

Issue this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5985; Filed, Apr. 14, 1945; 11:23 a. m.]

[MPR 188, Order 3644]

STUART MANSFIELD

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of MPR 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles of furniture manufactured by Stuart Mansfield, 2564 Park Avenue, New York 51, New York.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Manufacturer's maximum price to persons, other than retailers, who sell from their own stock	Manufacturer's maximum price to persons, other than retailers, who sell from the manufacturer's stock	Maximum price for sales to retailers by the manufacturer, and by persons, other than retailers, who sell from the manufacturer's stock
		Each	*Each*	*Each*
Juvenile set	"60-De-Luxe"	$8.12	$8.62	$10.15
Child's costumer	50	1.68	1.79	2.11
Child's costumer	51	1.68	1.79	2.11

These prices are f. o. b. factory, are subject to a cash discount of two percent for payment within thirty days, net thirty days, and are for the articles described in the manufacturer's application dated February 3, 1945.

(2) For sales by the manufacturer the maximum prices apply to all sales and

deliveries since the effective date of MPR 188. For sales by persons, other than retailers, who sell from the manufacturer's stock, the maximum prices apply to all sales and deliveries after the effective date of this order.

(3) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158, of MPR 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) At the time of, or prior to, the first invoice to each purchaser, other than a retailer, who sells from the manufacturer's stock, the manufacturer shall notify the purchaser of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(c) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective on the 16th day of April 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5987; Filed, Apr. 14, 1945; 11:23 a. m.]

[MPR 200, Order 2]

HOLTITE MANUFACTURING CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to § 1315.1405b of Maximum Price Regulation 200, it is ordered:

(a) *What this order does.* This order establishes the manufacturer's, wholesalers' and shoe repairmen's maximum prices for sales in the shore repair trade of supergrade, extra heavy, composition, 14 iron, size 17/19, black and brown half soles which are manufactured by the Holtite Manufacturing Company of Baltimore, Maryland.

(b) *The manufacturer's and wholesalers' maximum prices.* The manufacturer's and wholesalers' maximum prices for sales in the shoe repair trade of the soles described in paragraph (a) are as follows:

	Sales (per dozen pairs) to shoe repairmen	Sales (per dozen pairs) to wholesalers
Black	$4.10	$3.08
Brown	5.20	3.90

The above maximum prices for sales to shoe repairmen shall be reduced by any cash discounts given by the seller to shoe repairmen of the same class during March 1942.

The above maximum prices for sales to wholesalers shall be decreased by 5 percent if the purchaser pays cash within thirty days after delivery.

All other discounts, allowances, and trade practices of sellers covered by this order which were in effect during March 1942 shall apply to sales covered by this order.

(c) *Shoe repairmen's maximum prices.* Section 1315.1425 (b) of Maximum Price Regulation 200 applies to sales by shoe repairmen of the soles covered by this order.

(d) *Notification of maximum prices.* With or prior to the first delivery to a wholesaler or a shoe repairman of any of the soles covered by this order, the seller shall notify the purchaser in writing that § 1315.1425 (b) of Maximum Price Regulation 200 establishes maximum prices for sales of the soles at retail. If the purchaser is a wholesaler the notification shall include the maximum price applicable to the wholesaler's resales to wholesalers and to shoe repairmen and a statement that such purchaser is required by this order to notify any shoe repairmen to whom he sells that § 1315.1425 (b) of Maximum Price Regulation 200 applies to sales of these soles at retail.

(e) All provisions of Maximum Price Regulation 200 that are not inconsistent with this order shall apply to sales covered by this order.

(f) This order may be revoked or amended by the Administrator at any time.

This order shall become effective April 16, 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5986; Filed, Apr. 14, 1945; 11:20 a. m.]

[MPR 260, Order 732]

THE P. J. RUBEY CO., INC.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102a of Maximum Price Regulation No. 260, as amended; *It is ordered,* That:

(a) The P. J. Rubey Company, Inc., 9023-25 Baltimore Ave., Chicago 17, Ill. (hereinafter called "importer") and wholesalers and retailers may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand, frontmark and packing of the following imported cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
Particulares	Twenty	50	$161.50	20
	Cadets	25	176.00	22
	Bankers	25	212.25	28
	Panatelas	50	154.00	3 for 55

(b) The importer and wholesalers shall grant, with respect to their sales of each brand and frontmark of imported cigars for which maximum prices are established by this order, the discounts they customarily granted during March 1942 on their sales of imported cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the importer or a wholesaler during March 1942 on sales of imported cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and frontmark of cigars priced by this order and shall not be reduced. If a brand or frontmark of imported cigars for which maximum prices are established by this order is of a price class not sold by the importer or the particular wholesaler during March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) during March 1942 by his most closely competitive seller of the same class on sales of imported cigars of the same price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and frontmark of imported cigars for which maximum prices are established by this order, the importer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and frontmark of imported cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260, as amended.

(d) Unless the context otherwise requires, the provisions of Maximum Price Regulation No. 260, as amended, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 16, 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5981; Filed, Apr. 14, 1945; 11:25 a. m.]

[MPR 260, Order 733]

JOHN T. TARBERT

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this order, and pursuant to § 1358.102 (b) of Maximum Price Regulation No 260, *It is ordered,* That:

(a) John T. Tarbert, R. D. #1, Red Lion, Pa. (hereinafter called "manufacturer") and wholesalers and retailers

may sell, offer to sell or deliver and any person may buy, offer to buy or receive each brand and size or frontmark, and packing of the following domestic cigars at the appropriate maximum list price and maximum retail price set forth below:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
			Per M	*Cents*
Armour Clad		50	$56	8

(b) The manufacturer and wholesalers shall grant, with respect to their sales of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the discounts they customarily granted in March 1942 on their sales of domestic cigars of the same price class to purchasers of the same class, unless a change therein results in a lower price. Packing differentials charged by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class may be charged on corresponding sales of each brand and size or frontmark of cigars priced by this order, but shall not be increased. Packing differentials allowed by the manufacturer or a wholesaler in March 1942 on sales of domestic cigars of the same price class to purchasers of the same class shall be allowed on corresponding sales of each brand and size or frontmark of cigars priced by this order and shall not be reduced. If a brand and size or frontmark of domestic cigars for which maximum prices are established by this order is of a price class not sold by the manufacturer or the particular wholesaler in March 1942, he shall, with respect to his sales thereof, grant the discounts and may charge and shall allow the packing differentials customarily granted, charged or allowed (as the case may be) in March 1942 by his most closely competitive seller of the same class on sales of domestic cigars of the same March 1942 price class to purchasers of the same class.

(c) On or before the first delivery to any purchaser of each brand and size or frontmark of domestic cigars for which maximum prices are established by this order, the manufacturer and every other seller (except a retailer) shall notify the purchaser of the maximum list price and the maximum retail price established by this order for such brand and size or frontmark of domestic cigars. The notice shall conform to and be given in the manner prescribed by § 1358.113 of Maximum Price Regulation No. 260.

(d) Unless the context otherwise requires, appropriate provisions of Maximum Price Regulation No. 260, shall apply to sales for which maximum prices are established by this order.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective April 16, 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5982; Filed, Apr. 14, 1945; 11:25 a. m.]

[MPR 564, Order 1]

ST. LOUIS MUSIC SUPPLY CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion, issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to the provisions of section 7 of Maximum Price Regulation No. 564; *It is ordered:*

(a) This order establishes retail ceiling prices for sales and deliveries of certain fountain pens and mechanical pencils distributed by St. Louis Music Supply Co., of 4400 Delmar Boulevard, St. Louis 8, Missouri, as follows:

St. Louis Music Supply Co. catalogue No.	Article	Retail ceiling price
		Each
8729	Fountain pen	$1.00
8867	do	1.00
9001	do	1.00
8892	do	1.00
9012	do	3.00
8770A	do	1.00
8966	do	2.00
8903	Mechanical pencil	.96
8902	do	.45

These retail ceiling prices are for those articles described in the application of St. Louis Music Supply Co., dated January 10, 1945, which were shipped by the manufacturers thereof, prior to November 1, 1944.

(b) St. Louis Music Supply Co., and all other wholesalers shall determine maximum prices for sales of the articles priced in paragraph (a) of this order, pursuant to section 6 of Maximum Price Regulation No. 564.

(c) No retailer shall sell any article for which a retail ceiling price is established in paragraph (a) of this order at a price higher than such retail ceiling price, unless a tag or label, in the form set forth in section 10 of Maximum Price Regulation No. 564, is affixed thereto.

(d) This order may be revoked or amended by the Price Administrator at any time.

This order shall be come effective on April 16, 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5989; Filed, Apr. 14, 1945; 11:23 a. m.]

[Max. Import Price Reg., Order 82]

DOROTHY CRIDER TEGARDEN

ESTABLISHMENT OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 21 of the Maximum Import Price Regulation, it is ordered:

(a) *What this order does.* This order establishes maximum prices at which the importer may sell, and maximum prices at which wholesalers and retailers may buy and sell, certain solid silver windproof type cigarette lighters complete with flint, packing and wick, imported from Mexico by Dorothy Crider Tegarden, 115 Belmont Ave., North, Seattle, Washington, hereinafter called the "importer". Each lighter is identified by a marking "Silver-Mexico-TE".

(b) *Maximum prices on sales by the importer.* The importer may not sell these cigarette lighters and no person may buy them from her at prices exceeding the following:

Sales to wholesalers__ $10.70 each, delivered.[1]
Sales to retailers_____ $12.00 each, delivered.[1]
Sales to consumers___ $21.00 each.

[1] Terms, 2%, 10 days.

(c) *Maximum wholesale and retail prices.* No wholesaler or retailer may sell such cigarette lighters and no person may buy them from such sellers at prices higher than the following:

Class of seller:	*Maximum prices*
Sales by wholesalers.	$12.00 each, delivered.[1]
Sales by retailers	$21.00 each.

[1] Terms, 2%, 10 days.

(d) *Importer to notify wholesalers.* The importer shall furnish a copy of this order to each wholesaler to whom such cigarette lighters are sold and shall also include on her invoice the following statement:

The enclosed Order No. 82 issued by the Office of Price Administration under the Maximum Import Price Regulation establishes your maximum selling price for these cigarette lighters and requires you to notify your customers what is their maximum price as stated in the order.

(e) *Importer and wholesalers to notify retailers.* The importer and every wholesaler selling such cigarette lighters to retailers shall include on the invoice to each retailer the following statement:

Your maximum selling price for these cigarette lighters, as established by Order No. 82 issued by the Office of Price Administration under the Maximum Import Price Regulation is $21.00 each.

(f) *Revocation and amendment.* This order may be revoked or amended at any time.

This order shall become effective on April 17, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6054; Filed, Apr. 16, 1945; 11:09 a. m.]

[RMPR 122, Amdt. 20 to Rev. Order 47]

SOLID FUELS IN WASHINGTON AREA AND ALEXANDRIA, VA.

ADJUSTMENT OF AUTHORIZED PRICE

For the reasons set forth in an opinion issued simultaneously herewith and in accordance with § 1340.260 of Revised Maximum Price Regulation No. 122, *It is ordered*, That Revised Order No. 47

under Maximum Price Regulation No. 122 be amended in the following respects:

1. The per gross, per net, per ½ gross and per ½ net ton maximum prices for Virginia anthracite in paragraph (c) (1) under Price Schedule I—Sales on a "direct delivery" basis—are deleted and the following per net and per ½ net ton prices are inserted as follows:

Kind and size	Per ton: Gross, 2,240 pounds; net, 2,000 pounds	Per ½ ton: Gross, 1,120 pounds; net 1,000 pounds
Virginia anthracite:		
Egg, stove, nut	$10.57	$5.74
Pea	8.96	4.93
Buckwheat #1	7.38	4.14

2. The word "Briquets" and the prices therefor in paragraph (c) (1) under Price Schedule I—Sales on a "direct delivery" basis—are deleted and the following are inserted as follows:

Kind and size	Per ton: Gross, 2,240 pounds; net, 2,000 pounds	Per ½ ton: Gross, 1,120 pounds; net 1,000 pounds
Glen Rogers Briquettes	$10.62	$5.76
Berwind Briquettes	10.42	5.65

3. The per net and per gross ton maximum prices established for Virginia anthracite by paragraph (d) under Price Schedule II—"Yard Sales" are deleted and the following per net ton prices are inserted as follows:

Kind and size	Consumer prices: Gross, 2,240 pounds; net, 2,000 pounds	Dealer prices: Gross, 2,240 pounds; net, 2,000 pounds
Virginia anthracite:		
Egg, stove, nut	$9.67	$8.33
Pea	8.07	6.86
Buckwheat #1	6.49	5.46

4. The word "Briquettes" and the prices therefor in paragraph (d) under Price Schedule II—"Yard Sales" are deleted and the following are inserted as follows:

Kind and size	Consumer prices			Dealer prices	
	Gross 2,240 lbs.	Net 2,000 lbs.	Per 100 lbs.	Gross 2,240 lbs.	Net 2,000 lbs.
Glen Rogers Briquettes	------	$9.73	------	------	------
Berwind Briquettes	------	9.53	------	------	------

This Amendment No. 20 to Revised Order No. 47 shall become effective April 16, 1945.

Issued this 14th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-5980; Filed, Apr. 14, 1945; 11:22 a. m.]

No. 76——10

[RMPR 499, Order 15]

HARVEL WATCH CO.

ESTABLISHMENT OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 14 of Revised Maximum Price Regulation 499, it is ordered:

(a) *Effect of this order.* This order establishes maximum prices at which certain imported watches identified below may be sold to retailers and at retail. These watches are imported by the Harvel Watch Company, 630 Fifth Avenue, New York, New York, hereinafter called the "importer".

(b) *Maximum prices for sales to retailers and at retail.* The maximum prices for sales by any person to retailers and at retail of the Harvel watches identified below are as follows:

Size	Description	Style No.	Maximum prices to retailers	Maximum retail prices including Fed. Excise Tax
11½	Men's YSB 9J	176, etc	$9.55	$23.75
11½	Men's YSB 17J	176, etc	12.05	29.75
10½	Men's YSB 9J	079, etc	9.95	23.75
10½	Men's YSB 17J	057, etc	12.95	32.50
10½	Men's RGP 9J	048, etc	10.60	24.75
8 x 9	Men's YSB 9J	864, etc	10.70	24.75
8 x 9	Men's YSB 17J	852, etc	14.55	35.00
8 x 9	Men's RGP 9J	866, etc	12.30	29.75
8 x 9	Men's RGP 17J	861, etc	17.20	39.75
8 x 9	Men's G. F. 10K 17J	847, etc	19.35	47.50
8 x 9	Men's 14K 17J	1811Y	37.40	95.00
		1812	36.15	95.00
		1813	38.45	95.00
		1814	34.95	95.00
17"	Men's RGP 9J	905	10.55	24.75
17"	Men's RGP 17J	904	13.15	29.75
6 x 8 [1]	Lad. YSB 9J	465, etc	10.75	24.75
6 x 8 [1]	Lad. YSB 17J	469-1, etc	12.90	32.50
6 x 8 [1]	Lad. RGP 17J	467-8, etc	15.30	35.00
6 x 8 [1]	Lad. 14K 17J	1425-1, etc	16.80	39.75
6 x 8 [1]	Lad. 14K 17J	1478, etc	18.30	45.00
6 x 8 [1]	Lad. 14K 17J	1408-1	19.00	47.50
5½	Lad. 14K 17J	3605, etc	22.40	55.00
5½	Lad. 14K 17J	3603-10, etc	27.90	65.00
5½	Lapel 14K 17J	2516	43.10	100.00
5½	Lapel 14K 17J	2515	43.80	100.00
5½	Lapel 14K 17J	2518	44.15	100.00
5½	Lapel 14K 17J	2511	45.90	110.00
5½	Lapel 14K 17J	2510	48.75	120.00
5½	Lapel 14K 17J	2512	48.75	120.00
5½	Lapel 14K 17J	2519	60.35	150.00
6 x 8 [1]	Lad. RGP 17J Nurse	402-3, etc	15.70	37.50
11½	Mens M. R.[2] Dom. Silver Steel Back, Sweep Second, 17J.	142A	16.40	37.50
8¾	Mens M. R. Self-O-Matic Steel, 15J	1210	22.60	55.00
8¾	Lad. M. R. Nurse Sweep Second, 17J	8010-1	17.50	39.75
10½	Mens M. R. Steel 17J	092	19.60	47.50
10½	Mens M. R. Steel Sweep, 17J	093	20.60	50.00
11½	Mens M. R. Steel Sweep, 9J	186	16.10	35.00
11½	Mens M. R. Chr. Steel Back, 9J	198	14.60	32.50

[1] The prices established above for 6 x 8 ligne ladies watches are for watches with ratchet cord. Forty cents may be added to the price to retailers and ninety cents may be added to the retail price if any of these watches are supplied with a ratchet metal bracelet.

[2] The abbreviation "M. R." means "Moisture Resistant."

The above maximum prices to retailers are exclusive of boxes and are subject to the importer's customary (March 1942) discounts and terms. For sales to retailers who desire boxes, there may be added to these prices the seller's maximum price for the box selected by the purchaser.

The maximum retail prices listed above are inclusive of the Federal excise tax of 10% (20% in the case of watches whose retail price is more than $65). No charge may be added to these maximum retail prices for boxes or for the extension of credit.

(c) *Notification.* Any person who sells the above watches to a purchaser for resale shall furnish the purchaser with a copy of this order or a price list incorporating the above prices and containing a certification that they are maximum prices established by the Office of Price Administration. In addition, he shall include on every invoice covering a sale of these watches the following statement:

OPA Order No. 15 under RMPR 499 establishes the maximum prices at which you may sell these watches.

This notification requirement supersedes the notification requirement in section 12 of Revised Maximum Price Regulation 499 with respect to the watches covered by this order.

(d) *Tagging.* The importer shall include with every watch covered by this order delivered to a purchaser for resale after its effective date, a tag or label setting forth style number and the maximum retail price of the particular watch. This tag or label may not be removed until the watch is sold to an ultimate consumer.

(e) This order may be revoked or amended by the Price Administrator at any time.

(f) Unless the context otherwise requires, the definitions set forth in section 2 of Revised Maximum Price Regulation No. 499 shall apply to the terms used herein.

This order shall become effective April 17, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6074; Filed, Apr. 16, 1945; 11:15 a. m.]

[MPR 136, Order 426]

KINGSTON-CONLEY ELECTRIC CO.

ADJUSTMENT OF MAXIMUM PRICES

Order No. 426 under Revised Maximum Price Regulation 136. Machines, parts and industrial equipment. Kingston-Conley Electric Company. Docket No. 6083-136.25a-225.

For the reasons stated in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 21 of Revised Maximum Price Regulation 136; *It is ordered:*

(a) The maximum price of Kingston-Conley Electric Company, 68 Brook Avenue, North Plainfield, New Jersey, for the sale to any class of purchaser of any electric motor or grinder which it manufactures shall be determined by multiplying the net price which it had in effect for the sale of such electric motor or grinder to such purchaser just prior to the issuance of this order by 102.75 percent.

(b) The maximum price of any reseller to any class of his purchasers of any electric motor or grinder affected by this order shall be determined by adding to the maximum price which such reseller had in effect to such class of purchaser just prior to the issuance of this order the dollar and cent amount by which the reseller's cost has been increased as the result of the adjustment in price granted to Kingston-Conley Electric Company in paragraph (a) hereof. Notwithstanding the foregoing, this order does not authorize any increases in the prevailing maximum prices for any electric motor or grinder sold at retail.

(c) Kingston-Conley Electric Company shall give written notice to its purchasers who buy for resale any electric motor or grinder affected by this order of the dollar and cents amount by which cost to such purchaser has been increased and by which such purchaser may increase his maximum price for the sale of any electric motor or grinder pursuant to this order. A copy of each such notice shall be filed with the Office of Price Administration, Washington 25, D. C. within thirty days from the effective date of this order or within five days after notification to a purchaser. Where similar notices are given to more than one purchaser Kingston-Conley Electric Company may file a single copy of such notification together with the names of the persons to whom it was given.

(d) Kingston-Conley Electric Company shall file with the Office of Price Administration, Washington 25, D. C., a copy of its financial statement for the year ended February 28, 1945 as soon as such statement becomes available.

This order may be amended or revoked by the Price Administrator at any time.

This order shall become effective April 17, 1945.

Issued this 16th day of April 1945.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 45-6056; Filed, Apr. 16, 1945; 11:10 a. m.]

SECURITIES AND EXCHANGE COMMISSION.

[File No. 59-39, 54-50, 59-10, 54-82]

NORTH AMERICAN LIGHT & POWER CO., ET AL.

ORDER FOR HEARING ON PETITION

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia, Pa., on the 13th day of April, 1945.

In the matter of North American Light & Power Company, Holding-Company System, and The North American Company, File No. 59-39; North American Light & Power Company, File No. 54-50; The North American Company, et al., file No. 59-10; The North American Company, File No. 54-82.

Notice is hereby given that Illinois Power Company, a registered holding company, and a direct or indirect subsidiary of Illinois Traction Company, North American Light & Power Company, and The North American Company, respectively, all registered holding companies, has on March 30, 1945, filed a petition with this Commission requesting the Commission to conduct such investigations, hold such hearings, take such evidence, and enter such order or orders deemed necessary or proper in the public interest and necessary or advisable in order to effectuate or carry out the purposes of the Public Utility Holding Company Act of 1935 with respect to the election by the parent companies of Illinois Power Company of three directors for Illinois Power Company at the annual meeting of stockholders of the latter company. All interested persons are referred to said petition which is on file in the office of the Commission for a statement of the matters therein contained.

It appearing to the Commission that The North American Company, North American Light & Power Company, and Illinois Traction Company, collectively, own 339,156 shares of preferred and common stock of Illinois Power Company which constitute 26.75% of the total voting power of the latter company; and

It being alleged in the petition of Illinois Power Company that the parent companies of Illinois Power Company propose to elect as directors of Illinois Power Company at its annual meeting of stockholders, by cumulative voting of the shares of stock owned by them, N. P. Zech, Robert N. Golding, and Robert D. Gordon and that N. P. Zech and Robert N. Golding have affiliations or interest with The Middle West Corporation, a registered holding company; and

Said petition further alleging that Central Illinois Public Service Company, a subsidiary of The Middle West Corporation, owns and operates electric and gas utility properties in the State of Illinois contiguous to the properties of Illinois Power Company, and that the interest and policies of Central Illinois Public Service Company and The Middle West Corporation are in conflict with the interests and policies of Illinois Power Company with respect to rates, labor policies, rural electrification, power supply and other matters; and

Said petition further alleging that the election of said candidates of North American Light & Power Company and Illinois Traction Company as directors of Illinois Power Company will be contrary to the provisions of the Public Utility Holding Company Act of 1935 for the reasons, among others, that with said candidates as members of the board of directors of Illinois Power Company said company will, or in the normal course of business dealings may, be unable to bargain at arm's-length with Central Illinois Public Service Company, and that there will, or may, result from the election of said candidates as directors of Illinois Power Company a restraint of free and independent competition between Central Illinois Public Service Company and Illinois Power Company in many of their operations; and

North American Light & Power Company and Illinois Traction Company having filed their answer to the petition of Illinois Power Company alleging, in substance, that the Commission is without authority or jurisdiction under the act to grant any relief requested by Illinois Power Company in said petition, denying any conflict between Central Illinois Public Service Company and Illinois Power Company, alleging further that the objections raised in said petition to the election of the candidates of North American Light & Power Company and Illinois Traction Company as directors of Illinois Power Company are frivolous and without substance, and that the majority of the board of directors of Illinois Power Company are employees of the company and dependent upon and subservient to the President of Illinois Power Company; and

It appearing to the Commission that North American Light & Power Company is required to liquidate and to terminate its existence by order of the Commission dated December 30, 1941 entered pursuant to section 11 (b) (2) of the act, that North American Light & Power Company has filed a plan under section 11 (e) of the act for the liquidation of said company, and that in the proceedings on said plan there are pending claims filed against Illinois Traction Company, North American Light & Power Company and The North American Company by Illinois Power Company and a claim-over filed against The North American Company by certain preferred stockholders of North American Light & Power Company on behalf of the latter company, with respect to said claims; and

The Commission deeming it necessary and appropriate in the public interest and in the interest of investors and consumers that a hearing be held as below set forth;

It is ordered, That a hearing be held pursuant to sections 11, 12 (f), 18 (a) and 20 (a) of the act to determine the facts and circumstances with respect to the proposed voting by The North American Company, North American Light & Power Company and Illinois Traction Company of the shares of stock owned by them in their subsidiary, Illinois Power Company, for the election of N. P. Zech, Robert N. Golding, and Robert D. Gordon, or any of them, as directors of Illinois Power Company at the annual meeting of shareholders of Illinois Power Company, and to determine what order or orders should be entered, or other action taken, if any, in respect thereto under the applicable provisions of the act: *Provided, however*, That no evidence shall be taken, except upon further order or direction of the Commission, with respect to the allegations contained in the answer filed by North American Light & Power Company that the majority of the Board of Directors of Illinois Power Company are employees of the company and dependent upon and subservient to the President of Illinois Power Company.

It is further ordered, That said hearing shall be held on April 25, 1945 at 10:00 a. m., e. w. t., at the offices of the Securities and Exchange Commission, 18th and Locust Streets, Philadelphia 3, Pennsylvania, in such room as may be designated on such date by the hearing room clerk in Room 318. All persons desiring to be heard or otherwise wishing to participate in the proceedings should notify this Commission in the manner provided for by the rules of practice, Rule XVII, on or before 5:30 p. m., e. w. t., April 23, 1945.

It is further ordered, That Robert P. Reeder or any other officer or officers of the Commission designated by it for that purpose, shall preside at such hearing. The officer so designated to preside at such hearing is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of said act and to a trial examiner under the Commission's rules of practice.

It is further ordered, That the Secretary of the Commission shall serve notice of the entry of this order by mailing a copy thereof by registered mail to Illinois Power Company, Illinois Traction Company, North American Light & Power Company and The North American Company and that notice shall be given to all other persons by publication in the FEDERAL REGISTER.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 45-5974; Filed, Apr. 14, 1945; 11:15 a. m.]

[File No. 54-124, 59-79]

SEATTLE GAS CO.

NOTICE OF FILING AND ORDER FOR HEARING

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia Pa., on the 13th day of April 1945.

I. Notice is hereby given that an application has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 by Seattle Gas Company. All interested parties are referred to said application, which is on file in the office of this Commission, for a statement of the transactions therein proposed, which are summarized as follows:

Seattle Gas Company (Seattle), a Washington corporation, is engaged in the manufacture and distribution of fuel gas in King County, Washington, and the manufacture and sale of residuals, consisting principally of carbon black, briquets, benzol and toluol. It is a subsidiary of Portland Electric Power Company (PEPCO) and Portland General Electric Company (PGE), registered holding companies under the act.

Seattle proposes to consummate a plan for its reorganization and recapitalization pursuant to section 11 (e) of the act for the purpose of enabling it to comply with the provisions of section 11 (b) (2) thereof. The provisions of the plan may be summarized as follows:

(1) By amendment to its Articles of Incorporation, the presently outstanding 47,105 shares of $5 First Preferred Stock, 27,338 shares of Second Preferred Stock and 23,739 shares of Common Stock will be reclassified into 47,105 shares of new 5% Cumulative Preferred Stock, par value $50 per share, or an aggregate par value of $2,355,250, and 73,392 shares of new Common Stock, par value $25 per share, or an aggregate par value of $1,834,800. There is proposed to be authorized for issuance 60,000 shares of new 5% Cumulative Preferred Stock and 100,000 shares of new Common Stock.

(2) The new securities mentioned in paragraph (1) above will be distributed to the holders of the presently outstanding capital stock of Seattle as follows:

(a) One share of new 5% Cumulative Preferred Stock and 1½ shares of new Common Stock for each share of $5 First Preferred Stock and all accumulated and unpaid dividends thereon. The holders of the $5 First Preferred Stock will receive a total of 47,105 shares of new 5% Cumulative Preferred Stock and 70,658 shares of New Common Stock.

(b) One-tenth of a share of new Common Stock for each share of Second Preferred Stock and all accumulated and unpaid dividends thereon. The holders of the Second Preferred Stock will receive 2,734 shares of new Common Stock.

Accordingly, all of the new 5% Cumulative Preferred Stock will be allocated to the holders of the presently outstanding $5 First Preferred Stock and the new Common Stock will be allocated to the holders of the presently outstanding $5 First Preferred Stock and Second Preferred Stock in the proportions of 96.28% and 3.72%, respectively. The existing Common Stock will be canceled and no new shares will be issued therefor. In lieu of fractional shares of new Common Stock, scrip certificates will be issued and will be exchangeable within two years for full shares. After two years from the first day of the month in which the amendment to the Articles of Incorporation of Seattle shall become effective, the new Common Stock reserved for issue in exchange for scrip certificates will be sold by the company, and thereafter, for a period of three additional years, holders of scrip certificates will be entitled to receive their pro rata share of the proceeds of sale, at the end of which time said scrip certificates shall be void for all purposes.

The application states that the plan was filed in order to remedy the existing inequitable distribution of voting power so as to enable the applicant to meet the requirements of section 11 (b) (2) of the act for effectuating a fair and equitable distribution of voting power among the holders of its securities. The applicant does not propose to solicit the consent of any of its security holders to the plan.

The application requests that the Commission (1) find the plan to be necessary to effectuate the provisions of section 11 (b) of said act and to be fair and equitable to the persons affected thereby, (2) issue an order approving the plan, and (3) apply to the District Court of the United States for the Western District of Washington, Northern Division, to enforce and carry out the terms and provisions of the plan.

II. From reports filed with the Commission and from data contained in its official files, it appears that:

1. Seattle was reorganized in 1935 pursuant to a plan of reorganization under section 77B of the Bankruptcy Act, which plan was consummated and approved by the District Court of the United States for the Eastern District of Washington, Northern Division. Prior to the reorganization, the outstanding capitalization of Seattle consisted of:

$358,000 first mortgage 5% bonds, due March 1, 1944.
$9,450,000 refunding mortgage 5% bonds, due 1949.
$1,239,000 6% debenture bonds, due 1936.
$1,134,000 notes.
20,000 shares preferred stock.
30,000 shares common stock.

Under the terms of the plan of reorganization, each $1,000 of Refunding Mortgage Bonds was exchanged for $500 of presently outstanding First and Refunding Mortgage Bonds, five shares of presently outstanding First Preferred Stock, and one share of presently outstanding Common Stock; certain unpaid coupons appurtenant to the Refunding Mortgage Bonds were exchanged for 1,886 shares of presently outstanding Second Preferred Stock; each $1,000 of Debenture Bonds and of Notes was exchanged for ten shares of presently outstanding Second Preferred Stock and one share of presently outstanding Common Stock; each two shares of Preferred Stock were exchanged for one share of presently outstanding Common Stock; and each twenty shares of Common Stock were exchanged for one share of presently outstanding Common Stock. The First Mortgage 5% Bonds, due March 1, 1944, were not affected by this reorganization.

2. The capitalization and surplus of Seattle, per books, as of December 31, 1944 was as follows:

Funded debt:	
First and refunding mortgage bonds, 5%, Series A, due October 1, 1954[1]	$4,710,500
Capital Stock:	
$5 first preferred stock (without par value) authorized—50,000 shares, issued and outstanding—47,105 shares, stated value—$70 per share	3,297,350
Second preferred stock (without par value) authorized—30,000 shares, issued and outstanding—27,338 shares, stated value—$25 per share	683,450
Common stock (without par value) authorized—170,000 shares, issued and outstanding—23,739 shares, stated value—$1.00 per share	23,739
Earned surplus, since November 30, 1935	914,228
Total capitalization and surplus	9,629,267

[1] These bonds are secured, inter alia, by $1,908,000 principal amount of first mortgage 5% gold bonds, matured March 1, 1944, which have been nominally issued and pledged as collateral to the first and refunding mortgage bonds, 5% Series A, due October 1, 1954.

3. The $5 First Preferred Stock is entitled to cumulative dividends at the rate of $5 per share per annum, and to $100 per share in liquidation, plus accumulated and unpaid dividends, and is convertible into two shares of Common Stock at the opinion of the holder. No dividends were paid on this stock from the date of reorganization to 1941, inclusive, and dividends in 1942, 1943 and 1944 aggregated $6.00 per share. As of December 31, 1944, dividends were in arrears to the extent of $47.75 per share, or a total of $2,249,264.

4. The Second Preferred Stock is entitled to dividends at the rate of $5 per share per annum, cumulative to the extent earned and unpaid provided that all dividends accumulated and accrued on the $5 First Preferred Stock have been paid, entitled to $75 per share in liquidation and is convertible into one share of Common Stock at the option of the holder. No dividends have been earned or paid upon this stock since its issuance in 1935.

5. The Common Stock is subject to all the prior rights of the $5 First Preferred Stock and Second Preferred Stock and no dividends have been earned or paid upon this stock since its issuance in 1935.

6. On all matters requiring action by stockholders of Seattle, each share of each class of capital stock has one vote, except that the holders of the $5 Preferred Stock, voting as a class, have the right to elect a majority of the Board of Directors so long as dividends on that stock are in arrears.

7. The $5 First Preferred Stock has had the sole and exclusive right to elect a majority of the Board of Directors since the reorganization inasmuch as dividends have always been in arrears.

III. On the basis of the allegations contained in the foregoing section II, there are reasonable grounds to believe that the voting power of Seattle is unfairly and inequitably distributed among its security holders;

IV. It being the duty of the Commission under section 11 (b) (2) of the act to require, by order, after notice and opportunity for hearing, that each registered holding company and each subsidiary company thereof shall take such steps as the Commission shall find necessary to ensure that its corporate structure does not unfairly or inequitably distribute voting power among security holders of such holding company system; and

It appearing that proceedings pursuant to section 11 (b) (2) should be directed to Seattle; and

It further appearing appropriate and in the public interest and in the interest of investors and consumers to institute proceedings directed to Seattle under sections 15 (f) and 20 (a) of the act to determine what orders, if any, should be entered to said sections; and

The Commission being required by the provisions of section 11 (e) of said act, before approving any plan thereunder, to find, after notice and opportunity for hearing that such plan, as submitted or as modified, is necessary to effectuate the provisions of section 11 (b) and is fair and equitable to the persons affected by such plan; and

It appearing to the Commission that a hearing should be held with respect to said plan filed under section 11 (e), and that said plan shall not be approved except pursuant to further order of this Commission; and

It further appearing to the Commission that said proceedings involve common questions of law and fact and should be consolidated and heard together;

It is ordered, That proceedings pursuant to sections 11 (b) (2), 15 (f) and 20 (a) be and are hereby instituted.

It is further ordered, That hearings on (a) the proposed plan for reorganization and recapitalization filed pursuant to section 11 (e), and (b) the proceedings pursuant to sections 11 (b) (2), 15 (f) and 20 (a) herein instituted, be held on the 9th day of May 1945, at 10:00 o'clock a. m., e. w. t., at the offices of the Securities and Exchange Commission, 18th and Locust Streets, Philadelphia 3, Pennsylvania, in such room as may be designated on that day by the hearing room clerk in Room 318. All persons desiring to be heard or otherwise wishing to participate in these proceedings should notify the Commission in the manner provided by Rule XVII of its rules of practice on or before May 7, 1945.

It is further ordered, That said proceedings be and the same are hereby consolidated;

It is further ordered, That Willis E. Monty or any other officer or officers of the Commission designated by it for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to exercise all the powers granted to the Commission under section 18 (c) of said act and to a trial examiner under the Commission's rules of practice.

It is further ordered, That without limiting the scope of the issues presented by said plan or by any other plan which may be filed by any duly authorized person or persons, particular attention will be directed at said hearing to the following matters and questions:

(1) Whether the plan, as proposed or as modified, is necessary to effectuate the provisions of section 11 (b) of the act.

(2) Whether the plan, as proposed or as modified, is fair and equitable to the persons affected thereby.

(3) Whether the securities proposed to be issued by Seattle meet the applicable standards of the act.

(4) Whether the proposed allocations of the new Preferred Stock and new Common Stock of Seattle to the public shareholders of said company are appropriate, or whether such allocations should be modified.

(5) Whether the accounting entries to be made in connection with the plan are in accordance with sound accounting principles and practice and consistent with the standards of the act.

(6) Whether the plan should be modified to include a provision for the payment by Seattle of such fees and expenses in connection with the plan or the proceedings with respect hereto as the Commission may determine, award or allow.

(7) Generally, whether the proposed transactions in connection with the plan are in all respects in the public interest and in the interest of investors and consumers and consistent with all applicable requirements of the act and rules thereunder and, if not, what modification should be required to be made therein and what terms and conditions should be imposed to satisfy the statutory standards.

(8) Whether the allegations contained in sections II and III hereof are true and correct.

(9) What orders, if any, should be entered pursuant to sections 11 (b) (2), 15 (f) and 20 (a) of the act, to insure that Seattle be brought into conformity with the applicable standards thereof.

It is further ordered, That notice of this hearing be given by the Secretary of the Commission to Seattle Gas Company, Portland Electric Power Company, Portland General Electric Company, the Department of Public Service of the State of Washington and the Mayor of Seattle, Washington by mailing a copy of this notice and order forthwith by registered mail, and that notice be given to all other persons by publication of a copy of this notice and order in the FEDERAL REGISTER;

It is further ordered, That Seattle mail a copy of this notice and order at least twenty days prior to May 9, 1945 to each of its stockholders at his last known address;

It is further ordered, That jurisdiction be and is hereby reserved to separate, whether for hearing, in whole or in part, or for disposition, in whole or in part, any of the issues, questions or matters hereinbefore set forth or which may arise in these proceedings, or to consolidate with these proceedings other filings or matters pertaining to said consolidated

proceedings or to take such other action as may appear conducive to an orderly, prompt and economical disposition of the matters involved.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 45-5973; Filed, Apr. 14, 1945; 11:15 a. m.]

[File No. 50-12]

PORTLAND ELECTRIC POWER CO., AND PORTLAND GENERAL ELECTRIC CO.

NOTICE OF AND ORDER INSTITUTING PROCEEDINGS

At a regular session of the Securities and Exchange Commission held at its office in the City of Philadelphia, Pa., on the 13th day of April 1945.

The Commission having examined the records and information available to it with respect to Portland Electric Power Company and Portland General Electric Company, registered holding companies, and with respect to Seattle Gas Company, a public-utility company operating in the State of Washington and a subsidiary of Portland Electric Power Company and Portland General Electric Company, which registered holding companies own, directly or indirectly, an aggregate of 13,400 shares of the Second Preferred Stock and 2,840 shares of the Common Stock of Seattle Gas Company, comprising an aggregate of 16.6% of the voting securities thereof; and

The Commission having reason to believe that Portland Electric Power Company and Portland General Electric Company have been and are endeavoring to effect a sale of their holdings in Seattle Gas Company for a consideration of less than $100,000; and

The Commission having reason to believe that the disposition of the securities of Seattle Gas Company by Portland Electric Power Company or Portland General Electric Company may be detrimental to the public interest and the interest of investors in view of the pendency of the proceedings for the recapitalization and reorganization of Seattle Gas Company (File Nos. 54-124 and 59-79); and

It therefore appearing to the Commission that the withdrawal pursuant to the provisions of Rule U-100 (b) of any exemption with respect to such sale or sales as may be granted by Rule U-44 (b) (2) promulgated under the act would be appropriate in the public interest and the interest of investors;

It further appearing to the Commission that it is appropriate that a hearing be held with respect to the withdrawal of the exemption granted by Rule U-44 (b) (2);

It is hereby ordered, That proceedings pursuant to Rule U-100 (b) with respect to the withdrawal of the exemption granted by Rule U-44 (b) (2) be, and they hereby are, instituted with respect to Portland Electric Power Company and Portland General Electric Company and that a hearing be held therein on May 2, 1945, at 10:00 a. m., e. w. t., at the offices of the Securities and Exchange Commission, 18th and Locust Streets, Philadelphia 3, Pennsylvania, in such room as may be designated on such date by the hearing room clerk in Room 318. All persons desiring to be heard in the proceedings shall notify the Commission on or before April 30, 1945. At such hearing, consideration will be given to determining whether an order pursuant to the provisions of Rule U-100 (b) shall be entered forthwith by this Commission, withdrawing the exemption provided by Rule U-44 (b) (2) with respect to the sale by Portland Electric Power Company and Portland General Electric Company of any security which they own of Seattle Gas Company, and requiring that Portland Electric Power Company and Portland General Electric Company shall not on the basis of the provisions of Rule U-44 (b) (2), directly or indirectly, sell any security of Seattle Gas Company to any person except pursuant to a declaration concerning the proposed transaction, which has become effective in accordance with the procedure specified in Rule U-23, and pursuant to the order of the Commission with respect to such declaration under the applicable provisions of said act.

It is further ordered, That the Secretary of this Commission shall serve a copy of this order by registered mail on Portland Electric Company, Portland General Electric Company, Thos. W. Delzell and R. L. Clark, Independent Trustees of Portland Electric Power Company (debtor in reorganization in proceedings pending in the United States District Court for the District of Oregon), and Guaranty Trust Company of New York, Indenture Trustee for 6% Collateral Trust Income Bonds of Portland Electric Power Company (in default), and notice is hereby given to all other persons by publication in the FEDERAL REGISTER.

It is further ordered, That Henry C. Lank, or any other officer or officers of the Commission designated by it for that purpose, shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of said act and to a trial examiner under the Commission's rules of practice.

It is further ordered, Pursuant to said Rule U-100 (b), that, pending determination of the proceedings herein instituted, the applicability of such exemption as is granted by the said Rule U-44 (b) (2) be, and it hereby is, suspended, insofar as it may affect any sales of any security of Seattle Gas Company directly or indirectly owned by Portland Electric Power Company and Portland General Electric Company.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 45-6023; Filed, Apr. 16, 1945; 9:53 a. m.]

WAR PRODUCTION BOARD.

[Certificate 202, Revocation]

U. S. MANAGEMENT & ENGINEERING CO.—OPTICAL MANUFACTURERS GROUP

APPROVAL OF JOINT ACTION PLAN

The ATTORNEY GENERAL.

Pursuant to section 12 of Public Law No. 603, 77th Congress (56 Stat. 357), I hereby withdraw the certificate and finding dated April 27, 1944, concerning the plan of organization, procedure, and objectives of the U. S. Management & Engineering Co.—Optical Manufacturers Group, New York City, organized for the purpose of manufacturing articles, equipment, supplies, and materials for war and essential civilian requirements.

Dated: April 10, 1945.

J. A. KRUG, *Chairman.*

[F. R. Doc. 45-6026; Filed, Apr. 16, 1945; 10:20 a. m.]